THE LEGAL SERIES

# LAW CRUX



# LAW OF CRIMES – I

## BHARATIYA NYAYA SANHITA, 2023 & IPC


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LAW CRUX NAVIGATION MATRIX // DU LL.B. PAPER LB-104

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by Ankur R. Upadhyay

UNIT 01 // DU LL.B. PAPER LB-104 (BNS & IPC) 5 Prescribed Cases · 8 Exam PYQs

# Elements of Crime, Mens Rea, Strict Liability & Punishments under BNS, 2023

## 1 Nature and Definition of Crime

"What is a crime?" — the question with which the DU Case Material opens (edited from R.C. Nigam, Law of Crimes in India 25–37 (1965))

### 1.1 Why the law begins with the question "What is law?"

Traditionally, law is known to be a **command enjoining a course of conduct** — the command of a sovereign or of political superiors to political inferiors, or of a duly constituted legislature to all members of society. A **crime may therefore be an act of disobedience to such a law**. But disobedience of *all* laws is not crime — disobedience of civil laws, laws of inheritance or contract does not make one a criminal. A crime therefore means *something more* than mere disobedience to law:

> *"It means an act which is both forbidden by law* ***and revolting to the moral sentiments of the society.***"
>
> — R.C. Nigam (DU Case Material, General Introduction)

Thus, robbery or murder is a crime because it is revolting to the moral sentiments of society; a breach of revenue or contract law is not. But "moral sentiments of society" is itself a **flexible term** — it changes with the growth of public opinion and the social necessities of the times, and differs from country to country.

### 1.2 Crime is a relative and changing concept

- **Heresy** — punished with burning a few centuries ago; today no civilised nation punishes religious belief.
- **Adultery** — a crime under the Penal Code (until *Joseph Shine v. Union of India*, (2018) 8 SCC 186, which decriminalised §497 IPC as between adults); the DU CM records the classic contrast: "adultery is a crime according to our penal code, while it is a civil wrong according to English law".
- **Suttee** (burning of a widow on the husband's pyre) — long considered a virtue in India; now a grave crime.
- **Polygamy** — not a crime for Hindus until the Hindu Marriage Act, 1955 made it so.
- **Post-independence new crimes** — untouchability, forced/bonded labour, marrying below a certain age — "since Independence, many acts have now been enacted into crimes which we could not even have conceived of". **The categories of crimes are not closed**; a socialist state conceives of more anti-social behaviour as crime.

**Exam line:** A crime of yesterday may become a virtue tomorrow, and a virtue of yesterday may become a crime tomorrow — hence all attempts to define crime, "beginning with Blackstone down to Kenny in modern times", have proved abortive.

### 1.3 Classical definitions of crime (know at least four for the exam)

| Jurist | Definition / Approach |
|---|---|
| **Blackstone** | A crime is "an act committed or omitted in violation of **public law** forbidding or commanding it" — an offence against the public, punishable by the State. |
| **Sir James Fitzjames Stephen** | A crime is an act "both **forbidden by law and revolting to the moral sentiments of the society**"; criminal law "proceeds upon the principle that it is morally right to hate criminals". |
| **Kenny** | Crimes are "acts which are **forbidden by law and are punishable**" — the element of **punishment** is the differentia. |
| **Russell** | "To define crime is a task which so far has not been satisfactorily accomplished by any writer" — criminal offences are "basically the creation of the **criminal policy** adopted from time to time by those sections of the community who are powerful or astute enough...". |
| **Salmond** | Crime is a **public wrong** — an act deemed dangerous to society and prohibited by law on pain of punishment inflicted at the instance of the State. |
| **Wechsler** | Penal law "is the law on which men place their **ultimate reliance for protection against all the deepest injuries** that human conduct can inflict on individuals and institutions". |
| **Modern working view** | Crime = *human conduct* prohibited by the State, to which a *punishment* is attached, prosecuted by the State in the name of the people, irrespective of the victim's wishes. |

**THE DU CM'S OWN TEST OF A GOOD DEFINITION**

A definition of crime must give us "the whole thing and the sole thing" — true of every crime yet not true of any other conceivable non-criminal breach of law. Since no such definition is possible across all countries and ages, the CM adopts two routes: **(i) distinguish crime from civil and moral wrongs; (ii) critically examine the jurists' definitions**.

### 1.4 Crime as a public wrong — the private-to-public migration of wrongs

Crimes are **public wrongs**: the State, as protector of the rights of its subjects, pursues the offender — often in spite of the injured party. Historically, the process of "turning private wrongs into public ones" is still going forward: maiming or killing another's cattle became crimes in the Hanoverian reign; breach of trust by a trustee became a crime only in **1857**; **incest** became a crime in England only in **1908**.

Three classic situations show that a "crime" need not injure any *particular* individual (contra Blackstone's sweeping claim that "universally every crime is a civil injury"):

1. **Offences against the State** — a seditious libel, or enlisting recruits for a foreign belligerent: no particular individual is injured.
2. **Inchoate/instrumental offences** — an intending forger found in possession of a block for forging a trade mark, bank-note or currency note: serious offence, no individual injured.
3. **Self-regarding offences** — attempted suicide: the only sufferer is the accused himself, who cannot claim compensation against himself.

### 1.5 Crime versus moral wrong

Criminal wrongs are **narrower** than moral wrongs. Law never punishes ingratitude, hard-heartedness, absence of natural affection, habitual idleness, avarice, sensuality or pride — "they might be the subject of confession and penance, but not of criminal proceeding". Criminal law applies only to **definite acts of commission and omission, capable of being distinctly proved**, causing definite evils to definite persons or to the community. Yet: (i) where law and morals unite in condemning an act (murder, rape, arson, robbery, theft) punishment is enhanced; (ii) many acts are criminal though morally blameless (breach of statutory regulations — "failure to have a proper light on a bicycle or keeping of a pig in a wrong place"); and (iii) many grossly immoral acts are not crimes in some systems (adultery in England; incest in India, historically).

> *"The relation between criminal law and morality is not in all cases the same... wherever and so far as it is possible, they* ***ought to harmonise with and support one another****... The sentence of the law is to the moral sentiment of the public in relation to any offence* ***what a seal is to hot wax****. It converts into a permanent final judgement what might otherwise be a transient sentiment."*
>
> — Sir James Fitzjames Stephen, as reproduced in the DU Case Material

### 1.6 Crime versus ethics

Ethics studies the supreme good and absolute ideals; law concerns social relationships, not individual excellence. The DU CM's two illustrations: (i) a starving neighbour beside your full granary — you commit no *crime* by not helping; (ii) standing by while a woman having an epileptic fit drowns — ethically wrong, but not criminal (no legal duty to rescue). The CM closes with Sheikh Saadi's 13th-century line — "If you see a blind man proceeding to a well, if you are silent, you commit a crime" — as the direction in which humanitarian criminal law may one day travel.

### 1.7 Are crimes and torts complementary?

Yes. Crimes and torts "are not sharply separated groups of acts but are often **one and the same act viewed from different standpoints**, the difference being not one of nature but only of relation". Stephen's illustration: to ask "is this a crime or a tort?" is no wiser than to ask of a man "Is he a father or a son? For he may be both." Many acts (assault, defamation, nuisance, fraudulent conversion) belong to **both** classes, and torts are constantly being "erected into crimes" when the civil remedy is felt to be inadequate.

## 2 Elements of Crime

BNS § 2(14), 2(26), 3(4), 3(5) | IPC §§ 11, 32, 39, 40, 43, 44

The four constituent elements (compiled from prescribed DU course readings) + the four stages of a crime

The two core elements of crime are **mens rea** and **actus reus**. To these, two more indispensable elements are added: "a human being under a legal obligation to act in a particular way and a fit subject for the infliction of appropriate punishment", and "an injury to another human being or to the society at large". Hence the **four elements** that go to constitute a crime:

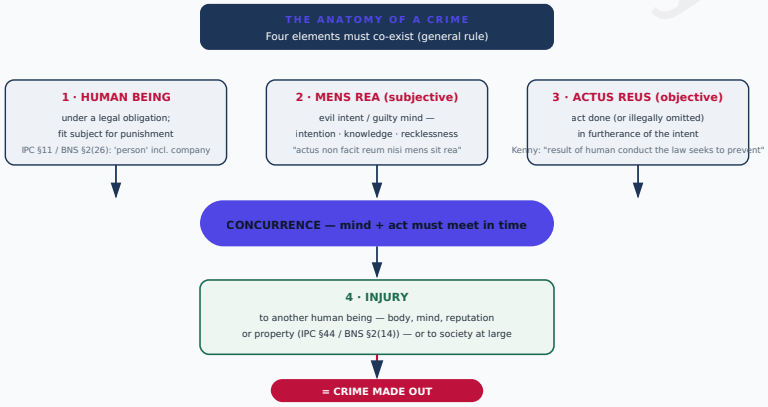



Fig. 1 — The four constituent elements of a crime and their concurrence (as per the DU Case Material).

## 2.1 Element 1 — A human being (the wrongdoer)

"The first element requires that the act should have been done by a **human being** before it can constitute a crime punishable at law. The human being must be 'under a legal obligation to act, and capable of being punished.'" In early law, animals and even inanimate objects were punished (a pig burnt in Paris for devouring a child; a horse killed for kicking a man) — today the animal's **owner**, not the animal, answers. The offender must have **capacity**: children below 7 (**IPC §82 ↔ BNS §20**), persons of unsound mind (**IPC §84 ↔ BNS §22**) are protected by general exceptions. A **company** can be criminally liable: *Standard Chartered Bank v. Directorate of Enforcement* (2005) 4 SCC 530 (fine on company permissible); *Iridium India Telecom v. Motorola* (2011) 1 SCC 74 (mens rea of its officers attributed).

## 2.2 Element 2 — Mens rea (the subjective element)

"In the entire field of criminal law there is no more important doctrine than that of mens rea. The fundamental principle of English criminal jurisprudence is **actus non facit reum nisi mens sit rea** — the act alone does not make a man guilty unless his mind is also guilty." Mens rea is **the state of mind indicating culpability which is required by statute as an element of a crime** — some blameworthy mental condition, constituted by intention or knowledge or otherwise, the absence of which negatives criminal intention. Full treatment in Section 4.

## 2.3 Element 3 — Actus reus (the objective element)

Russell calls it the "**physical event**"; Kenny defines it as "**such result of human conduct as the law seeks to prevent**". It is a physical result of human conduct which criminal policy regards as sufficiently harmful to prohibit and penalise. It includes:

- **Acts of commission** — a positive deed;
- **Acts of omission** — **IPC §32 ↔ BNS §3(4)**: "words which refer to acts done extend also to illegal omissions". But no one is liable for omission *unless* a **legal duty to act** is cast on him — **IPC §43 ↔ BNS §2(15)**: a person is "legally bound to do" whatever it is illegal in him to omit. (Parent starving child; railway gate-keeper omitting to shut the gate; doctor's contractual duty.)
- The act must be one **forbidden by law** — the executioner who hangs a condemned prisoner, and the surgeon who operates with due skill and care resulting in death, commit **no crime**: no mens rea + act sanctioned by law.
- The act must be **voluntary** — a reflex, convulsive or coerced act (actus not voluntas) is not actus reus; a sleeping/unconscious movement is not.

## 2.4 Element 4 — Injury to another human being or society

The injury should be **illegally caused to any person in body, mind, reputation or property** — the very words of **IPC §44 ↔ BNS §2(14)** ("injury denotes any harm whatever illegally caused to any person, in body, mind, reputation or property"). Where no *individual* is hurt, the act may still be criminal because **harm is caused to society at large** — all public offences, especially offences against the State (treason, sedition, waging war), are of this kind and are punished severely.

## 2.5 When the four-element template breaks down

- **No mens rea, yet a crime** → **strict liability** offences (Section 5).
- **No consummated actus reus / no injury, yet a crime** → **inchoate crimes**: attempt, abetment, conspiracy (IPC Ch. V-A, §511 ↔ BNS §§45–62).
- **Only the first two elements present (person + intention), yet a crime** → exceptional crimes of grave danger to public peace (e.g., unlawful assembly with common object — IPC §149 ↔ BNS §190(4); membership of prohibited organisations) where the law punishes even before harm.

## 2.6 The four stages of a crime — and where liability begins

| Stage | Meaning | Liability | Notes |
|---|---|---|---|
| **1. Intention** | The fixed purpose to reach a desired objective (mens rea alone). | **NOT punishable** | "Mens rea by itself is not punishable" — thought, however wicked, is not crime. |
| **2. Preparation** | Arranging the means or measures for the intended offence. | **NOT punishable** (general rule) | Because the intention may be abandoned, and remoteness from the harm. |
| **3. Attempt** | An act done towards commission, with intent to commit it, which fails short of consummation. | **PUNISHABLE** | IPC §511 ↔ BNS §62 (general attempt provision); specific attempt offences, e.g., attempt to murder (IPC §307 ↔ BNS §109), attempt to commit suicide to compel a public servant (IPC §309 ↔ BNS §226). |
| **4. Commission / Accomplishment** | The offence is complete; the harm results. | **PUNISHABLE** | The completed offence. |

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> **STATE OF M.P. V. NARAYAN SINGH, (1989) 3 SCC 596 (DU CASE MATERIAL, P.37) – PARA 12**
> "In the commission of an offence there are four stages viz. **intention, preparation, attempt and execution**. The first two stages would not attract culpability but the third and fourth stages would certainly attract culpability."

**Exceptions — preparation itself is made punishable** where the legislature fears the danger itself: collecting arms/men to wage war (**IPC §122 ↔ BNS §149**), preparation to commit dacoity (**IPC §399 ↔ BNS §310(4)**), possession of counterfeit instruments (IPC §§242–243, 255–256), and modern special statutes (NDPS, UAPA, arms possession).

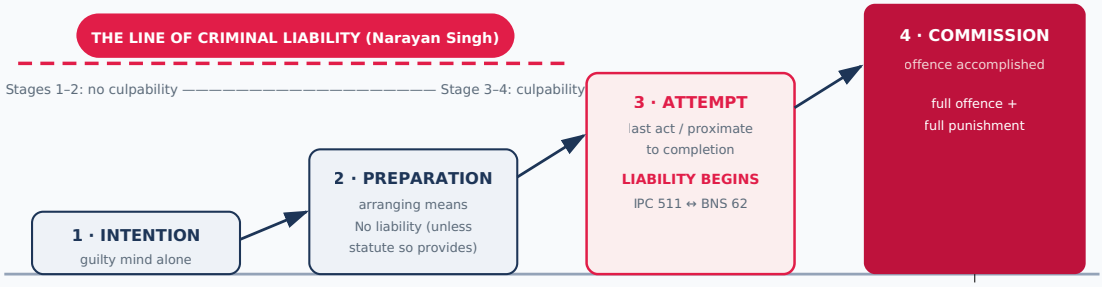



Fig. 2 — The staircase of criminal liability: intention → preparation → attempt → commission (State of M.P. v. Narayan Singh, para 12).

## 3 Distinction between Civil and Criminal Liability

CrPC 1973 ↔ BNSS 2023 | CPC 1908

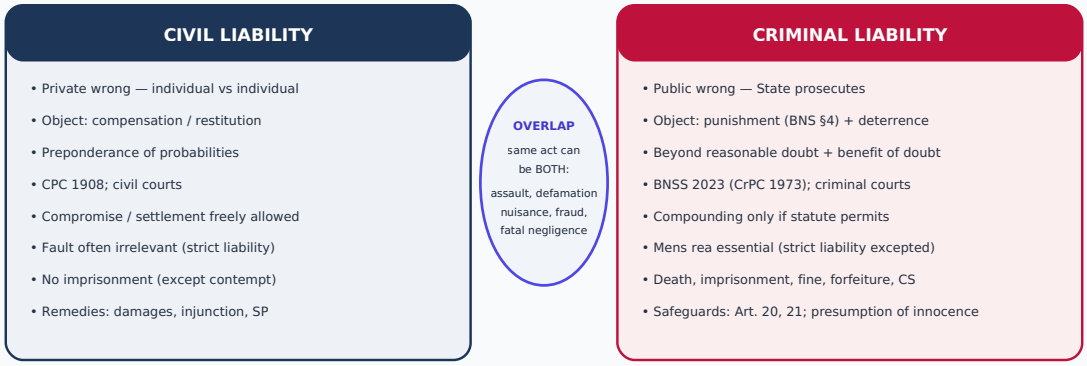
Six distinctions in the DU Case Material + the full exam table (12 points)

"Crimes are graver wrongs than torts." Why? **(i)** they constitute greater interference with the happiness of others and affect the well-being of the community as a whole, not only of the individual wronged; **(ii)** the impulse to commit them is often very strong and the advantage, facility and low risk of detection tempt human nature; **(iii)** they are ordinarily deliberate acts directed by an evil mind and hurt society by the bad example they set. Hence crimes are singled out for punishment with a **four-fold object: making an example of the criminal, deterring him from repeating the act, reforming him by eradicating the evil, and satisfying society's feeling of vengeance**. Civil wrongs are less serious — their effect is supposed to be confined mainly to individuals.

| Point | Criminal Liability (Crime) | Civil Liability (Tort/Contract/Breach of trust) |
|---|---|---|
| **1. Nature of wrong** | **Public wrong** — against the State, society at large (Salmond). | **Private wrong** — against an individual; breach of a civil duty (right *in personam*). |
| **2. Parties** | Prosecution by the **State** (v. the accused); victim merely a witness. | Suit by the **injured party** (plaintiff) against the defendant. |
| **3. Object** | **Punishment** — deterrence, retribution, prevention, reformation. | **Compensation / restitution** — restore the plaintiff to his former position. |
| **4. Outcome** | Death, imprisonment, fine (to the State), forfeiture, community service — BNS §4. | Damages, injunction, specific performance, restitution — CPC §34 etc. |
| **5. Mental element** | "There is no crime without an evil intent" — *actus non facit reum nisi mens sit rea* (exception: strict liability). | Intention generally immaterial (e.g., negligence, strict liability in Rylands; liability without fault common). |
| **6. Procedure** | Criminal courts; **BNSS, 2023 ↔ CrPC, 1973**; strict safeguards — investigation, FIR, charge, trial. | Civil courts; **CPC, 1908**; pleadings, discovery, trial. |
| **7. Indulgence to the accused** | Accused not bound to prove anything, not compellable to make a statement or answer questions; procedure & evidence rules modified "to reduce to the minimum the risk of an innocent person being punished". | Defendant must appear and defend; can be compelled to produce documents, answer interrogatories; adverse inference from silence possible. |
| **8. Benefit of doubt** | Guilt must be proved **beyond reasonable doubt**; "it is better that ten guilty men should escape rather than an innocent person should suffer" (Blackstone's ratio). | Case decided on the **preponderance/balance of probabilities**; no such benefit. |
| **9. Compromise** | Generally the State pursues the offender "often in spite of the injured party"; compoundable only where statute permits (BNSS §359 ↔ CrPC §320). | Party may compromise, settle, withdraw, or refer to arbitration at will. |

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| Point | Criminal Liability (Crime) | Civil Liability (Tort/Contract/Breach of trust) |
|---|---|---|
| **10. Double jeopardy** | Barred — Art. 20(2), Constitution; once convicted/ acquitted, cannot be tried again for the same offence. | No such bar in the same sense — fresh suits on different causes; res judicata only between same parties on same matter. |
| **11. Courts** | "The former are tried in the criminal courts" — Sessions/Magistrates (BNSS Ch. XVIII–XXI). | "The latter in the civil courts" — civil judges under the CPC. |
| **12. Standard of proof** | On the prosecution; accused benefits from presumption of innocence (Art. 21: innocent until proved guilty). | On the plaintiff (who asserts must prove); shifting onus. |




"Is he a father or a son? For he may be both." — Stephen, on asking whether an act is a crime or a tort

Fig. 3 – Civil vs criminal liability and their overlap (an act may give rise to both liabilities simultaneously).

**ANSWER-WRITING TIP (DU)**
Structure any "distinguish between" answer as: (1) one-line conceptual difference (public vs private wrong); (2) tabulate 6–10 points; (3) close with the Stephen "father or son" illustration + one case where both liabilities co-exist (e.g., a rash driver faces IPC/BNS prosecution *and* damages in tort — compensation u/s 396 BNSS ↔ §357A CrPC even in the criminal case).

## 4 The Principle of Mens Rea

IPC §§ 24, 25, 39, 40, 44 | BNS §§ 2(7), 2(9), 2(29), 2(33), 3(6)

"Actus non facit reum nisi mens sit rea" — the guilty mind, its forms, its statutory presumption, and its exceptions

### 4.1 The maxim and the concept

The maxim — **"the act does not make one guilty unless the mind is also guilty"** — has "been familiar to lawyers following the common law for several centuries". Mens rea is **the state of mind indicating culpability, which is required by statute as an element of a crime** — commonly some blameworthy mental condition constituted by **intention or knowledge or otherwise**, the absence of which negatives the intention of a crime. The term is given to **volition, the motive force behind the criminal act**. Even in crimes of strict liability *some* mental element (a voluntary act) is required.

> *"Generally, subject to both qualification and exception, a person is not criminally liable for a crime unless he **intends** to cause, **foresees that he will probably cause**, or at the lowest, **foresees that he may cause**, the elements which constitute the crime in question."*
>
> — DU Case Material

### 4.2 The forms / grades of mens rea — with BNS ↔ IPC vocabulary

| Form | Meaning (per DU CM) | Statutory vocabulary & illustration |
|---|---|---|
| **Intention** | "To intend is to have in mind a **fixed purpose to reach a desired objective**... a man who not only foresees but also **desires** the possible consequences of his conduct." Intention is not the ultimate aim, nor a synonym for motive. | 'intentionally', 'deliberately', 'voluntarily', 'wilfully' — e.g., uttering words with *deliberate intent* to wound religious feelings (IPC §298 ↔ BNS §298); "voluntarily" — IPC §39 ↔ BNS §2(33). |
| **Transferred intention / malice** | Where a person intends a particular crime and brings about its elements, he is guilty though the crime takes effect on an unintended victim. | CM illustration: A poisons B's bedside glass of milk; C drinks it and dies — A guilty of C's murder. |
| **Knowledge** | "**Awareness** of the consequences of his act or omission, indicating his state of mind." There may be knowledge without intention. | CM illustration: mother jumps into a well clutching her child to escape cruelty; child dies, mother survives — culpable homicide on knowledge though no intention to kill. IPC §299/300 "knowledge" clauses ↔ BNS §§101/102; IPC §304 Part II ↔ BNS §105. |

| Form | Meaning (per DU CM) | Statutory vocabulary & illustration |
|---|---|---|
| **Recklessness** | "Intention cannot exist without foresight, but foresight can exist without intention... he may foresee the possible or even probable consequences and yet not desire that result" — this state is recklessness ('rash', 'rashness'). | IPC §304A ↔ BNS §106 (rash/negligent act causing death); rash driving — IPC §279 ↔ BNS §281. |
| **Negligence** | "Anything done **without any advertence** to the consequent result" — blameworthy inadvertence. At common law, criminal liability for inadvertence is exceptional; negligence "may not be a form of mens rea... more in the nature of a legal fault", but is punished "for the utilitarian purpose of improving people's standards of behaviour". | Advertent negligence (foreseen but not willed) = wilful negligence/recklessness; inadvertent = simple negligence. Physician treating "through ignorance or forgetfulness" = inadvertent; "to save himself trouble or as a scientific experiment with full recognition of danger" = wilful. |

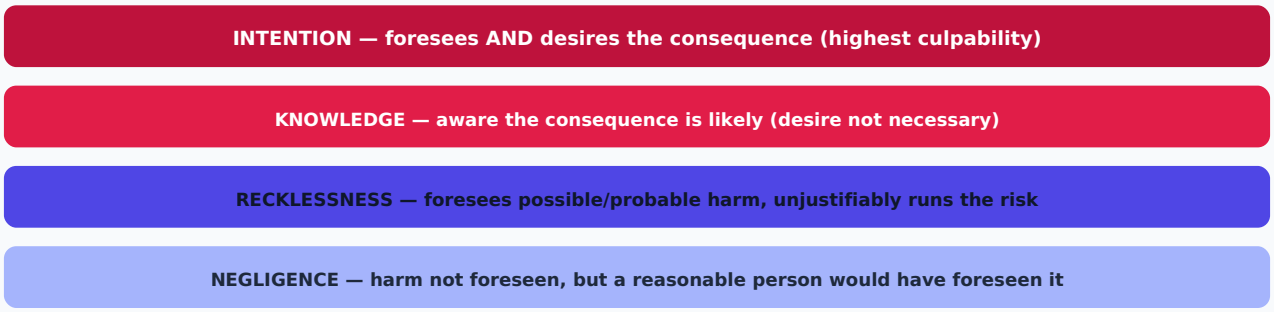



Fig. 4 — The mens rea spectrum: from intention (highest) down to negligence.

#### 4.2.1 Intention vs Motive

"Motive is something which **prompts** a man to form an intention; intention is the **fixed direction of the mind to a particular object**." The mental element of a crime ordinarily involves **no reference to motive**. Motive is not an essential element of any offence — but it is **relevant evidence of intention**. In ***Om Prakash v. State of Uttranchal* (2003) 1 SCC 648** and ***State of U.P. v. Arun Kumar Gupta* (2003) 2 SCC 202** the Supreme Court held that **failure to prove motive is irrelevant where the guilt of the accused is otherwise proved**. Conversely, the noblest motive is no defence (a mercy-killing is still murder).

#### 4.2.2 Intention vs Knowledge

Both appear in the definitions of culpable homicide and murder (**IPC §§299–300 ↔ BNS §§101–102**) as alternative ingredients. "The demarcating line between knowledge and intention is no doubt thin" — a person may know a result is likely without desiring it (the well-jumping mother). Intention without knowledge is impossible; knowledge without intention is common.

### 4.3 Mens rea in the IPC and the BNS — an unstated essence

"Though the word mens rea as such is **nowhere found in the IPC, its essence is reflected in almost all the provisions of the Code**": guilt is fastened on **intention, knowledge or reason to believe**, and the Code qualifies its offences with — *wrongful gain or wrongful loss, dishonestly (IPC §24 ↔ BNS §2(7)), fraudulently (IPC §25 ↔ BNS §2(9)), reason to believe (IPC §26 ↔ BNS §2(29)), criminal knowledge or intention, intentional cooperation (IPC §37 ↔ BNS §3(6)), voluntarily (IPC §39 ↔ BNS §2(33)), malignantly, wantonly*. The BNS carries this vocabulary forward in §2 (definitions) and §3 (general explanations). **The mens rea must co-exist with the actus reus in time** (concurrence) and must extend to all parts of the act — the doing, the circumstances and the consequences.

### 4.4 The presumption of mens rea in STATUTORY offences — and its displacement

When Parliament creates an offence in a statute without saying "knowingly/wilfully", the common law applies a **presumption that mens rea is an essential ingredient**. This presumption — of English origin, heartily adopted in India — is, however, **rebuttable**.

> *"There is a presumption that mens rea, an evil intention, or a knowledge of the wrongfulness of the act, is an essential ingredient in every offence; but that presumption is liable to be displaced either by **the words of the statute creating the offence** or by **the subject-matter with which it deals**, and both must be considered."*
>
> — Wright, J., Sherras v. De Rutzen (1895) 1 QB 918, 921 — quoted in the DU CM in Mayer Hans George

> *"It is of the utmost importance for the protection of the liberty of the subject that a court should always bear in mind that, unless a statute either clearly or by necessary implication rules out mens rea as a constituent part of a crime, the Court should not find a man guilty of an offence against the criminal law unless he has a guilty mind."*
>
> — Lord Goddard, C.J., Brend v. Wood (1946) — adopted by the Privy Council in Srinivas Mall Bairoliya and by the Supreme Court in Ravula Hariprasada Rao v. State (1951) SCR 322

**Indian anchor cases (all discussed inside the DU CM's Mayer Hans George extract):**

- **Nathulal v. State of M.P.**, AIR 1966 SC 43 — under the unamended §7 Essential Commodities Act, mens rea held essential.

- **Amendment of 1967** — "whether knowingly, intentionally or otherwise" inserted in §7 ECA → strict liability (as explained in **Swastik Oil Industries** and applied in **State of M.P. v. Narayan Singh**).
- **Amendment of 1974** — words deleted; §10-C inserted: court **presumes the culpable mental state** (intention, motive, knowledge, belief); accused may rebut **beyond reasonable doubt**.
- **Ravula Hariprasada Rao v. State**, (1951) SCR 322 — SC approved Brend v. Wood.
- **Lim Chin Aik v. Queen** (1963) AC 160 (PC) — strict liability will not be inferred merely because the statute targets a "grave social evil"; the person must be able, by supervision or inquiry, to promote observance — "no luckless victim" rule.
- **Bruhn v. King** (1909) AC 317 (PC) — revenue/prohibition statutes: prohibition operates absolutely; "he will be adjudged guilty of the offence though in fact he knew nothing of the prohibition".
- **Indo-China Steam Navigation Co. v. Jasjit Singh** — §52-A Sea Customs Act: mens rea excluded, else the provision becomes a dead letter.
- **Emperor v. Isak Solomon Macmull** (1948) 50 Bom LR 190 (Chagla, C.J.) — master not vicariously liable absent mens rea unless the statute compels it by clear words or necessary implication.

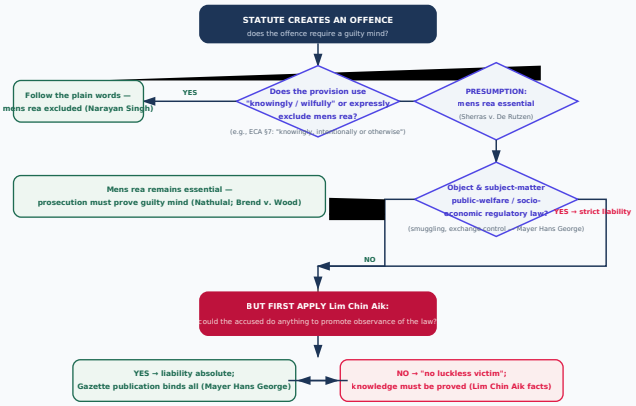



Fig. 5 — Judicial method for deciding whether a statutory offence excludes mens rea (Sherras → Mayer Hans George → Lim Chin Aik line of cases, as extracted in the DU Case Material).

### 4.5 Exceptions — offences where mens rea is NOT required

- **Public-welfare / regulatory offences** — food adulteration (Prevention of Food Adulteration Act), essential commodities, narcotics possession, motor traffic, exchange control (Mayer Hans George), polluter regimes.
- **Offences against the State** — waging war (IPC §121 ↔ BNS §147): the very act, done with the requisite intention to overawe the Government, suffices; "knowingly" is not an ingredient of sedition as defined.
- **Public nuisance** — IPC §268 ↔ BNS §270: harm, not intention, is the gist.
- **Kidnapping/abduction** — IPC §§361–363 ↔ BNS §§137–139: taking a minor from lawful guardianship is complete without dishonest intent (except aggravated forms).
- **Counterfeiting-related possession offences** and statutory possession offences.
- **Statutorily presumed mens rea** — e.g., §10-C Essential Commodities Act (presumption of culpable mental state, rebuttable only beyond reasonable doubt) — Narayan Singh.
- **Corporal result-only offences** — e.g., bigamy under some statutes; marital rape exception-adjacent strictness; polluter-pays regimes (absolute liability — M.C. Mehta).

## 5 Strict and Absolute Liability

`Rylands v. Fletcher (1868)` `M.C. Mehta v. UOI (1987)` `Mayer Hans George · Narayan Singh`

"In some cases a crime is constituted although there is no mens rea at all — these are known as cases of strict liability"

### 5.1 The concept

A **strict-liability offence** is one where the prosecution needs to prove only the **prohibited act (actus reus)**; neither intention nor negligence (nor even knowledge) need be shown, and mistake or ignorance of law/fact is no defence. Such offences are described as **"quasi-criminal"** — "where certain acts are forbidden by law under a penalty... the legislature has thought it so important to prevent the particular act that it **absolutely forbids it**; and if it is done the offender is liable to a penalty whether he had any mens rea or not" (Channell, J., in *Pearks, Gunston & Tee v. Ward*, quoted in the DU CM in *Mayer Hans George*).

**Why strict liability?** (i) public-welfare statutes protect large publics (health, food, currency, environment) who cannot protect themselves; (ii) proof of the supplier's state of mind would be practically impossible and would make enforcement futile — *Mayer Hans George*: the Act's "effectiveness as an instrument for the prevention of smuggling would be entirely frustrated" if knowledge had to be proved; (iii) deterrence of high-risk activity (pollution, hazardous industry).

by Ankur R. Upadhyay

### 5.2 Strict liability vs Absolute liability vs Mens-rea liability

| Feature | Mens-rea-based crime | Strict liability | Absolute liability |
|---|---|---|---|
| **Proof of guilt** | Actus reus + mens rea (beyond reasonable doubt) | Actus reus only | Actus reus only |
| **Defences** | All general exceptions; mistake of fact (IPC §§76–79 ↔ BNS §§14–19) | **Few defences survive**; mistake of fact/law, due diligence generally excluded | **No defences at all** — not even act of God, stranger, or statutory authority |
| **Origin** | General criminal law (IPC/BNS) | *Rylands v. Fletcher* (1868) LR 3 HL 330; statutory welfare offences | *M.C. Mehta v. Union of India* (1987) 1 SCC 395 (oleum gas leak — Shriram Foods) |
| **Policy** | Blame | Regulatory enforcement | Enterprise risk — polluter pays, hazardous enterprise guarantees safety |
| **Voluntary act needed?** | Yes | Yes — "the very concept of 'bringing' would exclude an involuntary bringing" (*Mayer Hans George*: gold slipped unknowingly into one's pocket, or a forced landing, is no offence) | Yes, as to the act; but no fault whatever needed |

**Rylands v. Fletcher** rule: one who, for his own purposes, brings on his land and keeps there anything **likely to do mischief if it escapes**, keeps it at his peril — strict, but subject to the classic defences: (i) plaintiff's own default/consent; (ii) act of a stranger; (iii) *vis major* (act of God); (iv) statutory authority. In **M.C. Mehta**, following *Shriram* and the Bhopal catastrophe, the Supreme Court declared that an enterprise engaged in a **hazardous or inherently dangerous activity** is **absolutely liable** for harm — "the larger and more prosperous the enterprise, greater the amount of liability" — no Rylands exceptions, no limit tied to the value of its assets.

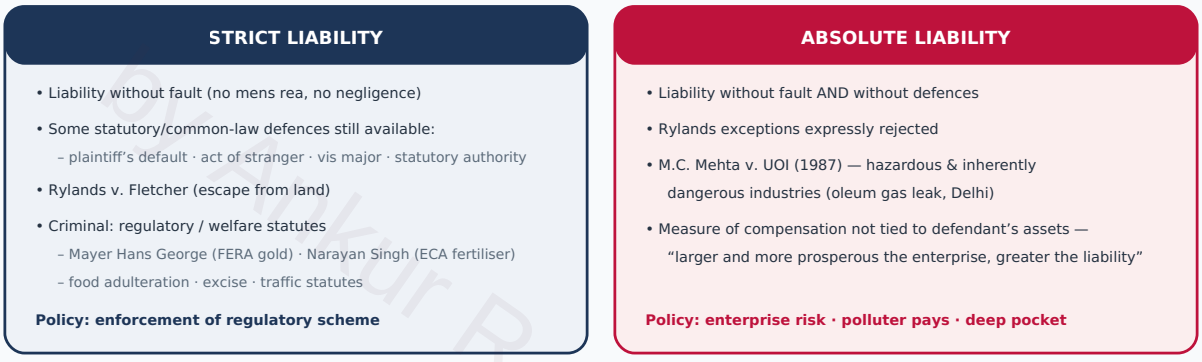



Fig. 6 — Strict liability vs absolute liability: the Indian criminal-regulatory landscape.

### 5.3 The DU Case Material's two strict-liability decisions

- ***State of Maharashtra v. Mayer Hans George*, AIR 1965 SC 722** (DU CM p.15) — the leading Indian authority on when the presumption of mens rea is displaced in a socio-economic statute (FERA, 1947). Full case analysis in Case Card 1.
- ***State of M.P. v. Narayan Singh*, (1989) 3 SCC 596** (DU CM p.37) — strict liability under §7 Essential Commodities Act (as amended in 1967), the §10-C presumption of culpable mental state, and the preparation/attempt boundary. Full analysis in Case Card 2.

### 5.4 Criticism and safeguards

- **Liberty concern** — punishing the morally innocent (Brend v. Wood caution; Srinivas Mall Bairoliya: "surprising" to visit vicarious liability with 3 years' imprisonment on a morally innocent master).
- **Constitutional caution** — strict penal liability must be clearly spelled by the statute or necessary implication (Ravula Hariprasada Rao); a purely penal statute is construed against the State (lenity).
- **Legislative calibration** — Parliament itself oscillates (ECA: 1967 strict → 1974 presumption), showing that strictness is a policy dial, not a doctrine of general application.
- **Modern view** — strict liability acceptable where: minor/penal-in-name offences, truly regulatory context, defendant better placed to prevent harm (Lim Chin Aik), and penalties proportionate/fines rather than long imprisonment (R. v. St. Margarets Trust).

## 6 Types of Punishments under the BNS, 2023 (Sections 4–13)

BNS §§ 4-13 | IPC §§ 53-75 | NEW: Community Service

by Ankur R. Upadhyay

Chapter II of the Bharatiya Nyaya Sanhita — "Of Punishments" — with section-by-section IPC correspondence

## 6.1 Why society punishes — the theories (always open your punishment answer with these)

| Theory | Core idea | Exponents / echo in law |
|---|---|---|
| **Deterrent** | Punishment as a threat/deterrent to the offender (special) and society (general) — fear prevents crime. | Bentham; Beccaria (proportionate deterrence). Reflected in minimum punishments introduced in 23 BNS offences. |
| **Retributive** | Wrongdoer deserves suffering proportional to the wrong — the "theory of vengeance". | Kant, Hegel; Stephen: criminal law gives "definite expression and solemn ratification" to society's hatred of crime. Echo: the rarest-of-rare death sentence. |
| **Preventive** | Disable the offender from re-offending (imprisonment, forfeiture, disqualification). | Preventive detention; enhanced punishment after previous conviction — BNS §13. |
| **Reformative** | "Crime is a disease" — punish to cure and rehabilitate the criminal. | Reformatories, probation (BNSS §§360 ↔ CrPC §360), open prisons; BNS's introduction of **community service**. |
| **Expiatory / Restorative** | Atonement by the offender; reparation to victim and community; healing relationships. | Victim compensation (BNSS §395–396 ↔ §357A CrPC); community service restores the wrongdoer to the community. |

The DU Case Material (Nigam) frames it as the **four-fold object** of punishment: "making an example of the criminal, of deterring him from repeating the same act, of reforming him by eradicating the evil, and of satisfying the society's feeling of vengeance." Modern Indian sentencing blends all theories — retribution-deterrence for the heinous end, reformation-restoration for the minor end — exactly the polarity that Unit 1's two flagship topics (retention of death penalty / introduction of community service) represent.

## 6.2 Section 4 — the six punishments BNS § 4 ↔ IPC § 53

> **BHARATIYA NYAYA SANHITA, 2023 — § 4 (PUNISHMENTS)**
>
> "The punishments to which offenders are liable under the provisions of this Sanhita are—
>
> (a) **Death**;
>
> (b) **Imprisonment for life**;
>
> (c) **Imprisonment**, which is of two descriptions, namely:— (1) **Rigorous**, that is, with hard labour; (2) **Simple**;
>
> (d) **Forfeiture of property**;
>
> (e) **Fine**;
>
> (f) **Community Service**.

- **IPC §53** listed only five punishments (Firstly–Fifthly): death; transportation for life (renamed imprisonment for life in 1955); imprisonment (rigorous/simple); forfeiture of property; fine. **The BNS adds "Community Service" as a sixth — the first new punishment in 163 years** NEW.
- **Imprisonment for life** = imprisonment for the remainder of the convict's natural life (see BNS §103: "imprisonment for life which means imprisonment for the remainder of a person's natural life"); for fractional computation it is reckoned as **20 years** — BNS §6 ↔ IPC §57.
- **Forfeiture of property** survives (e.g., offences like IPC §§126–127 ↔ BNS §§150–151-type preparations against the State) but is virtually obsolete in practice.
- **Community service** — defined not in the BNS but by the **Explanation to §23, BNSS, 2023**: "work which the Court may order a convict to do as a form of punishment that benefits the community, for which he shall not be entitled to any remuneration." Full treatment in Section 8.

## 6.3 Section 5 — Commutation of sentence (a quiet revolution) BNS § 5 ↔ IPC §§ 54, 55, 55A

> **BNS § 5 (COMMUTATION OF SENTENCE)**
>
> "The appropriate Government may, **without the consent of the offender**, commute any punishment under this Sanhita to any other punishment in accordance with section 474 of the Bharatiya Nagarik Suraksha Sanhita, 2023. *Explanation*.— 'appropriate Government' means— (a) the Central Government, where the sentence is of death or is for an offence against a law relating to a matter within the Union's executive power; (b) the State Government within which the offender is sentenced, in other cases."

**Change from IPC:** IPC §54 (death → any other punishment) and §55 (life → ≤14 years) permitted commutation **only with the consent of the offender**. The BNS §5 read with BNSS §474 drops the consent requirement and sets the statutory ladder — death → imprisonment for life; life → imprisonment of not less than 7 years; 7-years+ → not less than 3 years; less than 7 years → fine; rigorous → simple. Executive clemency under Arts. 72 & 161 continues to operate above this scheme.

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## 6.4 Sections 6 to 8 — rigour, fractions, fine and default BNS §§ 6-8 ⇔ IPC §§ 57, 60, 63-70

**BNS § 6 (FRACTIONS OF TERMS OF PUNISHMENT) — ⇔ IPC §57**

"In calculating fractions of terms of punishment, imprisonment for life shall be reckoned as equivalent to imprisonment for **twenty years** unless otherwise provided." *(E.g., for calculating one-third of the sentence in enhanced-punishment or default situations.)*

**BNS § 7 (SENTENCE MAY BE WHOLLY OR PARTLY RIGOROUS OR SIMPLE) — ⇔ IPC §60**

"In every case in which an offender is punishable with imprisonment which may be of either description, it shall be competent to the Court... to direct in the sentence that such imprisonment shall be wholly rigorous, or wholly simple, or that any part... rigorous and the rest simple."

**BNS § 8 (AMOUNT OF FINE, LIABILITY IN DEFAULT OF PAYMENT OF FINE, ETC.) — ⇔ IPC §§63-70**

(1) Where no sum is expressed to which a fine may extend, the fine is **unlimited but shall not be excessive**. (2) Court may direct imprisonment in default of payment of fine (in excess of any other imprisonment). (3) Default term ≤ **one-fourth** of the maximum imprisonment for the offence. (4) Imprisonment in default of payment of fine **or in default of community service** may be of any description available for the offence. (5) Where the offence is punishable with fine or community service, default imprisonment shall be **simple** and shall not exceed — (a) **2 months** if the fine ≤ ₹5,000; (b) **4 months** if the fine ≤ ₹10,000; (c) **1 year** in any other case. (6) Default imprisonment terminates when the fine is paid/levied; proportional payment earns proportional release (Illustration: fine of ₹1,000 with 4 months' default — pay ₹750 after one month, go free). (7) Unpaid fine leviable within **6 years**; death does not discharge attachable property.

**Monetary modernisation** NEW **:** IPC §67 (fine-only offences) fixed default scales at ₹50 → 2 months, ₹100 → 4 months, else 6 months. BNS §8(5) lifts these to **₹5,000 / ₹10,000 / 1 year**, and adds default rules for **community service** — a completely new enforcement tail for the new punishment.

## 6.5 Sections 9 & 10 — one act, several offences BNS §§ 9-10 ⇔ IPC §§ 71-72

**BNS § 9 (LIMIT OF PUNISHMENT OF OFFENCE MADE UP OF SEVERAL OFFENCES) — ⇔ IPC §71**

Where an offence is made up of parts, each itself an offence, the offender is punished for **only one** of them unless expressly provided. *Illustrations* — A gives Z fifty strokes with a stick: one punishment for the whole beating (not fifty); but if A, mid-beating, deliberately strikes Y, the blow to Y is a distinct offence → two punishments.

**BNS § 10 (PERSON GUILTY OF ONE OF SEVERAL OFFENCES, JUDGMENT STATING DOUBT) — ⇔ IPC §72**

Where the judgment is that the accused is guilty of one of several offences specified but it is doubtful *which*, he shall be punished for the offence carrying the **lowest punishment** (if punishments differ). *(In dubio mitius — the benefit of the doubt goes to the accused even at the sentencing stage.)*

## 6.6 Sections 11 & 12 — Solitary confinement BNS §§ 11-12 ⇔ IPC §§ 73-74

**BNS § 11 (SOLITARY CONFINEMENT) — ⇔ IPC §73**

On conviction of an offence punishable with rigorous imprisonment, the Court may order solitary confinement for **any portion(s)** of the sentence, **not exceeding 3 months in the whole**, on the scale: (a) ≤ **1 month** if the term ≤ 6 months; (b) ≤ **2 months** if the term exceeds 6 months but ≤ 1 year; (c) ≤ **3 months** if the term exceeds 1 year. *(IPC §73's obsolete reference to whipping — abolished 1955 — is gone.)*

**BNS § 12 (LIMIT OF SOLITARY CONFINEMENT) — ⇔ IPC §74**

Solitary confinement shall never exceed **14 days at a time**, with intervals between periods of not less duration than such periods; where the imprisonment exceeds 3 months, solitary shall not exceed **7 days in any one month**, with like intervals.

## 6.7 Section 13 — Enhanced punishment after previous conviction BNS § 13 ⇔ IPC § 75

**BNS § 13 (ENHANCED PUNISHMENT FOR CERTAIN OFFENCES AFTER PREVIOUS CONVICTION)**

Whoever, having been convicted by a Court in India of an offence punishable under **Chapter X (offences by public servants) or Chapter XVII (offences against property)** of this Sanhita with imprisonment of either description for **3 years or upwards**, is again guilty of any offence punishable under either of those Chapters with like imprisonment, is liable for every subsequent offence to **imprisonment for life, or imprisonment of either description for a term up to 10 years**.

**Note the renumbering:** IPC §75 referred to Chapter XII (offences by/relating to public servants) and Chapter XVII (property offences); in the BNS these are **Chapters X and XVII**. This is preventive deterrence of recidivism (habitual offenders).

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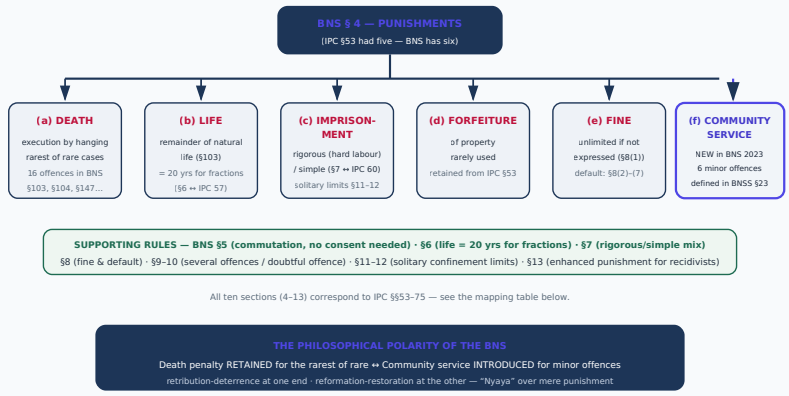



Fig. 7 — The six punishments (BNS §4) and the supporting machinery of BNS §§5-13.

### 6.8 Master mapping table — BNS §§4–13 ↔ IPC §§53–75

| BNS | Subject (BNS Chapter II — Of Punishments) | IPC | What changed in the BNS |
|---|---|---|---|
| **4** | Punishments — death; life; rigorous/simple imprisonment; forfeiture; fine; **community service** | **53** | + Community service as 6th punishment; list re-lettered (a)–(f) |
| **5** | Commutation of death/life sentence by appropriate Government (with BNSS §474) | **54, 55, 55A** | Consent of offender no longer required; "appropriate Government" defined in the Explanation |
| **6** | Fractions of terms — life reckoned as 20 years | **57** | No change |
| **7** | Sentence may be wholly/partly rigorous or simple | **60** | No change |
| **8** | Amount of fine; imprisonment in default of fine or community service | **63, 64, 65, 66, 67, 68, 69, 70** | Default scales raised (₹50/₹100/6 months → ₹5,000/₹10,000/1 year); default of community service expressly covered |
| **9** | Limit of punishment where offence made up of several offences | **71** | No substantive change (illustrations retained) |
| **10** | Punishment where it is doubtful of which offence the accused is guilty — lowest punishment | **72** | No change |
| **11** | Solitary confinement — power and scale (max 3 months) | **73** | Whipping reference (long dead letter) omitted |
| **12** | Limit of solitary confinement (14 days at a time; 7 days/month) | **74** | No change |
| **13** | Enhanced punishment after previous conviction (Ch. X & XVII; 3-year+ offences) | **75** | Chapter renumbering (IPC Ch. XII public servants → BNS Ch. X); maximum: life or 10 years |

**EXAM ONE-LINER**

"The BNS replaces IPC §§53–75 with §§4–13, compressing 21 provisions (including repealed ones) into 10; retains all five classic punishments *plus community service*; frees commutation from the convict's consent; and modernises fine-default scales — while leaving the 20-year fraction rule, the solitary-confinement caps and the recidivist enhancement intact."

## 7 Retention of the Death Penalty

BNS § 4(a), §§103-104, 147, 65(2) | IPC §§ 302, 303, 121 | CrPC §354(3) ↔ BNSS §354(3)

Bachan Singh → Machhi Singh → Manoj: the constitutional career of capital punishment, and why the BNS, 2023 retains it

### 7.1 The constitutional and statutory timeline

| Year | Case / Law | Contribution |
|---|---|---|
| 1860–1898 | IPC §302 + CrPC 1898 | Death was the **normal** sentence for murder; the judge had to justify awarding life. |
| 1955 | CrPC amendment | Position reversed — special reasons needed for death. |
| 1973 | *Jagmohan Singh v. State of U.P.*, (1973) 1 SCC 20; CrPC §354(3) | Death penalty upheld 3:0 as constitutional (Arts. 14, 19, 21); "special reasons" now statutorily required for death. |

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| Year | Case / Law | Contribution |
|---|---|---|
| 1980 | *Bachan Singh v. State of Punjab*, (1980) 2 SCC 684 (Constitution Bench, 4:1) | Death penalty constitutional **only in the "rarest of rare" cases** when the alternative of life imprisonment is "unquestionably foreclosed"; both crime **and** criminal must be weighed; life is the rule, death the exception. (Bhagwati, J. dissented.) |
| 1983 (a) | *Mithu v. State of Punjab*, (1983) 2 SCC 277 | IPC §303 (mandatory death for murder by a life-convict) struck down — **unconstitutional**; no mandatory death sentence without judicial discretion. |
| 1983 (b) | *Machhi Singh v. State of Punjab*, (1983) 3 SCC 470 (DU CM p.43) | Operationalised "rarest of rare" into **five categories** + "collective conscience" test. Case Card 3. |
| 2008–2009 | *Swamy Shraddananda* (2008) 13 SCC 767; *Santosh Bariyar* (2009) 6 SCC 498 | Critique of mechanical, crime-centric use of Machhi Singh; category-of-one sentencing; alternative of fixed-term life. |
| 2014 | *Shatrughan Chauhan v. UOI*, (2014) 3 SCC 1 | Inordinate delay in deciding mercy petitions → ground to commute death to life (Art. 21). |
| 2015 | Law Commission, **262nd Report** | Recommended **abolition of the death penalty for all crimes other than terrorism-related offences and waging war**; noted the 35th Report (1967) had favoured retention. |
| 2022 | *Manoj v. State of M.P.*, 2022 INSC 606 (DU CM p.43) | Procedural due process for capital sentencing — reports, evaluations, jail conduct. Case Card 4. |
| 2023 | *Death Sentence Mitigating Circumstances Guidelines, In re* (SC reference) | Framework for uniform collection of mitigating material at trial stage. |
| 2025 | *Vasanta Sampat Dupare v. UOI* | Death sentences passed in breach of *Manoj* safeguards can be reopened even after finality (Art. 32). |

## 7.2 The governing tests — from Bachan Singh to Manoj

**Bachan Singh (1980) — the normative frame:**

- Death only in the "**rarest of rare**" cases, when the option of life imprisonment is **unquestionably foreclosed**;
- Circumstances of the **offender** must be considered along with the circumstances of the **crime**;
- Life imprisonment is the **rule**, death the **exception**;
- A "balance sheet" of **aggravating vs mitigating** circumstances must be drawn — mitigating factors include: offence committed under extreme mental or emotional disturbance; youth or old age; probability that the accused would not be a continuing threat; probability of reformation and rehabilitation (the **State must prove** the convict cannot be reformed).

**Machhi Singh (1983) — the operational categories:** death is permissible where the **collective conscience of the community is so shocked** that it will expect the holders of judicial power to inflict death. Five categories: (i) **manner** of the murder — extremely brutal, grotesque, diabolical, revolting or dastardly, arousing intense and extreme indignation; (ii) **motive** — total depravity and meanness; (iii) **anti-social or socially abhorrent** nature — e.g., murder of a Scheduled Caste/minority to terrorise the community, bride-burning for dowry; (iv) **magnitude** — enormous proportion, e.g., multiple murders of a family or a large number of persons; (v) **personality of the victim** — innocent child; helpless woman or old/infirm person; a public figure; a victim in a relationship of trust with, or under the control of, the murderer.

**Manoj (2022) — the procedural turn:** the tests are the "**crime test**", the "**criminal test**" and the "**R–R test**" — not a crude balancing: the crime test must be satisfied 100% (aggravating circumstances fully made out) *and* the criminal test must show 0% mitigating circumstances before death can be considered; the probability (not mere possibility) of reformation must be negatived by the State on material; jail conduct is relevant contemporaneous evidence of the possibility of reform.

by Ankur R. Upadhyay

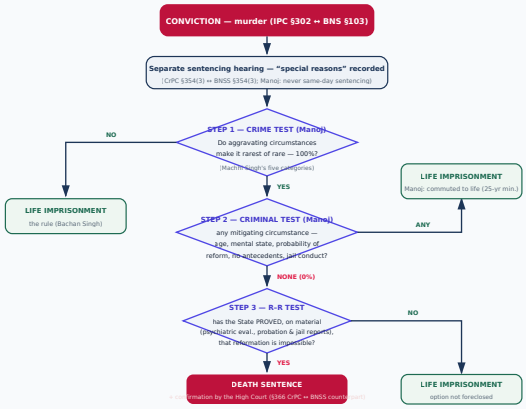



Fig. 8 — The capital sentencing protocol: Bachan Singh's normative limits, Machhi Singh's categories, Manoj's three-step tests.

## 7.3 The retention debate — argue both sides in the exam

**FOR RETENTION (BNS RETAINS – §4(a))**

- **Constitutional validation** — Jagmohan, Bachan Singh: not violative of Arts. 14, 19, 21.
- **Deterrence** — the gravest crimes (terrorism, waging war, serial/mass murder, child rape-murder) demand the State's gravest response.
- **Retribution/proportionality** — "collective conscience" (Machhi Singh): some crimes shock society so deeply that only death expresses communal condemnation.
- **Narrow application** — the rarest-of-rare filter + Manoj safeguards already minimise arbitrariness.
- **Legislative wisdom** — 35th Law Commission Report (1967) favoured retention; Parliament retained it through three criminal-law overhauls (1860 → 1973 → 2023).
- **Victim-justice** — for the families of victims of the most heinous crimes.

**AGAINST RETENTION / FOR ABOLITION**

- **No proven deterrence** — 262nd Report (2015): no evidence death deters more than life; recommended abolition for all but terror/war offences.
- **Irreversibility & wrongful conviction** — appellate acquittals in capital cases reveal grave trial error.
- **Arbitrariness & "judge-centric" sentencing** — identical facts, different outcomes; crime-centric misuse of Machhi Singh categories (Santosh Bariyar; Swamy Shraddananda).
- **Class-caste skew** — death row is disproportionately populated by the poor, marginalised and mentally ill (NLU-D Project 39A studies).
- **International trend** — most nations have abolished (ICCPR & Second Optional Protocol direction).
- **Life means life now** — imprisonment for the remainder of natural life (BNS §103) makes death unnecessary for incapacitation.

## 7.4 The BNS, 2023 position — retention, rationalised

- **Death retained as the first punishment** — BNS §4(a); roughly **16 offences** now carry it (13 under the IPC), e.g., murder (§103(1)), **mob lynching** — murder by five or more persons on grounds of race, caste, community, sex, place of birth, language, personal belief or any other similar ground (§103(2), NEW), murder by a life-convict (§104), waging war (§147), aggravated rape of a child below 12 (§65(2)), and attempt-to-murder variants (§109(2)).
- **Mithu-compliance** — §104 (murder/attempt by a life-convict) offers *death or life* (the old IPC §303's mandatory death was unconstitutional).
- **Mandatory minimums** introduced in several grave offences sharpen general deterrence — but the death penalty remains judicially discretionary and rarest-of-rare-bounded.
- **Conclusion for the exam:** the BNS's answer to the retention debate is a **two-track design** — maximum retribution (death, retained and even extended to mob lynching) at one end, and maximum reformation (community service, introduced) at the other, with Manoj-style procedural safeguards (mandatory mitigation dossiers) disciplining the interface.

# 8 Introduction of Community Service

BNS § 4(f), § 8(4)-(5) | BNSS § 23 (Explanation) | DU CM: Delhi HC Guidelines 2025

BNS §4(f) — the first new punishment since 1860 — and the Delhi High Court Guidelines, 2025 (DU CM p.50)

## 8.1 The concept

**Community service** requires an offender to perform **unpaid work that benefits the community** as a condition or form of punishment. It is the classic **restorative / reformative** sanction: the offender remains in society, repairs the harm by contributing labour to the community, avoids the criminogenic effects of prison, and the State saves prison costs. It marks the BNS's declared

shift "from punishment towards *Nyaya*" (DU CM course-objectives) and aligns India with jurisdictions where community orders (UK: 40–300 unpaid hours; Spain: 31–180 days; Canada, USA) are standard alternatives to short custody.

**EXPLANATION TO § 23, BNSS, 2023 (DEFINITION OF COMMUNITY SERVICE)**

"…'community service' shall mean **the work which the Court may order a convict to do as a form of punishment that benefits the community, for which he shall not be entitled to any remuneration.**" *(The BNS itself does not define the term — BNS §2(39) borrows meanings from the BNSS.)*

## 8.2 The six offences where community service is available

| BNS | Offence | IPC | Punishment including community service |
|---|---|---|---|
| **202** | Public servant unlawfully engaging in trade | 168 | Simple imprisonment ≤ 1 year, or fine, or both, **or community service**. |
| **209** | Non-appearance in response to a proclamation under §84(1) BNSS | 174 | Imprisonment ≤ 3 years, or fine, or both, **or community service**. |
| **226** | Attempt to commit suicide to compel or restrain exercise of lawful power | 309 | Simple imprisonment ≤ 1 year, or fine, or both, **or community service**. |
| **303(2) proviso** | Theft by a **first-time offender** where value of stolen property < ₹5,000 and the property is returned/restored | 379 | The Court **may** award community service (instead of imprisonment up to 3 months / fine / both). |
| **355** | Misconduct in public by a drunken person | 510 | Imprisonment 24 hours, or fine ≤ ₹1,000, or both, **or community service**. |
| **356(2)** | Defamation (simple defamation) | 500 | Simple imprisonment ≤ 2 years, or fine, or both, **or community service**. |

**Enforcement teeth:** BNS §8(4)–(5) — if the convict **defaults in community service**, the court can impose **simple imprisonment**: ≤ 2 months (fine ≤ ₹5,000-type scale), ≤ 4 months (₹10,000 scale), ≤ 1 year otherwise. No equivalent existed under the IPC because community service did not exist as a punishment.

## 8.3 Pre-BNS judicial innovation (cite these in the exam)

- ***Sanjeev Nanda** v. State (NCT of Delhi)* (2012) 8 SCC 450 — BMW hit-and-run: sentence commuted to time served + **two years of community service** — the SC treating service as a rehabilitative condition.
- **Juvenile Justice (Care and Protection) Act, 2015, §18(c)** — community service was statutorily recognised for children in conflict with law, before the BNS.
- Delhi High Court's creative orders even before codification: directing accused/convicts to serve at **Gurudwara Rakab Ganj Sahib** (July 2024 — two accused who outraged a neighbour's wife's modesty), and to serve as volunteers at **LNJP Hospital** — using bail/sentence conditions as reformative instruments.

## 8.4 The Delhi High Court Guidelines for Community Service, 2025 DU CM p.50

**WHAT HAPPENED (2025)**

The **High Court of Judicature of Delhi framed Guidelines for awarding community service** as punishment under §4(f) BNS. Acting on the High Court's directions, the **GNCTD Home Department, by Gazette Notification (June 2025)**, notified a list of **12 permissible community-service activities** that Delhi courts may impose on persons convicted of minor offences — the first operational framework of its kind in India.

- **The 12 notified activities include:** cleaning and maintenance of hospital wards and their peripheral areas; sanitation work in public spaces; maintenance and restoration of public parks; weeding of roadsides and medians; cleaning of public parks and open spaces; arrangement, cataloguing and binding of books in public libraries; and allied civic-welfare tasks.
- **Duration:** community service may range from **1 day to 31 days, or 40 to 240 hours**, according to the nature of the offence and the court's discretion.
- **Judicial discretion preserved:** the notification expressly states that the 12 activities "are not intended to curtail the discretion of the Court in awarding any other mode of community service under §4(f) of the Bharatiya Nyaya Sanhita, 2023" — the list is illustrative, not exhaustive.
- **Target class:** minor, non-violent, largely first-time offenders — petty theft (< ₹5,000, property restored), public drunkenness, unlawful trade by public servants, non-appearance after proclamation, attempt to suicide to compel, defamation (§§202, 209, 226, 303(2), 355, 356(2)).
- **Objectives:** reformative justice; restitution to the community; decongesting prisons; avoiding stigma and criminogenic exposure of petty offenders to hardened criminals; cost-effective sentencing; "course-correction" for young offenders.

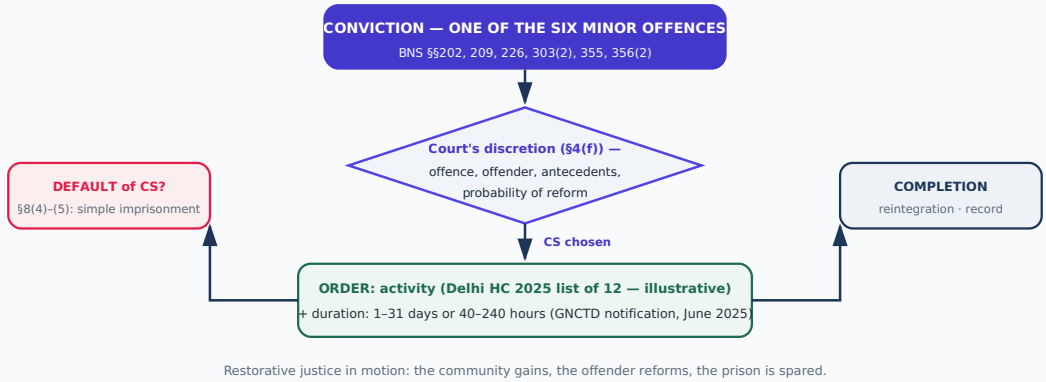



Fig. 9 — How a community-service sentence works under BNS §4(f) with the Delhi High Court (2025) framework.

### 8.5 Critique / challenges (write a balanced conclusion)

- **No national framework yet** — BNS does not define types of work, supervising authority, monitoring or verification; the Delhi HC/ GNCTD guidelines fill this only for Delhi (judicial creativity pending legislation — as in *Vishaka* tradition).
- **Dignity & Art. 23 concern** — service must not become forced labour or humiliating spectacle (no cleaning in uniform before cameras).
- **Inequality risk** — the poor may serve while the rich pay fines; uniformity needed (sentencing councils suggested).
- **Weaker deterrence** — for some offenders community service may be no deterrent at all; suitability screening is essential (violent, sexual, repeat offenders excluded).
- **Supervision infrastructure** — probation machinery (BNSS §360 ↔ CrPC §360; Probation of Offenders Act 1958) must be strengthened; courts need compliance reports.

## 9 Case Laws — In Detail (DU Case Material, Unit 1)

Facts • Issues • Arguments of both sides • Decision • Principle evolved — for each of the five items prescribed in the DU Case Material

| Case (as prescribed in DU CM) | DU CM page | Provisions involved | Doctrinal home |
|---|---|---|---|
| **1. State of Maharashtra v. Mayer Hans George**, (1965) 1 SCR 123 : AIR 1965 SC 722 | p. 15 | FERA 1947 §§8(1), 23(1-A), 24(1); Sea Customs Act §167(8)(i) | Mens rea presumption & strict liability |
| **2. State of M.P. v. Narayan Singh**, (1989) 3 SCC 596 | p. 37 | Fertilisers (Movement Control) Order 1973 cls. 2(a), 3; Essential Commodities Act §§3, 7, 10-C | Strict liability + attempt vs preparation |
| **3. Machhi Singh v. State of Punjab**, (1983) 3 SCC 470 : AIR 1983 SC 957 | p. 43 | IPC §302 ↔ BNS §103; CrPC §354(3) | Rarest of rare; death penalty |
| **4. Manoj & Ors. v. State of Madhya Pradesh**, 2022 INSC 606 : (2022) 9 SCALE 67 | p. 43 | IPC §§302, 397, 449, 34 ↔ BNS §103 etc.; CrPC §235(2)/§354(3) | Capital sentencing procedure; mitigation |
| **5. Delhi High Court Guidelines for Community Service, 2025** | p. 50 | BNS §4(f), §§202, 209, 226, 303(2), 355, 356(2); BNSS §23 (Explanation) | Operationalising community service |

CASE CARD 1 · MENSI REA & STRICT LIABILITY · DU CASE MATERIAL P.15

#### State of Maharashtra v. Mayer Hans George

(1965) 1 SCR 123 : AIR 1965 SC 722 · Supreme Court of India · Decided 24 August 1964 · Appeal by special leave from Bombay High Court

| | |
|---|---|
| BENCH | Three-Judge Bench — **K. Subba Rao**, **N. Rajagopala Ayyangar** and **J.R. Mudholkar**, JJ. (opinion of the Court by Ayyangar, J.; **dissent by Subba Rao, J.**) |
| PROVISIONS | §8(1) & §23(1-A)(a), Foreign Exchange Regulation Act, 1947; §24(1) (burden of proving permission); §167(8)(i), Sea Customs Act, 1878; RBI notifications of 25.08.1948 & 08.11.1962 (published in the Gazette on 24.11.1962) |
| SUBJECT | Is mens rea an essential ingredient of an offence under a socio-economic regulatory statute which prescribes imprisonment? |

FACTS

- **Mayer Hans George**, a German national by birth, a sailor by profession, was engaged at Hamburg by an international gang of gold-smugglers to clandestinely transport gold from Geneva/Zurich to the Far East, wearing a specially designed jacket — he claimed several earlier successful trips.

- On **27 November 1962** he boarded a Swiss aircraft at **Zurich**, bound for **Manila**, carrying about **34 kilograms of gold** (bars of ~1 kg each) concealed in **19 of the 28 compartments** of his jacket. The flight touched **Santa Cruz Airport, Bombay**, at 6.05 a.m. on 28 November 1962; the respondent **did not disembark**.
- Customs officers, acting on prior information, first examined the aircraft's **manifest** — no gold was declared. Finding the respondent seated inside, they searched him ("what gold?" was his first response) and recovered the gold. The gold was **not entered in the manifest or any other document**.
- Time-line of the law: under the RBI's general permission (notification of 25.08.1948), gold on **through transit** to a place outside India could be brought in without removal from the aircraft (except transhipment). By a **notification dated 8 November 1962** (published in the **Gazette of India on 24 November 1962**) the RBI added a second proviso: such gold must be **declared in the manifest for transit as "same bottom cargo" or "transhipment cargo"**. George left Zurich on 27 November 1962 — three days after gazette publication in India, and it was not disputed that he had no actual knowledge of the new condition.
- He was prosecuted under **§8(1) r/w §23(1-A)(a) FERA** and §167(8)(i) Sea Customs Act. The **Presidency Magistrate, Bombay** convicted him and sentenced him to **one year's rigorous imprisonment**. On appeal, the **Bombay High Court acquitted** him: (i) the second proviso did not apply to gold carried *on the person* of a passenger (it spoke of "cargo"); (ii) **mens rea was a necessary ingredient** and the respondent, unaware of the notification, had none. The State appealed to the Supreme Court by special leave.

ISSUES

1. Is **mens rea** an essential ingredient of the offence under §23(1-A)(a) FERA — i.e., must the prosecution prove the accused *knowingly* contravened the law?
2. Was the RBI notification of 8 November 1962 — *delegated legislation* published only in the Gazette of India — binding on a foreigner in transit who had no means of knowing it? (Does the maxim *ignorantia juris non excusat* apply to unpublished/unnotifiable delegated legislation?)
3. Did the second proviso (declaration in the manifest as cargo) apply at all to gold carried on the passenger's person?

ARGUMENTS OF THE PARTIES

**Appellant — State of Maharashtra (Solicitor-General):**

- FERA was enacted **to prevent smuggling of gold in the interests of the economic stability of the country**; hence in construing its provisions "there is no scope for applying the presumption of common law that mens rea is a necessary ingredient" — the **object of the statute and the mandatory terms of its provisions rebut the presumption**.
- The second proviso's condition (declaration in the manifest) applied to all through-transit gold — gold carried on the person included — so the general permission stood withdrawn unless declared; failure to declare = contravention of §8(1) punishable under §23(1-A).
- Relied on **Indo-China Steam Navigation Co. v. Jasjit Singh** (§52-A Sea Customs Act: mens rea excluded, else the provision is a dead letter) and **Bruhn v. King** (revenue prohibitions operate absolutely).

**Respondent — Mayer Hans George (counsel: Mr. Sorabjee, per the DU CM text):**

- Common-law presumption: unless a statute **clearly or by necessary implication rules out mens rea**, no one should be found guilty without a guilty mind — **Sherras v. De Rutzen** (Wright, J.); **Brend v. Wood** (Goddard, C.J.); applied by the Privy Council in **Srinivas Mall Bairoliya** and by this Court in **Ravula Hariprasada Rao**.
- **Lim Chin Aik v. Queen**: it is not enough to label the statute as dealing with a grave social evil; strict liability is not inferred where the accused could do nothing to promote observance — here the accused, a foreigner in transit, could not practicably know of a condition published only in the Indian Gazette three days before his flight; prosecuting him makes him a "**luckless victim**".
- Delegated legislation binds only when brought to the notice of affected persons — the notification cannot be "law" for him; the maxim ignorantia juris cannot apply to unpublished subordinate legislation.
- The second proviso speaks of "**cargo**" (same bottom cargo / transhipment cargo) — goods entrusted to the carrier — and cannot apply to gold worn on the person.

DECISION

**Majority (Ayyangar and Mudholkar, JJ. — opinion by Ayyangar, J.): appeal allowed 2:1; conviction restored, sentence reduced to the period already undergone.**

- **Mens rea — the method:** "Where the statute does not contain the word 'knowingly', the first thing to do is to examine the statute to see whether the ordinary presumption that mens rea is required applies or not" — examining the **language**, **object**, **subject-matter** and the **nature of the act** (R. v. Tolson: the mens rea rule is "not an inflexible rule").
- **Language:** §8(1) lays an **absolute embargo** on bringing gold without the RBI's general or special permission; §24(1) throws on the accused the burden of proving permission. The **conscious physical act of "bringing"** itself constitutes the contravention — no further mental element is postulated. (Only an *involuntary* bringing — gold slipped unknown into one's pocket, or a forced landing of a through flight — would be outside the section.)
- **Subject-matter:** the Act conserves foreign exchange "essential to the economic life of a developing country"; its penal provisions are "aimed at eliminating smuggling" — reading in a knowledge requirement "would entirely frustrate" the Act

(adopting **Bruhn v. King** and **R. v. St. Margarets Trust**: breach of the flood-defences cannot be excused because done innocently).

- **Lim Chin Aik distinguished:** under the Singapore Ordinance entry was lawful *unless* prohibited by an unpublicised individual order — "the position under §§8 and 23 of the Act is just the reverse": bringing gold is unlawful *unless* permitted; hence mens rea cannot be imported. The RBI's permission-notification was duly published and conditioned a standing permission.
- **Notification & maxim:** the notification, published in the Gazette, conditioned the general permission — the convict's ignorance did not excuse the failure to declare.

**Dissent (Subba Rao, J.):** appeal dismissed — acquittal affirmed, *though on different reasoning*. Mens rea is presumed in every statutory offence unless clearly excluded; the FERA provisions do not exclude it; and following **Lim Chin Aik**, since there was no prescribed mode of publication of the RBI's order, the maxim ignorantia juris could not be invoked — the prosecution had to prove knowledge, which it conceded was absent ("an experienced smuggler of gold… [but] I have reluctantly come to the conclusion that the accused has not committed any offence").

PRINCIPLES EVOLVED

- **The Indian statement of the mens-rea presumption method:** presumption of mens rea in statutory offences (Sherras), displaced by the **words of the statute or its object/subject-matter** — both must be considered.
- Socio-economic/regulatory legislation (exchange control, customs, smuggling) may create **strict liability** — only the **voluntary, conscious act** (actus reus) need be proved.
- Where a statute prohibits absolutely, the **burden of proving the licence/permission is on the accused** (§24(1) FERA; Bruhn v. King).
- Distinguishing "**lawful unless prohibited**" statutes (Lim Chin Aik — mens rea/knowledge needed) from "**unlawful unless permitted**" statutes (FERA — strict liability).

> *"The very object and purpose of the Act and its effectiveness as an instrument for the prevention of smuggling would be entirely frustrated if… the accused should be proved to have knowledge that he was contravening the law before he could be held to have contravened the provision."*

Authorities discussed within the DU CM extract (know these for viva/long answers): **Authoritative Criminal Precedents**; *Sherras v. De Rutzen* (1895); *Jacob Bruhn v. King* (1909); *Pearks' Dairies v. Tottenham Food Control Committee* & *Pearks, Gunston & Tee v. Ward* (1902/1919); *Rex v. Jacobs* (1944); *Brend v. Wood* (1946); *Srinivas Mall Bairoliya v. King-Emperor* (PC, 1947); *Lim Chin Aik v. Queen* (PC, 1963); *R. v. Tolson*; *R. v. St. Margarets Trust* (1958); *Ravula Hariprasada Rao* (1951); *Indo-China Steam Navigation Co.* (1964); *Emperor v. Isak Solomon Macmull* (1948); *State of Coorg v. P.K. Assu*; *State v. Sheo Prasad*; *C.T. Prim v. State* (1961).

CASE CARD 2 · STRICT LIABILITY + STAGES OF CRIME · DU CASE MATERIAL P.37

## State of Madhya Pradesh v. Narayan Singh

(1989) 3 SCC 596 · Supreme Court of India · Natarajan, J. (with Ahmadi, J.) · Two appeals (Crl. A. Nos. 49 & 24 of 1978) decided together

| | |
|---|---|
| PROVISIONS | Fertilisers (Movement Control) Order, 1973 — cl. 2(a) ("export" = to take or cause to be taken out of any place within a State to any place outside that State) & cl. 3 ("No person shall export, or attempt to export, or abet the export of any fertilisers from any State"); Essential Commodities Act, 1955 — §§3, 7 (as amended in 1967 and 1974), 10-C; CrPC §378(3) |
| SUBJECT | (1) Is mens rea necessary for conviction under §7 ECA? (2) Was the conduct mere **preparation**, or an **attempt**, to export fertilisers without a permit? |

FACTS

- **Criminal Appeal 49/1978:** a lorry (MPP 3668) carrying **200 bags of fertilisers**, proceeding from **Indore to Maharashtra**, was intercepted on **12.02.1974** at the **Sendhwa sales-tax barrier** on the Agra–Bombay highway (National Highway 3), barely **8 miles from the Maharashtra border**. The driver and two cleaners possessed invoices and records — but **no export permit** under the FMC Order.
- **Criminal Appeal 24/1978:** a lorry (MPM 4866) from Indore carrying **170 bags** was intercepted at the same barrier on **30.10.1973**; driver and coolie — again invoices, no permit.
- The accused did not deny the transport, the interception, or the absence of permits. Their defence: they **did not know the contents of the documents** seized from them and were not knowingly engaged in exporting fertilisers in violation of the Order.
- Both **Trial Magistrates acquitted**: without evidence of the transport company's employee there was no proof of *attempted export*; at best it was **mere preparation**. The High Court **refused leave** to the State to appeal against acquittal (§378(3) CrPC). The State came to the Supreme Court by special leave.

ISSUES

1. Must the prosecution **prove mens rea** of the accused in exporting fertilisers without a valid permit to secure conviction under the FMC Order r/w §§3 & 7 ECA?
2. On the facts, did the evidence establish only **preparation**, or did it cross into **attempt** to export (which cl. 3 itself forbids)?

ARGUMENTS OF THE PARTIES

**State (appellant):**

- Section 7(1) ECA (as amended by Act 36 of 1967) punishes a person "who contravenes **whether knowingly, intentionally or otherwise**" any §3 order — the words expressly dispense with mens rea; every contravention, intentional or not, is an offence.
- The lorries were intercepted 8 miles from the border, carrying loaded fertiliser bags under cover of sales invoices for consignees in Maharashtra — if not intercepted, the export would have been completed: this is **attempt**, not preparation.

**Respondents (accused):**

- Following **Nathulal v. State of M.P.**, AIR 1966 SC 43, an offence under §7 ECA is committed only by **intentional** contravention — mens rea is essential; the drivers' assertion that they were unaware of the documents' contents stood unrebutted.
- The evidence showed at best a case of **preparation** to export — the actus reus of attempted export was not complete; mere transport short of the border is not an attempt.

DECISION

- **Mens rea (Question 1) — against the accused:** The trial court and High Court "failed to comprehend and construe §7(1) in its full perspective." The section is **"comprehensively worded"** — it takes within its fold contraventions done knowingly or intentionally **"or otherwise"**, i.e., even unintentional contraventions. **Nathulal no longer holds the field**: the legislature reversed it by the 1967 amendment (words "whether knowingly, intentionally or otherwise" inserted) — approving the Gujarat High Court's analysis in **Swastik Oil Industries v. State** (1978).
- The Court also noted the **second legislative step (Ordinance/Act 30 of 1974)**: the 1967 words were deleted and **§10-C inserted** — in any prosecution requiring a culpable mental state, the **court shall presume** such mental state; the accused may rebut only by proving its absence **beyond reasonable doubt** (Explanation: "culpable mental state" includes intention, motive, knowledge of a fact, and belief in or reason to believe a fact) — the presumption operates against the accused, the burden "lies heavily" on him.
- **Attempt vs preparation (Question 2) — against the accused:** "In the commission of an offence there are **four stages — intention, preparation, attempt and execution**. The first two stages would not attract culpability but the third and fourth would." The accused were caught **in the act of exporting**: bags procured, loaded, moving under invoices towards consignees, stopped just 8 miles from the border — "surely no one can say that the respondents were taking the lorries with the fertiliser bags for innocuous purposes or for mere thrill or amusement". This was **attempted unlawful export**, not preparation (cl. 3 expressly forbids "export, or attempt to export, or abet").
- **Disposition:** appeals allowed; the acquittals declared erroneous and unsustainable; the High Court ought to have granted leave. **However, no punishment was awarded** — fifteen years had elapsed since the acquittals, and the State's counsel was "more interested in having the correct position of law set out than in securing punishment".

PRINCIPLES EVOLVED

- Parliament may create **strict liability** by express words ("whether knowingly, intentionally or otherwise") in regulatory statutes — and courts must give effect ("the legislature made its intention explicit and nullified the effect of the Supreme Court dicta in Nathu Lal").
- Statutory **presumption of culpable mental state** (§10-C ECA model): mens rea is presumed unless the accused rebuts it beyond reasonable doubt — the modern legislative technique between full mens rea and full strict liability.
- The classical **four-stage doctrine** of criminal liability: intention and preparation are generally non-punishable; attempt and commission attract culpability — attempt is reached when the accused is **caught in the act**, moving inexorably towards completion (proximity test on the facts).

*"They were clearly cases of attempted unlawful export of the fertiliser bags and not cases of mere preparation alone."*

CASE CARD 3 · RAREST OF RARE / DEATH PENALTY · DU CASE MATERIAL P.43

## Machhi Singh and Others v. State of Punjab

(1983) 3 SCC 470 : AIR 1983 SC 957 · Supreme Court of India · Three-Judge Bench · Judgment by M.P. Thakkar, J.

| | |
|---|---|
| PROVISIONS | IPC §302 (↔ BNS §103) — three counts; IPC §149 common object (↔ BNS §190(4)); CrPC §354(3) — "special reasons" for death sentence (↔ BNSS counterpart) |
| SUBJECT | |

What is the "rarest of rare" case justifying the death penalty after Bachan Singh? In what categories may courts impose death?

FACTS

- A bitter **family feud** raged between Machhi Singh's group and the family of **Amar Singh and his sister Piaro Bai** (relations of Machhi Singh's side had earlier been killed).
- On the night of **12–13 August 1977**, in a **series of five incidents across five villages** of Punjab committed in succession the same night, Machhi Singh and his associates (armed bands) murdered **seventeen persons** — men, women and children, all related to Amar Singh and Piaro Bai — and injured three, to avenge the earlier killings.
- The victims were unarmed, defenceless, and caught unawares — several were dragged out and shot dead in cold blood (the incidents shocked the entire community).
- Trials ended in conviction of several accused: **four sentenced to death** (including Machhi Singh, Kashmir Singh and Jagir Singh @ Jaggar Singh) and **nine to life imprisonment**; the Punjab & Haryana High Court confirmed. Appeals to the Supreme Court were decided by this judgment.

ISSUES

1. Whether, on these facts, the cases fell within the **"rarest of rare"** category so as to merit the death sentence consistently with Bachan Singh and §354(3) CrPC?
2. What **categories/indicators** should guide courts in identifying the rarest of rare case — i.e., when does the community "expect" the judicial power to impose death?
3. Whether each appellant **individually** deserved the death sentence (individualised sentencing)?

ARGUMENTS OF THE PARTIES

**Defence / appellants:**

- Bachan Singh: life imprisonment is the rule, death the exception; the option of life imprisonment is never "unquestionably foreclosed" where there is any probability of reform; Machhi Singh and co-accused had no proven history making reformation impossible.
- The crimes, however grave, arose out of a **private family feud** — not anti-social or socially abhorrent crimes of the kind that terrorise communities; the "collective conscience" argument was misplaced.
- As to individual accused — one appellant was barely **18 years old**; as to **Mahinder Singh**, there was doubt whether he used the weapon attributed to him (attribution resting on weak circumstances).

**State / prosecution:**

- Seventeen innocent, defenceless persons of one family — including women and children — exterminated in one night across five villages in a **premeditated, calculated, brutal** campaign of vengeance: the magnitude, manner and motive place the case squarely in the rarest of rare category.
- The brutality and scale evinced total depravity; the community's collective conscience was profoundly shocked; anything less than death would defeat the community's sense of justice.

DECISION

- The Supreme Court **upheld the death sentences of Machhi Singh, Kashmir Singh and Jagir Singh @ Jaggar Singh**; **Mahinder Singh's death sentence was commuted** to life imprisonment (doubts about the weapon/role attributed to him) — demonstrating that within one massacre each convict is sentenced individually.
- The Court first articulated the **societal foundation** of capital punishment: society is built on "reverence for life"; one who violates it by murdering another may forfeit the protection of the humanistic approach — **but only in the rarest of rare cases where the collective conscience of the community is so shocked that it will expect the holders of the judicial power to inflict death**, irrespective of their personal opinion.
- The Court then laid down the famous **five categories** (see table below) in which the community may so expect the death sentence — viewing the crime from the platform of the motive, manner, anti-social nature, magnitude, or victim's personality.
- Both the **circumstances of the crime and of the criminal** must be considered; the sentencing court must draw a **balance-sheet of aggravating and mitigating circumstances** and record "special reasons" under §354(3) — a real special-reasons hearing, not a formality.

PRINCIPLES EVOLVED – THE FIVE MACHHI SINGH CATEGORIES

| Category | When death may be "expected" by the community |
|---|---|
| **I. Manner of the murder** | Committed in an extremely **brutal, grotesque, diabolical, revolting or dastardly** manner so as to arouse intense and extreme indignation of the community (torture, burning alive, dismemberment). |
| **II. Motive for the murder** | Motive evincing **total depravity and meanness** — e.g., hired assassination; murder for insurance or robbery; murder by one in whom the victim reposed trust. |

| Category | When death may be "expected" by the community |
|---|---|
| **III. Anti-social / socially abhorrent nature** | Murder of a member of a Scheduled Caste or minority etc., not for personal reasons but to **terrorise** such persons/community; bride-burning for dowry; murders designed to "reverse past injustices" or restore "social balance". |
| **IV. Magnitude of the crime** | Enormous proportion — **multiple murders of a family** or of a large number of persons (a "crime of immense proportion"). |
| **V. Personality of the victim** | Victim is an **innocent child**; a **helpless woman or an old/infirm person**; a **public figure** loved by the community; or a victim in a **position of trust or domination vis-à-vis the murderer**. |

*"When the collective conscience of the community is so shocked, it will expect the holders of the judicial power centre to inflict death penalty... irrespective of their personal opinion..." — and the converse: where the murderer acts under extreme mental/emotional disturbance, or is extremely young or old, or reform is probable, life must be preferred.*

LATER TRAJECTORY (BONUS MARKS)

*Santosh Bariyar* (2009) and *Swamy Shraddananda* (2008) showed that the Machhi Singh categories were being misused as a crime-centric shortcut that "considerably enlarged the scope for imposing death penalty" beyond Bachan Singh; **Manoj (2022)** restored the criminal-centric balance (Case Card 4). Mention this evolution in death-penalty answers.

CASE CARD 4 · CAPITAL SENTENCING PROCEDURE · DU CASE MATERIAL P.43

## Manoj & Ors. v. State of Madhya Pradesh

2022 INSC 606 : (2022) 9 SCALE 67 : 2022 SCC OnLine SC 677 : (2023) 2 SCC 353 · Supreme Court of India · Decided 20 May 2022

| | |
|---|---|
| BENCH | U.U. Lalit, S. Ravindra Bhat and Bela M. Trivedi, JJ. |
| PROVISIONS | IPC §§302 (three counts), 397 r/w 34, 449 r/w 34; Arms Act §§25(1-B)(b), 27 (↔ BNS §103 and robbery/house-trespass equivalents); CrPC §§235(2), 354(3) |
| SUBJECT | Procedural framework for collecting mitigating circumstances in death-penalty cases; relevance of jail conduct; the "crime test, criminal test and R–R test". |

FACTS

- Three appeals by three accused — **Manoj (about 35), Rahul @ Govind (about 20) and Neha Verma (about 22)** — convicted by the First Additional Sessions Judge, Indore for the **murder of three women of three generations** (aged about 22, 46 and 76 years) in their own home.
- The prosecution case: the three entered the house to **rob** it; on meeting unexpected protest from the women, they subjected them to **frenzied knife attacks**, killing all three. Convictions: §302 (×3) r/w 34, §397 r/w 34, §449 r/w 34 IPC + Arms Act offences; **death sentences** were awarded and **confirmed by the Madhya Pradesh High Court (Indore Bench)**, which held the crime shocked the collective conscience.
- Before the Supreme Court, the appeals raised conviction-points (test identification parade, shoeprint report, DNA quality, §313 CrPC examination) and the core sentencing question — whether death could be imposed without proper collection and consideration of the convicts' mitigating circumstances.

ISSUES

1. Was the death sentence justified on the Bachan Singh/Machhi Singh framework on these facts?
2. What must a sentencing court do, **procedurally**, to gather the accused's **mitigating circumstances** — and on whom does the burden of proving impossibility of reform lie?
3. Is the convict's **conduct in jail** after the crime a relevant mitigating (reform-indicating) circumstance?

ARGUMENTS OF THE PARTIES

**Appellants (Manoj, Rahul, Neha):**

- Sentencing was mechanical (effectively same-day conviction-and-sentence), with no psychiatric, psychological, social-background or probation material on record — the aggravating circumstances seemed "far more compelling or overwhelming" only because mitigation was never documented.
- Mitigation existed: **young age** (Rahul 20, Neha 22); **no criminal antecedents** (except a petty-theft allegation against Manoj); the frenzied, unskilled stabbing suggested unfamiliarity with the weapon; overall **good jail conduct**; probability of reform not foreclosed.

by Ankur R. Upadhyay

**Respondent — State of M.P.:**

- The crime was pre-planned and grotesque — three generations of defenceless women slaughtered in their home during a robbery; the collective conscience of society was shocked; the case was squarely rarest of rare.
- The convicts gave false answers in §313 CrPC examination, showing no remorse; the High Court had already considered the sentence; the mitigation now claimed was too little, too late.

DECISION

- Convictions upheld on the evidence; **but the death sentences were set aside and commuted to imprisonment for life, with a minimum of 25 years' actual imprisonment** before remission could be considered — because the option of life imprisonment was "certainly not foreclosed".
- **The tests:** while awarding death the court applies the **"crime test", the "criminal test" and the "R–R test"** — not a mere balancing test. The crime test must be **fully satisfied (100%)** — aggravating circumstances established to the fullest; the criminal test must show **0% mitigating circumstances**; even then the court must apply the rarest-of-rare test. Any circumstance favouring the accused — lack of intention, possibility of reformation, young age, no menace to society, clean record — tilts the criminal test against death.
- **Jail conduct is relevant:** contemporaneous conduct in prison (work done, activities, behaviour) is legitimate material on the probability of reform; if the appeal is heard long after conviction, a **fresh jail-conduct report** must be called for.
- **The Manoj protocol (practical guidelines):** the trial court must, at the sentencing stage: elicit information from the **accused**; require the **State** to produce — preferably collected beforehand — **psychiatric and psychological evaluation** of the accused; obtain reports from **probation officers** (nature, family and social background, education, conduct); call **jail authorities' reports** on conduct and work; and give the accused an **equal opportunity to rebut** the State's material. Sentencing must be individualised — "ad-hoc impressions" replaced by "verifiable data".
- The Court connected its guidelines to the **262nd Law Commission Report**'s findings on the inconsistency of capital sentencing and to the pending reference in *Death Sentence Mitigating Circumstances Guidelines, In re*.

PRINCIPLES EVOLVED

- **Individualised, data-driven capital sentencing** is part of Articles 14 and 21 due process — a death sentence without a real mitigation inquiry is procedurally infirm.
- The **State bears the burden** to prove, on material, that the convict cannot be reformed — the test is **probability**, not possibility, of reformation.
- **Jail conduct / contemporaneous post-crime conduct** is a relevant consideration at sentencing.
- Aftermath: in *Vasanta Sampat Dupare v. Union of India* (2025), the Supreme Court held that death sentences passed in violation of the *Manoj* protocol may be reopened under Article 32 — the protocol (probation-officer, psychiatric/ psychological, and jail-conduct reports) is now part of the Article 21 fair-trial guarantee.

*"The unfortunate reality is that in the absence of well-documented mitigating circumstances at the trial level, the aggravating circumstances seem far more compelling, or overwhelming, rendering the sentencing court prone to imposing the death penalty, on the basis of an incomplete, and hence, incorrect application of the Bachan Singh test."*

CASE CARD 5 · COMMUNITY SERVICE IN OPERATION · DU CASE MATERIAL P.50

## Delhi High Court Guidelines for Community Service, 2025

Guidelines framed by the High Court of Judicature of Delhi for awarding community service under §4(f), BNS 2023 — implemented by GNCTD Home Department Gazette Notification (June 2025)

| | |
|---|---|
| NATURE | Not merely a litigated judgment but a **judicially framed sentencing framework** (reproduced in the DU Case Material at p.50) — the model for operationalising BNS §4(f) pending legislative rules. |
| PROVISIONS | BNS §4(f) (community service as a punishment); BNS §§202, 209, 226, 303(2) proviso, 355, 356(2) (the six offences); BNS §8(4)–(5) (default); BNSS §23 Explanation (definition) |

BACKGROUND & 'FACTS' OF THE DEVELOPMENT

- From **1 July 2024**, the BNS/BNSS made community service a statutory punishment for six minor offences — but left the **mode of execution, nature of work, duration, supervision and verification** unprovided. Courts faced the question: what exactly does a "community service" sentence look like?
- The **Delhi High Court framed guidelines** for awarding community service; pursuant to the High Court's directions, the **Home Department, Government of NCT of Delhi, issued a gazette notification (June 2025)** notifying the permissible activities and durations for Delhi courts.
- The step follows the Delhi High Court's record of reformative orders — e.g., directing accused persons to render service at **Gurudwara Rakab Ganj Sahib** (July 2024, in a case involving insult to a neighbour's wife's modesty) and at **LNJP Hospital** — and the Supreme Court's use of community service in *Sanjeev Nanda* (2012).

THE 'ISSUES' THE GUIDELINES ANSWER

1. What activities may a court order as "community service" under §4(f)?
2. For how long, and for which class of convicts?
3. Does a guideline list limit judicial discretion?

THE GUIDELINES (AS IMPLEMENTED BY THE JUNE 2025 GNCTD NOTIFICATION)

- **12 notified activities**, including: **cleaning and maintenance of hospital wards and their peripheral areas**; sanitation duties in public spaces; **maintenance/restoration of public parks**; cleaning of parks and open spaces; **weeding of roadsides and medians**; **arranging, cataloguing and binding of books in public libraries**; and similar civic-welfare assignments.
- **Duration: 1 day to 31 days, or 40 to 240 hours**, depending on the nature of the offence and the court's discretion.
- **Eligibility:** convicts of the six minor offences — public servant's unlawful trade (§202); non-appearance after proclamation (§209); attempt to suicide to compel (§226); first-time petty theft under ₹5,000 with property restored (§303(2)); misconduct in public by a drunken person (§355); defamation (§356(2)) — the paradigm non-violent, first-time, petty offender.
- **Discretion preserved:** the list is expressly **illustrative** — the activities are "not intended to curtail the discretion of the Court in awarding any other mode of community service under §4(f) of the Bharatiya Nyaya Sanhita, 2023".
- **Enforcement:** default is met by BNS §8(4)–(5) — simple imprisonment on the ₹5,000 / ₹10,000 / other scale.

PRINCIPLES / SIGNIFICANCE

- First **operational framework** in India for the newest punishment — a template other High Courts and State Governments are expected to replicate (Delhi's 2023 Dwarka pilot had already resolved cases through community-service mandates).
- Encapsulates **restorative justice**: accountability without incarceration; the community is the beneficiary; the offender retains employment, family and dignity.
- Judicial guideline-making filling a legislative vacuum (the *Vishaka* technique) — practice guidance binding as a matter of judicial discipline pending statutory rules.
- Interpretive bridge: the definition flows from BNSS §23 (unremunerated work benefiting the community); yet the sentence remains a true **punishment** (not probation), enforceable by imprisonment in default.

EXAM CONNECT

Pair this card with BNS §4(f) & §8: "Community service — introduced for the first time by BNS §4(f), defined in BNSS §23, available for six minor offences, given teeth by §8(4)–(5), and operationalised for Delhi by the High Court guidelines of 2025 (12 activities; 1–31 days or 40–240 hours)."

EXAMINATION QUESTION BANK // DU LL.B. PAPER LB-104

## Previous Year Examination Questions (PYQs)

**Q.01** 20 marks "Crime is a relative and changing concept." Define crime, examine its nature, and discuss the essential elements that constitute a crime.

◈ Refer website for detailed notes – makelaweasy.in ↗

**Q.02** 20 marks "Actus non facit reum nisi mens sit rea." Explain this maxim and discuss whether mens rea is an essential ingredient of an offence under a statute, with the help of *State of Maharashtra v. Mayer Hans George*.

**Q.03** 20 marks Distinguish between civil and criminal liability. Can the same act give rise to both liabilities simultaneously? Illustrate.

**Q.04** 20 marks What is mens rea? Explain its forms — intention, knowledge, recklessness and negligence — with illustrations, and distinguish intention from motive and from knowledge.

**Q.05** 20 marks PROBLEM: A German national, in transit through Delhi airport on a flight from Zurich to Bangkok, is found wearing a jacket concealing 20 kg of undeclared gold. RBI's latest notification (published in the Gazette four days before he boarded at Zurich) requires all transit gold to be declared in the aircraft manifest. He pleads: (i) he never left the aircraft; (ii) he had no knowledge of the notification; (iii) the gold was on his person, not 'cargo'. Decide.

**Q.06** 20 marks "Strict liability offences are an exception to the doctrine of mens rea." Explain strict liability in criminal law, the judicial technique for identifying it, and the legislative technique of presuming a 'culpable mental state', with reference to decided cases.

**Q.07** 20 marks Explain the four stages in the commission of a crime. At what stage does criminal liability attach, and what are the exceptions where even preparation is punishable? Refer to *State of M.P. v. Narayan Singh*.

**Q.08** 20 marks Discuss the kinds of punishments prescribed under the Bharatiya Nyaya Sanhita, 2023 (Sections 4–13) and highlight the significant departures from the Indian Penal Code, 1860.

UNIT 02 // DU LL.B. PAPER LB-104 (BNS & IPC) 5 Prescribed Cases · 8 Exam PYQs

# General Exceptions — Unsoundness of Mind, Intoxication & Right of Private Defence

## 1 General Exceptions — The Conceptual Framework

BNS §§ 14-44 | IPC §§ 76-106 | BNS § 3(1) / IPC § 6 | BSA § 108 / IEA § 105

BNS Chapter III (§§ 14–44) ↔ IPC Chapter IV (§§ 76–106) — defences that "negative criminality completely"

### 1.1 What is a "general exception"?

A **general exception** is a circumstance, defined in the criminal statute itself, in which an act that would otherwise satisfy the definition of an offence is **not an offence at all**. The exceptions are "general" because, unlike the special exceptions attached to particular offences (e.g., Exception 1 to § 101 BNS / § 300 IPC — grave and sudden provocation), they apply **throughout the whole code**, to every offence, unless excluded.

> *"General defences in Chapter IV, IPC, if applicable in a given case, **negate criminality completely**."*
> — DU Case Material (2023 edn.), Unit 5 introduction

BNS § 3(1) ⇔ IPC § 6 — DEFINITIONS SUBJECT TO EXCEPTIONS

"Throughout this Sanhita every definition of an offence, every penal provision, and every *Illustration* of every such definition or penal provision, shall be understood **subject to the exceptions contained in the Chapter entitled 'General Exceptions'**, though those exceptions are not repeated in such definition, penal provision, or *Illustration*."

*Illustration (a):* The sections containing definitions of offences do not express that a child under seven cannot commit them; the definitions are read subject to the general exception that nothing is an offence done by a child under seven.
*Illustration (b):* A, a police officer, without warrant, apprehends Z, who has committed murder. A is not guilty of wrongful confinement — he was bound by law to apprehend Z.

**Two consequences follow:** (i) the prosecution never needs to negative the exceptions in its charge — every offence is defined on the assumption that the exceptions may later be applied; and (ii) once the accused successfully brings his case within an exception, he is **acquitted outright**, not merely excused or given a lesser sentence. The exception destroys the *actus reus* or the *mens rea* element of the crime itself.

### 1.2 Justifications vs. excuses — how the defences differ in theory

Criminal-law theory divides defences into two families. Both produce acquittal, but for opposite reasons:

| Family | Logic | Examples in BNS Ch. III / IPC Ch. IV |
|---|---|---|
| **Justifications** (the act was RIGHT) | Society approves, or at least tolerates, what the actor did — the act avoids a greater evil or repels unlawful aggression. The law says: you may do this. | Private defence (§§ 34–44 / 96–106); acts of judges & persons justified by law (§§ 15–17 / 77–79); necessity (§ 19 / 81); acts for the benefit of persons (§§ 26–27, 30 / 88–89, 92). |
| **Excuses** (the act was wrong, but the actor is NOT blameworthy) | The actor lacked the capacity or fair opportunity to choose lawfully — punishing him would achieve nothing. | Unsoundness of mind (§ 22 / 84); infancy (§§ 20–21 / 82–83); involuntary intoxication (§ 23 / 85); mistake of fact (§§ 14, 17 / 76, 79); accident (§ 18 / 80); compulsion by threats (§ 32 / 94). |

The distinction matters for **§ 36/§ 98**: against a *justified* act there is ordinarily no right of private defence (the act is lawful), but against an *excused* act (of an insane person, a child, an involuntarily intoxicated person) the victim **does** retain the right of private defence — a crucial asymmetry examined in § 4(C) below and tested in DU's Dec 2015 paper.

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### 1.3 The architecture of BNS Chapter III / IPC Chapter IV

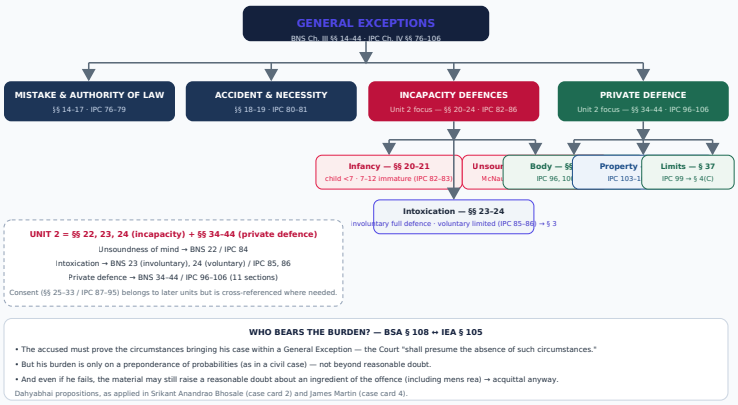



Fig. 1 — The family tree of General Exceptions (BNS Ch. III), highlighting this unit's two branches

### 1.4 Burden of proving an exception — BSA § 108 ↔ Evidence Act § 105

**BHARATIYA SAKSHYA ADHINIYAM § 108 ↔ INDIAN EVIDENCE ACT § 105**

"When a person is accused of any offence, the burden of proving the existence of circumstances bringing the case within any of the General Exceptions in the *Bharatiya Nyaya Sanhita, 2023* or within any special exception or proviso contained in any other part of the said Sanhita, or in any law defining the offence, is upon him, and the Court shall presume the absence of such circumstances."

*Illustration (a):* A, accused of murder, alleges that, by reason of unsoundness of mind, he did not know the nature of the act. The burden of proof is on A.

Three working rules govern this burden (settled in *Dahyabhai Chhaganbhai Thakker v. State of Gujarat*, AIR 1964 SC 1563, and applied in *Bhosale* and *James Martin*):

1. The prosecution must prove the offence (including mens rea) **beyond reasonable doubt** — that burden never shifts.
2. The accused's burden on an exception is only **preponderance of probabilities** — "no higher than that which rests upon a party to civil proceedings." He may discharge it through prosecution evidence itself (cross-examination), without adducing his own evidence.
3. Even if the accused fails to establish the exception conclusively, the material may raise a **reasonable doubt** about an ingredient of the offence — the court must then acquit because the general burden is undischarged.

**EXAM NUANCE**

Do not write that the accused must prove insanity or private defence "beyond reasonable doubt" — that is the classic error. DU examiners specifically reward the **Salim Zia** formulation, quoted with approval in *James Martin* (case card 4): the accused "need not establish the plea to the hilt and may discharge his onus by establishing a mere preponderance of probabilities."

## 2 Unsoundness of Mind — BNS § 22 ↔ IPC § 84

BNS § 22 | IPC § 84 | M'Naghten Rules (1843) | Srikant Anandrao Bhosale (2003)

"Nothing is an offence which is done by a person who, at the time of doing it, by reason of unsoundness of mind, is incapable of knowing the nature of the act, or that he is doing what is either wrong or contrary to law."

### 2.1 The statutory text and its anatomy

**BNS § 22 ↔ IPC § 84 — ACT OF A PERSON OF UNSOUND MIND**

"Nothing is an offence which is done by a person who, **at the time of doing it**, by reason of **unsoundness of mind**, is **incapable of knowing** the nature of the act, or that he is doing what is either **wrong or contrary to law**."

The section is a single sentence carrying four cumulative ingredients — every one of which must be examined in a problem answer:

| Ingredient | What must be shown |
|---|---|
| **1. Time — "at the time of doing it"** | The decisive moment is the **moment of the act**, not before or after. Insanity before or after the offence is only *relevant evidence* from which the state of mind at the crucial moment is inferred — the holding on which *Bhosale* (case card 2) turns. |
| **2. Cause — "by reason of unsoundness of mind"** | The incapacity must spring from **mental disease** (legal insanity), not from mere emotion, anger, passion, volitional weakness or moral depravity. "Every person suffering from mental illness is not exempted from criminal liability" (*Surendra Mishra v. State of Jharkhand*, (2011) 11 SCC 495). |
| **3. Incapacity — "incapable of knowing"** | A total incapacity (not mere difficulty) in either of two cognitive spheres (see 4 below). Partial impairment, e.g., diminished responsibility or irresistible impulse, is **not** enough under Indian law. |

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| Ingredient | What must be shown |
|---|---|
| **4. Object of the incapacity** | Either (a) the **nature of the act** (physical character and consequences — that he is cutting a human being, not a vegetable), **or** (b) that the act is **wrong or contrary to law** (moral/legal wrongness). Either limb suffices. |

## 2.2 The M'Naghten Rules — where the test comes from

**M'Naghten's Case** ((1843) 10 Cl & Fin 200) — Daniel M'Naghten, a Scottish woodturner labouring under the paranoid delusion that he was persecuted by Sir Robert Peel, shot and killed Edward Drummond, Peel's private secretary, mistaking him for Peel. The House of Lords posed five questions to the judges of the common-law courts; the answers, the **M'Naghten Rules**, remain the foundation of the insanity defence throughout the common-law world and of IPC § 84 (drafted by Macaulay's successors in step with them):

1. Every man is **presumed sane** until the contrary is proved.
2. To establish the defence, it must be clearly proved that at the time of the act the accused was labouring under such a **defect of reason, from disease of the mind**, as not to know the **nature and quality** of the act he was doing; or
3. if he did know it, that he **did not know he was doing what was wrong**;
4. where the accused labours under a **partial delusion** only, he must be considered in the same situation as if the facts with respect to which the delusion exists were real — a delusion that a man is attacking you licenses only such defence as would exist if he really were;
5. medical insanity unsupported by impairment of cognitive faculties does not, in law, exempt from responsibility.

**Why it matters for DU:** § 84/§ 22 is deliberately narrower than the Rules' modern English successors (diminished responsibility, the "substantial capacity" Model Penal Code test). Indian courts remain faithful to the **cognitive test only** — a frequent critical note question: "the section adopts only the first two M'Naghten propositions and ignores disease of the volitions."

## 2.3 Legal insanity vs. medical insanity — the decisive distinction

The section speaks the language of **legal**, not **medical**, insanity. A diagnosis — schizophrenia, psychosis, paranoia — is merely the gateway; the defence succeeds only if the disease, at the moment of the act, produced one of the statutory incapacities. In *Surendra Mishra* the Supreme Court distilled the circumstantial indicators a court examines:

- whether the act was **devoid of any rational motive**;
- the **history of mental illness** before and after the offence;
- the accused's **conduct before, during and after** the crime — flight, concealment, attempts to destroy evidence point to knowledge of wrongfulness;
- the **nature and brutality** of the act (a senseless, bizarre attack on a helpless victim may evidence derangement).

> *"Every sane person — and in this case we are bound to take it that the appellant was sane — is presumed to have some knowledge of the nature of his act. **This knowledge is not negatived by any mental condition short of insanity.**"*
>
> — Gyarsibai v. The State (as reproduced in the DU Case Material, 2023 edn.)

**FOUR CLASSIC TRAPS**

**(i) Anger is not insanity** — extreme fits of anger, however violent, exclude § 84 (this was the State's whole case in *Bhosale*). **(ii) Psychopathy/sadism is not insanity** — knowing wrongdoing excludes the section. **(iii) A lucid interval** — an interval of cure or remission: an act done in a lucid interval is fully punishable. **(iv) Medical certificate ≠ acquittal** — the court tries the issue of *legal* insanity on the totality of circumstances, not on a hospital label.

## 2.4 Who proves what, and how well

Under BSA § 108 / IEA § 105 (§ 1.4 above) the accused bears the burden, but only to the civil standard — and the crucial time is the time of the offence. The operation of this burden is best learnt from ***Srikant Anandrao Bhosale v. State of Maharashtra*** (case card 2): a constable with a nine-year documented history of paranoid schizophrenia who killed his wife with a grinding stone in broad daylight and made no attempt to flee. The Supreme Court held that unsoundness *before and after* the incident, when taken with the totality of circumstances, supported the inference of a schizophrenic delusion *at* the moment of the act — the anger theory did not rule out a schizophrenia attack — and gave him § 84.

## 2.5 Consequence of success — acquittal, but not necessarily freedom

An acquittal under § 22/§ 84 is not a licence to walk out. Because the finding records that the accused *did the act* but lacked capacity, the procedural code provides for protective detention:

| Provision (BNSS 2023) | CrPC 1973 | Effect |
|---|---|---|
| **§ 373** | § 334 | Judgment of acquittal on ground of unsoundness of mind must **state specifically whether the accused committed the act or not**. |
| **§ 374** | § 335 | If the act is found committed (and would, but for incapacity, have been an offence), the court shall order the person **detained in safe custody**, or otherwise dealt with as it directs — he may be received into a mental-health establishment. |

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| Provision (BNSS 2023) | CrPC 1973 | Effect |
|---|---|---|
| **§ 367** | § 328 | Procedure where the accused is of unsound mind *during trial* (fitness to stand trial; discharge where the offence is bailable). |

**CONCEPTUAL DEPTH**

This shows the true character of the defence: § 22 is an **excuse**, not a justification — the act remains a harmful act; the actor is simply not culpable. Society's protection interest re-enters through the procedural code. (The Mental Healthcare Act, 2017 supplies the modern framework for evaluation and care of such accused persons.)

### 2.6 Decision flowchart

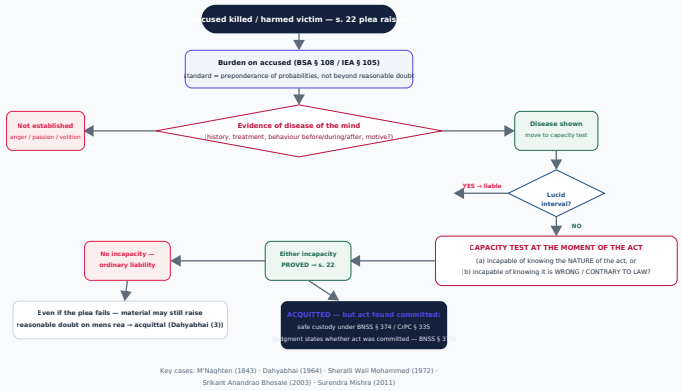



Fig. 2 — Section 22 / IPC 84 decision path: from plea to verdict, with the custody sequel

## 3 Intoxication — BNS §§ 23–24 ↔ IPC §§ 85–86

BNS § 23 (involuntary) · BNS § 24 (voluntary) · IPC §§ 85-86 · Basdev v. State of PEPSU (1956)

Drunkenness is never a blanket licence: the law splits intoxication into involuntary (a complete excuse in the same terms as insanity) and voluntary (knowledge imputed; intention examinable)

### 3.1 The two sections

**BNS § 23 ⇔ IPC § 85 — INVOLUNTARY INTOXICATION (COMPLETE DEFENCE)**

"Nothing is an offence which is done by a person who, at the time of doing it, is, by reason of intoxication, **incapable of knowing the nature of the act**, or that he is doing what is either **wrong, or contrary to law**; **provided** that the thing which intoxicated him was **administered to him without his knowledge or against his will**."

**BNS § 24 ⇔ IPC § 86 — VOLUNTARY INTOXICATION (LIMITED RULE)**

"In cases where an act done is not an offence unless done with a **particular knowledge or intent**, a person who does the act in a state of intoxication **shall be liable to be dealt with as if he had the same knowledge as he would have had if he had not been intoxicated**, unless the thing which intoxicated him was administered to him without his knowledge or against his will."

**DRAFTING WATCH-POINT (BNS § 23)**

The Gazette text of § 23 reads "...what is **neither** wrong, **or** contrary to law" — an apparent drafting slip against IPC § 85's "either wrong, or contrary to law." Since the two are otherwise in pari materia, courts will read § 23 as reproducing the IPC test (incapacity to know the act is wrong *or* unlawful). In the exam, quote the BNS text but construe it with IPC § 85 — that observation itself earns marks.

### 3.2 Involuntary intoxication — the ingredients

- **Intoxication at the time of the act** — by drink, drug, or any intoxicating substance;
- **from a thing administered without his knowledge or against his will** — spiked drinks, forcibly forced liquor, drugged food; voluntary heavy drinking does not qualify, however "compulsive" the drinker's habit;
- producing, **by reason of that intoxication, incapacity** to know the nature of the act or its wrongfulness — the same cognitive incapacity as § 22 / § 84.

If all three exist, the defence is **complete** — the accused is treated exactly like a person of unsound mind. (The commonest DU problem: A's drink is spiked at a party; in a drugged delirium he attacks a friend. Answer: § 23 / IPC 85 — nothing is an offence; if only the "spiking" is doubtful, § 24 analysis follows.)

### 3.3 Voluntary intoxication — the Basdev rule

Where intoxication is self-induced, § 24 / § 86 splits the mental element in two:

| Element | Rule | Reasoning |
|---|---|---|
| **Knowledge** | **Imputed** — the drunken man is dealt with as if he had the same knowledge as if sober. | A man who deliberately disables his judgment cannot profit from the disablement; he takes the risk of what he does while drunk. Hence offences defined by *knowledge* (e.g., that the act is likely to cause death) are not softened by drink. |
| **Intention** | **Genuinely examined** — evidence of drunkenness is admissible to show the accused was incapable of forming the *specific intention* essential to the offence. | Intention is a fact to be gathered from the attending circumstances of the case; if the intoxication was so extreme as to destroy the capacity to form intent, the specific-intent offence is not made out. |

In ***Basdev v. State of PEPSU*** (AIR 1956 SC 488 — case card 1) the Supreme Court adopted the classical English rules (from *DPP v. Beard* [1920] AC 479, as summarised in *R v. Monkhouse*):

1. **Insanity, whether produced by drunkenness or otherwise, is a defence** to the crime charged — if drink has made the accused *insane*, § 22 / § 84, not § 24, is the answer (drunkenness at that depth is effectively involuntary in its consequences);
2. evidence of drunkenness which **renders the accused incapable of forming the specific intent** essential to the crime must be taken into account with the other facts to determine whether he had that intent;
3. evidence of drunkenness **falling short of proved incapacity** — merely showing that the mind was affected so that the accused more readily gave way to passion — **does not rebut the presumption that a man intends the natural consequences of his acts**.

> **The one-line exam formula:** Voluntary drunkenness is relevant only to *intention*, never to *knowledge*; and it must amount to incapacity before it touches even intention — "mere drunkenness is no defence; drunkenness equivalent to insanity may be."

## 3.4 Applying § 24 / § 86 to murder (§ 101 BNS / § 300 IPC)

Murder is defined by intention *and* knowledge (clauses (a)–(d) of § 101/§ 300). The Basdev mechanics: knowledge that a revolver fired into a boy's abdomen at close range is likely to cause death is **imputed** to the drunkard — so the knowledge-based clauses (secondly) remain satisfied. Only if the evidence showed incapacity to form the **intention** to kill could the offence fall to culpable homicide (§ 105/§ 304 Part I). On Basdev's own facts (he walked and talked, fled after the shot, and begged forgiveness when caught) the Court held he was far from incapable — conviction under § 302 IPC affirmed. Note the converse lesson the case teaches: **post-offence conduct is the best evidence of preserved capacity**.

## 3.5 Distinction table — and the road map

| Point | § 23 / IPC 85 — Involuntary | § 24 / IPC 86 — Voluntary |
|---|---|---|
| **How caused** | Administered without knowledge / against will | Self-administered knowingly and willingly |
| **Nature of defence** | Complete excuse — parallel to § 22 unsoundness | Not a defence at all; only a rule of imputation/ examination of intent |
| **Effect on knowledge** | Incident incapacity negates knowledge | Knowledge imputed as if sober |
| **Effect on intention** | Incident incapacity negates intention | Intention examinable — relevant only if it shows total incapacity to form specific intent |
| **Burden** | On accused (BSA § 108 / IEA § 105), preponderance standard | On accused, preponderance standard |
| **Leading authority** | Spiked-drink hypotheticals; *Basdev* (rules (i)) | *Basdev v. State of PEPSU* (AIR 1956 SC 488) |

## 3.6 Decision flowchart

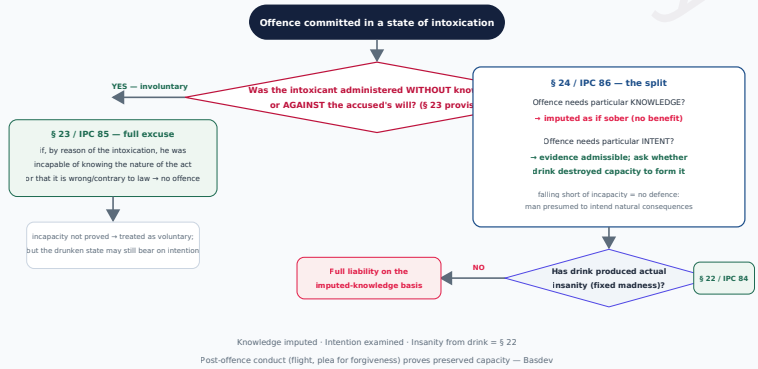



Fig. 3 — Intoxication defence: involuntary (§ 23) vs. voluntary (§ 24) decision path

# 4 Private Defence — BNS §§ 34–44 ↔ IPC §§ 96–106

BNS §§ 34-44 | IPC §§ 96-106 | Deo Narain (1973) | James Martin (2004) | Darshan Singh (2010)

"Self-preservation is the prime instinct of every human being" — the right of private defence: preventive and protective, never punitive (DU Case Material)

## 4.1 Foundation and philosophy of the right

Why does a legal system that monopolises force through the State license the individual to use force at all? Because the State's protection is not omnipresent: between the commencement of an attack and the arrival of the police there is a gap that only the victim can fill. The right of private defence — argued from man's inherent right of self-preservation and from Bentham's "natural protector" duty — is the citizen's temporary, emergency licence to repel unlawful aggression. **Darshan Singh** (case card 5) contains the fullest modern exposition, adopted from *Authoritative Criminal Precedent* and a century of Supreme Court authority.

> *"a man is justified in resisting by force anyone who manifestly intends and endeavours by violence or surprise to commit a known felony against either his person, habitation or property. In these cases,* ***he is not obliged to retreat****, and may not merely resist the attack where he stands but may indeed pursue his adversary until the danger is ended, and if in a conflict between them he happens to kill his attacker, such killing is justifiable."*
>
> — Authoritative Criminal Precedent (11th Edn., Vol. 1, p. 49), quoted in James Martin (para 19) and Darshan Singh (para 24)

> *When enacting sections 96 to 106 of the IPC, the Legislature "clearly intended to* ***arouse and encourage the manly spirit of self-defence*** *amongst the citizens, when faced with grave danger. The law does not require a law-abiding citizen to behave like a coward when confronted with an imminent unlawful aggression. As repeatedly observed by this Court* ***there is nothing more degrading to the human spirit than to run away in face of danger.****"*
>
> — Darshan Singh v. State of Punjab (para 24; DU Case Material)

> *"It is a noble movement of the heart, that indignation which kindles at the sight of the feeble injured by the strong...* ***It concerns the public safety that every honest man should consider himself as the natural protector of every other.****" — Bentham, quoted in Darshan Singh (para 29). But "such protection must not be extended beyond the necessities of the case, otherwise it will encourage a spirit of lawlessness and disorder."*
>
> — Darshan Singh v. State of Punjab (DU Case Material)

**The two considerations that limit the right (Darshan Singh, para 31):** (i) **the same right is claimed by all other members of society** — if each may use any force, security is destroyed; and (ii) **the State undertakes the responsibility for maintenance of law and order** — private force is tolerated only where State aid cannot be had in time. Hence: the right is available only when the danger is **sudden, imminent and not self-created**, and only to the extent necessary.

> *"The right of private defence has come to be recognized by all civilized societies as a* ***preventive and protective*** *right where the state protection is not available; this right is* ***essentially protective and preventive and never punitive****."*
>
> — DU Case Material (2023 edn.), Unit 5 introduction

**Character of the right — six cardinal features (synthesis of §§ 34–44):**

- **Defensive, never retributive** — "a right to defend oneself and not to retaliate... not a right to take revenge" (Darshan Singh, para 30).
- **Available against offences only** — the IPC confers the right when the wrongful act is an *offence* (Darshan Singh, principle (ix)); BNS § 36/IPC § 98 creates an exception for protected persons (4.3 below).
- **No duty to retreat** — English retreat doctrine expressly rejected for India (Darshan Singh, para 28).
- **Begins on reasonable apprehension** — the attack need not have begun; a present, imminent threat suffices (Deo Narain; § 40/ IPC 102).
- **Proportionate** — no more harm than necessary (§ 37(2)/IPC 99), but judged generously, not "in golden scales" (Deo Narain; Buta Singh).
- **Ends with the apprehension** — once the threat is repelled or has fled, the right dies; later force is aggression (Jai Dev, AIR 1963 SC 612).

## 4.2 The scheme of §§ 34–36 / IPC 96–98 — scope and subjects

**BNS § 34 ↔ IPC § 96 — THINGS DONE IN PRIVATE DEFENCE**

"Nothing is an offence which is done in the exercise of the right of private defence."

**BNS § 35 ↔ IPC § 97 — SUBJECT-MATTER OF THE RIGHT**

"Every person has a right, subject to the restrictions contained in **section 37** [IPC: 99], to defend—
(a) **his own body, and the body of any other person**, against any offence affecting the human body;
(b) **the property, whether movable or immovable, of himself or of any other person**, against any act which is an offence falling under the definition of **theft, robbery, mischief or criminal trespass**, or which is an **attempt** to commit theft, robbery, mischief or criminal trespass."

Ankur R. Upadhyay

**Reading § 35 / § 97 — four things examiners test:**

- **"Every person"** — no age, sanity, sex or status limit; even a person who could not himself be criminally liable (a child, an insane person) may exercise the right; and the defender needs no authority from the person defended — the right to defend *any other person* is a public duty (Bentham's "natural protector").
- **Defence of body** — against *any* offence affecting the human body (from simple hurt upwards) — the widest possible subject on the body side.
- **Defence of property** — only against **four named offences** (theft, robbery, mischief, criminal trespass) **and their attempts** — extortion, dacoity simpliciter or house-trespass alone do not qualify (house-trespass matters only through the house-breaking clauses of § 41(b)/IPC 103(2ndly)).
- **Movable or immovable** — cattle, goods, land and buildings all covered; and property "of any other person" — a stranger's goods too may be defended.

## 4.3 § 36 / IPC § 98 — private defence against persons who commit no offence

BNS § 36 ⇔ IPC § 98 — RIGHT OF PRIVATE DEFENCE AGAINST ACT OF A PERSON OF UNSOUND MIND, ETC.

"When an act, which would otherwise be a certain offence, is not that offence, by reason of the **youth, the want of maturity of understanding, the unsoundness of mind or the intoxication** of the person doing that act, or by reason of any **misconception** on the part of that person, every person has the **same right of private defence** against that act which he would have if the act were that offence."

*Illustration (a):* Z, a person of unsound mind, attempts to kill A; Z is guilty of no offence. **But A has the same right of private defence which he would have if Z were sane.**
*Illustration (b):* A enters by night a house which he is legally entitled to enter. Z, in good faith, taking A for a house-breaker, attacks A. Z, attacking under this misconception, commits no offence. **But A has the same right of private defence against Z which he would have if Z were not acting under that misconception.**

THE ASYMMETRY — AND DU'S DEC 2015 PROBLEM

The aggressor's *excuse* (insanity, infancy, involuntary intoxication, honest mistake) protects **him** from punishment; it does **not** disarm his victim. Two madmen may both be protected — the attacker by § 22, the defender by § 36. The DU Dec 2015 paper asked exactly Illustration (a): A attacked by Z (unsound, spear in hand) strikes Z dead with a stick — A gets § 96/§ 34 read with § 98/§ 36 and § 100(1stly)/(2ndly)/§ 38(a)-(b), because a spear attack reasonably causes apprehension of death or grievous hurt. **But if the aggressor's act is justified** (a public servant lawfully acting, or a person under a mistake protected by § 14/§ 17 justification), §§ 37/99 restrict the response — see 4.4.

## 4.4 § 37 / IPC § 99 — the statutory limits ("Lakshman Rekha")

*James Martin* opens by framing the whole problem: the right exists, but "where exercise of such rights is claimed, [the question is] whether the **'Lakshman Rekha'**, applicable to its exercise has been exceeded. Section 99 IPC delineates the extent to which the right may be exercised." BNS § 37 restates the section in structured form:

BNS § 37 ⇔ IPC § 99 — ACTS AGAINST WHICH THERE IS NO RIGHT OF PRIVATE DEFENCE

"(1) There is no right of private defence—
(a) against an act which does not reasonably cause the apprehension of death or of grievous hurt, if done, or attempted to be done, **by a public servant acting in good faith under colour of his office**, though that act may not be strictly justifiable by law;
(b) against an act which does not reasonably cause the apprehension of death or of grievous hurt, if done, or attempted to be done, **by the direction of a public servant acting in good faith under colour of his office**, though that direction may not be strictly justifiable by law;
(c) in cases in which **there is time to have recourse to the protection of the public authorities**.
(2) The right of private defence in no case extends to the **inflicting of more harm than it is necessary to inflict for the purpose of defence**.

*Explanation 1:* A person is not deprived of the right against an act of a public servant **unless he knows or has reason to believe** that the person doing it is such public servant.
*Explanation 2:* A person is not deprived of the right against an act done by direction of a public servant unless he knows/believes the actor acts by such direction, or unless the actor states his authority, or produces written authority if demanded."

**The four limits unpacked:**

- **Public-servant bar (a), (b):** good-faith official acts under colour of office — even if technically irregular — may not be forcibly resisted, *unless* they threaten death or grievous hurt. Reason: the law presumes the legality of official process; resistance must take the form of legal remedies. Note the double safeguard in the Explanations: the bar applies only where the citizen **knew or had reason to believe** he faced a public servant (an ununiformed plain-clothes arrest at night may lawfully be resisted).
- **Time bar (c):** where there is time to seek the protection of the public authorities, private force is premature — the right is a right of *necessity*, not convenience. It arises only "when immediate aid from the State machinery is not readily available" (Darshan Singh, para 33).

- **Proportionality (2):** "more harm than necessary" is forbidden — the outer Lakshman Rekha. But proportionality is judged humanely: no "golden scales" (Deo Narain), no "arithmetical exactitude" (Darshan Singh principle (v); Vidhya Singh), no "high-powered spectacles or microscopes to detect slight or even marginal overstepping" (Buta Singh, approved in James Martin, para 17).
- **Free fight:** where both parties willingly fight, each is aggressor as against the other — the right of private defence is not available to either (an inflexible rule invoked across the case law; both Deo Narain's trial court and the HCs in the DU cases examine "who was the aggressor").

## 4.5 § 38 / IPC § 100 — when defence of the body may kill

**BNS § 38 ⇔ IPC § 100 — WHEN THE RIGHT OF PRIVATE DEFENCE OF THE BODY EXTENDS TO CAUSING DEATH**

"The right of private defence of the body extends, under the restrictions specified in section 37, to the voluntary causing of death or of any other harm to the assailant, if the offence which occasions the exercise of the right be of any of the descriptions hereinafter enumerated, namely:—

(a) such an assault as may reasonably cause the apprehension that **death** will otherwise be the consequence of such assault;

(b) such an assault as may reasonably cause the apprehension that **grievous hurt** will otherwise be the consequence of such assault;

(c) an assault with the intention of committing **rape**;

(d) an assault with the intention of gratifying **unnatural lust**;

(e) an assault with the intention of **kidnapping or abducting**;

(f) an assault with the intention of **wrongfully confining** a person, under circumstances which may reasonably cause him to apprehend that he will be unable to have recourse to the public authorities for his release;

(g) an act of **throwing or administering acid or an attempt to throw or administer acid** which may reasonably cause the apprehension that grievous hurt will otherwise be the consequence of such act."

| BNS 38 | IPC 100 | Trigger | Notes for problem questions |
|---|---|---|---|
| (a) | Firstly | Apprehension of **death** | No actual injury needed — *Darshan Singh*: the accused "need not wait till he sustains injuries"; a gandasa blow that felled his father sufficed. Reasonableness judged by weapon, manner, proximity, numbers. |
| (b) | Secondly | Apprehension of **grievous hurt** | Even where no blow has yet been struck — a lathi aimed at the head (Deo Narain: a lathi blow to the head "can be instantly fatal"). |
| (c) | Thirdly | **Rape** intended | Defender may be any person — the "natural protector" of the victim; covers stalking-into-assault scenarios. |
| (d) | Fourthly | **Unnatural lust** intended | Section 377-type aggression. |
| (e) | Fifthly | **Kidnapping/abduction** intended | Includes abduction by force (BNS § 137); guardian or bystander may resist to the death. |
| (f) | Sixthly | **Wrongful confinement** with no recourse to authority | The captive may kill to escape — the classic locked-room problem. |
| (g) | Seventhly (added 2013) | **Acid attack / attempt** | Inserted by the Criminal Law (Amendment) Act, 2013 after the Delhi gang-rape amendments; retained verbatim in BNS § 38(g). "Administering" covers tricking the victim into consuming acid. |

**Darshan Singh's summary of clauses (a)–(b) (paras 22–23, 36):** § 100/§ 38 "justifies the killing of an assailant when apprehension of atrocious crime... is shown to exist"; clause (a) covers reasonable apprehension of death, clause (b) a genuine apprehension that the adversary's attack will result in grievous hurt — in which event he may cause the latter's death **"even though the latter may not have inflicted any blow or injury on him."** Whether the apprehension was reasonable is a question of fact — "the weapon used, the manner and nature of assault and other surrounding circumstances" — no strait-jacket formula.

by Ankur R. Upadhyay

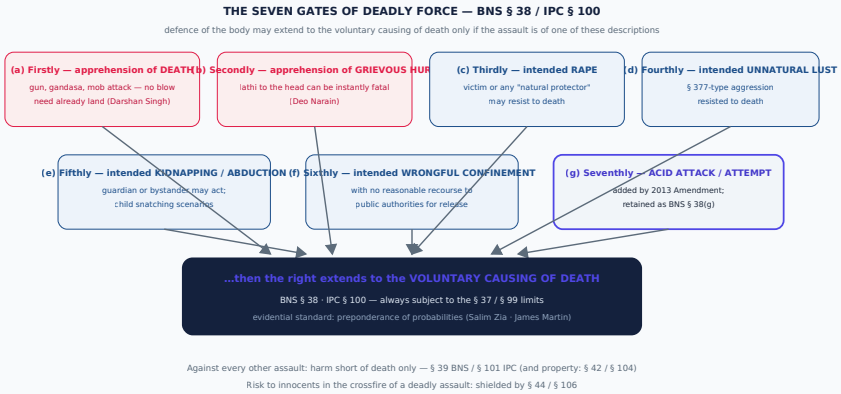



Fig. 4 — The seven death clauses of § 38 BNS / § 100 IPC (clause (g) born in 2013)

## 4.6 § 39 / IPC § 101 — all other cases: harm short of death

**BNS § 39 ⇔ IPC § 101**

"If the offence be not of any of the descriptions specified in section 38, the right of private defence of the body **does not extend to the voluntary causing of death** to the assailant, but does extend, under the restrictions specified in section 37, to the voluntary causing to the assailant of **any harm other than death**."

Thus against a simple assault (a slap, a fist aimed at the arm) the defender may repel with proportionate force — he may hurt, but if he kills when death/grievous hurt was not reasonably apprehended and no special clause applies, he has **exceeded** the right: complete protection falls away, and the partial shield of the "grievous hurt in excess of right" rules (BNS § 65(2)/IPC 300 Exception 2 analogy aside) may or may not arise on the facts.

## 4.7 § 40 / IPC § 102 — commencement and continuance (body)

**BNS § 40 ⇔ IPC § 102**

"The right of private defence of the body **commences as soon as a reasonable apprehension of danger to the body arises from an attempt or threat to commit the offence** though the offence may not have been committed; and it **continues as long as such apprehension of danger to the body continues**."

This short section is the heart of ***Deo Narain v. State of U.P.*** (AIR 1973 SC 473 — case card 3). The High Court had reasoned that the right to inflict a fatal blow "arises only after the accused had sustained injuries" and had condemned the accused for using a spear against a lathi. The Supreme Court held both propositions to be misdirections of law:

> *"To say that the appellant could only claim the right to use force after he had sustained a serious injury... is a complete misunderstanding of the law. The right of private defence commences **as soon as a reasonable apprehension of danger to the body arises from an attempt or threat... though the offence may not have been committed**." The threat must be "present and imminent" — not remote or contingent — and the right "continues as long as such apprehension continues." "Private defence is **preventive and protective**, not punitive; the right to punish vests in the State."*
>
> — Deo Narain v. State of U.P. (DU Case Material)

**The three time-zones:** (i) **before the attack matures** — right exists once the apprehension is reasonable and imminent (a raised gandasa, a mob breaking down the door — DU Dec 2014 problem: X could fire *before* the mob entered); (ii) **during the attack** — the classic zone, judged with "golden scales" leniency; (iii) **after the threat ends** — right is exhausted: *Jai Dev v. State of Punjab* (AIR 1963 SC 612), cited in James Martin: "as soon as the cause for reasonable apprehension disappears and the threat has either been destroyed or has been put to rout, there can be no occasion to exercise the right of private defence." Chasing a fleeing aggressor to "punish" him is retaliation, not defence.

## 4.8 §§ 41–43 / IPC §§ 103–105 — private defence of property

**BNS § 41 ⇔ IPC § 103 — WHEN DEFENCE OF PROPERTY EXTENDS TO CAUSING DEATH**

"The right of private defence of property extends, under the restrictions specified in section 37, to the voluntary causing of death or of any other harm to the wrong-doer, if the offence, the committing of which, or the attempting to commit which, occasions the exercise of the right, be an offence of any of the descriptions hereinafter enumerated, namely:—

(a) **robbery**;

(b) **house-breaking after sunset and before sunrise**;

(c) **mischief by fire or any explosive substance** committed on any building, tent or vessel, which building, tent or vessel is used as a human dwelling, or as a place for the custody of property;

(d) **theft, mischief, or house-trespass**, under such circumstances as may reasonably cause apprehension that **death or grievous hurt** will be the consequence, if such right of private defence is not exercised."

**BNS § 42 ⇔ IPC § 104**

"If the offence, the committing of which, or the attempting to commit which, occasions the exercise of the right of private defence, be **theft, mischief, or criminal trespass**, not of any of the descriptions specified in section 41, that right does not extend to the voluntary causing of death, but does extend... to the voluntary causing to the wrong-doer of **any harm other than death.**"

**BNS § 43 ⇔ IPC § 105 — COMMENCEMENT AND CONTINUANCE OF THE RIGHT OF PROPERTY DEFENCE**

"The right of private defence of property—
(a) commences when a **reasonable apprehension of danger to the property** commences;
(b) against **theft** continues till the offender has **effected his retreat with the property**, or either the assistance of the public authorities is obtained, or the property has been recovered;
(c) against **robbery** continues as long as the offender causes or attempts to cause to any person death or hurt or wrongful restraint, or as long as the fear of instant death or of instant hurt or of instant personal restraint continues;
(d) against **criminal trespass or mischief** continues as long as the offender continues in the commission of criminal trespass or mischief;
(e) against **house-breaking after sunset and before sunrise** continues as long as the house-trespass which has been begun by such house-breaking continues."

**WHY "AFTER SUNSET AND BEFORE SUNRISE" SURVIVED INTO THE BNS**

The 2023 code retains the night-house-breaking clause (§ 41(b), § 43(e)) verbatim from IPC § 103(2ndly)/§ 105 — a deliberate legislative judgment that a dwelling invaded in the dark presents a special peril (occupants asleep, no visual warning, no easy recourse to help) justifying the extreme defence. Note the asymmetry: *day-time* house-breaking supports property defence only up to harm short of death (unless clause (d)'s death/grievous-hurt apprehension exists).

## 4.9 § 44 / IPC § 106 — deadly assault and the risk to innocents

**BNS § 44 ⇔ IPC § 106**

"If in the exercise of the right of private defence against an assault which reasonably causes the apprehension of death, the defender be so situated that he **cannot effectually exercise that right without risk of harm to an innocent person**, his right of private defence **extends to the running of that risk.**"
*Illustration:* A is attacked by a mob who attempt to murder him. He cannot effectually exercise his right of private defence without firing on the mob, and he cannot fire without risk of harming young children who are mingled with the mob. **A commits no offence if by so firing he harms any of the children.**

This "risk to innocents" rule is the legal answer to the instinctive objection "but bystanders were hit" — and it maps directly onto *James Martin* (case card 4), where passers-by on the road were injured when the accused fired at the bandh mob that had invaded his compound: the Supreme Court nonetheless found the firing within the reasonable limits of private defence.

## 4.10 The evidentiary framework — how courts actually decide the plea

The most examinable paragraphs of *James Martin* (paras 13–17 — reproduced in the DU Case Material) set out the procedure for a private-defence plea. They should be quoted almost verbatim in any problem answer:

- **No formal plea needed:** "It is not necessary for the accused to plead in so many words that he acted in self-defence. If the circumstances show that the right was legitimately exercised, it is open to the Court to consider such a plea" — even if never taken (*Munshi Ram v. Delhi Administration*, AIR 1968 SC 702; Darshan Singh principle (vii)).
- **Burden on the accused** under IEA § 105 (now BSA § 108) — but he need not prove the right beyond reasonable doubt; it is enough "as in a civil case that the preponderance of probabilities is in favour of his plea" (*Salim Zia v. State of U.P.*, AIR 1979 SC 391). He may discharge the burden entirely from prosecution evidence — by cross-examination — without calling any witness (*Bai Fatima*; *Mohd. Musheer Khan*; *Mohinder Pal Jolly*).
- **No presumption from injuries:** "The number of injuries [on the accused] is not always a safe criterion for determining who the aggressor was" — the defence must show the injuries *probabilise* the version of private defence; conversely, prosecution's unexplained failure to explain the accused's injuries is "a very important circumstance," though not decisive where the injuries are minor and superficial (*Lakshmi Singh v. State of Bihar*, AIR 1976 SC 2263).
- **Relevant factors** for availability: injuries received by the accused; imminence of the threat; injuries caused by the accused; whether there was time to have recourse to the public authorities (*Biran Singh*; *Wassan Singh*; *Sekar*).
- **It is a defence, not an offence:** the right "should not be allowed to be pleaded or availed as a pretext for a vindictive, aggressive or retributive purpose... A right to defend does not include a right to launch an offensive, particularly when the need to defend no longer survived."

*"Such situations have to be **pragmatically viewed and not with high-powered spectacles or microscopes** to detect slight or even marginal overstepping... the person facing a reasonable apprehension of threat to himself **cannot be expected to modulate his defence step by step with any arithmetical exactitude**... where self-preservation is the paramount consideration."*
— Butta Singh v. State of Punjab (AIR 1991 SC 1316), quoted in James Martin, para 17

*"...situations have to be judged **from the subjective point of view of the accused** concerned, in the surrounding excitement and confusion of the moment, confronted with a situation of peril and not by any microscopic and pedantic scrutiny."*

— Vidhya Singh v. State of M.P. (AIR 1971 SC 1857), quoted in James Martin, para 18 and Darshan Singh, para 54

*"Detached reflection cannot be demanded in the presence of an uplifted knife."*
— Justice Holmes, Robert B. Brown v. United States (1921) 256 US 335, quoted in Darshan Singh, para 34

## 4.11 The Darshan Singh decalogue — ten principles for every answer

| No. | Principle (Darshan Singh, para 58 — DU Case Material) |
|---|---|
| (i) | **Self-preservation is the basic human instinct**, duly recognised by the criminal jurisprudence of all civilized countries; all free, democratic and civilized countries recognize the right within reasonable limits. |
| (ii) | The right is available only to one **suddenly confronted with the necessity of averting an impending danger not of self-creation**. |
| (iii) | A **mere reasonable apprehension is enough** — actual commission of the offence is not necessary; it suffices if the accused apprehended that the offence was contemplated and likely to be committed. |
| (iv) | The right **commences as soon as a reasonable apprehension arises and is co-terminus with its duration**. |
| (v) | It is **unrealistic to expect a person under assault to modulate his defence step by step with any arithmetical exactitude**. |
| (vi) | The force used **ought not to be wholly disproportionate or much greater than necessary** for protection of the person or property. |
| (vii) | **Even if the accused does not plead self-defence**, it is open to the court to consider the plea if it arises from the material on record. |
| (viii) | The accused **need not prove the right beyond reasonable doubt** — preponderance of probabilities suffices. |
| (ix) | The Code confers the right only when the unlawful/wrongful act is **an offence** (see § 36/98 for the excepted cases). |
| (x) | A person in **imminent and reasonable danger of losing life or limb may inflict any harm, even death**, on the assailant — either when the assault is attempted or directly threatened. |

**HOW TO USE THE DECALOGUE IN PROBLEMS**

Structure every private-defence problem answer as: (1) Was there an offence/unlawful aggression? → § 35/97 + § 36/98 if the attacker was protected; (2) Did the right commence? → § 40/102 or § 43/105 — reasonable, present, imminent apprehension; (3) What quantum of force? → § 38/100 or § 41/103 if death was caused, else § 39/101 / § 42/104; (4) Any bar? → § 37/99 limits (public servant, time, proportionality, free fight, self-created conflict); (5) Evidentiary posture — preponderance, no formal plea needed, subjective standpoint, golden-scales leniency (Darshan Singh (i)–(x) + James Martin paras 13–17). This five-step IRAC skeleton is exactly what the model answers in § 6 follow.

## 4.12 Master decision tree

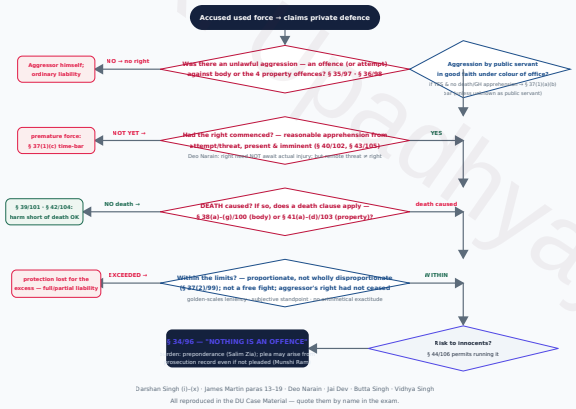



Fig. 5 — Master decision tree for every private-defence problem (BNS § / IPC § pairs)

### 4.13 Timeline — body vs. property, commencement to cessation

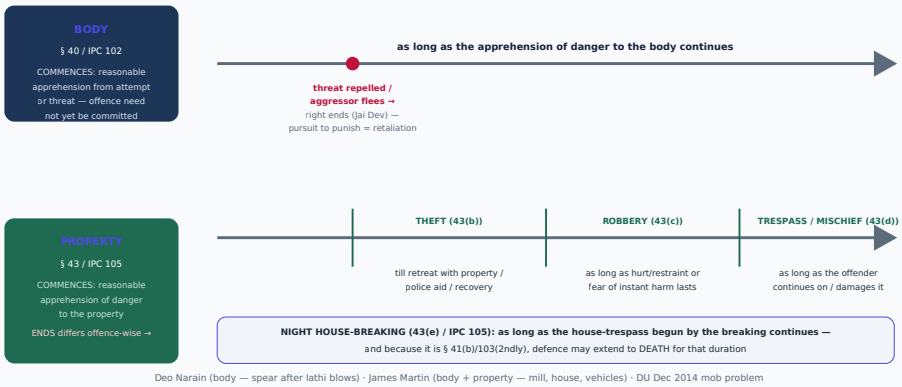



Fig. 6 — Commencement and continuance: the body's single continuum vs. property's offence-wise durations

## 5 The Five Case Laws — In Full Detail

Basdev — intoxication | Bhosale — insanity | Deo Narain — PD body | James Martin — PD bandh | Darshan Singh — PD decalogue

Facts • Issues • Arguments of both sides • Decision • Principle evolved — one card for each prescribed judgment

The DU syllabus prescribes these five judgments as the doctrinal core of Unit 2: two on the incapacity defences (*Basdev* — voluntary intoxication; *Bhosale* — unsoundness of mind) and three on private defence (*Deo Narain*, *James Martin*, *Darshan Singh*). *Deo Narain*, *James Martin* and *Darshan Singh* are reproduced in full in the DU Case Material (2025 edn.); the cards below follow the judgments closely.

CASE 1 — INTOXICATION · BNS § 24 ⇔ IPC § 86

**Basdev v. State of PEPSU**

AIR 1956 SC 488 · Supreme Court of India (N.H. Bhagwati & Chandrasekhara Aiyar JJ.) · Criminal Appeal No. 147 of 1955, decided 17 April 1956 RESEARCH (prescribed in DU syllabus; not reproduced in case-book)

| | |
|---|---|
| SUBJECT | Whether drunkenness that falls short of destroying the capacity to form intention can reduce murder (IPC § 302) to culpable homicide (§ 304) — the interaction of IPC § 86 with the mental element of murder. |
| PROVISIONS | IPC §§ 86, 300, 302, 304 ↔ BNS §§ 24, 101, 103 (renumbered equivalents). |

**FACTS**

- The appellant, Basdev, a **retired military Jamadar** from village Harigarh, went with other villagers — including the deceased, **Maghar Singh, a boy of about 15–16** — to attend a **marriage** in another village (12 March 1954). The marriage party had drunk heavily; the appellant was **excessively drunk**.
- At the midday meal at the bride's house, guests had taken their seats. The appellant asked **Maghar Singh to move aside so that he could get a convenient seat**; the boy did not comply.
- On the boy's refusal, the appellant **pulled out his revolver and shot him in the abdomen**. The boy died of the wound. One prosecution witness (Wazir Singh Lambardar) described the appellant as being so drunk as to be **almost unconscious**; the appellant staggered at times and his speech was at times incoherent.
- After the shooting the appellant **tried to escape, was caught a short distance away**, and on being secured **realised what he had done and asked for forgiveness**.
- The Sessions Judge, weighing the extreme intoxication and the **complete absence of motive or premeditation**, convicted him under § 302 IPC but sentenced him to **transportation for life** instead of death. The PEPSU High Court at Patiala dismissed his appeal. The Supreme Court granted special leave **confined to the question whether the offence was § 302 or § 304, in the light of § 86**.

**ISSUES**

1. Does evidence of voluntary drunkenness rebut the presumption that a man intends the natural consequences of his acts?
2. How do § 86's two limbs — "intent or knowledge" (first part) and "knowledge" (second part) — operate on an offence (murder) defined by both intention and knowledge?
3. Was the appellant's intoxication so extreme as to make him **incapable of forming the intention to kill**, reducing § 302 to § 304?

**ARGUMENTS**

**For the appellant:** The appellant was so deeply intoxicated ("almost unconscious") that he was incapable of forming the intention to kill; drunkenness which renders an accused incapable of forming the specific intent essential to the crime must

be weighed with the other facts in determining whether he had that intent (the *DPP v. Beard*/*R v. Monkhouse* line); there was no motive and no premeditation; hence at highest § 304 Part I, not § 302.

**For the State:** The intoxication was self-invited; the appellant was not so drunk as to be unaware of the nature of his act — he walked unaided, chose a seat, argued, aimed at a vital part of an unarmed boy, tried to flee and pleaded for forgiveness. Voluntary drunkenness is no defence to murder unless it produces a condition equivalent to insanity; the presumption that a man intends the natural and probable consequences of his act stands.

**DECISION**

Appeal **dismissed**; conviction under § 302 IPC and the sentence of transportation for life **maintained**. The Court laid down the operating rules of § 86 (now § 24 BNS):

- **Knowledge imputed:** so far as knowledge is concerned, the intoxicated person must be attributed the same knowledge as if he were sober — the second part of § 86 admits no evidence of drunkenness.
- **Intention examined:** so far as intention is concerned, it "must be gathered from the attending circumstances of the case" — evidence of drunkenness is relevant only if it renders the accused **incapable of forming the specific intent**.
- The three English rules were adopted: (i) insanity produced by drunkenness is a defence; (ii) drunkenness capable of destroying the specific intent is to be considered with the other facts on the question of intent; (iii) drunkenness **falling short of such incapacity** — merely showing a mind more readily yielding to passion — **does not rebut the presumption** that a man intends the natural consequences of his acts.
- **Application:** the facts showed the appellant retained both knowledge and capacity — he moved about unaided, spoke coherently at times, selected a seat, fired at a vital part at close range, attempted escape and begged forgiveness. His drunkenness fell far short of incapacity; § 302 stood.

**PRINCIPLES EVOLVED**

- **The knowledge/intention dichotomy of § 86/§ 24** — the single most quotable proposition on intoxication in Indian criminal law.
- **Incapacity, not impairment, is the test** — a drunkard gets no discount for a temper loosened by drink.
- **Post-offence conduct evidences capacity** — flight, remorse, coherent pleading are proof that the drink had not destroyed the mind.
- **Standard for reduction:** murder is not reduced to culpable homicide merely because drink supplied the stimulus; only proved incapacity to form the intent can achieve that.

*Exam one-liner: Basdev — voluntary intoxication is no defence to knowledge; it may negative only specific intention, and only when it destroys the capacity to form it.*

CASE 2 — UNSOUNDNESS OF MIND · BNS § 22 ⇔ IPC § 84

## Srikant Anandrao Bhosale v. State of Maharashtra

(2003) 7 SCC 748 · Supreme Court of India (Y.K. Sabharwal & H.K. Sema JJ.) · Appeal (Crl.) No. 180 of 2000, decided 26 September 2002 RESEARCH (prescribed in DU syllabus; not reproduced in case-book)

| | |
|---|---|
| SUBJECT | When does paranoid schizophrenia entitle an accused to the general exception of unsoundness of mind — the crucial time, the totality-of-circumstances test, and the civil-standard burden under IEA § 105 (now BSA § 108). |
| PROVISIONS | IPC §§ 84, 302 ↔ BNS §§ 22, 103; Evidence Act § 105 ↔ BSA § 108; CrPC § 335 ↔ BNSS § 374. |

**FACTS**

- The appellant was a **police constable** in Maharashtra. On the morning of **24 April 1994**, during a quarrel, he **struck his wife Surekha on the head with a grinding stone** while she was washing clothes in the bathroom. She was rushed to hospital and **declared dead**. The killing was in broad daylight; he made **no attempt to run away or to conceal** the act.
- The defence case was mental illness: the appellant had a **family history of psychiatric illness** (his father had been under psychiatric treatment); he himself had been **treated for unsoundness of mind since 1992** and was diagnosed as suffering from **paranoid schizophrenia**; he had been an **indoor patient in a government hospital**, and his treatment and hospital visits continued after the incident.
- Two government doctors (DW 2 — Dr. Arun, and DW 3 — Dr. Pramod) deposed on the medical records to the long-standing illness. The defence was conducted by **Dr. Shyamla Pappu, Senior Advocate, as amicus curiae**.
- The Sessions Court convicted him under § 302 IPC (rigorous life imprisonment); the High Court affirmed. **Neither court accepted the insanity plea.** In the Supreme Court, leave was granted limited to the insanity question.

**ISSUES**

1. At what point of time must unsoundness of mind be established for § 84/§ 22, and how is a state of mind at that moment to be proved?

2. Does proved schizophrenia before and after the offence — without direct proof of a psychotic attack at the moment of the act — satisfy the accused's burden?
3. What is the standard and order of the burden under IEA § 105 / BSA § 108, and the effect of the prosecution's "fit of extreme anger" theory?

**ARGUMENTS**

**For the appellant (amicus curiae):** The medical evidence — family history, diagnosis of paranoid schizophrenia since 1992, continued treatment, indoor hospitalisation, repeated visits shortly after the incident — established unsoundness of mind before and after the offence; the state of mind at the moment of the crime is a matter to be inferred from circumstances, and here the totality (weak motive, daylight killing, no flight, bizarre use of a grinding stone) reasonably inferred a schizophrenic delusion at the relevant time; the burden is only preponderance, and a reasonable doubt on mens rea must anyway result in acquittal.

**For the State:** The appellant was by nature an **angry man** who drank and quarrelled with his wife; that morning there was a fight, and in an **extreme fit of anger** he killed her — anger is not insanity; unsoundness before and after the offence is conceded, but the defence failed to prove unsoundness **at the time of the offence**, the only moment that counts (*Sheralli Wali Mohammed v. State of Maharashtra*; the absence of flight, daylight act and weak motive do not by themselves prove insanity).

**DECISION**

Appeal **allowed**; conviction and sentence **set aside** — the appellant was held entitled to the benefit of § 84 IPC and "set at liberty forthwith." The Court's reasoning:

- It reaffirmed the **Dahyabhai Chhaganbhai Thakker** (AIR 1964 SC 1563) doctrine of burden, summarised in three propositions: (1) the prosecution must prove the offence, with mens rea, beyond reasonable doubt throughout; (2) there is a **rebuttable presumption of sanity**, which the accused may rebut by all relevant evidence — oral, documentary, circumstantial — his burden being **no higher than that of a party to civil proceedings**; (3) even where the accused fails to establish the exception conclusively, the evidence may raise a **reasonable doubt as to mens rea**, requiring acquittal on the general burden.
- **The crucial point of time is the time of the commission of the offence**; whether the accused was in the protected state of mind "can only be established from the circumstances which preceded, attended and followed the crime."
- **Held on the facts:** unsoundness of mind before and after the occurrence stood proved (the State rightly did not dispute it); the totality of circumstances — family history, diagnosis and continuous treatment, indoor hospitalisation, weak motive, daylight act, no flight — supported a reasonable inference that the appellant was **under a delusion at the relevant time**: "The anger theory on which reliance has been placed is **not ruled out under schizophrenia attack**." The Court was "unable to hold that the crime was committed as a result of an extreme fit of anger."

**PRINCIPLES EVOLVED**

- **Legal insanity is judged at the moment of the act, but proved circumstantially** — preceding and following unsoundness are relevant facts from which the momentary state is inferred ("totality of circumstances" test).
- **Anger does not exclude schizophrenia** — the anger theory and the disease theory can coexist; where medical evidence shows a continuing psychosis, the prosecution cannot defeat § 84 by merely labelling the act as rage.
- **The civil-standard burden in operation** — a classic demonstration of Dahyabhai propositions (2) and (3) producing acquittal.
- Individual circumstances (no flight, daylight, weak motive) are not independently decisive, but contribute to the cumulative inference.

*Exam one-liner: Bhosale — paranoid schizophrenia before and after the offence plus the totality of circumstances may raise the reasonable inference of a delusion at the crucial moment; the accused discharges his s. 105/BSA 108 burden on a preponderance, and anger does not oust the disease.*

CASE 3 — PRIVATE DEFENCE OF BODY · BNS § 40 ⇔ IPC § 102

## Deo Narain v. State of U.P.

(1973) 1 SCC 347 : AIR 1973 SC 473 · Supreme Court of India (I.D. Dua J.)

| | |
|---|---|
| SUBJECT | Commencement of the right of private defence of the body (§ 102/§ 40): must the defender first suffer a serious injury? And is there a rule that a spear may not be answered to a lathi? |
| PROVISIONS | IPC §§ 96, 97, 99, 100, 102 ↔ BNS §§ 34, 35, 37, 38, 40. |

**FACTS**

- The parties were close relations divided by a **land dispute**. The complainant's party came out, on the prosecution case, to take possession of / obstruct cultivation of the disputed land; a **marpeet (free fight)** ensued between the two groups.

- In the affray, **Chanderdeo and Deo Narain (the accused-appellant) received superficial head injuries**. Deo Narain's **spear blow to the chest of the deceased** caused his death. The accused were charged with murder.
- The **trial court acquitted all the accused** holding they had acted in exercise of the right of private defence (having analysed the scheme of the private-defence sections, following *G.V. Subramanyam v. State of Andhra Pradesh*, (1970) 3 SCR 473).
- On appeal by the State, the **High Court convicted Deo Narain under § 304 IPC (5 years' R.I.)** on two grounds: **(1)** the right of private defence to cause death could arise "only after a serious injury had actually been inflicted" on the accused; **(2)** the weapon disparity — the accused party used a **spear against a lathi** — showed excessive force. The High Court, however, gave the benefit to the co-accused.

**ISSUES**

1. Does the right of private defence of the body commence before the defender actually suffers a serious injury?
2. Can a weapon hierarchy (lathi vs. spear) be erected as a rule of law to measure excess?
3. On an appeal against acquittal, how far may the High Court reappraise evidence and reverse the trial court's private-defence finding?

**ARGUMENTS**

**For the appellant (Deo Narain):** § 102 IPC commences the right on reasonable apprehension from an attempt or threat, before any offence is committed; the trial court's finding of a free fight initiated by the complainant party, with head injuries to two of the accused, showed imminent danger; the High Court's "wait for a serious injury" test contradicts the section, and the lathi/spear comparison is unrealistic in the heat of an affray.

**For the State:** The accused were the aggressors in the land grab; the injuries on Deo Narain and Chanderdeo were superficial, while the deceased was killed by a spear thrust — force wholly disproportionate to a lathi attack; the right, if any, extended no further than causing harm short of death (§ 101), so § 304 was the correct conviction.

**DECISION**

Appeal **allowed; Deo Narain acquitted**. The High Court's two grounds were held to be **misdirections in law**:

- **On commencement (§ 102/§ 40):** "To say that the appellant could only claim the right to use force after he had sustained a serious injury... is a complete misunderstanding of the law." The right commences on reasonable apprehension of danger from an attempt or threat **though the offence may not have been committed**, and continues while the apprehension lasts; the threat must be **present and imminent**, not remote. Private defence is **"preventive and protective, not punitive"** — the right to punish vests in the State.
- **On lathi vs. spear (§ 100/§ 38 overlooked):** there is **no general rule that a lathi causes only minor injury** — it depends on the nature of the lathi, the part aimed at and the force used; **a lathi blow on the head can be instantly fatal**. Conversely, even a spear can cause a minor injury. In the moments of excitement, "the parties cannot be expected to weigh **in golden scales**" what blow suffices. The suggestion that Deo Narain should have used his spear as a lathi, or aimed at a less vital part, was **"unrealistic and unpractical."**
- **On appeal against acquittal:** the High Court may reappraise, but where two reasonable views are possible, the trial court's view demands due consideration — a fortiori where the High Court itself gave the co-accused the benefit on the same evidence.

**PRINCIPLES EVOLVED**

- **No "first-injury" rule** — the defender need not wait to bleed before defending; apprehension starts the clock.
- **No per se weapon hierarchy** — proportionality is judged on the facts of the assault (weapon + target + force), not by tabular comparison.
- **The golden-scales dictum** — the defender's response is measured generously, by the standard of a person in excitement and peril.
- **Preventive/protective — never punitive** — the classic DU-CM formulation of the right's character.

*Exam one-liner: Deo Narain — the right of private defence commences on reasonable and imminent apprehension, not on actual injury; a spear against a fatal lathi blow to the head is not excessive per se; defenders are not weighed in golden scales.*

CASE 4 — PRIVATE DEFENCE: BODY + PROPERTY IN A BANDH MOB · BNS § 34 ⇔ IPC § 96

## James Martin v. State of Kerala

(2004) 2 SCC 203 · Supreme Court of India (Arijit Pasayat J.)

| | |
|---|---|
| SUBJECT | The evidentiary law of the private-defence plea — burden, preponderance, the injuries rule — and whether firing on a violent bandh mob that invaded a compound and manhandled the employee exceeded the right. |
| PROVISIONS | IPC §§ 96, 97, 99, 100, 101, 102, 105; Evidence Act § 105 ↔ BNS §§ 34, 35, 37, 38, 39, 40, 43; BSA § 108. |

FACTS

- A **Bharat Bandh** was sponsored by some political parties on 15 March 1988. Most shops and offices were closed and vehicles off the roads. Cheranelloor, a politically sensitive Kochi suburb, saw isolated acts of defiance. The appellant **James Martin** and his father Xavier — respected local businessmen with no political antecedents — ran a **bread factory and flour mill** in their residential compound; their success had drawn the enmity of a neighbour.
- **Five bandh activists** (including the two deceased, Mohanan and Basheer) entered the compound through the unlocked gate, went to the operating mill and **demanded that PW-15, the mill employee, shut it down**; an altercation followed, the activists **threatened, intimidated and assaulted PW-15** (who had to run away), and were armed with sharp-edged weapons; they had earlier beaten up one Jossy. On hearing the commotion, the accused directed them to leave; instead, the situation escalated.
- According to the prosecution, the gate was locked from inside and the appellant, on his father's instigation, **fired an S.B.B.L. gun through a south-room window** at the activists near the gate: Basheer was hit and fell; the second, indiscriminate firing injured others; even some passers-by on the road sustained gunshot injuries. **Mohanan died on the way to hospital; Basheer succumbed at City Hospital.** A mob later set fire to the accused's residential building, mill, factory and vehicles.
- The defence case: the firing occurred when their house and buildings **were being set on fire by an angry mob** that refused the unlawful closure demand. The **trial court discarded the prosecution version** that the deceased had entered through the gate — they had **scaled the walls**; their entry was unlawful; PW-15 was roughed up; but it held the right of private defence **exceeded**, convicting the appellant under **§ 304 Part I, § 326 and § 324 IPC** (7 years + 2 years + 1 year and fines). The High Court endorsed this as to the appellant, but gave A-2 (father) benefit of doubt.

ISSUES

1. What is the burden and standard of proof on an accused pleading private defence, and can the plea be considered though not formally pleaded?
2. Is the number of injuries on the accused a safe criterion of who the aggressor was?
3. Did the trial court and High Court err in holding the right exceeded on these facts — bandh mob, unlawful entry, assaulted employee, burning property?

ARGUMENTS

**For the appellant:** The activists forcibly entered the compound, assaulted PW-15 and threatened the family and property; the accused were outnumbered with only PW-15 (already manhandled) on their side; the entire episode showed an "explosive" situation; the accused acted within the right of private defence of person and property, and there was no question of exceeding it.

**For the State:** After analysing the facts both courts below concurrently held the right exceeded; two lives were lost and several injured, including innocent passers-by on the road — such indiscriminate firing cannot be within permissible limits; the connected SLPs sought acquittal of A-2 / conviction under § 304 Part I.

DECISION

Appeal **allowed; conviction and sentence set aside** ("the bail bonds shall stand discharged"). The Court laid out the governing law and applied it:

- **Section 96 does not define the right** — whether it was legitimately exercised is a question of fact on the totality of surrounding circumstances; no abstract test exists.
- **No formal plea required**; burden on accused under IEA § 105, discharged on **preponderance of probabilities** (*Munshi Ram*; *Bai Fatima*; *Mohd. Musheer Khan*; *Mohinder Pal Jolly*; *Salim Zia* — "need not establish the plea to the hilt"). The plea may rest wholly on prosecution evidence.
- **Number of injuries not a safe criterion** of aggressiveness; non-explanation of the accused's injuries is important but not decisive where injuries are minor/superficial (*Lakshmi Singh*). A plea "cannot be based on surmises and speculation"; it is irrelevant that the accused may have had a chance to inflict even graver injury on the aggressor.
- **Relevant considerations:** injuries received by the accused; imminence of threat; injuries caused by the accused; whether there was time to recourse to public authorities.
- **Golden scales / subjective standpoint:** quoting *Butta Singh*, *Vidhya Singh* and Authoritative Criminal Precedent (no duty to retreat), the Court held the right "should not be construed narrowly" and must not become "a pretext for a vindictive, aggressive or retributive purpose."
- **Application:** the threat to life and property "was not only imminent but did not cease, and it continued unabated" — vandalism, use of explosives, assault on PW-15; the events "generated a sort of frenzy and excitement rendering the situation explosive and beyond compromise." To expect calm from the outnumbered accused "would be not only too much to be desired but being unreasonably harsh and uncharitable, merely carried away only by considerations of sympathy for the lives lost, on taking a final account of what happened ultimately after everything was over." The acts were **within the reasonable limits of private defence under § 96 IPC**.

PRINCIPLES EVOLVED

- The **preponderance standard** for private defence, fully expounded (the Salim Zia passage).

by Ankur R. Upadhyay

- The **injuries-rule**: injuries on the accused probabilise but do not prove the plea; their non-explanation by prosecution is a weighty, not conclusive, circumstance.
- **Hindsight prohibition:** the right is measured at the moment of peril, not "after everything was over" with "sympathy for the lives lost."
- Bandh mobs forcing closure at gunpoint of legitimate business are **unlawful aggression** against person and property justifying armed defence.

*Exam one-liner: James Martin — firing on a violent bandh mob that unlawfully entered the compound, manhandled the employee and fired/explosively threatened property was within § 96/§ 34; the plea needs only preponderance and may arise from the prosecution's own evidence.*

CASE 5 — PRIVATE DEFENCE: THE MODERN RESTATEMENT · BNS §§ 34-44 ⇔ IPC §§ 96-106

## Darshan Singh v. State of Punjab

(2010) 1 S.C.R. 642 : (2010) 2 SCC 333 · Supreme Court of India (Dalveer Bhandari J.)

| | |
|---|---|
| SUBJECT | The definitive modern synthesis of the law of private defence — foundation, scope, limits and evidence — distilled into ten principles; plus the standard for reversing a trial acquittal. |
| PROVISIONS | IPC §§ 96, 97, 99, 100, 102 ↔ BNS §§ 34, 35, 37, 38, 40 (quoted in full in the judgment). |

### FACTS

- A **family land dispute**: the deceased **Gurcharan Singh was the brother of Bakhtawar Singh and uncle of the appellant Darshan Singh**; Gurcharan's son Gurdish (PW-7) was the informant. The fields of the two brothers adjoined; a year earlier a panchayat compromise over a common well and pathway had left a grievance festering in the accused party, who wanted repartition.
- Prosecution version (15 July 1991, ~8 a.m.): while Gurcharan and Gurdish were irrigating and mending ridges, Darshan Singh (armed with a **licensed 12-bore double-barrel gun**) and Bakhtawar (with a gandasa) came raising lalkaras; Bakhtawar struck Gurcharan on the chest with the gandasa; Gurcharan returned a gandasa blow on Bakhtawar's head; Darshan Singh then **fired two shots**, hitting Gurcharan in the chest (pellets also allegedly grazed Gurdish's arm and Gurdev's thigh); **Gurcharan died at the spot**.
- Defence version: **Gurcharan first struck Bakhtawar on the head with a gandasa** — a bone-deep incised wound 7 cm × 0.5 cm on the right parietal region — and, believing his father killed or about to be, Darshan Singh fired **in defence of his own life** as Gurcharan advanced on him gandasa in hand. In his § 313 CrPC statement Darshan Singh admitted the firing and claimed private defence.
- The **trial court acquitted both accused**: the presence of Gurdish and Gurdev was doubtful — no pellets were recovered from their supposed injuries, the injuries were not mentioned in the inquest report, and the doctor admitted their injuries could be self-suffered/fabricated later with the investigator's connivance; the story that Gurcharan was cutting ridge-weeds with a gandasa was unbelievable; probabilities favoured the defence; Darshan Singh fired in the exercise of private defence.
- The **High Court reversed** and convicted, doubting the trial court's version mainly because the complainant appeared truthful and the accused defence untenable. Appeal to the Supreme Court (Bakhtawar's appeal abated on his death).

### ISSUES

1. What is the scope, foundation and extent of the right of private defence — restated for current use?
2. Was the appellant's apprehension of death or grievous hurt, when he fired after his father was felled by a gandasa blow, a reasonable apprehension within § 100(1stly)/(2ndly)/§ 38(a)–(b)?
3. Could the High Court reverse the trial acquittal on the ground that the complainant's version "appears more truthful"?

### ARGUMENTS

**For the appellant:** The trial court's findings — first attack by the deceased, bone-deep gandasa wound on Bakhtawar, fabricated pellet injuries of PW-7/PW-8, no pellets recovered, unbelievable weed-cutting story — showed Darshan Singh fired only when Gurcharan advanced on him gandasa in hand after felling his father; the High Court reversed a plausible view without cogent reasons.

**For the State:** The complainant truthfully explained even the injury on Bakhtawar and did not conceal his father's role; the accused came armed and raising lalkaras, showing premeditation; the two gunshots on the chest of an injured man were excessive and punitive, not defensive.

### DECISION

Appeal **allowed; the High Court's judgment set aside and the trial court's acquittal restored** — "the role attributed to the appellant is fully covered by his right of private defence."

- The judgment first delivers a **full doctrinal exposition** ("Scope and foundation of the private defence" — paras 24–37): Russell's rule and the **no-duty-to-retreat** conclusion for India; the "manly spirit" passage; Bentham's natural-protector

duty; the two limiting considerations; the right as preventive, not punitive; apprehension need not be actual injury; the golden-scales rule; Holmes's "detached reflection" dictum; and that killing is justified on a reasonable apprehension of death or grievous hurt under § 100's first two clauses even though **no blow may have been inflicted on the defender**.

- Applied to the facts (para 36): Darshan Singh's § 313 statement — Gurcharan struck his father's head with a gandasa, he believed him killed, Gurcharan advanced gandasa in hand, he feared he too would be killed, and fired — disclosed **a serious apprehension of death or at least grievous hurt** when he exercised the right.
- **Ten principles** were distilled from the precedents (para 58 — reproduced at § 4.11 above), citing *Kashmiri Lal*, *James Martin* (para 48 — preponderance), *Mahabir Choudhary*, *Munshi Ram*, *Ramesh*, *Vidhya Singh* and *Buta Singh*.
- **Acquittal-reversal standard:** a High Court may not set aside an acquittal merely because the complainant's version "appears more truthful"; it must find the trial view **utterly perverse** — no other view plausible. With no pellets recovered from PW-7/PW-8, the trial court's fabrication finding was sound; its view was "not only possible or plausible but... based on the correct analysis and evaluation of the entire evidence."

PRINCIPLES EVOLVED

- The **Darshan Singh decalogue** — the standard checklist for every private-defence question in Indian courts (and exams) since 2010.
- **No first-blow rule at the level of apprehension** — reasonable apprehension of death/grievous hurt suffices even before any blow lands on the defender.
- **English duty to retreat expressly inapplicable** to India's codified, substantive right.
- **Protective rule for acquittals** — the presumption of innocence is fortified by acquittal; reversal requires perversity, not mere preference for the other view.

*Exam one-liner: Darshan Singh — private defence in ten principles: self-preservation, sudden danger not self-created, mere apprehension enough, co-terminus duration, no arithmetical exactitude, proportionality, plea may arise from record, preponderance standard, offence requirement, and death permissible on imminent danger to life or limb.*

## 5.6 How the five cases interlock — the doctrinal map

| Case | Defence / sections | What it settles | Classic exam use |
|---|---|---|---|
| **Basdev** (1956) | Intoxication § 24/86 | Knowledge imputed, intention examinable; incapacity is the threshold; Beard rules adopted. | Drunk offender problems; 302 vs 304; "is drunkenness a defence?" |
| **Bhosale** (2003) | Insanity § 22/84 | Crucial time = time of offence; totality-of-circumstances inference; civil burden; anger ≠ exclusion of schizophrenia. | Insanity pleas; legal vs medical insanity; s. 105/BSA 108 burden. |
| **Deo Narain** (1973) | PD body § 40/102 | Right commences on apprehension, not on injury; no weapon hierarchy; golden scales; preventive not punitive. | Commencement questions; weapon-disparity problems; appeal-against-acquittal notes. |
| **James Martin** (2004) | PD body+property § 34/96 | Burden & preponderance; injuries rule; subjective standpoint; Lakshman Rekha; hindsight prohibited. | Bandh/mob problems; evidence-side of the plea; "when can the plea be considered?" |
| **Darshan Singh** (2010) | PD §§ 34–44/96–106 | Ten-principle restatement; no duty to retreat; no first-blow rule; acquittal-reversal standard. | Every PD answer's framework paragraph; critical notes on the right's scope. |

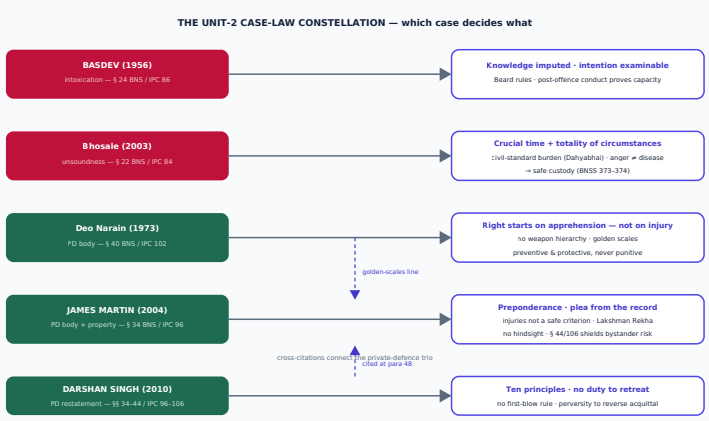



Fig. 7 — The doctrinal constellation: five cases, five clusters of principle, two cross-links

EXAMINATION QUESTION BANK // DU LL.B. PAPER LB-104

## Previous Year Examination Questions (PYQs)

**Q.01** DU December 2015 What are the circumstances wherein the right of private defence of body extends to voluntarily causing death?

◈ Refer website for detailed notes – makelaweasy.in ↗

**Q.02** DU December 2015 A is attacked by Z, a person of unsound mind, who has a spear in his hand. In order to protect himself, A strikes Z with a stick on his head, resulting in his death. During trial A pleads the right of private defence. Decide with the help of the relevant legislative provision.

**Q.03** DU December 2014 Due to communal riots, a mob of community A reached the house of X (a member of community B), which he had locked to save himself and his family. The mob started knocking at his door. Before the mob could enter, X fired from his licensed revolver and killed a member of the mob. X is charged with murder, but pleads the right of private defence. Can he do so? Give reasons.

**Q.04** DU December 2014 Discuss statutory limitations on the exercise of the right of private defence as laid down in the Indian Penal Code.

**Q.05** DU December 2015 Can a student leader on indefinite fast during a protest be force-fed in order to save his life? Discuss in the light of relevant case law.

**Q.06** DU LL.B. Exam "General defences in Chapter IV, IPC, if applicable in a given case, negate criminality completely." Elaborate the nature, classification and effect of General Exceptions under the BNS (Chapter III) and the IPC (Chapter IV).

**Q.07** DU LL.B. Exam "Nothing is an offence which is done by a person who, at the time of doing it, by reason of unsoundness of mind, is incapable of knowing the nature of the act, or that he is doing what is either wrong or contrary to law." Critically examine § 22 BNS / § 84 IPC with reference to the M'Naghten Rules and decided case law.

**Q.08** DU LL.B. Exam "Drunkenness is no defence — but it may be a defence." Examine intoxication as a general exception under the BNS/IPC, distinguishing involuntary from voluntary intoxication.

UNIT 03 // DU LL.B. PAPER LB-104 (BNS & IPC) 5 Prescribed Cases · 8 Exam PYQs

# Inchoate Crimes — Abetment, Criminal Conspiracy, Attempt & Abetment of Suicide

## 1 The Inchoate-Crimes Framework — Stages of Crime & the Logic of Early Intervention

### 1.1 The doctrinal problem: punishing the incomplete

Classical criminal liability is built on the marriage of **mens rea** (the guilty mind) and **actus reus** (the guilty act), producing the **conduct-result** harm that the offence definition demands — death for murder, dishonest taking for theft. But criminal law would be a poor guardian of public peace if it could act only after the corpse falls. Three doctrines therefore extend liability **backwards along the timeline of crime**:

- **Abetment** (BNS §§ 45–60 / IPC §§ 107–120) — liability for **participation in another person's crime** through instigation, conspiracy or aid. The abettor's guilt is **his own**; the principal's guilt is not a condition of it.
- **Criminal conspiracy** (BNS § 61 / IPC §§ 120-A, 120-B) — liability for the **agreement** itself. Where the object is a serious offence, the crime is complete the moment the minds meet — *consensus facit legem* of the darkest kind. Nothing further need be done.
- **Attempt** (BNS §§ 62, 109–110, 226 / IPC §§ 511, 307–309) — liability for one's own **incomplete execution**: the offender has crossed the Rubicon between preparing and perpetrating.

The DU course material explains why the law reaches this far back, in language you can quote in the exam :

> *"There are four stages in the commission of crime — (i) intention to commit an offence, (ii) preparation, (iii) attempt and (iv) forbidden consequence ensuing from the act of the accused after the stage of preparation is over. An attempt is direct movement towards the commission of an offence after the preparation is made. An accused is liable for attempting to commit an offence even if the forbidden consequence does not ensue for reasons beyond his control and he is to be punished for* ***creating alarm and scare in the society.***"
>
> – Unit 9 (Attempt), DU Course Material, Law of Crimes-I (2023 edn.)

That last clause is the classic **social-danger rationale**: the attempter (and a fortiori the instigator and the conspirator) has demonstrated a settled criminal resolve; the harm he threatens is the harm he intended; the only reason it did not mature is luck or police intervention. Law that waited for the "result" would be law that gambles with the public's safety.

## 1.2 The four stages of a crime

| Stage | Content | Criminal liability |
|---|---|---|
| **1 · Intention** (*mens rea* alone) | The culprit first entertains the idea or intention to commit an offence (*Mohd. Yakub*, ¶ 13) | **None.** "The mere intention to commit a misdemeanour is not criminal" (Parke, B. in *R. v. Eagleton*). *De minimis* — even evil thoughts are free. |
| **2 · Preparation** | Arranging the means and measures — buying the pistol, reconnoitring the bank, collecting the silver ingots | **Generally none** — the actor may still change his mind; his acts are "completely harmless" (*Malkiat Singh*). **Exceptions:** preparation is itself punished for specially dangerous offences — e.g. preparation to commit dacoity (s. 399 IPC / s. 310(4) BNS), waging war, possession offences. |
| **3 · Attempt** | Direct movement towards commission — overt acts in the course of perpetration, reasonably proximate to commission | **Punishable** — general provision s. 511 IPC / s. 62 BNS, plus specific attempts (murder s. 307/109; culpable homicide s. 308/110; suicide s. 309/–). |
| **4 · Completion** | The forbidden consequence ensues | **Full offence** — attempt merges into the completed crime (a person cannot be convicted of both attempt and completion of the same offence). |

**Fig. 1 — The Timeline of Crime : where each inchoate liability bites**

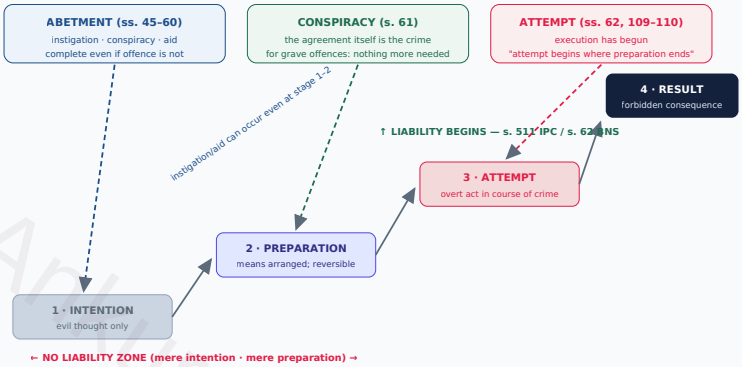



Fig. 1 — The stages-of-crime ladder. Liability (red zone downward) starts only at the attempt stage for the principal offender; but abetment and conspiracy create independent, earlier liability in the accomplice.

## 1.3 The three inchoate offences at one glance

| | ABETMENT (ss. 45–60 / 107–120) | CRIMINAL CONSPIRACY (s. 61 / 120-A, B) | ATTEMPT (ss. 62, 109–110, 226 / 511, 307–309) |
|---|---|---|---|
| **Whose crime?** | Another's crime — the abettor is guilty of *abetting* it (though ss. 49–54 make him share its punishment) | A *shared* crime — each conspirator is guilty of the conspiracy itself | One's own crime, incompletely executed |
| **Actus reus** | Instigation, conspiracy or intentional aid (s. 45) | The **agreement** (plus one overt act, where the object is not an offence) | An act **towards the commission** of the offence (s. 62 / 511) |
| **Completion needed?** | **No** — Expl. 2 to s. 46/108: abetment is complete though "the act abetted" is not committed | **No** — gist is the agreement; "the illegal act agreed to be done has not been done" (*Nalini*) | **No** — the essence is that the forbidden consequence does *not* ensue, "for reasons beyond his control" |
| **Mens rea** | Intention to aid/instigate + (generally) knowledge of the wrongful nature of the act abetted | Intention to agree + to do the illegal act / illegal means | Specific intention to commit the full offence (motive immaterial) |
| **Minimum actors** | Two (abettor + person abetted — who may even be innocent: Expl. 3, s. 46) | **Two or more** (a man cannot conspire alone) | One |
| **Relation in time** | Usually before or contemporaneous with the offence | Necessarily *before* the offence; may continue (each conspirator need not know all others) | Always immediately before the (frustrated) result |

| | ABETMENT (ss. 45–60 / 107–120) | CRIMINAL CONSPIRACY (s. 61 / 120-A, B) | ATTEMPT (ss. 62, 109–110, 226 / 511, 307–309) |
|---|---|---|---|
| **Confession/tell-tale** | "Abettor present when offence committed" is deemed to have committed it (s. 54/114) | Things said/done by one conspirator relevant against all (IEA s. 10 / BSA s. 8) | Impossible attempts punishable too (s. 62 illus. (a), (b)) |

### 1.4 Inchoate liability vs joint liability — the other family

Do not confuse the **inchoate** offences with the **group-liability** provisions, which allocate responsibility for a **completed** crime among several participants:

| Provision | Operative idea | Key contrast with inchoate offences |
|---|---|---|
| **Common intention**<br>s. 34 IPC / s. 3(5) BNS | Act done by several persons in furtherance of a common intention — each liable as if the act were done by him alone | Requires a **completed criminal act** + **participation**; the union of minds is **contemporaneous** with the act, whereas conspiracy is an **antecedent agreement** and is itself punishable |
| **Common object**<br>s. 149 IPC / s. 190(1) BNS | Every member of an unlawful assembly (≥ 5) guilty of offences committed in prosecution of the common object / that members knew likely to be committed | Membership of an **assembly**, not an agreement, triggers liability; the object is proved from the assembly's conduct |
| **Criminal conspiracy**<br>s. 61 / 120-A, B | The **agreement** is the crime | Stand-alone offence; and it is also *the second mode of abetment* (s. 45/107) — one agreement, two liabilities |

> **Why DU examiners love this triangle :** the Dec 2014 paper asked s. 34 (Q7(a)) and s. 149 (Q7(b)) problems in the same sitting as the "impossible attempts" note (Q8(b)). A model answer that separates *antecedent agreement (120-B)* from *contemporaneous common intention (34)* from *assembly membership (149)* — and then places attempt on its own timeline — earns the top band.

## 2 Abetment — BNS §§ 45–60 ↔ IPC §§ 107–120

### 2.1 Definition of abetment — BNS § 45 / IPC § 107

**BNS § 45 / IPC § 107 — ABETMENT OF A THING**

A person abets the doing of a thing, who —

**(First)** — Instigates any person to do that thing; or

**(Secondly)** — Engages with one or more other person or persons in any **conspiracy** for the doing of that thing, if an act or illegal omission takes place in pursuance of that conspiracy, and in order to the doing of that thing; or

**(Thirdly)** — Intentionally **aids**, by any act or illegal omission, the doing of that thing.

**Explanation 1.** A person who, by wilful misrepresentation, or by wilful concealment of a material fact which he is bound to disclose, voluntarily causes or procures, or *attempts to cause or procure*, a thing to be done, is said to **instigate** the doing of that thing.

**Illustration.** A, a public officer, is authorised by a warrant from a Court to apprehend Z. B, knowing that fact and also that C is not Z, wilfully represents to A that C is Z, and thereby intentionally causes A to apprehend C. Here B abets by instigation the apprehension of C.

**Explanation 2.** Whoever, either *prior to or at the time of* the commission of an act, does anything in order to facilitate the commission of that act, and thereby facilitates the commission thereof, is said to **aid** the doing of that act.

So **abetment has exactly three doors** — **I·C·A**: **I**nstigation, **C**onspiracy, intentional **A**id. Note the asymmetry of the three limbs:

- **Instigation** needs no result at all — the very act of goading (even an *attempt* to cause the thing by misrepresentation, per Expl. 1) is the abetment.
- **Conspiracy**-abetment (the second limb) needs an **act or illegal omission in pursuance of** the conspiracy — a smaller requirement than the stand-alone offence of s. 61/120-A, where only agreements to do a *legal act by illegal means* need an overt act. An agreement to commit an *offence* is criminal conspiracy without more, but it still needs that pursuant act to amount to *abetment by conspiracy* of the thing conspired.
- **Aiding** requires intentional facilitation — the aid may be given before or at the time of the act (Expl. 2), and **presence** at the scene is not itself aiding (but see s. 54/114 for constructive presence below).

#### 2.1.1 Abetment by instigation — the heart of s. 306/108 cases

"Instigation" is not defined in the section beyond Expl. 1; the courts have filled it in. To **instigate** is to goad, urge forward, provoke, incite or encourage the doing of an act — **active suggestion**, not passive knowledge or even silent consent. The Supreme Court's working tests:

> *"In order to bring out the offence of abetment [under s. 306 IPC], it is necessary to show that the accused had **instigated** the deceased... goading or **suggestion**... the word 'instigate'... means to goad or urge forward or to provoke, incite, encourage or stir up."*

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— distilled from Gian Kaur and applied in Satvir Singh, AIR 2001 SC 2828

- **A retort is not instigation.** If the deceased threatens "I will kill myself if you refuse my demand", and the accused answers "go ahead" in annoyance, that is no instigation — otherwise "the parents would be guilty of abetment of suicide if... most unreasonable demand is made by their child... on the threat of committing suicide and they were to retort that the child could do so" (*Satvir Singh*).
- **Harassment alone is not instigation.** Mere cruelty, quarrels or dowry demands that do not proximately and positively push the victim towards suicide will not do — there must be a **positive act** proximate to the death (the Supreme Court's repeated post-*Gian Kaur* position, applied to the facts in *Satvir Singh*).
- **Continuing instigation.** A course of conduct can amount to instigation if it is calculated to and does in fact create the determination to die; a single helpless suggestion by a spouse/parent may still be instigation if it is the operative goad (*Gian Kaur* facts, § 3.4 below).
- **Instigation by misrepresentation/omission.** Expl. 1 makes even an *attempt* to procure the act by wilful misrepresentation or wilful non-disclosure a complete instigation — the classic example being one who falsely tells a creditor "X has no court protection; attach his goods" and sets the law in motion against him.

### 2.1.2 Abetment by conspiracy (second limb)

Where two or more agree that an offence shall be committed and an act or illegal omission occurs **in pursuance of** that agreement, each is an abettor of the offence — even of parts he did not personally execute. Illustration: A and B conspire that B shall poison Z; in pursuance of the conspiracy A procures and delivers the poison; B administers it. B is guilty of murder; A is guilty of **abetting it by conspiracy** and suffers murder's punishment (s. 49 illus. (b)/IPC 109 illus.). The abettor need not even know the principal: Expl. 5 to s. 46/108 — it is enough that he engages in the conspiracy *in pursuance of which* the offence is committed.

### 2.1.3 Abetment by intentional aid (third limb)

Aiding = intentionally facilitating. The classic illustrations: keeping watch while a theft is done; supplying the ladder; delivering the keys; wilfully standing aside so that the offence succeeds (illegal omission — e.g. a gate-keeper whose duty was to shut the gate). Two limits deserve emphasis:

- **The aid must be intentional** — facilitation must be *prior to or at the time* of the act (Expl. 2). Help rendered after the offence (harbouring, disposal) is not abetment of the offence; it may be a separate offence (e.g. ss. 58–60 concealment; harbouring provisions).
- **Innocent or unknowing aid is not abetment** — one who unknowingly (or without the guilty intention) facilitates is not an abettor; conversely, one may aid an act believing it criminal when it is not (see s. 56/116 illus. (a)).

## 2.2 Who is an "abettor" — BNS § 46 / IPC § 108

**BNS § 46 / IPC § 108 — ABETTOR**

A person abets an offence, who abets either the commission of an offence, or the commission of an act which would be an offence, if committed by a person capable by law of committing an offence with the same intention or knowledge as that of the abettor.

**Explanation 1.** The abetment of the illegal omission of an act may amount to an offence although the abettor may not himself be bound to do that act.

**Explanation 2. To constitute the offence of abetment it is not necessary that the act abetted should be committed**, or that the effect requisite to constitute the offence should be caused. *Illustrations:* (a) A instigates B to murder C. B refuses. A is guilty of abetting B to commit murder. (b) A instigates B to murder D. B, in pursuance of the instigation, stabs D. D recovers. A is guilty of instigating B to commit murder.

**Explanation 3.** It is not necessary that the person abetted should be capable by law of committing an offence, or that he should have the same guilty intention or knowledge as that of the abettor, or any guilty intention or knowledge. *Illustrations:* (a) A, with a guilty intention, abets a child or a person of unsound mind... (b) A, with the intention of murdering Z, instigates B, a child under seven... B does the act causing Z's death — A is punishable as for murder; (c) A instigates B, of unsound mind, to set fire to a house — B commits no offence, A is guilty of abetting; (d) A induces B in good faith to believe property is A's — B takes it without dishonesty; A is guilty of **abetting theft** though B commits none.

**Explanation 4.** The abetment of an offence being an offence, **the abetment of such abetment is also an offence**. *Illustration:* A instigates B to instigate C to murder Z. B does so; C murders Z. Both A and B are liable as for murder.

**Explanation 5.** It is not necessary to the commission of the offence of abetment by conspiracy that the abettor should concert the offence with the person who commits it; it is sufficient if he engages in the conspiracy in pursuance of which the offence is committed.

Read together, the five Explanations contain the entire sociology of the accomplice, and exam questions live in them:

| Explanation | Rule | Point to make in the answer |
|---|---|---|
| **Expl. 1** | Abetting an illegal *omission* is abetment though the abettor himself was not bound to act | Duty is personal to the omittor; the abettor's guilt lies in procuring the omission |
| **Expl. 2** | Act abetted need **not be committed**; effect need not be caused | **The core inchoate character of abetment** — contrast attempt, where the offender's own act must have begun |

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| Explanation | Rule | Point to make in the answer |
|---|---|---|
| **Expl. 3** | The person abetted may be legally **incapable** (child, lunatic) or **innocent** (good-faith mistake) | "Innocent agent" doctrine — the abettor answers for the offence as if committed by a capable person |
| **Expl. 4** | **Abetment of abetment** is punishable | Chain-instigation: every link in the chain shares the principal's punishment |
| **Expl. 5** | Conspirator need not concert with the actual perpetrator | Extended/joint conspiracies; feeds the s. 61(1) proviso logic and IEA s. 10 / BSA s. 8 |

**Trap for the examiner's knife :** Explanation 4 (abetment of abetment is an offence) and s. 116/56 (abetting an offence punishable with imprisonment *if the offence is not committed*) operate at different levels. In *Satvir Singh* the Sessions Court convicted the in-laws under s. 116 *read with s. 306* IPC when the wife survived. The Supreme Court **set that aside**: s. 306 itself *is* an abetment offence ("it is inconceivable to have abetment of an abetment"), so s. 116 can never ride on s. 306 — the correct charge for abetting an *attempt* to commit suicide is at most s. 309 read with s. 107 (and the Court thought even that "preposterous" on the facts). Full card at § 7.3.

## 2.3 Extraterritorial abetment — BNS §§ 47–48 / IPC § 108-A

**BNS § 47 / IPC § 108-A — ABETMENT IN INDIA OF OFFENCES OUTSIDE INDIA**

A person abets an offence within the meaning of this Sanhita who, **in India**, abets the commission of any act without and beyond India which would constitute an offence if committed in India.

> *Illustration.* A, in India, instigates B, a foreigner in country X, to commit a murder in that country. A is guilty of abetting murder.

**BNS § 48 — ABETMENT OUTSIDE INDIA FOR OFFENCE IN INDIA** NEW IN BNS

A person abets an offence within the meaning of this Sanhita who, **without and beyond India**, abets the commission of any act **in India** which would constitute an offence if committed in India.

> *Illustration.* A, in country X, instigates B to commit a murder in India. A is guilty of abetting murder.

The IPC punished only the outbound direction — instigating from India an offence abroad (s. 108-A). The BNS adds the inbound direction — the handler abroad who runs an offence in India through instigation, conspiracy or aid is now an abettor under Indian law. This pairs with BNS s. 1(5) (extended territoriality: acts targeting computer resources in India etc.) and modern cross-border crime — terror networks, online radicalisation, romance-scam call centres.

## 2.4 The liability rules — when the person abetted deviates: BNS §§ 49–54 / IPC §§ 109–114

These six sections are a statutory study in **causation and fault-allocation** between abettor and principal. Learn them as a story.

**BNS § 49 / IPC § 109 — PUNISHMENT OF ABETMENT IF ACT ABETTED IS COMMITTED IN CONSEQUENCE**

Whoever abets any offence shall, if the act abetted is **committed in consequence** of the abetment, and no express provision is made for its punishment, be punished with the punishment provided for the offence.

**Explanation.** An act or offence is committed *in consequence of abetment* when it is committed in consequence of the instigation, or in pursuance of the conspiracy, or with the aid which constitutes the abetment.

**BNS § 50 / IPC § 110 — PERSON ABETTED DOES THE ACT WITH A DIFFERENT INTENTION**

Whoever abets the commission of an offence shall, if the person abetted does the act with a **different intention or knowledge** from that of the abettor, be punished with the punishment provided for the offence **which would have been committed if the act had been done with the intention or knowledge of the abettor** and with no other.

> *Point:* the abettor is judged by **his own** mens rea, not the principal's. Instigate a theft; the thief commits a rape — the abettor answers for abetment of theft, not rape.

**BNS § 51 / IPC § 111 — WHEN ONE ACT ABETTED AND A DIFFERENT ACT DONE**

When an act is abetted and a **different act** is done, the abettor is liable for the act done, in the same manner and to the same extent as if he had directly abetted it: *Provided* the act done was a **probable consequence** of the abetment, and was committed under the influence of the instigation, or with the aid or in pursuance of the conspiracy.

> *Illustrations.* (a) A instigates a child to poison Z's food; the child mistakenly poisons Y's food — A liable as if he had instigated the poisoning of Y. (b) A instigates B to burn Z's house; B sets fire and commits theft of property — A is **not** guilty of abetting the theft (distinct act, not a probable

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consequence). (c) A instigates B and C to break into a house for robbery and arms them; B and C, resisted by Z, murder Z — if the murder was a probable consequence, A is liable for murder.

**BNS § 52 / IPC § 112 — CUMULATIVE PUNISHMENT**

If the act for which the abettor is liable under s. 51 is committed **in addition to** the act abetted and constitutes a distinct offence, the abettor is liable to punishment for **each** offence. *Illustration:* A instigates B to resist a distress; B resists and causes grievous hurt — B liable for both; A liable for both if he knew grievous hurt was likely.

**BNS § 53 / IPC § 113 — DIFFERENT EFFECT CAUSED**

When an act is abetted with the intention of causing a **particular effect**, and an act for which the abettor is liable causes a **different effect**, he is liable for the effect caused, provided he **knew the act abetted was likely to cause that effect**. *Illustration:* A instigates B to cause grievous hurt to Z; Z dies — if A knew the hurt was likely to cause death, A is punished as for murder.

**BNS § 54 / IPC § 114 — ABETTOR PRESENT WHEN OFFENCE IS COMMITTED**

Whenever any person, who if absent would be liable to be punished as an abettor, is **present** when the act or offence is committed, he shall be **deemed to have committed** such act or offence.

*Constructive presence:* presence converts accessory liability into deemed principal liability — the comrade who stands by while the murder he procured is done is treated as its author, not merely its abettor.

| Situation | Section (BNS/IPC) | Result |
|---|---|---|
| Act abetted is committed, in consequence | s. 49 / 109 | Abettor gets the offence's own punishment |
| Same act, different mens rea in the doer | s. 50 / 110 | Abettor punished by **his own** intention/knowledge |
| Different act done | s. 51 / 111 | Liable for it only if a **probable consequence** of the abetment (plus cumulative liability, s. 52/112) |
| Different effect results | s. 53 / 113 | Liable if he **knew** the act was likely to cause it |
| Abettor present at the scene | s. 54 / 114 | **Deemed** to have committed the offence itself |

The through-line: **mens rea of the abettor + objective probability + actual causation** are weighed at every step; the abettor is never punished beyond what his own culpability and the natural run of his act reach.

## 2.5 Punishment when the offence is not committed — BNS §§ 55–57 / IPC §§ 115–117

**BNS § 55 / IPC § 115 — ABETMENT OF OFFENCE PUNISHABLE WITH DEATH OR LIFE (OFFENCE NOT COMMITTED)**

Whoever abets the commission of an offence punishable with death or imprisonment for life, shall, if that offence be **not** committed in consequence of the abetment, be punished with imprisonment of either description up to **7 years** + fine; **and if any hurt is done** in consequence, up to **14 years** + fine.

*Illustration.* A instigates B to murder Z; B refuses — A liable up to 7 years; if hurt be done to Z, up to 14 years.

**BNS § 56 / IPC § 116 — ABETMENT OF OFFENCE PUNISHABLE WITH IMPRISONMENT (OFFENCE NOT COMMITTED)**

Whoever abets an offence punishable with imprisonment shall, if that offence be **not** committed, be punished with imprisonment up to **one-fourth** of the longest term for that offence, or fine, or both; if the abettor or the person abetted is a **public servant** whose duty is to prevent the offence — up to **one-half** of the longest term.

*Illustrations.* (a) A instigates B to give false evidence; B does not — A is nevertheless punishable. (b) A, a police officer whose duty is to prevent robbery, abets a robbery — one-half of the longest term. (c) B abets a robbery by A, such a police officer — same enhancement.

**BNS § 57 / IPC § 117 — ABETTING THE COMMISSION OF AN OFFENCE BY THE PUBLIC OR MORE THAN TEN PERSONS**

Whoever abets the commission of an offence by the public generally or by any number or class of persons exceeding ten, shall be punished with imprisonment up to **7 years** and fine. *Illustration:* A affixes a placard instigating a sect of more than ten members to assemble and attack a rival procession.

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**Sentencing logic :** the graver the offence abetted, the heavier the punishment even on failure — 7/14 years for a death-penalty offence's abetment (ss. 55/115), a fraction of the maximum for lesser offences (ss. 56/116), and an absolute figure where mass instigation endangers public peace (ss. 57/117). Public servants who betray their preventive duty are punished double (½ instead of ¼).

### 2.6 Concealment offences — BNS §§ 58–60 / IPC §§ 118–120

**BNS § 58 / IPC § 118 — CONCEALING DESIGN TO COMMIT OFFENCE PUNISHABLE WITH DEATH OR LIFE**

Whoever intending to facilitate, or knowing it to be likely that he will thereby facilitate, the commission of an offence punishable with death or life, **voluntarily conceals, by any act or omission or by the use of encryption or any other information hiding tool**, the existence of a design to commit such offence, or makes a representation he knows to be false respecting such design — (a) if the offence be committed: up to 7 years; (b) if not: up to 3 years; + fine.

**BNS § 59 / IPC § 119 — PUBLIC SERVANT CONCEALING A DESIGN HE IS BOUND TO PREVENT**

Same conduct by a public servant, for an offence it is his duty to prevent — (a) if committed: up to one-half of the offence's maximum; (b) if punishable with death/life: up to 10 years; (c) if not committed: up to one-fourth + fine.

**BNS § 60 / IPC § 120 — CONCEALING DESIGN TO COMMIT OFFENCE PUNISHABLE WITH IMPRISONMENT**

Concealment (by act or illegal omission) of a design to commit an offence punishable with imprisonment — (a) if committed: up to one-fourth; (b) if not: up to one-eighth, of the longest term + fine.

**BNS modernisation :** §§ 58–59 add **"or by the use of encryption or any other information hiding tool"** — the first time the penal code names cryptography. Designed for terror financing, dark-web coordination and steganography, where the concealor hides the *design* (not the evidence) in encrypted channels before the strike. Quote this in any answer touching cyber-enabled inchoate liability.

### 2.7 Abetment — the complete decision flowchart

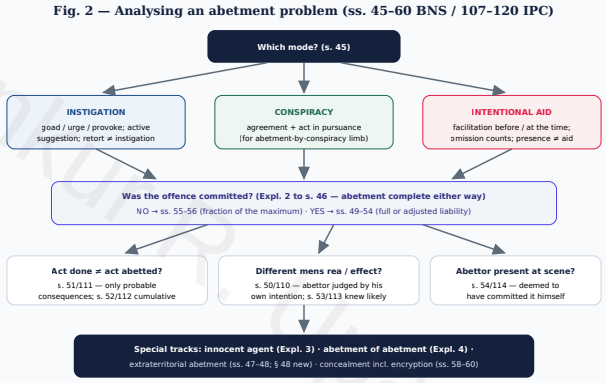



Fig. 2 — The abetment decision tree. Every abetment problem in the exam can be walked down this chart: mode → commission or not → deviation of doer → special tracks.

## 3 Abetment of Suicide — BNS §§ 107–108 ↔ IPC §§ 305–306

### 3.1 The two sections

**BNS § 108 / IPC § 306 — ABETMENT OF SUICIDE**

If any person commits suicide, whoever abets the commission of such suicide, shall be punished with imprisonment of either description for a term which may extend to **ten years**, and shall also be liable to fine.

**BNS § 107 / IPC § 305 — ABETMENT OF SUICIDE OF CHILD OR PERSON OF UNSOUND MIND**

If any child, any person of unsound mind, any delirious person or any person in a state of intoxication, commits suicide, whoever abets the commission of such suicide, shall be punished with **death or imprisonment for life**, or imprisonment for a term not exceeding **ten years**, and shall also be liable to fine.

**IPC § 305 (for comparison):** "If any person under eighteen years of age, any insane person, any delirious person, any idiot, or any person in a state of intoxication, commits suicide..." — the BNS drops "idiot" and speaks of a "child" and a "person of unsound mind", aligning the code with modern mental-health vocabulary (Mental Healthcare Act, 2017).

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| Ingredient | BNS § 108 / IPC § 306 | BNS § 107 / IPC § 305 |
|---|---|---|
| **Fact precedent** | A **suicide** must have been committed by "any person" | A **suicide** must have been committed by a **child / person of unsound mind / delirious / intoxicated** person |
| **Actus reus of abettor** | Abetment — in practice, **instigation** (goad/urge/provoke/encourage), or conspiracy, or intentional aid | |
| **Causal link** | Suicide committed **in consequence of** the abetment (s. 49 Expl./109 Expl.) | |
| **Mens rea** | Intention to abet the suicide (deliberate goading); accidental or negligent contribution will not do | |
| **Punishment** | Up to **10 years** + fine | **Death or life**, or up to **10 years** + fine |
| **Rationale of severity** | Balanced: punishes the outside instigator, spares the victim | Victim's incapacity makes the abettor the author of the death — hence capital exposure |

**Why § 107/305 is the aggravated form :** the child or the person of unsound/delirious/intoxicated mind is treated like the innocent agent of Expl. 3 to s. 46/108 — his will is legally or factually overborne, so the abettor's moral authorship approaches that of a murderer. That is why Parliament fixed death as the ceiling (one of the few capital offences retained in BNS Ch. VI).

## 3.2 The anatomy of "instigation" — the exam's favourite question

Because abetment of suicide is charged almost always as instigation, the courts have built a careful proof structure. Synthesising *Gian Kaur* and *Satvir Singh*:

| Question | Rule |
|---|---|
| **What counts as instigation?** | A positive act of goading — "to goad or urge forward or to provoke, incite, encourage or stir up"; **active suggestion** to end life. Continuous cruel treatment can qualify where it is **calculated to create** the determination to die. |
| **What does NOT count?** | (i) A mere **retort** to a suicide threat; (ii) **harassment or cruelty simpliciter** without a proximate positive act pushing the victim to death (*Satvir Singh*: "the evidence does not disclose that the Appellant instigated the deceased... there was neither a provocation nor encouragement... to commit an act of suicide"); (iii) **accidental** or **negligent** creation of circumstances; (iv) knowledge that the victim is suicidal, unaccompanied by acts of encouragement. |
| **Timing** | Instigation must be proximate enough to have set the fatal act in motion; the abetment must be **in consequence of** which suicide is committed. Remote ill-treatment, even within the seven-year window, only raises — and does not compel — the presumption. |
| **Evidence** | Dying declaration / suicide note / witnesses to the final exchanges; circumstantial proof of the last days; where the victim is a married woman within seven years of marriage and cruelty is shown — the **presumption** below becomes available. |

## 3.3 The seven-year presumption — IEA § 113-A ↔ BSA § 117

**BSA § 117 / IEA § 113-A — PRESUMPTION AS TO ABETMENT OF SUICIDE BY A MARRIED WOMAN**

When the question is whether the commission of suicide by a woman had been abetted by her husband or any relative of her husband and it is shown that she had committed suicide **within seven years** of her marriage and that her husband or such relative had subjected her to **cruelty**, the court **may presume**, having regard to all the other circumstances, that such suicide had been so abetted. ("Cruelty" has the same meaning as in BNS § 86 / IPC § 498-A.)

Three points examiners test: (i) the presumption is **discretionary** ("may"), not compulsive, and can be drawn only when the foundational facts (suicide + seven years + cruelty) are proved; (ii) in *Satvir Singh* the Supreme Court refused any incriminating presumption on a **crucial ingredient** where "it is quite possible to draw a presumption the other way around as well" — the court warned against presuming cruelty "soon before" the act when evidence of it was absent; (iii) the presumption assists proof of **abetment**, but cruelty as defined (BNS § 86(b)) itself includes harassment "likely to drive the woman to commit suicide" — s. 85/498-A is the parallel offence of the cruel husband even when the wife survives (as *Satvir Singh* itself illustrates).

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### 3.4 Proof ladder for a § 108/306 charge

**Fig. 3 — Proving abetment of suicide (BNS § 108 / IPC § 306)**

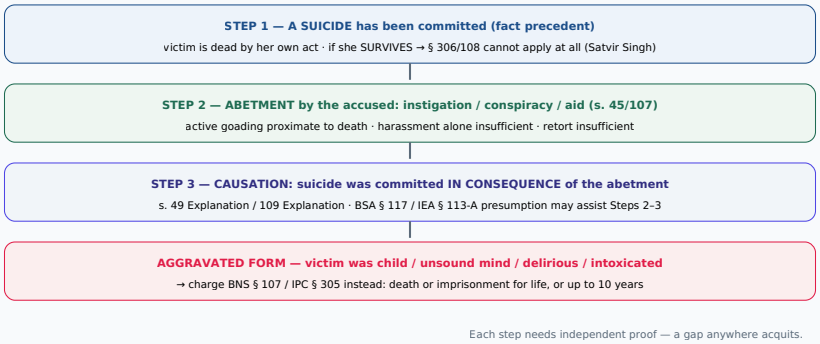



Fig. 3 — The three-step proof ladder (suicide → abetment → consequence), with the § 107/305 aggravated route. Model answers that structure the analysis along these steps look judicial.

### 3.5 Where the prescribed cases slot in

| Case | Provisions | Contribution |
|---|---|---|
| *Gian Kaur v. State of Punjab* (1996) 2 SCC 648 DU CM | §§ 306, 309 IPC; Art. 14, 21 | Constitution Bench: § 306 is a **distinct offence independent of § 309**; right to die is **not** part of Art. 21; "instigation" is active suggestion; Rathinam overruled. Full card § 7.2. |
| *Satvir Singh v. State of Punjab* AIR 2001 SC 2828 RESEARCH · judgment reconstructed from the report | §§ 116, 306, 304-B, 498-A, 309 IPC; IEA § 113-A | § 306 presupposes a **completed** suicide; no "abetment of abetment" via § 116; harassment/retort ≠ instigation; discretionary presumption not drawn. Full card § 7.3. |

## 4 The Right to Die & the Fate of IPC § 309 — From Rathinam to BNS § 226

### 4.1 The two sections that travelled together

IPC § 309 (REPRODUCED IN GIAN KAUR, DU CM) — ATTEMPT TO COMMIT SUICIDE

Whoever attempts to commit suicide and does any act towards the commission of such offence, shall be punished with simple imprisonment for a term which may extend to one year, or with fine, or with both.

Notice the wording "does any act towards the commission" — the same attempt-language as s. 511/62. The paradox the courts wrestled with: § 306 punishes him who **abets** a suicide; § 309 punishes him who **fails** at one; the successful suicide is beyond punishment. If the "right to die" were a fundamental right, § 306 would punish the assistant to a constitutional right, and § 309 would punish the assertion of it. That was exactly the syllogism of *P. Rathinam* — and exactly what the Constitution Bench demolished in *Gian Kaur*.

### 4.2 The journey — the six stations

| Station | Hold |
|---|---|
| **Maruti Shripati Dubal** Bom HC, 1987 | § 309 violates Arts. 14 & 21 — Art. 21 construed to include the "right to die"; provision "discriminatory and arbitrary". |
| **Chenna Jagadeeswar** AP HC, 1988 | § 309 valid; right-to-die argument rejected; courts can soften the provision in application (Probation of Offenders etc.). |
| **P. Rathinam** SC, (1994) 3 SCC 394 | Two-judge Bench: Art. 21 has "positive content" — "right to live... bring in its trail the right not to live a forced life"; § 309 violative of Art. 21 and "deserves to be effaced from the statute book to humanize our penal laws"; "cruel and irrational"; double punishment of a person who has "already suffered agony". |
| **Gian Kaur** SC Constitution Bench, (1996) 2 SCC 648 DU CM | **Rathinam overruled.** Art. 21 is protection of life — "by no stretch of imagination can extinction of life be read to be included in 'protection of life'"; suicide is "an unnatural termination or extinction of life and, therefore, incompatible and inconsistent with the concept of right to life"; § 309 valid under Arts. 21 **and** 14 (sentence purely discretionary, no minimum, fine alone possible, compassionate application in practice); § 306 valid — a distinct offence that "can exist independent of § 309". |
| **Mental Healthcare Act, 2017**, s. 115 | Despite § 309 surviving constitutional scrutiny, Parliament directed that a person who attempts suicide "shall be presumed, unless proved otherwise, to have severe stress and shall not be tried and punished under the said Code" — functional decriminalisation by presumption. |

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| Station | Hold |
|---|---|
| **Bharatiya Nyaya Sanhita, 2023** (w.e.f. 1-7-2024) | **IPC § 309 is gone.** The BNS enacts no general attempt-to-suicide offence. Only **BNS § 226** survives for a narrow slice: |

**BNS § 226 — ATTEMPT TO COMMIT SUICIDE TO COMPEL OR RESTRAIN EXERCISE OF LAWFUL POWER**

Whoever attempts to commit suicide with the intent to **compel or restrain any public servant from discharging his official duty** shall be punished with simple imprisonment for a term which may extend to one year, or with fine, or with both, **or with community service.**

So under the BNS: the distressed failed suicide-attempter is **no longer an offender**; only the protest-hunger-striker or blackmailer who uses his own body as leverage against a public servant's lawful duty is. (The community-service option in s. 226 is one of the BNS's new sentencing ideas — note how the *sanction* has changed even where the *offence* survives.) Abetment of suicide (§ 108) is untouched — *Gian Kaur*'s prediction that § 306-type liability "can exist independent of § 309" is now the statute's own design.

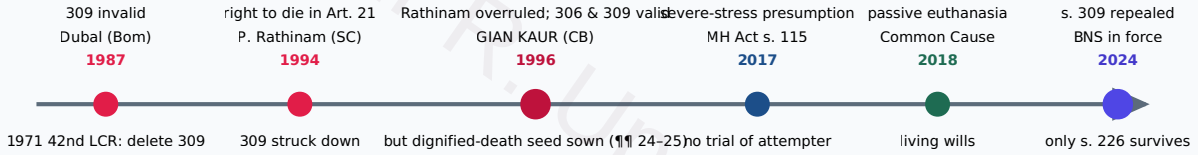
### 4.3 The dignified-death passage — Gian Kaur's seed for the euthanasia debate

While rejecting a general right to die, the Constitution Bench planted the seed of a **qualified** right to a dignified death — the passage every later euthanasia judgment begins from:

> *"The 'right to life' including the right to live with human dignity would mean the existence of such a right up to the end of natural life. This also includes the right to a dignified life up to the point of death including a dignified procedure of death... the 'right to die' with dignity at the end of life is not to be confused or equated with the right to die an unnatural death curtailing the natural span of life. ... This category of cases [terminally ill / persistent vegetative state, where the process of natural death has commenced] may fall within the ambit of the 'right to die' with dignity as a part of right to live with dignity... These are not cases of extinguishing life but only of* ***accelerating conclusion of the process of natural death which has already commenced.****"*
>
> — Gian Kaur v. State of Punjab (1996) 2 SCC 648, ¶¶ 24-25 (DU CM)

From this grew **Common Cause (A Regd. Society) v. Union of India**, (2018) 5 SCC 1 — passive euthanasia and advance directives (living wills) recognised for competent patients and, with safeguards, for those in PVS. Active euthanasia remains an offence (murder / abetment of suicide). The comparative authorities canvassed in *Gian Kaur* are worth a line each in a long-answer: the **UK Suicide Act 1961** s. 2 (suicide decriminalised but *complicity* punishable up to 14 years); **Rodriguez v. B.C. (A.G.)** (Canadian SC — sanctity of life as excluding choice in self-inflicted death); **Airedale N.H.S. Trust v. Bland** (withdrawal of artificial feeding from a PVS patient — "the Rubicon which runs between the care of the living patient and euthanasia"); **Compassion in Dying** (US 9th Circuit on bans on physician-assisted suicide).

**Fig. 4 — Attempted suicide : the forty-year legal journey**




The pattern: constitutional validation (1996) → compassionate non-enforcement (2017) → legislative decriminalisation (2024).

Abetment of suicide (s. 306 IPC / s. 108 BNS) survived every station — punishing the instigator, not the victim.

Fig. 4 — The right-to-die timeline. Note the asymmetry: the victim's liability shrinks to nothing, the abettor's liability stands.

**Maxim for the margin :** *Mors voluntaria non est juris naturalis* is not a real maxim — but the proposition is: **"the right to life dies with death; it cannot carry a licence for death."** Gian Kaur's holding in one line: **Art. 21 protects life; it does not export it.**

## 5 Criminal Conspiracy — BNS § 61 ↔ IPC §§ 120-A & 120-B

### 5.1 Text and history

**BNS § 61 / IPC §§ 120-A & 120-B — CRIMINAL CONSPIRACY AND ITS PUNISHMENT**

**61(1)** When two or more persons agree **with the common object** to do, or cause to be done —

(a) an **illegal act**; or

(b) an act which is not illegal by **illegal means**,

such an agreement is designated a criminal conspiracy:

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*Provided* that no agreement except an agreement to commit an offence shall amount to a criminal conspiracy unless **some act besides the agreement** is done by one or more parties to such agreement in pursuance thereof.

**Explanation.** It is immaterial whether the illegal act is the ultimate object of such agreement, or is merely incidental to that object.

**61(2)** Whoever is a party to a criminal conspiracy —

(a) to commit an offence punishable with death, imprisonment for life or rigorous imprisonment for a term of two years or upwards, shall, where no express provision is made for its punishment, be punished in the same manner as if he had **abetted** such offence;

(b) other than a criminal conspiracy to commit an offence punishable as aforesaid, shall be punished with imprisonment up to **six months**, or fine, or both.

**History in one paragraph.** At common law, conspiracy was a misdemeanor of agreeing to do an unlawful act or a lawful act by unlawful means; the IPC as enacted (1833 draft/Macaulay; 1860) needed no separate conspiracy offence because abetment's second limb covered it. Experience — political murders, dacoity — showed a gap: agreements that never matured into any overt act escaped. The Criminal Law Amendment Act, 1913 inserted §§ 120-A/120-B, borrowing the common-law idea and the proviso (overt act requirement only where the object is not an offence). The BNS merges the two sections into one, adds "with the common object", and (via s. 111/113 organised crime and s. 61(2)(a)) keeps the abetment-linked punishment scale for grave conspiracies.

## 5.2 Essentials — the six-point checklist

| Essential | Explanation |
|---|---|
| **1. Two or more persons** | A man cannot conspire alone; husband-and-wife (formerly one legal person) and corporation-officer scenarios have their own case law. If all but one are acquitted or fake identities intervene, the conspiracy collapses for that accused. |
| **2. Agreement** | **The gist of the offence**. Need not be formal or in writing; may be inferred from conduct; may be rolling ("wheel" and "chain" conspiracies) — each conspirator need not know all the others (Expl. 5 to s. 46/108; *Nalini*). |
| **3. Common object** (BNS wording) | To do (a) an **illegal act** (any offence or civil wrong), or (b) a **legal act by illegal means**. The new words "with the common object" re-emphasise the shared aim — aligning conspiracy language with ss. 3(5)/190(1) (common intention / common object). |
| **4. Overt act proviso** | Where the agreed object is **an offence**, the conspiracy is complete on agreement alone. Where the object is a non-offence illegal act (e.g. civil wrong) or a legal act by illegal means, **one overt act** in pursuance is needed. |
| **5. Meeting of minds** | Mere knowledge, presence or parallel conduct is not agreement; but agreement "may be proved by necessary implication" — from utterances, writings, acts, omissions and conduct (*Nalini*). |
| **6. No need of completion** | "The parties to such an agreement will be guilty of criminal conspiracy, though the illegal act agreed to be done has not been done" — the crime is consummated by the agreement itself (*Nalini*, quoting the classic rule). |

## 5.3 The law of proof — how a secret is judicially established

*State of Tamil Nadu v. Nalini* (the DU-prescribed conspiracy case) states the working rules, each of them quotable:

*"The gist of the offence [of criminal conspiracy under s. 120-A IPC] is **an agreement to break the law**. The parties to such an agreement will be guilty of criminal conspiracy, **though the illegal act agreed to be done has not been done**. So too, it is not an ingredient of the offence that all the parties should agree to do a single illegal act."*

— State of Tamil Nadu v. Nalini, AIR 1999 SC 2649 (¶ on the essence of conspiracy)

*"[A] conspiracy is always hatched in secrecy and it is impossible to adduce direct evidence of the same. The offence can be only proved largely from the **inference drawn from acts or illegal omission committed by the conspirators in pursuance of a common design**... The agreement, sine qua non of conspiracy, may be proved either by direct evidence which is rarely available in such cases or it may be **inferred from utterances, writings, acts, omissions and conduct** of the parties to the conspiracy which is usually done... [T]here is no difference between the mode of proof of the offence of conspiracy and that of any other offence: it can be established by direct evidence or by circumstantial evidence."*

— State of Tamil Nadu v. Nalini, AIR 1999 SC 2649

BSA § 8 / IEA § 10 — THINGS SAID OR DONE BY CONSPIRATOR IN REFERENCE TO COMMON DESIGN

Where there is reasonable ground to believe that two or more persons have conspired together to commit an offence or an actionable wrong, **anything said, done or written by any one of such persons in reference to their common intention**, after the time when such intention was first entertained by any one of them, is a relevant fact against **each** of the persons believed to be so conspiring — as well for proving the existence of the conspiracy as for showing that any such person was a party to it.

Two features of this rule deserve emphasis: (i) it is an **exception to the hearsay rule** — the declaration of one conspirator becomes evidence against all; (ii) it operates only **after** the common intention is first entertained, and only for acts/sayings **in reference to** the common design (the "onward and contemporaneous" rule). But there is a doctrinal caution: before the prosecution may use s. 10,

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there must be **independent evidence** showing reasonable ground to believe a conspiracy existed — s. 10 is a lock on an already-half-opened door, not a crowbar.

### 5.4 The conspiracy web — liability of each for the acts of all

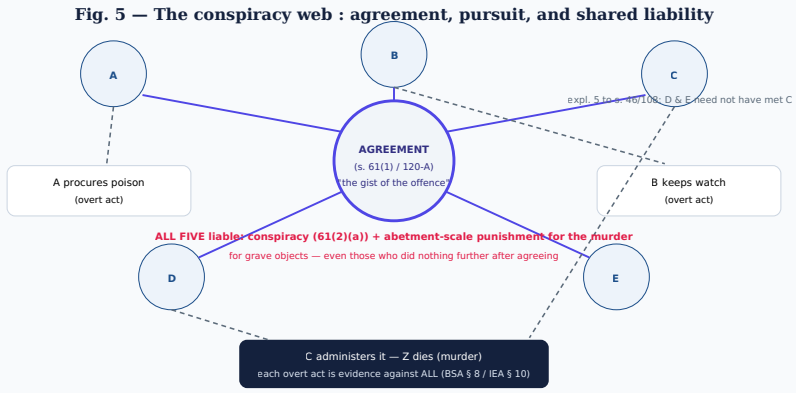



Fig. 5 — One agreement, five conspirators, shared fate. The dashed lines show how every act in pursuance becomes evidence against, and liability for, every party.

### 5.5 Distinctions the examiner demands

| Axis | Criminal conspiracy (s. 61 / 120-A, B) | Abetment (ss. 45–60 / 107–120) | Common intention (s. 3(5) / 34) |
|---|---|---|---|
| **Core act** | Agreement | Instigation / conspiracy / aid | Participation in the done act |
| **Offence complete at** | Moment of agreement (offence-object) | Moment of instigating/aiding | Only when the criminal act is done |
| **Stand-alone offence?** | Yes — punishable per se | Yes, but parasitic on another offence's definition | No — a rule of liability, not an offence |
| **Proof of another's acts** | BSA § 8 / IEA § 10 declarations | Own acts (plus s. 51/111 deviation rules) | Shared act done in furtherance |
| **Withdrawal** | For grave objects, conspiracy punishable on agreement; practical escape only by communicating disassociation **before** overt acts in pursuance/at commission | Abettor may countermand instigation before the act | He who withdraws before the act escapes constructive share |

**Conspiracy vs common object (s. 190(1)/149):** membership of an unlawful assembly (≥ 5 persons, common object) fastens liability for offences in prosecution of that object or which members knew likely — **no agreement between members is required**, only shared object proved from assembly conduct. Conspiracy needs proof of **agreement** between the very persons charged. The Dec 2014 Q7(b) problem (five attackers, two secretly armed) is resolved on exactly this difference — see PYQ q5.

### 5.6 Graded punishment under s. 61(2) / 120-B

- **Grave conspiracies** (object punishable with death/life/RI ≥ 2 years): each conspirator punished **in the same manner as if he had abetted** the object offence — e.g. conspiracy to murder → s. 45–49 route → murder's punishment.
- **Minor conspiracies** (all others, including legal-act-by-illegal-means): imprisonment up to **6 months**, or fine, or both.
- Where a special statute makes express provision (NDPS, UAPA, PMLA, MCOC Acts, BNS §§ 111/113 organised crime), s. 61(2) steps back — "where no express provision is made".

## 6 Attempt — BNS §§ 62, 109–110, 226 ↔ IPC §§ 511, 307, 308, 309

### 6.1 Why punish the unsuccessful?

Four rationales, each supported by authority you can cite:

- **Social-danger / alarm rationale** (the DU course material's own language): the attempter is punished "for **creating alarm and scare in the society**" — the community has suffered the fright of the near-miss even where the harm missed.
- **Subjective dangerousness**: the attempter has shown the same mens rea as the completed criminal; luck alone divides them ("for reasons beyond his control" — the CM's words). Punishing only success would make punishment a lottery.
- **Prevention**: the police may intervene at the last overt act without waiting for the corpse; attempt liability is what makes interception lawful.
- **Reform/deterrence symmetry**: the marginal deterrence of attempt liability pulls potential offenders back before the point of no return.

But the criminal law has deliberately refused to punish every step towards every crime — intention and preparation are generally free. The line-drawing is the whole difficulty, and it is the burden of the tests in § 6.3.

## 6.2 The statutory scheme — general and specific attempts

**BNS § 62 / IPC § 511 — PUNISHMENT FOR ATTEMPTING TO COMMIT OFFENCES PUNISHABLE WITH IMPRISONMENT FOR LIFE OR IMPRISONMENT**

Whoever attempts to commit an offence punishable by this Sanhita with imprisonment for life or imprisonment, **or to cause such an offence to be committed**, and in such attempt does any act towards the commission of the offence, shall, where no express provision is made by this Sanhita for the punishment of such attempt, be punished with imprisonment of any description provided for the offence, for a term which may extend to **one-half of the imprisonment for life or... one-half of the longest term** of imprisonment provided for that offence, or with such fine as is provided for the offence, or with both.

> **Illustration (a).** A makes an attempt to steal some jewels by breaking open a box, and finds after so opening the box, that there is no jewel in it. He has done an act towards the commission of theft, and therefore is guilty under this section.

> **Illustration (b).** A makes an attempt to pick the pocket of Z by thrusting his hand into Z's pocket. A fails in the attempt in consequence of Z's having nothing in his pocket. A is guilty under this section.

Notice three things. **First**, the BNS adds "or **to cause** such an offence to be committed" — the section now expressly reaches the person who tries to bring about the offence through another (attempted innocent-agent Instigators).

**Second**, this is a **residual** provision — "where no express provision is made" — so the specific attempts below displace it; and it does **not** apply to offences punishable with fine only or death (hence the need for s. 55/115 on the abetment side and for express capital limbs like s. 109(2)).

**Third**, the two illustrations are the impossible attempts: the empty box and the empty pocket — theft that *could not* succeed — and the statute still says "guilty". Hold that thought for § 6.5.

| Attempt offence | IPC | BNS | Punishment structure |
|---|---|---|---|
| Attempt to murder | s. 307 | s. 109 | Up to 10 years + fine; **if hurt caused** — life or up to 10 years; **life-convict + hurt** (s. 109(2)) — death or life (remainder of natural life) |
| Attempt to commit culpable homicide | s. 308 | s. 110 | Up to 3 years / fine / both; **if hurt** — up to 7 years / fine / both |
| Attempt to commit suicide | s. 309 | **repealed**; s. 226 | IPC: SI ≤ 1 yr / fine / both. BNS: only the compel/restrain-public-servant slice survives; community service now an option |
| All other attempts (residual) | s. 511 | s. 62 | ½ of life or ½ of the longest term / offence's fine / both |
| Attempts under special laws | e.g. Customs Act s. 135; NDPS s. 31; FEMA/FEA | | The definitions of "attempt" under special statutes follow the IPC tests — see *Mohd. Yakub* (Customs) and *Mayer Hans George* (gold at airport) |

> *"In India, while attempts to commit certain specified offences have themselves been made specific offences (e.g. Sections 307, 308, IPC), an attempt to commit an offence punishable under the Penal Code, generally, is dealt with under Section 511, IPC.* ***But the expression 'attempt' has not been defined anywhere."***
>
> — Chinnappa Reddy, J., concurring, State of Maharashtra v. Mohd. Yakub (DU CM)

## 6.3 Attempt vs preparation — the tests (the doctrinal core of Mohd. Yakub)

The DU case material's twin judgments canvass the entire English learning and then state the Indian position. Structure any "attempt" long answer as: **definitions (Kenny → rejected as too narrow) → Eagleton proximity → Stephen → Equivocality → Davey v. Lee → Haughton v. Smith propositions → Indian authorities (Abhayanand Mishra, Malkiat Singh) → the Yakub synthesis**.

| Test | Statement | Critique (per Yakub) |
|---|---|---|
| **Kenny: "last proximate act"** | Attempt = "the last proximate act which a person does towards the commission of an offence, the consummation of the offence being hindered by circumstances beyond his control" | Sarkaria J.: "**too narrow**" — an attempt is "a mixed question of law and fact, depending largely on the circumstances of the particular case"; attempt "defies a precise and exact definition" |

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| Test | Statement | Critique (per Yakub) |
|---|---|---|
| **Eagleton proximity** (Parke, B., 1855) | "Acts remotely leading towards the commission of the offence are not to be considered as attempts... but **acts immediately connected with it** are"; the locus classicus | Accepted, with Lord Goddard C.J.'s caveat (*Gardner v. Akeroyd*): "it is sometimes difficult to determine whether an act is immediately or remotely connected". Parke B.'s own aside suggested a last-act idea — as a general principle "entirely unacceptable" (cocked-gun example) |
| **Stephen's Digest** | "An act done with intent to commit that crime and forming part of a series of acts which would constitute its actual commission if it were not interrupted. The point at which such a series of acts begins cannot be defined" | Reddy J.: "the first sentence is an attempt at defining 'attempt', the second is a confession of inability to define — the attempt at definition fails precisely at the point where it should be helpful" |
| **Equivocality test** | Actus reus complete if the act is "a step towards the commission... immediately and not merely remotely connected... and the doing of which **cannot reasonably be regarded as having any other purpose** than the commission of the specific crime" (*Davey v. Lee* approved) | Turner himself watered it down (Authoritative Criminal Precedent, 12th edn): enough if the steps "themselves clearly indicate what was the end towards which they were directed" — a prima facie test of intention; Reddy J. objected to barring all aliunde evidence of mens rea in fixing the actus reus |
| **Haughton v. Smith** (Hailsham L.C.) | Three propositions: (1) intention ≠ attempt; (2) besides intention there must be an overt act "forming part of a series of acts which would constitute the actual commission if not interrupted"; (3) the act must not be "merely preparatory" — it must be **proximate** / immediately connected | The consolidating restatement adopted in *DPP v. Stonehouse*; foundation of the Indian synthesis |
| **Malkiat Singh "harmless acts"** (Ramaswami J.) | Attempt requires overt acts such that "if the offender changes his mind and does not proceed further... the acts already done would be **completely harmless**" (paddy truck stopped 15 miles from the boundary — no attempt) | Reddy J.: to be read on the facts — the contemplated offence was "so far removed from completion" that there was ample time to repent; otherwise "every accused interrupted at the last minute... may always say that when he was interrupted he was **about to change his mind**" |
| **Abhayanand Mishra** (SC, Raghubar Dayal & Subba Rao JJ.) | Disapproved the last-act test; "attempt begins where preparation ends"; a person commits attempt when (i) he intends to commit that particular offence and (ii) having made preparations, does an act towards its commission — need not be the penultimate act, but must be an act **during the course of committing** the offence | The standard Indian two-limb test; expressly applied in *Om Parkash* (s. 307: act "in pursuance of the intention... irrespective of whether that act is the penultimate act") |
| **THE YAKUB SYNTHESIS** (Reddy J., ¶ 32) | **(1)** intention to commit the particular offence; **(2)** some act done which would necessarily have to be done towards its commission; **(3)** the act must be **proximate** to the intended result — "**the measure of proximity is not in relation to time and action but in relation to intention**": the act must reveal, with reasonable certainty (in conjunction with other facts, not necessarily in isolation), an **intention**, as distinguished from a mere desire, to commit the offence | |

> *"Had the truck been stopped and searched at the very commencement of the journey or even at Shirsat Naka, the discovery of silver ingots might at the worst lead to the inference that the accused had prepared or were preparing... It could be said that the accused were transporting or attempting to transport silver somewhere but it would not necessarily suggest... that the intention was to **export** the silver. The fact that the truck was driven up to a lonely creek from where the silver could be transferred into a sea-faring vessel was suggestive or indicative, though not conclusive, that the accused wanted to export the silver. But [the] circumstance that all this was done in a clandestine fashion, at dead of night, revealed, with reasonable certainty, the intention of the accused that the silver was to be exported."*
>
> — Chinnappa Reddy, J., State of Maharashtra v. Mohd. Yakub (DU CM) — proximity measured against intention

## 6.4 Attempt to murder — BNS § 109 / IPC § 307

**BNS § 109 / IPC § 307 — ATTEMPT TO MURDER**

Whoever does any act with such intention or knowledge, and under such circumstances that, **if he by that act caused death**, he would be guilty of **murder**, shall be punished with imprisonment of either description up to **10 years** + fine; **and if hurt is caused** to any person by such act, the offender shall be liable to **imprisonment for life** or such punishment as is hereinbefore mentioned.

**§ 109(2)** When any person offending under this section is under sentence of imprisonment for life, he may, if hurt is caused, be punished with **death**.

Ingredients: (i) an act done with the **intention or knowledge** such that, had death ensued, the doer would be guilty of murder (the murder-definition mens rea: intention within s. 101/300 cls. first and secondly, or knowledge that death was likely, within cl. thirdly); (ii) death does **not** ensue; (iii) graded sentence — hurt aggravates to life; the life-convict's attempt with hurt can be capital. The proof of intention is circumstantial: weapon used, part of the body targeted, repetition of blows, prior enmity, absence of provocation — and **non-fatal result by pure chance does not dilute the attempt** (*Om Parkash*: series of acts doctrine — even slow starvation is an attempt when death is intended; the act need not be the "last act"). Contrast s. 110/308: the act, if death resulted, would be culpable homicide *not* amounting to murder (e.g. sudden fight, provocation) — hence the milder 3/7-year scale. The Dec 2015 DU problem (shooting-learner in a crowded street) is answered on this knife-edge: intention → 307/109; only knowledge of death's likelihood → murder "secondly" analysis on the completed death; gross advertent negligence → 304-A/106(1).

### 6.5 Impossible attempts — the DU short-note favourite

December 2014, Q8(b) — "Impossible attempts". Build the note in four moves:

| Move | Content |
|---|---|
| **1. The puzzle** | The hand goes into the pocket — the pocket is empty; the box is broken — the box is empty. Can there be an attempt to steal what is not there? Two classical lines. |
| **2. The "objective" line** | *R. v. McPherson* (1857): stealing chattels already stolen — "an attempt must be to do that which, if successful, would amount to the felony charged, but here the attempt never could have succeeded"; witchcraft/effigy example (hurting by spell, burning in effigy) — no attempt, for the means are intrinsically useless. Indian adoption: **Asgarali Pradhania v. Emperor**, AIR 1933 Cal 893 (DU's 2023 attempt unit) — the "red liquid and powder" that could not cause miscarriage: since failure was due to the accused's own defective means (not to intervention), what he did was **mere preparation**, no attempt to cause miscarriage. |
| **3. The "subjective" line** | Stephen (and Kenny): everyone who, believing a state of facts, does an act which *would be an attempt if those facts existed*, attempts the offence, "although its commission... was impossible on account of... a fact unknown to him". criminal law jurists' pickpocket and the empty safe. |
| **4. The Indian statutory answer** | **BNS § 62 illustrations (a) and (b) / IPC § 511 illustrations (a) and (b)** — the empty box and the empty pocket — both expressly "guilty". Factual impossibility is therefore **no defence**: the act done with the guilty mind is itself the danger the law punishes. (English law reached the same terminus in the era of *DPP v. Stonehouse*, as noticed in *Mohd. Yakub*.) What still exculpates is **pure legal impossibility** (the "act" intended is not in law an offence, e.g. the effigy-spell) — the means are such that no crime was ever on the cards. |

**Margin line : "The law punishes the danger, not the harvest."** An attempt that could not succeed still shows the complete criminal will; only when the will itself aims at a legal nothing does attempt doctrine let go.

### 6.6 Preparation vs attempt — the decision tree

**Fig. 6 — Preparation or attempt? The examiner's decision tree**

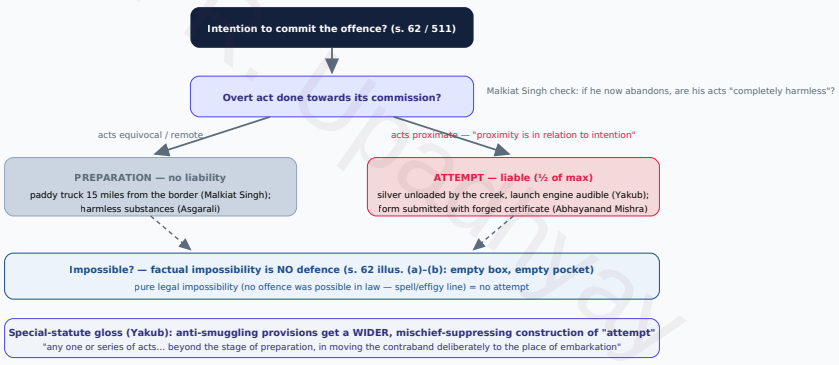



Fig. 6 — Walk any attempt problem down this tree; quote the case at each leaf.

## 7 The Prescribed Case Laws — In Full Detail

### 7.1 State of Maharashtra v. Mohd. Yakub

(1980) 3 SCC 57 : AIR 1980 SC 1111 — Supreme Court (Sarkaria & Chinnappa Reddy JJ.) DU CASE MATERIAL

#### Facts

On secret information that silver would be transported from Bombay for illegal export, officers of the Central Excise (Superintendent Wagh, Inspector Dharap and staff) kept watch on the night of 14–15 September 1968 at Shirsat Naka on National Highway No. 8. Past midnight they saw Jeep No. MRC-9930 (driven by accused 1, **Mohd. Yakub**) coming from Bombay followed by Truck No. BMS-796 (driven by accused 2, Shaikh Jamadar Mithubhai, with accused 3, Issak Hasanali Shaikh, as cleaner). Instead of the Bassein road, the vehicles took the fork towards Kaman village and the **Ghodbunder creek**, and halted

near a bridge. The accused began unloading small, heavy bundles from the truck. The officers pounced. Simultaneously, "the sound of the engine of a mechanised sea-craft" was heard from the creek — and the vessel slipped away as the officers rounded up the party. From the jeep, concealed in a shawl, were recovered **15 silver ingots**; from under the sawdust in the truck, **24 more** (43 ingots in all, 1,312.410 kg, worth about ₹ 8 lakh); **4 ingots had already been unloaded** and lay by the footpath leading to the creek. Yakub gave a false name and address, and carried a pistol (unlicensed — a separate Arms Act case), a knife and ₹ 2,133. None of the accused was a silver dealer. They were charged under the Customs Act, 1962 (ss. 135(1)(a), 7, 8, 33, 34), the Foreign Exchange Regulation Act, 1947 (ss. 12(1), 23), and the Imports & Exports (Control) Act, 1947 (s. 5) read with the Exports (Control) Order, 1968 — in essence, **attempted smuggling (export) of silver out of India**.

**Course of litigation (the issue in its pure form)**

The accused pleaded bare denial: they knew nothing of the silver, had merely been engaged to drive the vehicles, and were driven to the creek by the police. The **Trial Magistrate convicted** (A-1: 2 years RI + ₹ 2,000; A-2 & A-3: 6 months RI + ₹ 500 each). The **Sessions Judge allowed their appeals** and **acquitted**: the facts showed "no more than... 'preparation' for bringing this silver to the creek", and until the silver was actually put on a boat there was no "direct movement towards the commission of the offence"; since preparation to export was not punishable under the Customs Act, the accused went free. The **Bombay High Court** (1 November 1973) dismissed the State's appeal and upheld the acquittal. Hence the State's appeal to the Supreme Court — on a single, clean question: **whether the proved circumstances established, beyond reasonable doubt, an ATTEMPT to export the silver in contravention of law?**

**Arguments**

**For the accused (supporting the acquittal):** the overt acts stopped at transporting and unloading the ingots near a creek; no ingot had been placed on any vessel; nothing proved a vessel was even waiting; inter-coastal transport was a lawful possibility; therefore at most preparation, which the Customs Act did not punish; acquittal on facts could not be disturbed.

**For the State:** intention to export was the only rational inference from concealment, the midnight journey to a lonely creek, the unloading at the water's edge, the waiting sea-craft and the false identity; the overt acts had gone far beyond preparation and were "reasonably proximate" to completion; penal anti-smuggling provisions must be construed to suppress the mischief, not to nurse it.

**Held — Sarkaria J. (leading judgment)**

(i) **Standard of proof:** the Evidence Act's definition of "proved" (s. 3) demands no absolute certainty — "perfect proof in this imperfect world is seldom to be found"; a prudent-man probability suffices, and circumstantial evidence is as good as any. (ii) **What is an attempt:** Kenny's "last proximate act... hindered by circumstances beyond his control" is **too narrow**; attempt defies exact definition and is "a mixed question of law and fact"; there are three stages (intention → preparation → deliberate overt steps); the overt act need not be the penultimate one if it "manifest[s] a clear intention... being reasonably proximate to the consummation"; citing **Abhayanand Mishra**: "**attempt begins where preparation ends**"; the two-limb test — intention + an act done towards commission (in the course of committing, though not the penultimate act). (iii) **Application:** the accused had taken "most of the steps necessary in the course of export by sea" — concealment, night journey, arrival at the shore, unloading begun at the creek with the vessel's engine audible: "beyond the stage of preparation... the only step that remained... was to load it on a sea-craft". (iv) **Mischief-rule construction:** since the provisions combat smuggling — "an anti-social activity which adversely affects the public revenues... foreign exchange... the financial stability and economy of the country" — a narrow reading of "attempt" "has to be eschewed": the word is "wide enough to take in its fold any one or series of acts committed, beyond the stage of preparation, in moving the contraband goods deliberately to the place of embarkation, such act or acts being reasonably proximate to the completion of the unlawful export". (v) **Result:** appeal allowed, acquittal set aside; convicted under s. 135(1)(a) Customs Act read with s. 5, Imports & Exports (Control) Act, 1947; sentences: A-1 — 1 year RI + ₹ 2,000 (default 6 months); A-2 & A-3 — 6 months RI + ₹ 500 (default 2 months).

**Chinnappa Reddy J. (concurring) — the doctrinal opinion**

The concurrence is a guided tour of attempt theory: **Eagleton** (proximity, acts immediately connected); **Gardner v. Akeroyd** (the difficulty of immediate-vs-remote); rejection of the **last-possible-act** principle (the cocked-gun-and-trigger example); **Stephen's Digest** ("series of acts... if not interrupted"); **Davey v. Lee** and the **Turner** formulation, with Turner's own retreat in Authoritative Criminal Precedent (steps "sufficient to show, prima facie, the offender's intention"); Reddy J.'s objection to excluding *aliunde* mens rea evidence from the actus reus inquiry; **Haughton v. Smith** (Hailsham L.C.'s three propositions); **DPP v. Stonehouse**; the Indian scheme (ss. 307, 308, 511; "attempt" undefined); **Abhayanand Mishra** (disapproval of the last-act test); and **Malkiat Singh** — the paddy truck stopped at Samalkha, 15 miles from the Delhi-Punjab boundary: no attempt, because the acts were "completely harmless" if the accused changed his mind; but that test is fact-specific, else "in every case where an accused is interrupted at the last minute... he may always say that when he was interrupted he was about to change his mind". Then the synthesis (¶ 32, quoted in § 6.3 above): **intention + an act that would necessarily have to be done + proximity measured "in relation to intention"** — the truck stopped early would have shown transport, not export; the truck at the lonely creek, in clandestine darkness, revealed export "with reasonable certainty".

**Principles evolved**

- Attempt is a mixed question of law and fact; no single verbal formula (Kenny's included) suffices.
- Overt act need NOT be the penultimate act; attempt begins where preparation ends.
- Proximity is measured against **intention revealed**, not against time or distance remaining.
- Anti-smuggling and other mischief-suppressing statutes get a **generous, mischief-rule construction** of "attempt".
- Circumstantial evidence proves attempt as well as any other fact (prudent-man standard).

**DU-exam hooks**

"Attempt begins where preparation ends" (Sarkaria J., quoting Abhayanand Mishra) · "the measure of proximity is not in relation to time and action but in relation to intention" (Reddy J.) · the cocked-gun rejection of the last-act test · the paddy truck vs the silver at the creek — the perfect contrast pair.

## 7.2 Smt. Gian Kaur v. State of Punjab

(1996) 2 SCC 648 — Constitution Bench (J.S. Verma J.) DU CASE MATERIAL

### Facts

The appellants, **Gian Kaur and her husband Harbans Singh**, were convicted by the Trial Court under **s. 306 IPC** for abetting the suicide of **Kulwant Kaur**, and sentenced each to **6 years RI and ₹ 2,000 fine** (default: 9 months RI). On appeal, the High Court **maintained both convictions** but reduced **Gian Kaur's sentence alone to 3 years RI**. The convicts appealed to the Supreme Court, attacking the conviction on the ground that **s. 306 IPC was unconstitutional**.

### The constitutional reference

The argument ran: in **P. Rathinam v. Union of India** (1994) 3 SCC 394 a two-Judge Bench had struck down **s. 309 IPC** (attempt to commit suicide) as violative of Art. 21, holding that the "right to die" is part of the right to live; if so, a person abetting another's suicide is merely "assisting in the enforcement of the fundamental right under Article 21" — so **s. 306 must fall with s. 309**. The Division Bench, finding this a substantial question of interpretation of Art. 21, referred the matter to a **Constitution Bench**; the Court appointed the **Attorney General** and senior counsel **Fali S. Nariman** and **Soli J. Sorabjee** as *amici curiae* — "to decide this ticklish and sensitive issue".

### Arguments (in the rich detail the judgment records)

**For the appellants** (Ujagar Singh; B.S. Malik): both ss. 306 and 309 unconstitutional. Ujagar Singh supported Rathinam's invalidation of s. 309 but only on the Art. 14 ground; Malik urged both Arts. 14 and 21 — the right to die within Art. 21 makes assisted suicide non-punishable, so s. 306 "is unconstitutional for this reason alone".

**Attorney General:** s. 306 is a **distinct offence** and can exist independently of s. 309; Rathinam's construction of Art. 21 (right to die) is wrong.

**Nariman (amicus):** ss. 306 and 309 are independent substantive offences; the **desirability** of deleting s. 309 is a different thing from its **unconstitutionality**; the euthanasia debate is irrelevant to validity; Art. 21 "guarantees protection of life and liberty and not its extinction"; s. 309 does not even violate Art. 14 — the sentencing discretion allows compassionate application.

**Sorabjee (amicus):** s. 306 survives (violates neither Art. 14 nor 21); but s. 309 is unconstitutional — not on Rathinam's Art. 21 reasoning, but under Art. 14, as a "monstrous and barbaric" provision punishing an "unworthy" class — a provision "universally acknowledged" to be punitive cruelty upon a victim of circumstances.

### Precedents surveyed

**Maruti Shripati Dubal** (Bom HC — s. 309 violates Arts. 14 & 21; "right to die" read into Art. 21); **State v. Sanjay Kumar Bhatia** (Del HC — continuance of s. 309 "an anachronism unworthy of human society", but no constitutional ruling); **Chenna Jagadeeswar** (AP HC — s. 309 valid; courts can prevent harshness); **P. Rathinam** itself (right "not to live a forced life"; s. 309 "deserves to be effaced... to humanize our penal laws... attuning... to the global wavelength"); the 42nd Law Commission Report (1971) recommending repeal (with its Manu/*mahaprasthana* excursus and Fedden's "monstrous procedure" passage); the lapsed 1972 Amendment Bill.

### Held (the five holdings)

**1. "Right to die" is not in Art. 21.** The Rathinam analogy (freedom *not* to speak / not to associate / not to do business ⟹ right not to live) is "misplaced": those are rights whose negative aspect needs no overt act; suicide "requires positive overt acts" whose genesis cannot lie in the right to life. "Article 21 is a provision guaranteeing **protection** of life and personal liberty and by no stretch of imagination can **extinction** of life be read to be included in 'protection of life'." "Right to life is a natural right embodied in Article 21 but **suicide is an unnatural termination or extinction of life and, therefore, incompatible and inconsistent with the concept of right to life**." "The 'right to die', if any, is inherently inconsistent with the 'right to life' as is 'death' with 'life'." **Rathinam overruled** on this point.

**2. The dignified-death qualification** (¶¶ 24–25, quoted in § 4.3 above): right to live with dignity includes a dignified procedure of death; for the terminally ill in whom "the process of natural death has commenced", accelerating that process is not the "unnatural death curtailing the natural span of life" — the seed of passive-euthanasia law later grown in *Common Cause* (2018).

**3. s. 309 does not violate Art. 14 either.** Suicide is definable ("intentional taking of one's life"); uneven gravity is met by tailoring sentence — no minimum, imprisonment not compulsory, fine-only possible; courts in practice apply the Probation of Offenders Act / s. 360 CrPC with compassion (the listed cases from *Barkat* (1934) to *Rukhmina Devi* (1988)). Desirability of repeal ≠ unconstitutionality (¶ 17: the 42nd LCR's logic "is a different matter and non-sequitur in the context of constitutional validity").

**4. s. 306 is valid and independent.** "Section 306 enacts a **distinct offence** which is capable of existence independent of Section 309." Abetment of an attempt to commit suicide is outside s. 306 (punishable, if at all, under s. 309 read with s. 107); other jurisdictions decriminalise the attempt but punish complicity (UK Suicide Act 1961 s. 2(1): aiding/abetting/counselling/procuring — up to 14 years); *Rodriguez* (Canada), *Airedale v. Bland* (HL), *Compassion in Dying* (9th Cir.) — the abettor "abets the extinguishment of life of another person"; the sympathy due to the failed suicide-attempter "do[es] not avail for the benefit

of another person assisting in the commission of suicide". Bombay HC's validation of s. 306 in *Naresh Marotrao Sakbre* noted with approval.

**5. Disposal:** both ss. 306 and 309 IPC constitutionally valid; *Dubal* and *Rathinam* disapproved; *Chenna Jagadeeswar* approved; **appeals remitted to the Division Bench for decision on merits** "in accordance with law treating Sections 306 and 309 IPC to be constitutionally valid".

**Principles evolved**

- Art. 21 = right to live with human dignity to the end of natural life; it does not include a right to die / to end life.
- Rathinam overruled: s. 309 IPC was constitutionally valid (until Parliament repealed it in the BNS — the *legislative* mercy the Court said was a matter for Parliament).
- s. 306/108 is an autonomous offence: the abettor of suicide is not excused by any consideration of the victim's own (former) criminality.
- "Instigation" for s. 306 = active suggestion/encouragement — the conception later applied in *Satvir Singh* and the abetment-of-suicide jurisprudence.
- Dignified death at the end of natural life read into Art. 21 — foundation of passive euthanasia (*Common Cause*, 2018).

**DU-exam hooks**

"Protection of life ≠ extinction of life" · "suicide is an unnatural termination... incompatible... with the concept of right to life" · the Rathinam analogy's flaw (negative aspect of Art. 19 rights vs positive overt acts) · s. 306 independent of s. 309 (validated in fact by the BNS design: 108 kept, 309 repealed) · ¶¶ 24–25 dignified-death passage.

## 7.3 Satvir Singh & Ors. v. State of Punjab

AIR 2001 SC 2828 : (2001) 8 SCC 633 — Supreme Court (K.T. Thomas & S.N. Variava JJ., 27-9-2001)

RESEARCH · judgment reconstructed from the report (listed in DU case material; judgment reconstructed from the report)

**Facts**

**Tejinder Pal Kaur** (PW-5), "a young mother of two kids... a double graduate", was married on 15-11-1992 to **Satvir Singh** (A-1, a businessman); his parents **Devinder Singh** (A-2) and **Paramjit Kaur** (A-3) lived in the same house. Though dowry was given, within four-five months of the wedding the family began harassing the bride for not bringing **a car and a house** — taunting her that she had "brought rags instead of wedding costumes". In November 1995 her father paid **₹ 20,000** to the husband to buy peace; the harassment did not stop. On the night of **16-6-1996**, a salad served to Satvir Singh had excessive salt; he "unleashed abuses" on his wife, was "profusely supported by his mother", then "reinforced by his father" — and, on the prosecution's case, "they went to the extent of suggesting to her why not end your life in front of one of the trains as many such trains are running nearby". At about 4 a.m. on **17-6-1996**, Tejinder Pal Kaur walked alone to the railway line and lay before an incoming train from Jallandhar. She was devastatedly maimed — left arm lost from the shoulder, spinal cord ruptured, a paraplegic — **but she survived**, describing herself as "a living corpse". Her testimony, accepted by both courts, was the mainstay of the prosecution.

**Course of litigation**

The **Sessions Court convicted all three appellants** under **s. 116 read with s. 306 IPC** (2½ years RI + ₹ 10,000 each) — reasoning that although the offence of abetment of suicide required a completed suicide, abetting the *attempt* could be punished through s. 116 (abetment of an offence punishable with imprisonment, if the offence be not committed) — **besides s. 498-A** (2 years + ₹ 5,000 each). The victim herself cross-appealed for enhancement. The **High Court** (single Judge) concurred with the findings but **substituted s. 304-B** (dowry death) **for s. 306**, still read with s. 116, and **raised the sentence to 5 years RI each**. The accused appealed to the Supreme Court.

**Issues**

(i) Can s. 306 IPC apply where the woman **survives** her suicide attempt? (ii) Can s. 116 IPC be tagged to s. 306 to punish "abetment of an attempt" to commit suicide? (iii) Can s. 304-B (dowry death) attach to a case of (attempted) suicide? (iv) What is the role of the s. 113-A Evidence Act presumption, and does harassment amount to "instigation"?

**Arguments**

**For the appellants:** s. 306's plain words — "If any person **commits suicide**" — make a completed suicide the jurisdictional fact; with the wife alive there could be no s. 306, and a fortiori no s. 116 read with 306 (abetment of an abetment); s. 304-B requires **death** of a woman within seven years of marriage in the stated circumstances — a living "victim" takes it out of the section altogether; the s. 113-A presumption ("may presume") cannot fill the foundational facts, and there was a dearth of evidence of dowry-demand cruelty **soon before** the attempt.

**For the State:** the cruelty was of a piece with the suicide attempt; the s. 113-A presumption applied (suicide attempt within seven years of marriage + cruelty shown); if s. 306 fails only because death did not ensue, s. 116 supplies the gap; alternatively s. 304-B read with s. 116 punishes the attempt at a dowry death.

**Held (K.T. Thomas J.)**

**1. s. 306 presupposes a completed suicide.** "Section 306 renders the person who abets the commission of suicide punishable **for which the condition precedent is that suicide should necessarily have been committed**. It is possible to abet the commission of suicide. But nobody would abet a mere attempt to commit suicide. **It would be preposterous if law could afford to penalise an abetment to the offence of mere attempt to commit suicide.**" (The Court noted the "unique legal phenomenon"

that attempt to suicide is the only attempt that is itself an offence — s. 309 — while the completed suicide is beyond the law's reach.)

**2. No "abetment of abetment".** "The learned Sessions Judge went wrong in convicting the appellants under section 116 linked with Section 306 IPC... the **crux of the offence under Section 306 itself is abetment**... **It is inconceivable to have abetment of an abetment**. Hence there cannot be an offence under section 116 read with section 306 IPC." (Abetment of an *attempt* to commit suicide would fall, if at all, under s. 309 read with s. 107.)

**3. s. 304-B cannot apply to suicide at all.** First, "Section 304-B cannot apply to a case of suicide at all, whether it is sequel to cruelty or harassment with the demand for dowry or not" — dowry death is a *homicide-like* deemed causation, not a suicide section; secondly, "the concept of abetment of an offence under Section 304-B is inconceivable in the absence of death of a woman within the statutory period".

**4. The presumption and "instigation".** s. 113-A is discretionary ("the Court **may** presume"); "it is not proper for the court to make an incriminating presumption against the accused on a very crucial ingredient of the offence... more so when it is quite possible to draw a presumption the other way around as well". On the evidence there was "dearth of evidence" of dowry-linked cruelty **soon before** the attempt. And on the nature of instigation, the judgment insists on a positive act of goading — a **retort** to a threat of suicide is not instigation ("if such a retort is accepted to be constituting instigation, then... the parents would be guilty of abetment of suicide if, even when the most unreasonable demand is made by their child... on the threat of committing suicide... they were to retort that the child could do so").

**5. Disposal:** the conviction and sentence **under s. 116 IPC were set aside** — whether linked to s. 306 or to s. 304-B. (The 498-A conviction for cruelty was not disturbed by this holding.)

### Principles evolved

- s. 306 IPC (now s. 108 BNS) requires, as a fact precedent, a **completed** suicide; abetment of attempted suicide is not s. 306.
- s. 116/56 cannot ride on s. 306 — there is no abetment of an abetment; the correct vehicle, if any, is the attempt-section read with the abetment-definition.
- s. 304-B/80 (dowry death) is not a suicide provision — it requires death and operates by deeming the husband/relative to have caused it.
- Harassment, cruel taunts, even a retort to a suicide threat ≠ instigation; the presumption under BSA § 117 / IEA § 113-A is discretionary and will not be drawn on doubtful foundational facts.
- Where the victim survives, the cruelty provision (s. 498-A / BNS ss. 85–86) — not the suicide provisions — is the operative charge.

### DU-exam hooks

"Condition precedent" language · "inconceivable to have abetment of an abetment" · the salt-in-the-salad / "end your life before a train" facts as the perfect problem-hypothesis · the retort-illustration (parents & unreasonable child) · pairing with *Gian Kaur*: instigation defined (Gian Kaur) + completed suicide required (Satvir).

## 7.4 State of Tamil Nadu v. Nalini & 25 Others

AIR 1999 SC 2649 : (1999) 5 SCC 253 — Supreme Court (D.P. Wadhwa J., speaking with S.S.M. Quadri & K.T. Thomas JJ.; judgment 11-5-1999) RESEARCH · judgment reconstructed from the report (listed in DU case material; judgment reconstructed from the report)

### Facts (the Rajiv Gandhi assassination case)

On 21 May 1991 at Sriperumbudur (Tamil Nadu), a human bomb — **Thenmozhi Rajaratnam ("Dhanu")**, an LTTE Black Tiger — assassinated **former Prime Minister Rajiv Gandhi** and 17 others at an election rally. The conspiracy, master-minded by LTTE leader **V. Prabhakaran** and executed through the one-eyed operative **Sivarasan** ("one-eyed Jack"), had its roots in LTTE resentment at the Indo-Sri Lanka Accord and the deployment of the IPKF (1987–90). The trail — infiltration of the team into India, safe houses in Madras/Pondicherry, video reconnaissance of the venue by **Haribabu** (who died in the blast and whose camera recorded the final frame), the belt-bomb, and the pre- and post-blast harbouring — was unravelled by the SIT of the CBI. **26 accused**, including **Nalini** (who had befriended the team and accompanied Dhanu to the venue, and in whose flat Sivarasan had sheltered), were tried by the Designated Court (TADA) at Poonamallee. The prosecution alleged **five facets** of the conspiracy: (1) clandestine infiltration into India; (2) hiring of safe accommodation for the conspirators; (3) unauthorised wireless operation; (4) the assassination itself; (5) harbouring the offenders and destroying evidence. The Designated Court convicted all 26 on a mix of charges — **ss. 120-B, 302 IPC**, TADA and the Arms/Explosives Acts — and awarded **death to four**: Nalini, Santhan, Murugan and Perarivalan; life or long terms to the rest. All convictions and the death reference came up together before the Supreme Court.

### Issues

(i) What is the gist of criminal conspiracy, and how is a secret agreement to be proved? (ii) Did the evidence establish a conspiracy to commit a **terrorist act** under TADA ss. 3(1)/4 — i.e. to overawe the Government or strike terror — or only to murder Rajiv Gandhi? (iii) Which of the 26 were parties to the agreement, given differing degrees of association with the LTTE? (iv) Were the death sentences proper — especially for Nalini?

### Arguments

**For the appellants:** conspiracy must be proved against each accused individually; mere association with, or sympathy for, the LTTE, or knowledge of its methods, is not agreement; several accused were involved only in unconnected LTTE activity; for

some, the confession under TADA s. 15 was the sole basis and it was retracted/unreliable; no evidence showed an object to **overawe the Government** or strike terror as TADA required — the charge-sheet itself never alleged it; for Nalini, her role was peripheral and her death sentence disproportionate.

**For the State (CBI/SIT):** the agreement was proved circumstantially — infiltration, hideouts, wireless traffic, reconnaissance, the assassination and the shelter-and-flight phase were all acts in pursuance of one common design; s. 10 Evidence Act (now BSA s. 8) made each conspirator's acts and words evidence against all; the killing of a former Prime Minister for what he did in the interest of the country was itself an act of exceptional depravity warranting the sentence of death.

**Held**

**1. The law of conspiracy (the passages quoted in § 5.3):** the gist is "an **agreement** to break the law", punishable though the illegal act is never done, and without requiring all parties to agree to a single illegal act; agreement is the *sine qua non*, provable by direct evidence (rarely available) or inferred from "utterances, writings, acts, omissions and conduct"; "there is no difference between the mode of proof of the offence of conspiracy and that of any other offence"; a conspiracy "is always hatched in secrecy" and is "proved largely from the inference drawn from acts or illegal omission committed by the conspirators in pursuance of a common design".

**2. Individual membership scrutiny:** only those who **knowingly agreed** to participate in the conspiracy to assassinate Rajiv Gandhi could be convicted under 120-B read with 302; "mere association with LTTE or knowledge of LTTE activities was insufficient; **agreement and participation in the conspiracy were essential**". The Court sifted the 26 individually, acquitting some on the TADA counts (and in a few cases entirely), while upholding the core conspiracy-murder convictions against the active team.

**3. Object of the conspiracy:** the proof showed a conspiracy to **murder** Rajiv Gandhi — not a conspiracy to commit a terrorist act or disruptive activity under TADA: overawing the Government appears "nowhere in the charge"; under s. 3(1) TADA overawing must be the **primary object**, not a consequence; "even if… terror was struck by the assassination… the question is if striking of terror was **intended** and for that again there is no evidence". Result: TADA convictions set aside across the board; convictions under 120-B/302 IPC and allied statutes maintained for the core conspirators.

**4. Sentence:** "Murder of a former Prime Minister for what he did in the interest of the country was **an act of exceptional depravity… an unparalleled act in the annals of crimes committed in this country**." Death sentences of **Santhan, Murugan and Perarivalan confirmed**; **Nalini's** death sentence **commuted to life** (her youth, her motherhood of a child born in prison, her lesser role at the venue, good conduct and the possibility of reformation weighing with the Court). (Later history: the Tamil Nadu Governor commuted Nalini's sentence in 2000; the remaining three were granted de facto remission by the Court's 2014 order after 11 years' delay in deciding mercy petitions, and Perarivalan was released in 2022 — a story for the death-sentence unit, but a memorable footnote here.)

**Principles evolved**

- Gist of s. 120-A/61 conspiracy = agreement; agreement may be proved by necessary implication from acts and conduct; no direct proof needed.
- Conspiracy is complete without any act in execution (for offence-object agreements); each conspirator need not know or agree to every object.
- Mode of proof of conspiracy = mode of proof of any offence (direct or circumstantial); s. 10 Evidence Act / BSA s. 8 operates after the common intention first arises.
- Mere association/sympathy/knowledge ≠ conspiracy; the prosecution must place each accused inside the agreement.
- Charge-court theory: the court decides on the charge framed and evidence led; the prosecution cannot upgrade the object of the conspiracy at the appellate stage (TADA slant rejected).
- The court looks to the **object** of the agreement, not its consequential terror, in classifying special-statute conspiracies.

**DU-exam hooks**

"Agreement to break the law" · "hatched in secrecy… proved largely from inference… in pursuance of a common design" · "no difference between the mode of proof of conspiracy and that of any other offence" · mere LTTE association insufficient · "exceptional depravity… unparalleled act" · IEA s. 10 / BSA s. 8 in action.

## 7.5 Beyond the four — the 2023 attempt-unit trio (mini-cards)

From the 2023 DU course material, Unit 9 (Attempt – ss. 511, 307, 309 IPC) – names listed in the material; holdings verified from the reports RESEARCH · judgment reconstructed from the report

### A · Abhayanand Mishra v. State of Bihar, AIR 1961 SC 1698 (Raghubar Dayal & K. Subba Rao JJ.)

**Facts:** the accused applied for admission to the M.A. class of Patna University, submitting an application form supported by a certificate he knew was not a genuine B.A. degree certificate. Before admission could be granted the fraud was detected. **Charge:** attempt to cheat (s. 511 r/w s. 420 IPC). **Held:** the offence of attempt to cheat begins when, with intent to cheat, the accused does some act towards its commission — the submission of the form with the forged certificate was such an act; it was **not mere preparation**. The Court **disapproved the "last act" test** and gave the classic two-limb formulation adopted verbatim in *Mohd. Yakub*: intention + (having made preparations) an act towards commission, "need not be the penultimate act… but must be an act during the course of committing that offence". **Principle:** "attempt begins where preparation ends".

by Ankur R. Upadhyay

**B · Om Parkash v. State of Punjab, AIR 1961 SC 1782 : (1962) 2 SCR 254 (Raghubar Dayal & K. Subba Rao JJ.)**

**Facts:** Om Parkash's relations with his wife became strained; she left for her brother's house; on assurances of good treatment she returned; the husband then subjected her to **deliberate starvation over a period**, but she managed to escape and survive. Convicted under s. 307 IPC. **Held (appeal dismissed):** a person commits attempt to murder "when he has **intention to commit murder and in pursuance of that intention does an act towards its commission**, **irrespective of the fact whether that act is the penultimate act or not**". Starvation was a series of acts each of which was towards killing (the judgment adverts to the slow-poisoning analogy — "completion or attempted completion of one of a series of acts intended... to result in killing is an attempt"); that the wife had a chance to escape did not neutralise the attempt. **Principle:** the series-of-acts doctrine for s. 307/109; even a "slow" method is an attempt.

**C · Asgarali Pradhania v. Emperor, AIR 1933 Cal 893 (Calcutta High Court)**

**Facts:** the accused supplied to a pregnant woman a "red liquid" and a packet of powder, telling her they would produce miscarriage; she tasted the mixture, found it unbearably strong, spat it out, and screamed when he tried to force her; he fled. Prosecution: attempt to cause miscarriage (s. 511 r/w s. 312). Neither substance was capable of causing miscarriage. **Held (acquittal):** following *R. v. McPherson* (1857) — "an attempt must be to do that which, if successful, would amount to the felony charged" — where the means adopted are "intrinsically useless", the failure is due to the accused's own ignorance, not to circumstances independent of his volition; what he did was **only preparation**, no attempt. (Contrast the statutory illustrations to s. 511/62 — see the impossibility analysis at § 6.5.) **Principle:** the objective/impossibility line of attempt, and the preparation-attempt boundary on means.

**D · Malkiat Singh v. State of Punjab, (1969) 2 SCR 663 (extracted within Mohd. Yakub in the DU CM)**

**Facts:** a truck carrying paddy was stopped at **Samalkha**, 32 miles from Delhi and about **15 miles short of the Delhi-Punjab boundary**; prosecution for attempted illegal export of paddy. **Held:** no attempt — the accused "may have changed... mind at any place between Samalkha Barrier and the Delhi-Punjab boundary"; the test: whether "if the offender changes his mind and does not proceed further... the acts already done would be **completely harmless**". **Principle:** the harmless-acts test, as qualified (fact-specific, not a licence for "I was about to repent") by Chinnappa Reddy J. in *Yakub*.

**Fig. 7 — Unit 3 case-law constellation**

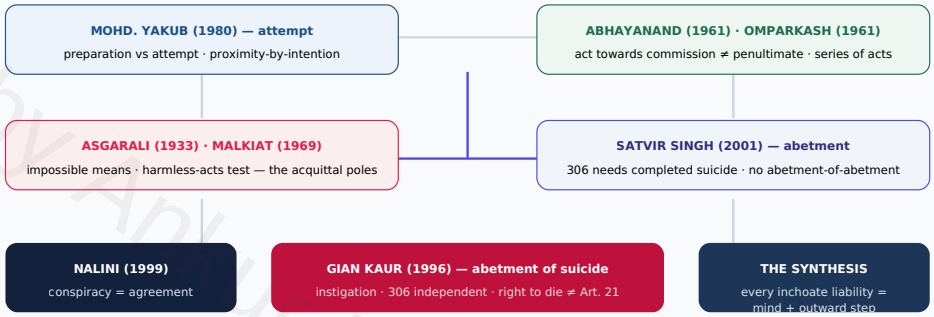



Fig. 7 — The constellation: two full CM judgments (Yakub, Gian Kaur), two research cards (Satvir, Nalini), and the 2023 trio — spanning attempt's two acquittal poles and abetment's suicide cluster.

EXAMINATION QUESTION BANK // DU LL.B. PAPER LB-104

## Previous Year Examination Questions (PYQs)

**Q.01** DU December 2014 Write a short note on "Impossible attempts".

◈ Refer website for detailed notes — makelaweasy.in ↗

**Q.02** DU LL.B. Exam Define abetment. Explain its three modes with illustrations, stating clearly whether the offence abetted must actually be committed.

**Q.03** DU LL.B. Exam K, a young working wife, was repeatedly taunted by her husband and in-laws for not bringing a scooter and a house in dowry. Her father paid them ₹ 50,000 to buy peace, but the harassment continued. One night, after an abusive episode over the food served to the husband, the three taunted K to "go and end your life before one of the trains that run nearby". The next dawn K lay on the track before an incoming train; she was maimed, but survived. Discuss the criminal liability of the husband and the in-laws.

**Q.04** DU LL.B. Exam "Abetment is complete although the act abetted is not committed, though the punishment varies with the event." Discuss with reference to the scheme of BNS §§ 45–60 / IPC §§ 107–120.

**Q.05** DU December 2014 A, B, C, D and E, all members of an unlawful assembly, decided to attack X, who was a member of a rival political party. Each was told the attack should not go so far as to cause death. All five went at night to attack X; but D and E, who had an old score to settle with X, secretly carried pistols and shot X dead while A, B, C attacked with hockey sticks. Can A, B, C, D and E be held guilty under s. 149 IPC? Explain.

**Q.06** DU LL.B. Exam "The gist of the offence of criminal conspiracy is an agreement to break the law." Discuss the essentials of criminal conspiracy (BNS § 61 / IPC § 120-A) and the special rule of evidence that governs its proof, with reference to State of Tamil Nadu v. Nalini.

**Q.07** DU LL.B. Exam A, B and C agree together to poison Z to death. In pursuance of the agreement B procures the poison and delivers it to A, and A administers it to Z, who dies. On a later occasion, by a slip of the hand, a dose intended for Z finds its way into Y's plate; Y falls gravely ill but recovers. C, after the first meeting, had second thoughts, told A and B that he wanted out, and attended nothing further before the poison was procured. Discuss the liability of A, B and C.

**Q.08** DU LL.B. Exam "An attempt begins where preparation ends." Discuss the tests evolved to distinguish preparation from attempt, and state the test finally adopted by the Supreme Court in State of Maharashtra v. Mohd. Yakub.

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UNIT 04 // DU LL.B. PAPER LB-104 (BNS & IPC) 3 Prescribed Cases · 8 Exam PYQs

# Joint & Group Liability — Common Intention, Unlawful Assembly & Common Object

## 1 The Joint/Group Liability Framework — Exceptions to Individual Liability

### 1.1 The principle and its exceptions

The bedrock rule of criminal law is **individual responsibility**: *actus non facit reum nisi mens sit rea* — and the act and the mind must be *yours*. Group crime breaks the rule's premise: when five men with one object attack, or three confederates execute one plan, the "criminal act" is a **single composite event produced by many hands**. Holding each actor only for his own blow would make conviction impossible whenever the evidence cannot attribute the fatal injury to a particular fist (the *Maina Singh* problem), and would under-price the social danger of concerted violence. Hence two statutory exceptions, both older than the Constitution and both carried into the BNS:

- **Common intention — s. 34 IPC / s. 3(5) BNS**: when a criminal act is done by several persons *in furtherance of the common intention of all*, each is liable for it *as if it were done by him alone*. The psychological glue: a shared, pre-conceived (or on-the-spot formed) design plus participation.
- **Common object — s. 149 IPC / s. 190 BNS**: if any member of an **unlawful assembly** commits an offence *in prosecution of the common object* of the assembly — or such as the members *knew to be likely* to be committed in its prosecution — **every member** of that assembly at the time is guilty of it. The structural glue: membership of a five-plus assembly with a proscribed object.

Both are, as Sethi J. put it in *Suresh* (quoting a century of authority), **rules of evidence and vicarious liability, not substantive offences**: a charge reads "302 r/w 34" or "302 r/w 149" (today, 103 r/w 3(5) or 103 r/w 190 BNS), never s. 34 or s. 149 alone.

### 1.2 The liability family — where this unit sits

| Provision | Operative fact | Time-focus | What must be proved |
|---|---|---|---|
| **Common intention** s. 34 / 3(5) | Shared mind + composite act | At the act | Criminal act done by several persons; common intention; each accused's participation (in some form) |
| **Common object** s. 149 / 190 | Membership of unlawful assembly | At the offence | Assembly of 5+ with a s. 189(1)/141 object; accused a member; offence by a member in prosecution of that object / known likely |
| **Criminal conspiracy** s. 120-B / 61 | The agreement | Before the act | Agreement (offence-object) — nothing more (Unit 3) |
| **Abetment** ss. 107–120 / 45–60 | Instigation / aid / conspiracy | Before or with the act | Abettor's own act of instigating/aiding; offence need not be committed (Unit 3) |
| **Cognate rules** ss. 35–38 / 3(6)–(9) | Knowledge-based joining; co-operation; divergent mens rea | At the act | Each joiner's own mens rea (35); intentional co-operation in any one of several acts (37); different offences possible from one act (38) |

**The bridge from Unit 3 :** conspiracy and abetment are *inchoate* — they punish the plot and the goad even if nothing happens. Sections 34 and 149 are their *consummated twins* — the crime has happened, and the question is only **who else** answers for it.

An exam answer that notes this symmetry ("agreement before, participation during, membership throughout") reads like a topper's script.

### 1.3 The spectrum of complicity

**Fig. 1 — The spectrum : from lone principal to distant instigator**

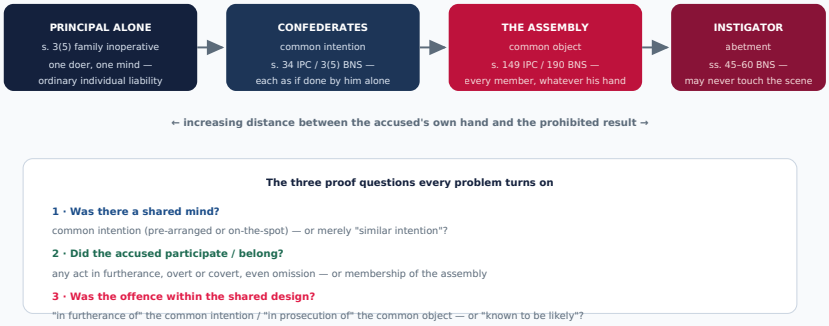



Fig. 1 — The complicity spectrum. Unit 4 owns the middle two blocks; the last belongs to Unit 3's abetment.

## 2 Common Intention — BNS § 3(5) ↔ IPC § 34

### 2.1 Text and essentials

**BNS § 3(5) / IPC § 34 — ACTS DONE BY SEVERAL PERSONS IN FURTHERANCE OF COMMON INTENTION**

When a criminal act is done by several persons in furtherance of the common intention of all, each of such persons is liable for that act in the same manner as if it were done by him alone.

> **IPC § 33 (for the record):** the word "act" denotes as well a **series of acts** as a single act; "omission" as well a series of omissions as a single omission — so the "criminal act" of s. 34 is the **whole composite transaction**, not any one blow.

| Essential | Explanation (authority in brackets) |
|---|---|
| **1. A criminal act** | One offence-result produced by a plurality — "a single act or the conglomeration of a series of acts" (*Suresh*, Thomas J.); includes illegal omissions (IPC 32 / BNS 3(4)) |
| **2. Done by several persons** | **Not by one person alone** — Thomas J.'s first "indispensable postulate"; the section is not a vicarious hook for a lone doer's secret well-wishers |
| **3. In furtherance of the common intention of all** | A **pre-arranged plan** (*Mahboob Shah*) — which may form "previously or in the course of occurrence and on the spur of the moment" (*Suresh*, Sethi J.), but must **precede** the act done (*Shatrughan Patar*) |
| **4. Participation of the accused** | Some act — overt or covert, even a facilitating omission — with nexus to the offence; presence alone may not suffice (*Suresh*, Thomas J.; *Pavitri Devi*) |
| **5. Proof by inference** | Direct proof of prior concert rare; common intention "a question of fact... proved mainly as a matter of inference from the circumstances" (*Suresh*); incriminating facts "must be incompatible with the innocence of the accused and incapable of explanation on any other reasonable hypothesis" (*Pandurang*) |

### 2.2 The cognate family — BNS § 3(6)–(9) / IPC §§ 35–38

Suresh calls these "one cognate group wherein different positions when more than one person [is] participating in the commission of one criminal act are adumbrated". The BNS preserves all four as General Explanations:

**BNS § 3(6) / IPC § 35 — ACT CRIMINAL ONLY BY KNOWLEDGE OR INTENTION**

Whenever an act, which is criminal only by reason of its being done with a criminal knowledge or intention, is done by several persons, each of such persons who joins in the act with such knowledge or intention is liable for the act in the same manner as if the act were done by him alone with that knowledge or intention.

> **Contrast with § 3(5)/34:** no common intention needed — it is enough that **each joiner has his own** criminal knowledge or intention (*Suresh*, ¶ 17: the section "differs from Section 34 only regarding one postulate").

**BNS § 3(7) / IPC § 36 — EFFECT CAUSED PARTLY BY ACT, PARTLY BY OMISSION**

Wherever the causing of a certain effect, or an attempt to cause that effect, by an act or by an omission, is an offence, it is to be understood that the causing of that effect partly by an act and partly by an omission is the same offence.

> *Illustration.* A intentionally causes Z's death, partly by illegally omitting to give Z food, and partly by beating Z. A has committed murder.

**BNS § 3(8) / IPC § 37 — CO-OPERATION BY DOING ONE OF SEVERAL ACTS**

When an offence is committed by means of several acts, whoever intentionally co-operates in the commission of that offence by doing any one of those acts, either singly or jointly with any other person, commits that offence.

> *Illustrations.* (a) A and B agree to murder Z by severally giving him small doses of poison; Z dies of the combined doses — both guilty of murder though their acts were separate. (b) A and B, joint jailors on alternate six-hour shifts, each illegally omit to feed Z; Z dies of hunger — both guilty of murder. (c) A starves Z and is dismissed; B, without collusion, continues the starvation — B guilty of murder, A only of **attempt** (no co-operation).

**BNS § 3(9) / IPC § 38 — PERSONS ENGAGED IN ONE CRIMINAL ACT MAY BE GUILTY OF DIFFERENT OFFENCES**

Where several persons are engaged or concerned in the commission of a criminal act, they may be guilty of different offences by means of that act.

> *Illustration.* A kills Z under grave provocation (would be culpable homicide not amounting to murder); B, without provocation and with ill-will, assists — B is guilty of **murder**, A only of culpable homicide.

**Why this family matters in the exam :** it shows that s. 34/3(5) is only one cell of a matrix. § 3(8)/37 punishes the *divider of labour*; § 3(6)/35 the *parallel knowledge*; § 3(9)/38 the *divergent blameworthiness* of confederates in one act. A "discuss s. 34" answer that opens with this map before diving into Suresh covers twice the syllabus in the same words.

## 2.3 Common intention ≠ similar intention

The distinction, pressed by the Privy Council in *Mahboob Shah* and repeatedly affirmed (including in *Suresh*, ¶¶ 53–54, and *Mohan Singh v. State of Punjab*, AIR 1963 SC 174), is exam-favourite territory:

| Axis | Common intention (s. 34/3(5)) | Similar / same intention |
|---|---|---|
| Origin | Pre-arranged plan — or consensus formed on the spot — **before** the act | Independent parallel resolutions, each formed in its own mind |
| Participation | All do the criminal act **together**, in furtherance of the shared design | Each may act separately, even simultaneously, without concert |
| Result | Each liable for the whole act as if done by him alone | Each liable only for **his own** act and its consequences (*Pandurang*: five simultaneous killers without pre-concert — each for his own blow) |
| Catch-line | "**Prior concert or on-the-spot consensus plus participation**" | "**Mere similarity of purpose is not a joint enterprise**" |

> *"The common intention implies a pre-arranged plan but in a given case it may develop at the spur of the moment in the course of the commission of the offence. Such common intention which developed at the spur of the moment is different from the similar intention actuated by a number of persons at the same time. The distinction between 'common intention' and 'similar intention' may be fine but is nonetheless a real one and if overlooked may lead to miscarriage of justice."*
>
> — Suresh v. State of U.P. (DU CM), ¶ 53

## 2.4 The overt-act debate — the two opinions in Suresh

Does an accused need to have done **an overt act** to be caught by s. 34/3(5)? The larger Bench in *Suresh* (three judges: Thomas J. for himself; Sethi J. concurring for himself and Agrawal J.) answered with a fascinating **double voice** — and the DU examiner's Dec 2014 question (Q7(a)) is drawn verbatim from this debate. Master both sides.

| | THOMAS J. (for the Court) | SETHI J. (concurring, with Agrawal J.) |
|---|---|---|
| **Overt act necessary?** | Participation is **a sine qua non**: the co-accused "should have done some act which has nexus with the offence. Such an act need not be very substantial... [it] need not necessarily be overt, even if it is only a covert act it is enough", and even an illegal omission will do — but **some act there must be** | "**No overt act is necessary**... it is not the requirement of law that he should have actually done something", if common intention is otherwise proved — the section "is a rule of evidence and does not create a substantive offence" |

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| | THOMAS J. (for the Court) | SETHI J. (concurring, with Agrawal J.) |
|---|---|---|
| **Presence?** | Presence *not* required — the binocular-and-mobile-phone instructor is liable; but **presence without more is not enough** (Pavitri Devi) | For violence cases the accused "must be **physically present at the actual commission**... for the purpose of facilitating" — presence facilitating the common design "is itself tantamount to actual participation"; "culpability under Section 34 cannot be excluded by mere distance from the scene" |
| **Key illustrations** | Weapon-supplier at a distance; watcher through binoculars directing by phone; the co-accused who deliberately refrains from shouting a warning (omission = act) | *Barendra Kumar Ghosh* — "they also serve who only stand and wait"; *Shreekantiah* — passive standing at the door with readiness to act; *Ramaswami* — guard-duty = participation |
| **What catches the non-participant?** | ss. 120-B (conspiracy) and 109 (abetment) — "if no such act is done... Section 34 cannot be invoked" | Same destination: s. 34 fails only where common intention is absent, not where the overt act is |
| **On the facts (Pavitri Devi)** | **Both agree**: mere presence on the road, uncorroborated by PWs 1–2, did not prove she shared the common intention — acquittal affirmed. But Sethi J. adds: *had* common intention been proved, "she could not have been acquitted... only on the ground that she had actually not done any overt act." | |

> *"Thus participation in the crime in furtherance of the common intention is a sine qua non [of] Section 34 IPC. Exhortation to other accused, even guarding the scene etc. would amount to participation... the accused who only keeps the common intention in his mind, but does not do any act at the scene, cannot be convicted with the aid of Section 34 IPC."*
>
> — Thomas J., Suresh v. State of U.P. (DU CM), ¶ 25

> *"It is now well settled that no overt act is necessary to attract the applicability of Section 34 for a co-accused who is otherwise proved to be sharing common intention with the ultimate act done by any one of the accused having such intention... The essence of Section 34 is simultaneous consensus of the minds of persons participating in the criminal action to bring about a particular result. Such consensus can be developed at the spot and thereby intended by all of them."*
>
> — Sethi J., Suresh v. State of U.P. (DU CM), ¶¶ 37, 52 (quoting Krishnan and Surender Chauhan)

**Reconciling the two for the exam :** Thomas J. asks for an **act with nexus** (which may be covert, minimal, or an omission) — a *participation* requirement; Sethi J. warns against demanding a formal **overt act** — because presence-in-furtherance and guard-duty are themselves participation. The synthesis: **participation in some form is indispensable; what is NOT indispensable is a discrete, overt blow.** That is exactly how the DU question ("establishment of an overt act is not a requirement of law...") should be answered — quote Krishnan v. State of Kerala, from which the question's wording is lifted.

## 2.5 The case-law ladder (all extracted within Suresh)

| Authority | One-line holding to quote |
|---|---|
| *Barendra Kumar Ghosh v. King-Emperor* (PC, AIR 1925 PC 1) | The postmaster's boy at the counter who kept watch while others murdered — "in crimes as in other things **'they also serve who only stand and wait'**"; s. 34 covers "separate acts, similar or diverse, by several persons... each person is liable for the result of them all"; presence of an **abettor** at the scene converts his abetment into the offence itself (then IPC 114, now BNS § 54 — evidentiary, not punitory) |
| *Mahboob Shah v. Emperor* (PC, AIR 1945 PC 118) | "Common intention... implies a **pre-arranged plan**... the criminal act was done in concert pursuant to the pre-arranged plan" — the 1870 amendment added "in furtherance of common intention of all" precisely to require this |
| *Pandurang v. State of Hyderabad* (AIR 1955 SC 216, 3-Judge) | Without pre-arrangement, simultaneous attackers each with his own intention to kill are each liable only for the injuries **he** caused — "none could be vicariously convicted for the act of any or the other" |
| *Shreekantiah Ramayya Munipalli v. State of Bombay* (AIR 1955 SC 287) | "Some sort of preliminary planning... may have taken place long beforehand", plus "physical presence at the scene... coupled with **actual participation which... can be of a passive character such as standing by a door**... and a readiness to play his part" |
| *Tukaram Ganapat Pandare v. State of Maharashtra* (AIR 1974 SC 514) | "**Criminal sharing, overt or covert, by active presence or by distant direction** making out a certain measure of jointness in the commission of the act is the essence of Section 34" |
| *Lalai v. State of U.P.* (AIR 1974 SC 2118) | The brother who "stood by with a spear... to overcome any outside interference" and fled with the killer — enough to prove common intention to murder |
| *Ramaswami Ayyangar v. State of Tamil Nadu* (AIR 1976 SC 2027) | Confederates' acts may differ; even one "only standing guard" is guilty — "the essence of Section 34 is **simultaneous consensus of the minds**"; but in violence cases physical presence at the commission to facilitate is essential |
| *Rambilas Singh v. State of Bihar* (AIR 1989 SC 1593) | "It is not necessary to prove that each and every one of them had indulged in overt acts. Even so, there must be material to show that the overt act or acts of one or more of the accused was or were done in furtherance of the common intention of all" |

| Authority | One-line holding to quote |
|---|---|
| *State of U.P. v. Iftikhar Khan* (1973) 1 SCC 512 | Four men walking in a body (two with pistols, two with lathis), firing, fleeing together, offering no explanation — inference of prior concert; the lathi-holders too were part of the criminal act |
| *Surender Chauhan v. State of M.P.* (2000) 4 SCC 110 | Two factors only: **(i) common intention + (ii) participation**. "If a common intention is proved but no overt act is attributed to the individual accused, Section 34 will be attracted... but if participation... is proved and a common intention is absent, Section 34 cannot be invoked." |

### 2.6 Common intention — decision flowchart

**Fig. 2 — Analysing a common-intention problem (BNS § 3(5) / IPC § 34)**

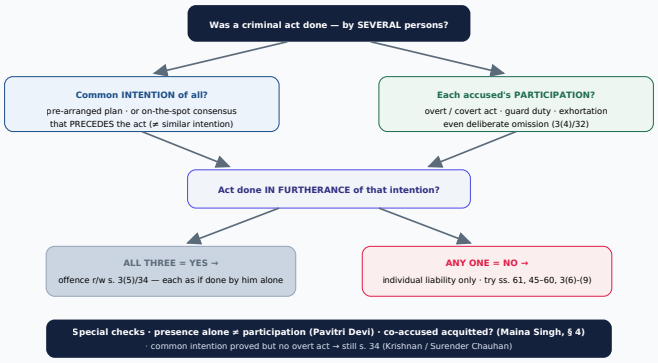



Fig. 2 — The three-gate test: several-doers, shared mind that precedes the act, participation of the accused.

## 3 Unlawful Assembly & Common Object — BNS §§ 189–191 ↔ IPC §§ 141–149

### 3.1 The unlawful assembly — BNS § 189(1) / IPC § 141

**BNS § 189(1) / IPC § 141 — UNLAWFUL ASSEMBLY**

An assembly of **five or more persons** is designated an "unlawful assembly", if the common object of the persons composing that assembly is —

(a) to overawe by criminal force, or show of criminal force, the Central Government or any State Government or Parliament or the Legislature of any State, or any public servant in the exercise of the lawful power of such public servant; or

(b) to resist the execution of any law, or of any legal process; or

(c) to commit any mischief or criminal trespass, or other offence; or

(d) by means of criminal force, or show of criminal force, to any person, to take or obtain possession of any property, or to deprive any person of the enjoyment of a right of way, or of the use of water or other incorporeal right of which he is in possession or enjoyment, **or to enforce any right or supposed right**; or

(e) by means of criminal force, or show of criminal force, to compel any person to do what he is not legally bound to do, or to omit to do what he is legally entitled to do.

**Explanation.** An assembly which was not unlawful when it assembled, **may subsequently become an unlawful assembly**.

**BNS changes:** the IPC's Firstly–Fifthly become clauses (a)–(e); clause (d) adds the words **"or to enforce any right or supposed right"** — squarely covering the Mizaji-type land-grab where the assembly claims a title; and the Explanation codifies the case-law that an assembly can *degenerate* into unlawfulness mid-course.

| Clause | Object | Illustration from the case law |
|---|---|---|
| **(a)** | Overawing Government / Parliament / Legislature / public servant by criminal force or show of it | March on a collectorate to terrorise the Collector into withdrawing an order |
| **(b)** | Resisting execution of any law or legal process | Crowd blocking a court bailiff executing a decree of possession |
| **(c)** | Committing mischief, criminal trespass "or other offence" | Assembly gathered to vandalise a shop — the "other offence" limb is the widest of all |
| **(d)** | Taking possession of property / depriving of right of way, water, incorporeal right — **or enforcing a right or supposed right** — by criminal force or show of it | **Mizaji itself**: five armed men going to "take forcible possession" of the Sukhna field they claimed to have purchased |
| **(e)** | Compelling a person to do what he is not legally bound to do, or omit what he is entitled to do | Assembly forcing a trader to close shop, or a witness to stay away from court |

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**"Common object" :** the object must be common to the assembly — but, per *Mizaji* (¶ 6), "it is not necessary that there should be a pre-concert in the sense of a meeting of the members of the unlawful assembly as to the common object; it is enough if it is **adopted by all the members and is shared by all of them**". The object is deduced from the members' weapons, words and conduct — the "go away otherwise they would be finished" testimony in *Mizaji* is the model.

## 3.2 Who is a member — and the punishment ladder

**BNS § 189(2) / IPC §§ 142-143 — MEMBER OF AN UNLAWFUL ASSEMBLY**

Whoever, **being aware of facts which render any assembly an unlawful assembly**, intentionally joins that assembly, or continues in it, is said to be a member of an unlawful assembly and such member shall be punished with imprisonment of either description for a term which may extend to **six months**, or with fine, or with both.

**The two mental elements:** (i) **awareness** of the facts that make the assembly unlawful (a person who unknowingly drifts into a crowd is not a member), and (ii) **intentional joining or continuing**. An innocent or accidental presence is protected — but the moment a member learns the object and stays, membership is complete.

| BNS | IPC | Offence | Punishment |
|---|---|---|---|
| **189(2)** | 142 + 143 | Being / continuing as member | 6 months / fine / both |
| **189(3)** | 145 | Continuing in assembly after lawful command to disperse | 2 years / fine / both |
| **189(4)** | 144 | Member armed with deadly weapon / anything likely to cause death | 2 years / fine / both |
| **189(5)** | 151 | Joining assembly of 5+ likely to disturb public peace, after command to disperse | 6 months / fine / both |
| **189(6)** | 150 | Hiring / engaging / employing / promoting or conniving at hiring of persons to join an unlawful assembly — punishable **as a member**, and for any offence committed by the hired person | As the offence |
| **189(7)** | 157 | Harbouring / receiving / assembling hired persons | 6 months / fine / both |
| **189(8)** | 158 | Being hired / engaged / offering to be hired, to do the acts of 189(1) | 6 months / fine / both |
| **189(9)** | 159 | Hired person going armed | 2 years / fine / both |
| **191(2)** | 147 | Rioting | 2 years / fine / both |
| **191(3)** | 148 | Rioting armed with deadly weapon | **5 years** / fine / both (enhanced from IPC's 3) |

**Fig. 3 — Analysing a common-object problem (BNS §§ 189-190 / IPC §§ 141, 149)**

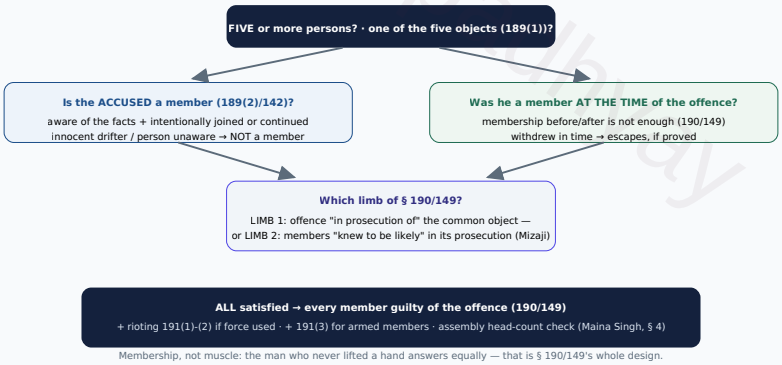



Fig. 3 — The assembly checklist: five-plus, an enumerated object, aware membership at the time, and the right limb.

## 3.3 Common object bites — BNS § 190 / IPC § 149 and the two limbs

**BNS § 190 / IPC § 149 — MEMBER OF UNLAWFUL ASSEMBLY GUILTY OF OFFENCE COMMITTED IN PROSECUTION OF COMMON OBJECT**

If an offence is committed by any member of an unlawful assembly **in prosecution of the common object** of that assembly, or **such as the members of that assembly knew to be likely** to be committed in prosecution of that object, every person who, at the time of the committing of that offence, is a member of the same assembly, is guilty of that offence.

The BNS reproduces IPC § 149 **verbatim** — the Mizaji doctrine of 1959 continues untouched under § 190.

by Ankur R. Upadhyay

| Element | Content (authority in brackets) |
|---|---|
| **1. Unlawful assembly** | The predicate — five-plus persons, an object within § 189(1)/(141) |
| **2. Offence by a member** | Any offence — from rioting to murder — committed by *any* member |
| **3. Limb 1 — "in prosecution of" the common object** | The offence is the direct outcome of, done in carrying forward, the common object — immediately connected with it and not independent of it (*Mizaji*) |
| **4. Limb 2 — "knew to be likely"** | Even if the offence is **not** in prosecution of the common object, membership attracts liability where all members **knew** it was likely to be committed in the prosecution of that object. "Knew" imports **actual knowledge** — the probabilities must be so high that knowledge may be presumed; a bare possibility is not enough (*Mizaji*) |
| **5. Membership at the time** | One must be a member **at the time of the offence** — the unexplained presence of an accused with the armed group at the scene of attack is enough (*Baladin v. State of U.P.*, AIR 1956 SC 181) |
| **6. "Common object" ≠ "common intention"** | Object may be formed on the spot and need only be **adopted and shared**; intention requires prior concert or on-the-spot consensus plus participation (*Mizaji* ¶ 6; contrast *Suresh*) |

> *"It is not necessary that there should be a pre-concert in the sense of a meeting of the members of the unlawful assembly as to the common object; it is enough if it is adopted by all the members and is shared by all of them... The expression 'in prosecution of the common object' [means] the offence committed was immediately connected with the common object of the assembly... and was not independent of it. The other part of the section is 'or such as the members of that assembly knew to be likely to be committed in prosecution of that object'... [T]he converse is however not true and it cannot be said that because the offence committed was not in prosecution of the common object, it would not fall under the second part."*
>
> — Mizaji & Anr. v. State of Uttar Pradesh (DU CM, 2023)

**Mizaji's illustrations of the second limb (memorise both) :** (1) **The abduction case** — an armed body assembles to take a woman by force; violence and murder **must be held to be likely** to be committed in prosecution of that object, so all are guilty of murder though the object was only abduction. (2) **The land-possession case** — an armed assembly to take forcible possession of land; shooting dead the resister is not *in prosecution of* possession-taking, but the members' **knowledge** that deadly violence was likely makes every member guilty of murder. Sabid Ali and Kapur C.J.'s spectrum make this the core of the exam answer on § 190/149.

**Chikkarange Gowda v. State of Mysore** (AIR 1956 SC 104, extracted in Mizaji): in a charge under § 149/190 the court must **specify which limb** is invoked — "if the latter part is invoked, the charge must also say that it was known to the members that the offence was likely to be committed in prosecution of the common object". The converse rule (per above) was settled against the Mysore view that once the offence is outside the first part the second part cannot apply. Cite this when discussing charge-framing defects on common object.

### 3.4 Rioting — BNS § 191 / IPC §§ 146–148

BNS § 191(1)-(3) / IPC §§ 146-148 — RIOTING AND ARMED RIOTING

**191(1)/146.** Whenever force or violence is used by an unlawful assembly, or by any member thereof, **in prosecution of the common object** of such assembly, every member of such assembly is guilty of the offence of rioting.

**191(2)/147.** Rioting — imprisonment of either description up to **2 years**, or fine, or both.

**191(3)/148.** Rioting, being armed with a deadly weapon or with anything which, used as a weapon of offence, is likely to cause death — imprisonment of either description up to **5 years**, or fine, or both.

> **BNS change:** armed rioting enhanced from 3 years (IPC 148) to **5 years** — Parliament's answer to lathi-and-pistol mob violence of the Mizaji pattern.

| Contrast | Rioting (191/146–148) | Affray (192/159–160) |
|---|---|---|
| Who | Unlawful assembly (5+) | Two or more persons |
| Where | Anywhere | Public place, causing disturbance of public peace |
| Core | Force/violence **in prosecution of common object** | Fighting in public |
| Punishment | 2 years; armed — 5 years | 3 months / fine (192/160) |

### 3.5 The two limbs, side by side

**Fig. 4 — The two limbs of BNS § 190 / IPC § 149 (Mizaji doctrine)**

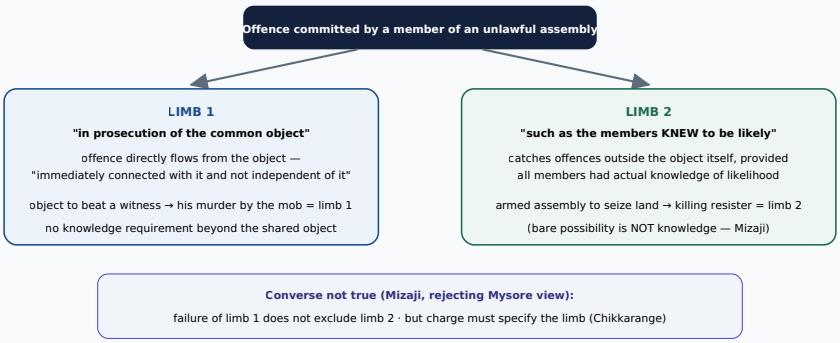



Fig. 4 — Limb 1 asks "was the offence the object's direct child?"; limb 2 asks "did every member know it was the object's likely by-product?"

## 4 When the Co-Accused Walk — the Maina Singh Doctrine

### 4.1 The problem stated

Sections 3(5)/34 and 190/149 are **relational** — they distribute one criminal act among several doers. What, then, when the courtroom empties? A, B, C, D and E are charged as the unlawful assembly; B–E are acquitted for doubt; can A still be convicted of murder *read with* § 190/149 — or with § 3(5)/34 — on the reasoning that "someone must have been with him"? *Maina Singh* answers with a rule of remarkable practicality, built on a ladder of authorities:

| Authority | Contribution to the doctrine |
|---|---|
| *R. v. Plummer* [(1902) 2 KB 339] | Three indicted for conspiracy; two acquitted — conviction of the third "would be clearly illegal": the verdict finding an agreement with persons found not to have agreed is repugnant (following *Harrison v. Errington*, 1627, where a riot verdict against one of three, two being not guilty, was held **void**) |
| *Topandas v. State of Bombay* (AIR 1956 SC 33) | Approves Plummer for India: of four named conspirators three acquitted → the fourth's conviction under 120-B "clearly illegal" |
| *Mohan Singh v. State of Punjab* (AIR 1963 SC 174) | The pivot: if charge and evidence are **confined to the named persons** and acquittals leave fewer than five, § 149 **cannot be invoked**; but if evidence shows unidentified others swelled the assembly, acquittal of the named few does not displace § 149 |
| *Krishna Govind Patil v. State of Maharashtra* (AIR 1963 SC 1413) | Upholds Mohan Singh: the unnamed-participant conclusion "is really based on evidence" — court witnesses, defence witnesses, circumstances may prove the extra bodies |
| *Ram Bilas Singh v. State of Bihar* [(1964) 1 SCR 775] | Restates the rule: named-five-only case → must definitely find five-plus named members, else no unlawful assembly; excess-of-five case → may convict even fewer than five |
| *Yashwant v. State of Maharashtra* [(1972) 3 SCC 639] | Distinguishes Krishna Govind Patil on identity of the axe-man; remaining accused convicted with s. 34 — not a departure |
| *Sukh Ram v. State of U.P.* [(1974) 3 SCC 656] | Where the prosecution never suggested known-plus-unknown participation, acquittal of co-accused was no bar to 302/34 against the appellant — confined to its facts |
| *Dharam Pal v. State of U.P.* [(1975) 2 SCC 596] | Evidence showed the attacking party "could not conceivably have been less than five" → 302/149 survived partial acquittals; but the Court itself conceded a definite head-count is "very difficult to reach where the allegation of participation is confined to five known persons" |
| ***Maina Singh* (1976)** | **Operative synthesis**: charge and evidence confined throughout to the five named accused, no evidence of any unnamed participant → acquittal of the four meant **neither § 149 nor § 34 was available**; the solitary convict answers only for "the offence, if any, which could be shown to have been committed by him without regard to the participation of others" |

> *"So when the other four co-accused have been given the benefit of doubt and have been acquitted, it would not be permissible to take the view that there must have been some other person along with the appellant Maina Singh in causing the injuries to the deceased. It was as such not permissible to invoke Section 149 or Section 34 I.P.C."*
>
> — Maina Singh v. State of Rajasthan (DU CM), ¶ 19

**The exception that saves § 149 :** acquittals destroy the assembly only when the prosecution case is a **closed list**. Where "evidence may nevertheless show that the unlawful assembly consisted of some other persons as well who were not identified and so not named" (*Mohan Singh*), the head-count of five is satisfied by the unidentified deadwood, and the convicted minority

can still be hung with § 190/149. The burden is on the evidence, not on judicial speculation — "it was also possible that someone else might have been with him" is precisely the kind of non-categorical finding Maina Singh rejects.

**Why murder fell to grievous hurt :** once 302/34 fell, Dr Shanker Lal's testimony became decisive — the injuries ascribed to Maina Singh (gunshot + blunt) were collectively but not **individually** sufficient in the ordinary course of nature to cause death, and the possibly-fatal sharp-weapon injury (No. 12) could not be imputed to him. Conviction altered to **IPC 326 / BNS § 118(2)** (voluntarily causing grievous hurt by dangerous weapons or means) — 10 years' RI. A perfect illustration that constructive liability is not a cosmetic label: it decides whether a man hangs or serves a decade.

**Fig. 5 — Acquittal of co-accused: the head-count audit (Maina Singh)**

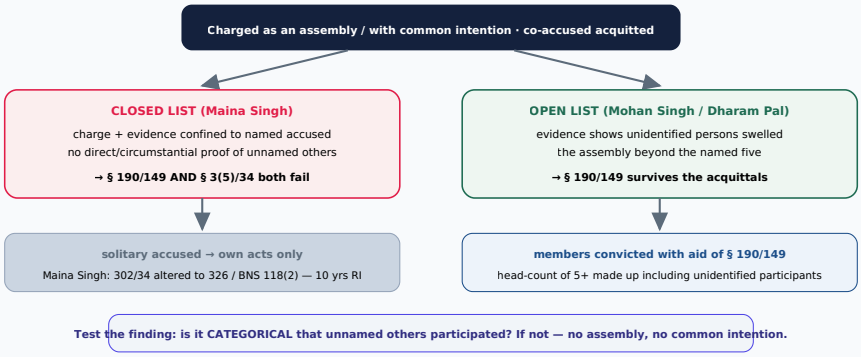



Fig. 5 — The acquittal audit: whose exit destroys the five, and whose does not.

## 5 Case Laws — DU Case Material, in Full Detail

### 5.1 Suresh & Anr. v. State of Uttar Pradesh

(2001) 3 SCC 673 — Three-Judge Bench (Thomas J.; Sethi J. concurring, with Agrawal J.) DU CASE MATERIAL

DU LLB CRIMINAL LAW-II · CRIME-4 CM 2025 · UNIT 4

#### Facts

Land-hunger between brothers. **A-1 Suresh** claimed a strip of land adjacent to the house of his brother **Ramesh**; Ramesh clung to it, and the animosity "eventually grew alarmingly wild". On the night of 5 October 1996, armed assailants entered Ramesh's house as the family slept and hacked the entire household to pieces — **six dead**: a one-year-old whose skull was cut in two, a three-year-old, nine-year-old Monisha, the mother Ganga Devi (six injuries, skull broken to pieces), and Ramesh himself with four neck wounds "just short of decapitation". The **sole survivor** was seven-year-old **Jitendra (PW 3)**, who woke with his father's blood in his mouth, and told the trial court he saw his uncle Suresh and brother-in-law **A-2 Ramji** "acting like demons, cutting the sleeping children with axe and chopper", and his aunt — Suresh's wife and Ramji's sister — **A-3 Pavitri Devi** clutching his mother's hair and "yelling like a demoness in thirst for the blood of the entire family". PW 1 (Lalji, uncle) and PW 2 (Amar Singh, neighbour) corroborated the presence of the three — but attributed **no overt act to Pavitri Devi** beyond her presence on the road near the scene.

The Sessions Court convicted Suresh and Ramji of murder (302/34) and **sentenced them to death**, and convicted Pavitri Devi of murder with the aid of s. 34. The Allahabad High Court confirmed the death sentences but **acquitted Pavitri Devi**, accepting PW 3's testimony only so far as it was corroborated by PWs 1–2. All three outcomes reached the Supreme Court: the two condemned men's appeals, and the State's appeal against Pavitri Devi's acquittal. A two-Judge Bench, doubting "whether and to what extent" s. 34 could be invoked, referred the matter to a **larger Bench**.

#### Issues

- What is the true scope of s. 34 IPC (BNS § 3(5)): is an **overt act** by each accused necessary, or is **participation** enough — and can presence alone suffice?
- Is "common intention" different from "similar intention"? Can common intention form **on the spot**?
- Was Pavitri Devi's acquittal sustainable, given her admitted presence near the scene?
- (For the condemned:) did the case fall in the rarest-of-rare category?

#### Arguments

**For the appellants (K.B. Sinha, Senior Counsel):** on the evidence of PWs 1–2 he could not dent the murder case, so he concentrated on (i) Pavitri Devi — her acquittal was justified because the exaggerated version of PW 3 about her catching the mother's hair was unsupported by PWs 1–2, and mere presence at the scene cannot attract s. 34; and (ii) the death sentence — the case did not fall in the category compelling the extreme penalty.

**For the State:** the massacre was pre-planned butchery of a family over land — the worst of the rarest of rare cases; and Pavitri Devi's presence with the killers, her relationship to both, and her exhortation showed shared common intention; the High Court's acquittal should be reversed.

**Held — Thomas J. (for the Court)**

**(a) The anatomy of s. 34.** The section must be read with ss. 32–33 (acts include illegal omissions; an act is a series of acts): "one criminal act, composed of more than one act, can be committed by more than one person, and if such commission is in furtherance of the common intention of all of them, each would be liable". He recast a **caricature section** — "when a criminal act is done by *one* person in furtherance of the common intention of several persons…" — to show that s. 34 is **not** such a vicarious provision: "all the co-accused have also done something to constitute the commission of a criminal act". **Two indispensable postulates:** (1) the criminal act was done **not by one person**; (2) each individual act cumulatively resulting in the offence was done **in furtherance of the common intention of all**.

**(b) Participation is the sine qua non — but not presence.** The accused "should have done some act which has nexus with the offence. Such an act need not be very substantial" — guarding the scene suffices; the act "need not necessarily be overt, even if it is only a covert act it is enough"; even an illegal **omission** can qualify. **Physical presence is not even necessary**: the co-accused may "remain a little away and supply weapons… by catapulting them", or — the celebrated modern illustration — "oversee[] the actions from a distance through binoculars and give instructions to the other accused through mobile phones as to how effectively the common intention can be implemented". But **mere presence is not enough**: the participant who does nothing, "who only keeps the common intention in his mind", cannot be convicted with the aid of s. 34 — "such a person can be convicted only under Section 120-B or Section 109" (conspiracy or abetment).

**(c) The case-law ladder.** Thomas J. surveys the entire arc — **Barendra Kumar Ghosh** (the counter-boy: "they also serve who only stand and wait"; "Section 34 deals with the doing of separate acts, similar or diverse, by several persons"; the abettor's presence converts abetment into the offence — s. 114 Evidence Act, "evidentiary, not punitory"); **Mahboob Shah** (common intention "implies a pre-arranged plan… done in concert pursuant to the pre-arranged plan"); **Pandurang** (the common intention must be incompatible with innocence and incapable of explanation on any other reasonable hypothesis; similar intention ≠ common intention); **Shreekantiah** (passive participation — "standing by a door… readiness to play his part"); **Tukaram** ("overt or covert, by active presence or by distant direction"); **Lalai** (spear-holder at the scene); **Ramaswami** (guard-duty; "simultaneous consensus of the minds"); **Rambilas**; **Iftikhar Khan** (four walking together — two with pistols, two with lathis — firing and fleeing: prior concert inferred); **Krishnan v. Kerala** ("establishment of an overt act is not a requirement of law to allow Section 34 to operate inasmuch as the section gets attracted when a criminal act is done by several persons in furtherance of common intention of all"); **Surender Chauhan** (the two-factor test: common intention + participation).

**(d) Application to Pavitri Devi.** PW 3's version that she caught her mother's hair was exaggerated and uncorroborated by PWs 1–2; when the witnesses arrived she was **standing on the road** while the men were busy inside. Mere presence, "in the absence of other evidence, direct or circumstantial", cannot make her guilty with the aid of s. 34. Acquittal affirmed.

**Held — Sethi J. (concurring, with Agrawal J.) — the doctrinal counterweight**

Sethi J. re-read the entire case law (with full extracts of **Barendra Kumar Ghosh**, **Mahboob Shah** and **R. v. Salmon** — three marksmen negligently firing at a target, one killing a boy: "the death resulted from the action of the three and they are all liable") and insisted: **(i) s. 34 is a rule of evidence, not a substantive offence** — it only lays down the principle of joint liability; **(ii) no overt act is necessary**: "it is not the requirement of law that he should have actually done something" if common intention is proved — for "the essence of Section 34 is simultaneous consensus of the minds… such consensus can be developed at the spot"; a pre-arranged plan is not confined to a prior meeting of minds — it "may develop in the course of the occurrence"; **(iii) in cases of violence physical presence at the actual commission** — for the purpose of facilitating the crime — "is itself tantamount to actual participation", and "culpability under Section 34 cannot be excluded by mere distance from the scene of occurrence"; **(iv) common intention is provable only by inference** from conduct, and incriminating facts must be incompatible with innocence; **(v) common ≠ similar intention** — "the distinction… may be fine but is nonetheless a real one and if overlooked may lead to miscarriage of justice". On Pavitri Devi he agreed on the facts (common intention not proved) — but with the crucial caveat: *had* the prosecution proved her common intention, "she could not have been acquitted of the charge… only on the ground that she had actually not done any overt act."

**Decision**

Appeals of Suresh and Ramji dismissed (death sentence maintained); State's appeal against Pavitri Devi's acquittal also dismissed. Both opinions together give the modern, complete statement of s. 34.

**Principles evolved**

- Participation in the criminal act — overt, covert, or by illegal omission — is the **sine qua non** of s. 34; presence at the scene is neither necessary nor sufficient.
- Common intention may be a pre-arranged plan **or** develop on the spot — but must precede the act done; similar intention is not common intention.
- S. 34 is a **rule of evidence**/rule of joint liability, not a substantive offence — it creates no separate punishment.
- The non-participant sharer of the design falls to be dealt with under **conspiracy (120-B / BNS § 61)** or **abetment (109 / BNS § 49)**, not s. 34.
- Mere presence of a person — especially one not implicated by reliable evidence — cannot sustain a s. 34 conviction (*Pavitri Devi*).

**DU-exam hooks**

"They also serve who only stand and wait" (Barendra Kumar Ghosh, via Suresh) · the binoculars-and-mobile-phone illustration · "participation in the crime in furtherance of the common intention is a sine qua non" · "no overt act is necessary… the essence of Section 34 is simultaneous consensus of the minds" · "the distinction between common and similar intention may be fine but is nonetheless a real one" · the Surender Chauhan two-factor test. This is the case to lead with in ANY common-intention answer.

## 5.2 Maina Singh v. State of Rajasthan

(1976) 2 SCC 827 : AIR 1976 SC 1084 — Shinghal J. DU CASE MATERIAL DU LLB CRIMINAL LAW-II · CRIME-4 CM 2025 · UNIT 4

### Facts

Smuggling suspicions poisoned the relations between **Maina Singh** and his neighbour **Amar Singh** of chak No. 77 GB, Ganganagar (Rajasthan), who — Maina suspected — was informing the police about his smuggling. On 29 June 1967, at sunset, Amar Singh, his son **Ajeet Singh (PW 2)** and the mason **Isar Ram (PW 3)** went to the *diggi* (pond) in murabba 35 for a bath. Maina Singh and his three sons Hardeep, Jeet and Puran, along with **Narain Singh**, arrived — Maina with a **12-bore gun**, Puran with a *takua*, the others with *gandasis* (sickles). Maina **fired at Amar Singh**, missed, but hit Ajeet in the legs (12 gunshot wounds in all); Ajeet dived into a dry watercourse and then ran six miles to lodge the report at 10 p.m. Amar Singh fled to the sugarcane field crying for help; the five followed; Maina fired again and Amar fell; the others gave *gandasi* blows and Maina struck a blow or two with the **butt of his gun, which broke** — its pieces were later recovered near the body, with the empty cartridges. Amar Singh died on the spot.

The charge named all five as the unlawful assembly (302/149). The Sessions Judge disbelieved the widow (PW 7, unmentioned in the FIR) and found the ocular testimony of PWs 2–3 **inconsistent as to which of the four associates did what**: "it cannot be ascertained which one of the accused was with him and it was also possible that someone else might have been with him" — so **Hardeep, Jeet, Puran and Narain were acquitted** on benefit of doubt. But PWs 2–3 were consistent against **Maina Singh**, and the cartridges, the recovered gun with its missing butt, the medical evidence and his absconding clinched his guilt: convicted of **302/34** (life) for Amar Singh's murder and **326** (3 years RI + ₹ 100) for the injuries to Ajeet. The Rajasthan High Court dismissed both appeals — the State's against the four acquittals and Maina's against his conviction.

### Issue

Can a single accused remain convicted of murder **read with s. 34** (or s. 149) when all the co-accused through whom the common intention/assembly was constituted have been **acquitted** — the trial court itself having found the participation of "someone else" unproved and unidentifiable?

### Arguments

**For Maina Singh (Harbans Singh):** he did not contest the evidence of his own violence; but with the four co-accused acquitted and the Sessions Judge himself holding that no conviction under 302/149 or 148 was possible, it "could not be held, in law, that they formed an unlawful assembly or that any offence was committed... in prosecution of the common object". *A fortiori*, the court could not treat the crime as done "in furtherance of the common intention of the other accused" when those accused were no other than the four who stood acquitted. All that was permissible was to convict him of what **he** did "in his individual capacity, without reference to the participation of any other person".

**For the State (S.M. Jain):** the acquittals rested only on benefit of doubt, and the trial court had recorded that "one or more of the accused persons or some other person might have participated in the crime along with Maina Singh" — that finding of possible companionship sufficed to sustain the common-intention conviction.

### Held — the doctrine and its ladder

Shinghal J. dismantled the State's argument by marching through the authorities (the full ladder is set out in § 4 above): **Plummer** and *Harrison v. Errington* (a verdict against one of three rioters, two being not guilty, is void) → **Topandas** (approving Plummer for conspiracy) → **Mohan Singh** (the closed-list rule: if charge and evidence are confined to the named accused and acquittals leave fewer than five, s. 149 cannot be invoked — but unidentified others may save it) → **Krishna Govind Patil** (the unnamed-participant conclusion "is really based on evidence") → **Ram Bilas Singh** (the definitive restatement) → **Yashwant** and **Sukh Ram** (distinguished, no departure) → **Dharam Pal** (evidence showed the attackers were five-plus; no conflict). Applying the rule: the charge throughout named only the five; the evidence ran no wider; there was no direct or circumstantial proof of any unnamed participant; the trial court's "someone else might have been with him" was **a suspicion, not a categorical finding**. Therefore, with the four acquitted, "it was as such not permissible to invoke Section 149 or Section 34 I.P.C."

**Consequence on sentence:** Dr Shanker Lal (PW 5) testified that the injuries attributed to Maina (gunshot and blunt-weapon) were collectively — but not individually — sufficient in the ordinary course of nature to cause death; the possibly fatal sharp-weapon injury (No. 12, frontal-bone fracture) could not be imputed to him. So murder fell; but injury No. 26 (gunshot) was grievous → **conviction altered to s. 326 IPC** (voluntarily causing grievous hurt by dangerous means — now BNS § 118(2)) with **10 years' rigorous imprisonment**; his separate 326 conviction for Ajeet's injuries (3 years RI) was already unchallenged and stood.

### Principles evolved

- Where the charge and the evidence are confined to named co-accused and those co-accused are acquitted, **neither s. 149/190 nor s. 34/3(5) is available** against the survivor.
- The court may not speculate an unnamed companion into existence — only **evidence** (court witnesses, defence witnesses, circumstances) can show the assembly numbered five-plus including unidentified persons (*Mohan Singh*/*Krishna Govind Patil*).
- The solitary convicted accused answers only for the offence **proved against him individually** — and the individual proof must satisfy the offence's own ingredients (here: no individually fatal injury → 326, not 302).

**DU-exam hooks**

"It was as such not permissible to invoke Section 149 or Section 34" · the closed-list vs open-list distinction · the Plummer–Topandas–Mohan Singh–Ram Bilas Singh chain · "someone else might have been with him" is not evidence. Pair it with *Suresh*: Suresh decides who shares liability when all are guilty; Maina Singh decides what remains when all but one go free.

## 5.3 Mizaji & Anr. v. State of Uttar Pradesh

1959 Supp (1) SCR 940 : AIR 1959 SC 572 — Kapur J. (with Bose and Sinha JJ.) DU CASE MATERIAL (CM 2023)

DU LLB CRIMINAL LAW-II · UNIT 8 (2023 CM) / UNIT 4

### Facts

A land-grab that turned lethal. Field No. 1096, the **Sukhna field**, stood recorded in the revenue papers in the cultivating possession of **Rameshwar** (the deceased) and four others (Ram Sarup, Jailal, Sita Ram, Saddon). On 18 April 1957 the recorded tenant Banwari **sold the field to Tej Singh**, who applied for mutation; Rameshwar's party opposed it. At sunrise on 27 July 1957, five men — **Tej Singh and his son Mizaji, nephew Subedar, cousin Machal, and servant Maiku** — came to the field armed: Tej Singh with a **spear**, Mizaji with a **pistol concealed in the fold (phent) of his dhoti**, the rest with lathis, bringing a plough, patela and bullocks. Maiku began ploughing and overturning the standing jowar crop while Tej Singh stood guard with his spear. Bateshwar (PW 7) carried word to Ram Sarup, who came to the field with Rameshwar, Jailal and Israel — **unarmed**. Ram Sarup asked Tej Singh why he was damaging the field; Tej Singh replied he had purchased it and would do "what he was doing"; an altercation followed; the four cutters came up; and **on Tej Singh's instigation, Mizaji drew the pistol from his dhoti-fold and fired**, hitting Rameshwar, who died within half an hour. The accused fled; the FIR (7:30 a.m., Nawabgunj PS) named all five.

The Sessions Judge found the assembly's common object was "to take forcible possession of the field and to meet every eventuality even to the extent of causing death if they are interfered with", and convicted all five of **302 read with 149** (Mizaji — **death**; the rest — life), rioting, and armed rioting (148 for Tej Singh and Mizaji, 147 for the lathi-men). The Allahabad High Court confirmed, adding that even if the common object was only possession, "the accused fully knew, considering the nature of weapons with which they were armed", that murder was likely in its prosecution.

### Issues

- Was the assembly's common object confined to **taking forcible possession** — and if so, could the murder still be brought within s. 149?
- What do the two limbs of s. 149 — "in prosecution of the common object" and "such as the members knew to be likely" — each mean, and is the second limb narrower than the first?
- Did the "knowledge" limb require proof that every member actually knew a murder was likely?
- Was the death sentence appropriate for Mizaji, who fired at his father's instigation?

### Arguments

**For the appellants:** the common object, at highest, was forcible possession of the field — the murder of Rameshwar was neither the object nor "in prosecution of" it; s. 149's second limb could not stretch beyond the first (the submission drawn from the Mysore High Court's view in *Chikkarange Gowda*, that once the offence is outside the first part of s. 149 the second part cannot apply); at any rate "knowledge" of a likely murder could not be attributed to every member merely from their weapons; and the defence case was that no occurrence took place at all — Rameshwar was killed in a dacoity at Ram Sarup's house.

**For the State:** the party went armed — spear, hidden pistol, lathis — to enforce a "supposed right" by show of criminal force; they "went there fully prepared to meet any eventuality even to commit murder if it was necessary for the accomplishment of their common object"; considering their relationship (father, son, nephew, cousin, servant) it was impossible that the others did not know Mizaji carried a pistol; so every member either prosecuted the common object to its murderous end or knew murder likely in its prosecution.

### Held — Kapur J.

**(a) Common object needs no pre-concert:** "it is not necessary that there should be a pre-concert in the sense of a meeting of the members... it is enough if it is adopted by all the members and is shared by all of them" — object deduced from weapons, words and conduct.

**(b) The two limbs distinguished.** First limb: the offence must be "immediately connected with the common object of the assembly... and not independent of it". Second limb: catches offences outside the object — but only where "the probabilities were such that the knowledge of the likelihood of the commission of that offence can be attributed to the members of the assembly"; a bare possibility is not knowledge.

**(c) The converse rule — rejecting the Mysore view.** Relying on **Sabid Ali** (which had adopted the Federal Court's analysis in *Pancham v. Emperor* (1940 FCR 166) and *Mohan Singh v. Emperor*), the Court held "the converse is however not true": failure of the first limb does not exclude the second. *Chikkarange Gowda v. State of Mysore* was read as laying down only a **charge-framing rule** — the court must specify which limb is invoked and, for the second, that the likelihood was known to the members. Illustrations: an armed body assembled **to take a woman by force** — murder must be held likely; an armed assembly **to take forcible possession** — the shooting of a resister makes all members guilty under the second limb.

**(d) Application.** The High Court's concurrent finding — that the five went fully prepared for any eventuality and must be taken to have known murder was likely, given the hidden pistol and the family nexus — supported conviction under 302/149 for all. **(e) Sentence:** Mizaji's death sentence upheld — the extreme penalty was appropriate for a killing done in cold blood at a land

dispute; that he fired "at the instance of his father" Tej Singh was **no mitigation**. Convictions and sentences (death for Mizaji; life for the rest; 148/147 sentences) confirmed.

**Principles evolved**

- Common object may be **adopted on the spot** — no meeting or pre-concert needed (contrast common intention's consensus requirement).
- First limb of 149/190: offence **immediately connected** with the common object, not independent of it.
- Second limb: members' **actual knowledge of likelihood** — probabilities so high that knowledge can be attributed; bare possibility insufficient.
- The second limb is **not** confined to offences that would also satisfy the first — the converse proposition is false.
- Charge-framing discipline: specify the limb invoked (*Chikkarange* rule, approved).
- S. 149/190 liability extends to every member — **even the lathi-carriers** — once knowledge/assembly is proved; and "supposed right" enforcement by armed force is squarely within § 189(1)(d).

**DU-exam hooks**

The two illustrations (abduction-posse; land-possession-posse) · "immediately connected with the common object... and not independent of it" · "the converse is however not true" · pistol in the dhoti fold · "adopted by all the members and is shared by all of them". Lead with Mizaji in every § 190/149 answer — it remains the canonical two-limbs statement under the BNS because § 190 reproduces § 149 verbatim.

### 5.4 The three cases at a glance

**Fig. 6 — The Unit-4 constellation: how the three cases lock the provisions together**

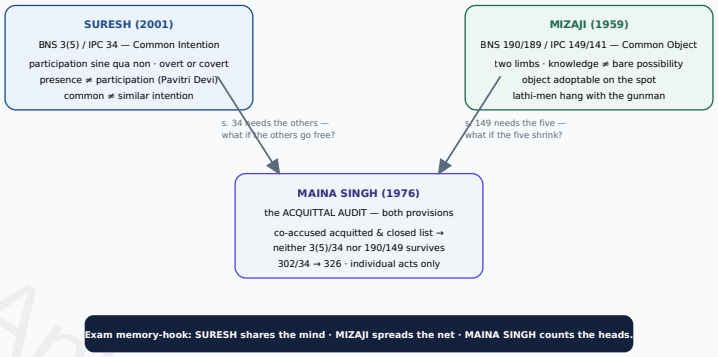



Fig. 6 — Three cases, one architecture: common intention (shared mind), common object (the five-plus net), acquittal audit (the head-count).

## 6 Distinctions Hub — Common Intention vs Common Object

### 6.1 BNS § 3(5) / IPC 34 vs BNS § 190 / IPC 149 — the mega table

| Axis | Common Intention — § 3(5) / 34 | Common Object — § 190 / 149 |
|---|---|---|
| Procedural home | Chapter III (General Explanations) — a **rule of evidence/joint liability**, not a substantive offence | Chapter VIII (Offences against Public Tranquillity) — tied to the **unlawful assembly** scheme |
| Minimum participants | "Several" — even **two** persons suffice | **Five or more** — the assembly head-count is jurisdictional (Maina Singh) |
| Predicate | None — any criminal act | An **unlawful assembly** under § 189(1)/141 (one of the five objects) |
| Mental element | Common **intention** — prior concert or on-the-spot consensus; "pre-arranged plan" (Mahboob Shah) | Common **object** — may be "adopted by all... and shared by all" without pre-concert (Mizaji) |
| When formed | Before the act (may develop on the spot but must **precede** participation) | Object may exist from the start **or be adopted mid-course**; the assembly itself "may subsequently become unlawful" (Explanation, § 189(1)) |
| Participation | **Sine qua non** — some act with nexus, overt or covert, even omission (Suresh); presence alone insufficient (Pavitri Devi) | **Membership suffices** — intentional joining with awareness (§ 189(2)/142); passive membership is enough, no individual act needed |
| Scope of liability | Each liable only for acts **in furtherance of the common intention**; a participant not sharing the intention is out | **Two limbs** — offences "in prosecution of" the object OR "such as the members knew to be likely" (Mizaji): can reach further than s. 34 |

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| Axis | Common Intention — § 3(5) / 34 | Common Object — § 190 / 149 |
|---|---|---|
| Divergent guilt | All stand in the same offence (subject to § 3(9)/38 — divergent mens rea → different offences) | Every member guilty of the same offence — the lathi-man with the gunman (Mizaji) |
| Evidence Act link | s. 10 IEA / BSA § 10 — acts in reference to "common intention" (Suresh ¶ 54 flags the contrast of wording) | No parallel evidentiary section; "common object" is proven through the assembly's conduct |
| Charge-framing | Sufficient to charge the offence "read with" s. 34/3(5) | Must specify the **limb** invoked — prosecution of the object, or knowledge of likelihood (Chikkarange, approved in Mizaji) |
| Fall-back position | When co-accused are acquitted, s. 34 collapses (Maina Singh) | Can survive partial acquittals if evidence proves five-plus participants including unidentified ones (Mohan Singh/Dharam Pal) |
| Classic authority | Suresh (2001) — with Barendra Kumar Ghosh, Mahboob Shah, Surender Chauhan | Mizaji (1959) — with Sabid Ali, Chikkarange, Baladin |

## 6.2 The composite charge — Chikkarange caution

**Charging discipline (Chikkarange Gowda v. State of Mysore, approved in Mizaji):** a § 190/149 charge must state which limb is relied on. And a composite charge — "302/34/149" in the alternative — is permissible (courts may find one constructive provision proved and not the other), but the **conviction** must rest on the limb actually proved: if five-plus membership fails, 149 must drop even if 34 survives against two (and vice versa — Maina Singh). In answers, always end the s. 34 vs 149 discussion with this procedural pivot: courts treat the two as complementary routes to constructive liability, each with its own collapse conditions.

## 6.3 The surrounding neighbourhood — quick contrasts

| Institution | Contrast with common intention / common object liability |
|---|---|
| Abetment (BNS § 45, 49 / IPC 107, 109) | Liability for **instigation, conspiracy or aid** — abettor punished *as if he committed* the offence; no requirement that he be present or that several persons act. Suresh: the non-participant mind-sharer falls here, not under s. 34. |
| Criminal conspiracy (BNS § 61 / IPC 120-B) | Mere **agreement** suffices for the conspiracy itself; no criminal act needed. Plummer/Topandas: acquittal of all alleged co-conspirators destroys the agreement-based conviction. |
| Constructive presence — BNS § 54 / IPC 114 | Abettor **present** when offence committed → deemed to have committed it — "evidentiary, not punitory" (Barendra Kumar Ghosh, extracted in Suresh). |
| Affray (BNS § 192 / IPC 159–160) | Two or more fighting in a **public place** — no assembly, no common object needed; punished lightly. |
| Common intention among conspirators — BSA § 10 / IEA § 10 | Things said/done "in reference to their common intention" are admissible against each — evidentiary corollary of the substantive rule (Suresh ¶ 54). |

EXAMINATION QUESTION BANK // DU LL.B. PAPER LB-104

## Previous Year Examination Questions (PYQs)

**Q.01** DU December 2014 "Establishment of an overt act is not a requirement of law to allow section 34 to operate in as much as the section gets attracted when a criminal act is done by common intention of all." Explain.

◈ Refer website for detailed notes — makelaweasy.in ↗

**Q.02** DU December 2014 A, B, C, D and E, all members of an unlawful assembly, decided to attack X, who was member of a rival political party. Each one of them was explained that the attack should not exceed to cause the death. While all of them went on one night to attack X, on reaching D and E found that Mr. X is the same person who has deprived them earlier of some rightful claim, hence they decided to take revenge from him (X). While A, B and C attacked X by using hockey sticks, D and E had hidden pistol, they directly shot X dead. Can A, B, C, D and E be held guilty under Section 149 of the Indian Penal Code? Explain your answer.

**Q.03** DU LL.B. Exam Distinguish between common intention (Section 34 IPC / Section 3(5) BNS) and common object (Section 149 IPC / Section 190 BNS). Can both provisions be invoked in the same case?

**Q.04** DU LL.B. Exam Define "unlawful assembly". What are its essential ingredients, and when may an assembly not initially unlawful become one?

**Q.05** DU LL.B. Exam "Common intention implies a pre-arranged plan, but in a given case it may develop at the spur of the moment." Explain with reference to case law, and distinguish common intention from similar intention.

**Q.06** DU LL.B. Exam Problem: A, B, C, D and E are charged with the murder of V, the charge alleging that they composed an unlawful assembly whose common object was to kill V, and alternatively that the murder was in furtherance of the common intention of all. The evidence names no participant other than the five. The court acquits D and E, giving them the benefit of doubt, and convicts A, B and C under s. 302 read with s. 149 and alternatively s. 34. Maintainable?

**Q.07** DU 2023 Explain the two limbs of Section 149 IPC / Section 190 BNS. Is the second limb narrower in scope than the first? Refer to Mizaji v. State of U.P.

**Q.08** DU LL.B. Exam Write a short note: Rioting and affray — with the BNS's punishment changes.

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UNIT 05 // DU LL.B. PAPER LB-104 (BNS & IPC) 7 Prescribed Cases · 8 Exam PYQs

# Offences against Women — Rape, Sexual Offences, Outraging Modesty & Matrimonial Cruelty

## 1 The Chapter-V Framework — Why the Code has a Special Chapter for Women

### 1.1 The architecture

BNS Chapter V carries the title **"Of Offences against Woman and Child"** and is organised in three blocks — exactly the three blocks of the DU syllabus:

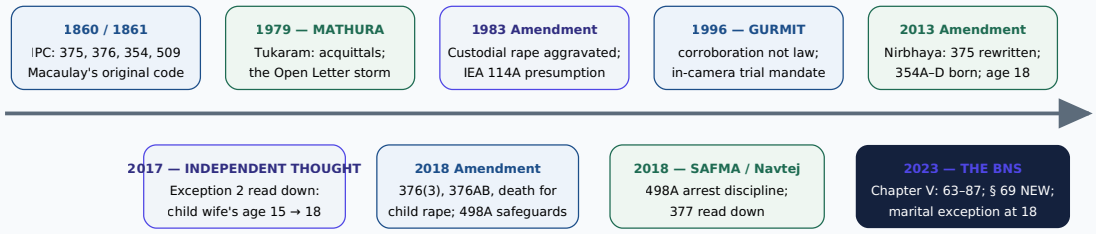
| Block | Sections (BNS) | The organising idea |
|---|---|---|
| **Sexual offences** | §§ 63–73 | The most serious violations of sexual autonomy — rape and its aggravated, custodial, gang and repeat forms (63–71), the below-rape offences (67–69), and identity protection (72–73) |
| **Criminal force & assault against women** | §§ 74–79 | Non-penetrative sexual violations — outraging modesty, sexual harassment, disrobing, voyeurism, stalking, insulting words/gestures |
| **Offences relating to marriage** | §§ 80–87 | Crimes rooted in the institution of marriage — dowry death, deceitful cohabitation, bigamy, fraudulent ceremony, enticing a wife, cruelty, kidnapping to compel marriage |

**The unifying principle :** these offences punish what the general hurt/defamation chapters cannot reach — the violation of **sexual autonomy and bodily integrity** (Gurmit Singh: rape "is often destructive of the whole personality of the victim… a murderer destroys the physical body; a rapist degrades the very soul"), of **dignity and modesty** (KPS Gill), and of the **security of the marital home** (SAFMA). The old IPC scattered them across Chapters XVI (hurt), XX (marriage) and XIV/XIX; the BNS gathers the women-specific ones into one chapter and, for the first time, gives the protection an explicit child dimension.

### 1.2 Four waves of reform — how we got here

The modern text is legible only as sedimented history. Every case in this unit is a station on this line:

**Fig. 1 — From Mathura to the Sanhita: the reform timeline**




Each case prescribed in DU's Unit 5 sits at a station: the law you study is the accumulation of these shocks.

Fig. 1 — Seven stations of reform: the IPC's sexual-offences provisions are the least "colonial" part of the Code — almost every operative word was written after 1983 in response to a case.

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### 1.3 The three doctrinal threads to hold

1. **Consent** — the axis of §§ 63–69: will vs consent vs passive submission; s. 90/§ 28's two-part structure; the false-promise problem (Tukaram → Gurmit Singh → Chhoteylal → Deepak Gulati).
2. **Modesty** — the axis of §§ 74–79: an elastic, fact-driven concept that the courts refuse to freeze into definition (KPS Gill).
3. **Institutional protection** — the axis of §§ 80–87: marriage as a protected (and exploited) institution — dowry death's deemed causation, 498A's controversial breadth (SAFMA).

## 2 Rape — Definition and Ingredients (BNS § 63 / IPC § 375)

### 2.1 The text

**BNS § 63 / IPC § 375 — RAPE**

A man is said to commit "rape" if he —

(a) penetrates his penis, to any extent, into the vagina, mouth, urethra or anus of a woman or makes her to do so with him or any other person; or

(b) inserts, to any extent, any object or a part of the body, not being the penis, into the vagina, the urethra or anus of a woman or makes her to do so with him or any other person; or

(c) manipulates any part of the body of a woman so as to cause penetration into the vagina, urethra, anus or any part of body of such woman or makes her to do so with him or any other person; or

(d) applies his mouth to the vagina, anus, urethra of a woman or makes her to do so with him or any other person,

under the circumstances falling under any of the following **seven descriptions**:

(i) **against her will**;

(ii) **without her consent**;

(iii) with her consent, when her consent has been obtained by putting her or any person in whom she is interested, in **fear of death or of hurt**;

(iv) with her consent, when the man knows that he is not her husband and that her consent is given because she believes that he is **another man to whom she is or believes herself to be lawfully married**;

(v) with her consent, when, at the time of giving such consent, by reason of **unsoundness of mind or intoxication** or the administration by him personally or through another of any stupefying or unwholesome substance, she is unable to understand the nature and consequences of that to which she gives consent;

(vi) with or without her consent, when she is **under eighteen years of age**;

(vii) when she is **unable to communicate consent**.

**Explanation 1.** "Vagina" shall also include *labia majora*.

**Explanation 2. Consent means an unequivocal voluntary agreement** when the woman by words, gestures or any form of verbal or non-verbal communication, communicates willingness to participate in the specific sexual act: *Provided that a woman who does not physically resist to the act of penetration shall not by the reason only of that fact, be regarded as consenting to the sexual activity.*

**Exception 1.** A medical procedure or intervention shall not constitute rape.

**Exception 2.** Sexual intercourse or sexual acts by a man with his own wife, the wife not being under **eighteen years** of age, is not rape.

> **Evolution:** Macaulay's 1860 text spoke only of penile-vaginal penetration ("Explanation: penetration is sufficient"); the **2013 Amendment** (post-Nirbhaya) expanded to the four acts and added the seventh circumstance; the **age in clause (vi)** rose from 16 to 18 (2013) and Exception 2's age from **15 to 18** (2017 reading-down in *Independent Thought*, now codified in the BNS). The pre-2013 six-description version, quoted in extenso in *Chhoteylal*, remains exam-relevant for understanding what changed.

### 2.2 Ingredients unpacked

| Ingredient | Content (authority in brackets) |
|---|---|
| **1. Only a man** | The offender under §§ 63–71 must be a man; the victim, a woman. (A woman can be prosecuted for abetment — e.g., Nushi-type guarding facts.) |
| **2. One of the four acts** | Penetration "to any extent" suffices — the 1860 "penetration is sufficient" Explanation survives in the words "to any extent"; acts (b)–(d) are the 2013 expansion (digital rape, object rape, oral rape). "Makes her to do so" catches forced mutual acts (Gurmit Singh's guards-outside facts show the classic act (a) case). |
| **3. One of the seven circumstances** | The prosecution must prove one of (i)–(vii). (i) and (ii) are the battlegrounds of the consent doctrine (§ 6); (vi) is strict-liability as to age — "with or without her consent" — so consent of a 17-year-old is no answer (Chhoteylal: where the girl is under 16, "the question of age... would pale into insignificance" beside the consent inquiry); (vii) protects the unconscious/disabled victim. |

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| Ingredient | Content (authority in brackets) |
|---|---|
| **4. Consent vitiated how?** | Circumstances (iii)–(v) codify s. 90/§ 28: fear-induced, mistaken-identity, and incapacity-based consent are no consent. The false-promise-of-marriage cases litigate whether misconception of fact under (v)+s. 90 is made out (Deepak Gulati). |

## 2.3 The consent backdrop — s. 90 IPC / § 28 BNS

**BNS § 28 / IPC § 90 — CONSENT KNOWN TO BE GIVEN UNDER FEAR OR MISCONCEPTION**

A consent is not such a consent as is intended by any section of this Sanhita, — (a) if the consent is given by a person under fear of injury, or under a misconception of fact, **and if the person doing the act knows, or has reason to believe, that the consent was given in consequence of such fear or misconception**; or (b) if the consent is given by a person who, from unsoundness of mind or intoxication, is unable to understand the nature and consequence of that to which he gives his consent; or (c) unless the contrary appears from the context, if the consent is given by a person who is under twelve years of age.

> **Deelip Singh's two-part reading** (quoted in Deepak Gulati): "The factors set out in the first part of Section 90 are from the point of view of the victim. The second part... enacts the corresponding provision from the point of view of the accused... The requirements of both the parts should be cumulatively satisfied." Both the woman's misconception AND the man's knowledge/reason-to-belief of it must be proved.

**The two consent definitions, reconciled :** s. 90/§ 28 tells you when consent is **vitiated** (fear, misconception, incapacity, minority — from both parties' perspectives); Explanation 2 to § 63 tells you what positive consent **is** ("unequivocal voluntary agreement... willingness to participate in the specific sexual act") and settles that **non-resistance is not consent**. Exam formula: "consent = voluntary participation of a capable mind, communicated by word/gesture; submission is not consent; and the proviso buries the 'she didn't scream' defence."

## 2.4 Exception 2 — the marital rape exception

Exception 2 says a husband's intercourse with his own wife (she being above the threshold age) is not rape. In the IPC the threshold stood at **15** — with the grotesque result that a husband could have non-consensual intercourse with a 16-year-old "wife" while the same act with any other 16-year-old was rape twice over (clause sixthly, then under-16). **Independent Thought v. Union of India** (2017) read the exception down to 18 for girl wives, and the BNS codifies: "the wife not being under **eighteen** years of age." The adult-woman marital rape exception survives — the Court expressly left "the wider issue of marital rape of women 18+" open — and remains the most debated lacuna in Indian criminal law (full treatment in the case card, § 7.6).

| Marriage-related rape situations | Legal position |
|---|---|
| Wife under 18 (child wife) | **Rape** — Exception 2 read down (Independent Thought); BNS: not rape only if wife not under 18. Also aggravated penetrative sexual assault under POCSO s. 5. |
| Wife 18+, living together | **Not rape** (Exception 2) — the surviving marital exemption; other provisions (§§ 85–86 cruelty, 74 assault) may still apply |
| Wife living separately (decree or otherwise) | Intercourse without consent = **§ 67 / 376B**: 2–7 years — "rape-lite" for separated wives |
| Husband knows he is not her husband (fraudulent identity) | Circumstance (iv): she believes him to be her lawfully wedded husband — **rape** |
| Deceitful marriage rites → cohabitation | No rape, but **§ 81 / 493** (up to 10 years) — "every man who by deceit causes any woman who is not lawfully married to him to believe that she is lawfully married to him..." |

## 2.5 The rape-analysis flowchart

**Fig. 2 — Analysing a rape problem (BNS § 63 / IPC § 375)**

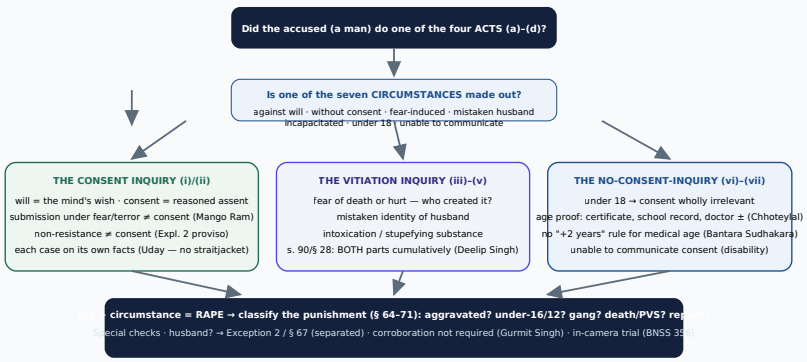



Fig. 2 — The three lanes of the seven circumstances: consent inquiry, vitiating circumstance, and the two where consent is legally irrelevant.

# 3 Punishments and Aggravated Forms (BNS §§ 64–73 / IPC §§ 376–376E, 228A)

## 3.1 The punishment ladder

| BNS | IPC | Form | Punishment |
|---|---|---|---|
| **64(1)** | 376(1) | Simple rape | RI, min **10 years** (IPC: 7) to life + fine |
| **64(2)** | 376(2) | Aggravated rape (13 listed situations, below) | RI 10 years to life (natural life) + fine |
| **65(1)** | 376(3) | Rape on woman under 16 | RI min 20 years to life (natural life) + fine to victim |
| **65(2)** | 376AB | Rape on woman under 12 | RI min 20 years to life (natural life) **or death** + fine to victim |
| **66** | 376A | Rape (64(1)/(2)) causing death or persistent vegetative state | RI min 20 years to life (natural life) or death |
| **67** | 376B | Husband's intercourse with separated wife without consent | 2–7 years + fine |
| **68** | 376C | Abuse of authority / fiduciary position to induce intercourse not amounting to rape | RI 5–10 years + fine |
| **69** | **NEW** | Deceitful means / false promise to marry without intention of fulfilling — intercourse not amounting to rape | Up to 10 years + fine |
| **70(1)** | 376D | Gang rape (group / common intention) — each deemed to commit rape | RI min 20 years to life (natural life) + fine to victim |
| **70(2)** | 376D (2018) | Gang rape of woman under 18 | Life (natural life) **or death** + fine to victim |
| **71** | 376E | Repeat offender (prior conviction under 64/65/66/70) | Life (natural life) **or death** |
| **72** | 228A | Printing/publishing rape victim's identity | Up to 2 years + fine (statutory exceptions) |
| **73** | 228A(2) | Publishing court-proceeding matter without permission | Up to 2 years + fine (HC/SC judgments exempt) |

**Reading the ladder :** three "death-penalty stations" (under-12 rape; rape causing death/PVS; gang rape under 18; repeat offenders) — all introduced by the 2018 Amendment and carried into the BNS. Note also the **fine-to-victim** provisos (medical expenses and rehabilitation) — the Delhi Domestic Working Women's Forum compensation idea (cited in Gurmit Singh) becoming statute.

## 3.2 The § 64(2) aggravators — Mathura's statutory children

| Clause | Aggravated rape when the offender… | Why it exists / case anchor |
|---|---|---|
| (a) | is a **police officer** committing rape within the police station limits / premises / on a woman in custody | **The Mathura clause** — custodial rape by police, the 1983 Amendment's direct response to Tukaram |
| (b) | is a **public servant** committing rape on a woman in his or a subordinate's custody | Custody abuse |
| (c) | is a member of the **armed forces** deployed in an area, committing rape there | Conflict-zone impunity |
| (d) | is on the management/staff of a **jail, remand home, place of custody, women's or children's institution**, raping an inmate | Institutional custody |
| (e) | is on the management/staff of a **hospital**, raping a woman in that hospital | Care-setting abuse |
| (f) | is a **relative, guardian or teacher** of, or in a position of **trust or authority** towards, the woman | POCSO's parallel logic for adults in trust relationships |
| (g) | commits rape during **communal or sectarian violence** | Situational impunity |
| (h) | commits rape knowing the woman is **pregnant** | 2013 addition |
| (i) | commits rape on a woman **incapable of giving consent** | Disability |

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| Clause | Aggravated rape when the offender... | Why it exists / case anchor |
|---|---|---|
| (j) | is in a **position of control or dominance** over the woman | Power asymmetry (2018) |
| (k) | commits rape on a woman with **mental or physical disability** | 2013 |
| (l) | while committing rape causes **grievous bodily harm / maims / disfigures / endangers life** | 2013 — the Nirbhaya clause |
| (m) | commits rape **repeatedly on the same woman** | 2018 — protects against serial abuse of one victim |

**Evidence hook :** where intercourse by the accused is proved in a prosecution under § 64(2) and the woman states in her evidence that she did not consent, **the court shall presume she did not consent** — IEA § 114A / BSA § 120. This presumption (1983, again post-Mathura) shifts the practical burden onto the accused in custodial/aggravated cases.

### 3.3 The below-rape trio — §§ 67, 68, 69

**BNS § 67 / IPC § 376B — SEXUAL INTERCOURSE BY HUSBAND UPON HIS WIFE DURING SEPARATION**

Whoever has sexual intercourse with his own wife, who is living separately, whether under a decree of separation or otherwise, without her consent, shall be punished with imprisonment of either description for a term which shall not be less than two years but which may extend to seven years, and shall also be liable to fine. ("Sexual intercourse" = all four acts of § 63.)

**BNS § 68 / IPC § 376C — SEXUAL INTERCOURSE BY A PERSON IN AUTHORITY**

Whoever, being (a) in a position of authority or in a **fiduciary relationship**, or (b) a public servant, or (c) superintendent or manager of a jail, remand home, place of custody, women's or children's institution, or (d) on the management or staff of a hospital, abuses such position to induce or seduce any woman either in his custody or under his charge or present in the premises to have sexual intercourse with him, such intercourse not amounting to rape, shall be punished with rigorous imprisonment of either description for a term which shall not be less than five years, but which may extend to ten years, and shall also be liable to fine.

> The offence catches **induced "consent"** — consent obtained by the abuse of position is no true consent, but the legislature grades it below rape.

**BNS § 69 — SEXUAL INTERCOURSE BY EMPLOYING DECEITFUL MEANS, ETC. (NEW OFFENCE)**

Whoever, by deceitful means or by making promise to marry to a woman without any intention of fulfilling the same, has sexual intercourse with her, such sexual intercourse not amounting to the offence of rape, shall be punished with imprisonment of either description for a term which may extend to ten years and shall also be liable to fine.

**Explanation.** "Deceitful means" shall include inducement for, or false promise of employment or promotion, or marrying by suppressing identity.

> **The Uday/Deepak Gulati line codified:** where the false promise does NOT vitiate consent under s. 90 (because the man did not know/have reason to believe the woman consented only because of the promise, or the promise was not false from inception), intercourse is not rape — but since 2024 it is a distinct offence under § 69 carrying up to ten years. In the IPC era, such cases fell to nothing (as in Deepak Gulati's acquittal) or to § 69's cousins (493 where a sham marriage was staged).

### 3.4 Identity protection — §§ 72–73 / s. 228A

Printing or publishing the name or identity-revealing matter of a rape victim (offences under §§ 64–71) is an offence (up to 2 years + fine), except for police-investigation purposes, with the victim's written authorisation, or (victim dead/child/unsound mind) the next of kin's authorisation to a recognised welfare institution. Publishing court-proceeding matter without the court's permission is separately punishable (§ 73) — though printing High Court/Supreme Court judgments is exempt. Gurmit Singh adds the judicial layer: courts should withhold the prosecutrix's name in orders — "the anonymity of the victim of the crime must be maintained as far as possible throughout."

## 4 Criminal Force and Assault against Women (BNS §§ 74–79 / IPC §§ 354, 354A–D, 509)

### 4.1 § 74 / s. 354 — outraging modesty

**BNS § 74 / IPC § 354 — ASSAULT OR CRIMINAL FORCE TO WOMAN WITH INTENT TO OUTRAGE HER MODESTY**

Whoever assaults or uses criminal force to any woman, **intending to outrage or knowing it to be likely that he will thereby outrage her modesty**, shall be punished with imprisonment of either description for a term which shall not be less than one year but which may extend to five years, and shall also be liable to fine.

by Ankur R. Upadhyay

**Ingredients:** (1) assault or criminal force (ss. 349–351 IPC / §§ 128–130 BNS — intention/knowledge to use force); (2) against a woman; (3) intent to outrage or knowledge of likelihood of outraging her modesty. Punishment: minimum 1 year — the 2013 addition that ended the era of token sentences.

**What is "modesty"?** The Code does not define it, and the courts have wisely refused a straitjacket. The classical statement is from *Major Singh v. State of Punjab* (AIR 1967 SC 63) — the case of the 7½-month-old girl-child whose vagina was pierced by a candle: the modus operandi of the accused indicated knowledge that he was outraging the girl's modesty. Hidayatullah J.'s formulation: the essence of a woman's modesty is her sex; the culpable intention is the violation of that modesty, and it can be outraged by touching her person — "from her very birth [a woman] possesses the modesty which is the attribute of her sex." The Punjab & Haryana High Court in the Rupan Deol Bajaj prosecution added that modesty is a virtue attaching to a woman as a consequence of her sex, irrespective of her age. *KPS Gill* applies the section without any definitional ceremony: the posterior slap in a public gathering was itself the proof.

| Conduct | How the courts treat it |
|---|---|
| Slapping/patting posterior, touching in public (KPS Gill) | § 74 — knowledge that the act would embarrass and humiliate before others = outraging modesty |
| Fondling private parts (Tukaram — Tukaram's own facts) | § 74 (the High Court's conviction of Tukaram, reversed on the girl's credibility, not on the law of modesty) |
| Tearing clothes, disrobing | § 76 / 354B (if intent to disrobe) or § 74 — the graver section takes over |
| Kissing/necking without consent (Deepak Gulati's facts, prosecuted as rape) | Where rape fails for want of vitiated consent, the act may still be § 74 (the Deepak Gulati Court noted the acts fell short of rape because of consent — implying the below-rape sections apply only where consent is absent) |
| Medical examination without consent (with exceptions) | Exception 1 to § 63 protects bona fide medical procedures; forcible sham examinations are § 74 |

## 4.2 The 2013 quartet — §§ 75–78 / 354A–D

### BNS § 75 / IPC § 354A — SEXUAL HARASSMENT (THE VISHAKA OFFENCES)

A man committing any of the following acts: (i) physical contact and advances involving **unwelcome and explicit sexual overtures**; or (ii) a demand or request for sexual favours; or (iii) showing pornography against the will of a woman; or (iv) making **sexually coloured remarks**, shall be guilty of the offence of sexual harassment. Punishment: (i)–(iii) — rigorous imprisonment up to 3 years, or fine, or both; (iv) — imprisonment up to 1 year, or fine, or both.

Born from the Supreme Court's *Vishaka v. State of Rajasthan* (1997) guidelines against workplace harassment, legislated in 2013. Note the two mental elements: "unwelcome" (no welcome by the woman) and "sexual" (the overtone). Repeated harassment at the workplace is also an offence under the POSH Act, 2013, with its ICC machinery.

### BNS § 76 / IPC § 354B — ASSAULT OR USE OF CRIMINAL FORCE TO WOMAN WITH INTENT TO DISROBE

Whoever assaults or uses criminal force to any woman or abets such act with the intention of **disrobing** or **compelling her to be naked**, shall be punished with imprisonment of either description for a term which shall not be less than three years but which may extend to seven years, and shall also be liable to fine. ("Compelling her to be naked" is the BNS's addition.)

### BNS § 77 / IPC § 354C — VOYEURISM

Whoever **watches, or captures the image of a woman** engaging in a private act in circumstances where she would usually have the expectation of not being observed either by the perpetrator or by any other person at the behest of the perpetrator, **or disseminates such image**, shall be punished on first conviction with 1–3 years + fine, and on a second or subsequent conviction with 3–7 years + fine.

**Explanation 1** — "private act": an act watched in a place reasonably expected to provide privacy, where the victim's genitals/posterior/breasts are exposed or covered only in underwear, or she is using a lavatory, or doing a sexual act not ordinarily done in public. **Explanation 2** — where the victim consents to capture but not to dissemination, dissemination is still voyeurism.

### BNS § 78 / IPC § 354D — STALKING

Any man who (i) follows a woman and contacts, or attempts to contact, such woman **to foster personal interaction repeatedly despite a clear indication of disinterest** by such woman; or (ii) monitors the use by a woman of the internet, e-mail or any other form of electronic communication, commits the offence of stalking. Punishment: first conviction — up to 3 years + fine; second or subsequent — up to 5 years + fine.

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**Statutory defences** (proviso): (i) pursued for preventing/detecting crime by a person entrusted with that responsibility by the State; (ii) pursued under any law or to comply with a legal condition; (iii) in the particular circumstances, the conduct was reasonable and justified.

**BNS § 79 / IPC § 509 — WORD, GESTURE OR ACT INTENDED TO INSULT THE MODESTY OF A WOMAN**

Whoever, intending to insult the modesty of any woman, utters any words, makes any sound or gesture, or exhibits any object in any form, intending that such word or sound shall be heard, or that such gesture or object shall be seen, by such woman, **or intrudes upon the privacy of such woman**, shall be punished with simple imprisonment for a term which may extend to three years, and also with fine.

No physical contact needed — the "verbal/gestural" cousin of § 74; "intrudes upon her privacy" was added in 2013 (and the maximum raised from one year to three). KPS Gill was convicted under BOTH 354 and 509 — the slap (force) plus the whole public demeaning of the officer (insult).

### 4.3 The modesty spectrum

**Fig. 3 — The ladder of non-penetrative violations (§§ 74-79)**

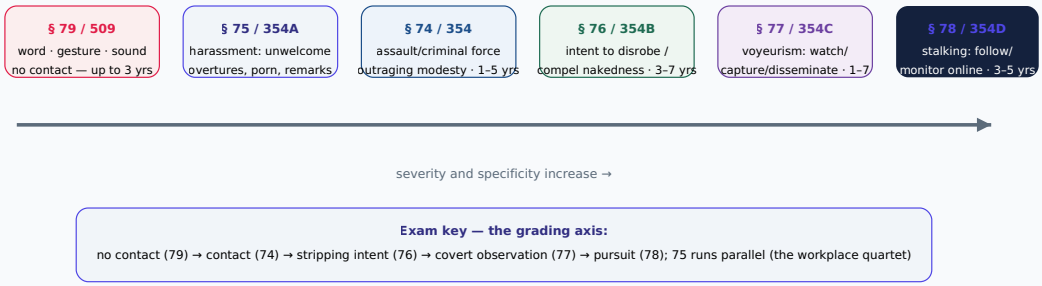



Fig. 3 — Six sections, one idea: the law grades non-penetrative sexual violations by intrusiveness, and the 2013 quartet modernised the ladder.

## 5 Offences relating to Marriage (BNS §§ 80–87 / IPC §§ 304B, 366, 493–498A)

### 5.1 § 80 / s. 304B — Dowry death

**BNS § 80 / IPC § 304B — DOWRY DEATH**

(1) Where the death of a woman is caused by any burns or bodily injury or occurs otherwise than under normal circumstances **within seven years of her marriage**, and it is shown that **soon before her death she was subjected to cruelty or harassment by her husband or any relative of her husband for, or in connection with, any demand for dowry**, such death shall be called "dowry death", and such husband or relative shall be deemed to have caused her death.

(2) Whoever commits dowry death shall be punished with imprisonment for a term which shall not be less than seven years but which may extend to imprisonment for life. ("Dowry" as defined in s. 2, Dowry Prohibition Act, 1961.)

**Ingredients:** (1) death by burns/bodily injury/abnormal circumstances; (2) within 7 years of marriage; (3) cruelty or harassment **soon before** death; (4) by husband or his relative; (5) for or in connection with dowry demand. The section then works its alchemy: the perpetrators are **deemed to have caused her death** — a rare statutory presumption of causation.

**The evidentiary twin :** IEA § 113B / BSA § 118 — where a woman dies unnaturally within 7 years of marriage and it is shown she was subjected to cruelty/harassment for dowry soon before death, **the court shall presume** that the husband/relative caused the dowry death. Charge under § 80 must specify the death as dowry death (the presumption then switches the burden). Read the trio together: § 80 (substantive) + § 118 BSA (presumption) + Dowry Prohibition Act 1961 ss. 2, 3, 4 (the demand itself punishable).

### 5.2 The marriage-integrity group — §§ 81–84

**BNS § 81 / IPC § 493 — COHABITATION CAUSED BY DECEITFUL INDUCEMENT OF BELIEF OF LAWFUL MARRIAGE**

Every man who by deceit causes any woman who is not lawfully married to him to believe that she is lawfully married to him and to cohabit or have sexual intercourse with him in that belief, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

The "sham marriage" offence — a ceremony defective in law (void marriage) staged with deceit. Distinguish from § 69 (deceit below rape, no marriage ceremony belief) and from § 63(iv) (mistaken identity of the man).

by Ankur R. Upadhyay

**BNS § 82 / IPC §§ 494-495 — BIGAMY**

(1) Whoever, having a husband or wife living, marries in any case in which such marriage is void by reason of its taking place during the life of such husband or wife, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine. **Exception:** void-declared marriages; and the seven-years-absent-and-unheard-of spouse, provided the subsequent spouse is informed of the facts.

(2) Whoever commits the offence under sub-section (1) **having concealed from the person with whom the subsequent marriage is contracted the fact of the former marriage**, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

> Prosecution requires a complaint by the aggrieved party (CrPC 198 — now BNSS § 222 complaint requirement). The offence protects the monogamous marriage — the second spouse's knowledge decides the grading.

**BNS § 83 / IPC § 496 — MARRIAGE CEREMONY FRAUDULENTLY GONE THROUGH WITHOUT LAWFUL MARRIAGE**

Whoever, dishonestly or with a fraudulent intention, goes through the ceremony of being married, knowing that he is not thereby lawfully married, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

> § 81 = deceit on the woman to make her believe the marriage is real; § 83 = fraudulent ceremony without even inducing her belief (both parties may know it is sham) — e.g., the staged marriage for immigration or to legitimise a live-in.

**BNS § 84 / IPC § 498 — ENTICING OR TAKING AWAY OR DETAINING WITH CRIMINAL INTENT A MARRIED WOMAN**

Whoever takes or entices away any woman who is and whom he knows or has reason to believe to be the wife of any other man, with intent that she may have illicit intercourse with any person, or conceals or detains with that intent any such woman, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

## 5.3 §§ 85–86 / s. 498A — Cruelty by husband or relatives

**BNS §§ 85-86 / IPC § 498A — HUSBAND OR RELATIVE OF HUSBAND SUBJECTING A WOMAN TO CRUELTY**

**§ 85.** Whoever, being the husband or the relative of the husband of a woman, subjects such woman to cruelty shall be punished with imprisonment for a term which may extend to three years and shall also be liable to fine.

**§ 86.** "Cruelty" means — (a) any **wilful conduct** which is of such a nature as is likely to drive the woman to commit suicide or to cause grave injury or danger to life, limb or health (whether mental or physical) of the woman; or (b) **harassment** of the woman where such harassment is with a view to coercing her or any person related to her to meet any unlawful demand for any property or valuable security or is on account of failure by her or any person related to her to meet such demand.

> Enacted 1983 (Act 46 of 1983) to reach the torture that fell between 304B's deaths and the hurt chapter's bruises. Cognizable, non-bailable, non-compoundable. Clause (a) is the **mental-cruelty limb**; clause (b) the **dowry-harassment limb**. The BNS splits the old Explanation into a standalone definitional section — a drafting clean-up, no substantive change.

**The 498A controversy (SAFMA's subject) :** the very stringency that makes the section work (cognizable + non-bailable + non-compoundable) made it, in the Supreme Court's words in *Arnesh Kumar*, a provision "used as weapons rather than shields by disgruntled wives" — NCRB 2012: 1,97,762 arrests in one year. SAFMA balances: the offence stays as the legislature made it; the safeguards lie in **arrest discipline** (BNSS § 35 / CrPC 41), not in disarming the section. Full analysis in the case card, § 7.7.

## 5.4 § 87 / s. 366 — Kidnapping/abducting a woman to compel marriage

**BNS § 87 / IPC § 366 — KIDNAPPING, ABDUCTING OR INDUCING WOMAN TO COMPEL HER MARRIAGE, ETC.**

Whoever kidnaps or abducts any woman with intent that she may be compelled, or knowing it to be likely that she will be compelled, to marry any person against her will, or in order that she may be forced or seduced to illicit intercourse, or knowing it to be likely that she will be forced or seduced to illicit intercourse, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine; and whoever, by means of criminal intimidation or of abuse of authority or any other method of compulsion, induces any woman to go from any place with intent that she may be, or knowing it to be likely that she will be, forced or seduced to illicit intercourse with another person shall also be punishable as aforesaid.

> The bridge offence between the kidnapping chapter and the women's chapter — Gurmit Singh's and Chhoteylal's charges under 366 show it riding along with § 63 in abduction-rape cases (the girl taken away "in order that she may be forced… to illicit intercourse").

by Ankur R. Upadhyay

### 5.5 The dowry-death web

**Fig. 4 — One death in the matrimonial home: which offence, and who proves what**

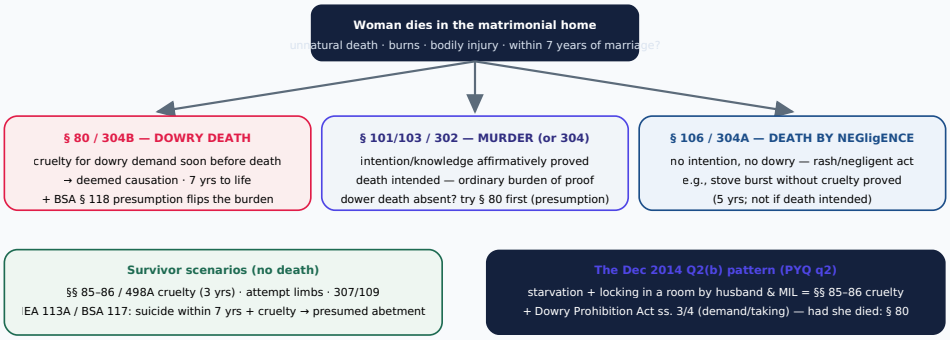



Fig. 4 — The prosecutor's fork at the matrimonial-home death: dowry death (presumption), murder (full proof), or negligence — with the cruelty survivors at the bottom.

## 6 The Consent Doctrine — the Unit's Cross-Cutting Synthesis

### 6.1 Will · consent · submission — the three registers

*Chhoteylal* gives the classic exposition, drawing on Jowitt's Dictionary and American authority: consent "is an act of reason, accompanied with deliberation, the mind weighing, as in a balance, the good or evil on either side... consent supposes three things — a physical power, a mental power, and a free and serious use of them." And: "consent of the will and submission under the influence of fear or terror cannot amount to real consent" (*Hallmark v. State*). The three registers:

| Register | Meaning | Authority |
|---|---|---|
| **Will** | The wish, desire, inclination — "purely and solely a mental process," ascertained only from what the woman said and did (*State v. Schwab*, quoted in Chhoteylal) | Circumstance (i) — "against her will": intercourse despite resistance and opposition |
| **Consent** | Reasoned, voluntary assent after exercise of intelligence and a real choice between resistance and assent; express or implied, by word, gesture or conduct | Circumstance (ii) — the Expl. 2 definition; *Mango Ram*: "Submission of the body under the fear of terror cannot be construed as a consented sexual act... after having fully exercised the choice between resistance and assent" |
| **Submission** | Passive, helpless surrender of the body induced by threats, fear or circumstance — no exercise of choice at all | Mathura's High Court ("mere passive or helpless surrender... cannot be equated with the desire or will") — right in principle, wrong in application; *Chhoteylal* restores it: "The circumstances made her submissive victim and that does not mean that she was inclined and willing" |

**The synthesis for problems :** a woman who **does not resist** may still not have consented — fear, isolation, captivity, the presence of an armed man (Chhoteylal's "any alarm at unknown place might have endangered her life") convert non-resistance into submission, and submission into circumstance (i) or (ii). The proviso to Expl. 2 makes this statutory: "a woman who does not physically resist... shall not by the reason only of that fact, be regarded as consenting."

### 6.2 The false-promise-of-marriage ladder

Where a woman submits to intercourse because the man promises to marry her, is her consent vitiated by "misconception of fact" (s. 90/§ 28)? The line of authority all DU's cases traverse:

| Station | Holding |
|---|---|
| *Uday v. State of Karnataka* (2003) 4 SCC 46 | College principal + 19-year-old student; promise to marry but caste obstructions; "there is no straitjacket formula for determining whether consent... is voluntary, or... given under a misconception of fact... the court must, in each case, consider the evidence and the surrounding circumstances." Consent not vitiated: she was conscious marriage might not happen (caste factor); no proof he never intended to marry |
| *Deelip Singh v. State of Bihar* (2005) | s. 90's two-part anatomy: the victim's misconception AND the accused's knowledge/reason-to-believe must both be shown — "the requirements of both the parts should be cumulatively satisfied" |
| *Yedla Srinivasa Rao v. State of A.P.* (2006) | Promise false from inception with the sole aim of seduction = misconception = rape |
| *Pradeep Kumar Verma v. State of Bihar* (2007) | Sex on the promise of marriage, promise never intended → consent a "positive contention" of misconception |

| Station | Holding |
|---|---|
| ***Deepak Gulati* (2013)** | "There is a distinction between the mere breach of a promise, and not fulfilling a false promise... An accused can be convicted for rape only if the court reaches a conclusion that the intention of the accused was mala fide, and that he had clandestine motives." Willing 19-year-old who elopes to marry, stays days, sets out again to marry → no rape (acquittal) |
| **BNS § 69 (2024)** | The intermediate zone codified: intercourse by "deceitful means or by making promise to marry... without any intention of fulfilling the same," not amounting to rape — up to 10 years. The legislature answers Deepak Gulati's gap: even where rape fails, the false-seducer is now punishable |

> *"Consent may be express or implied, coerced or misguided, obtained willingly or through deceit... There is a clear distinction between rape and consensual sex and in a case like this, the court must very carefully examine whether the accused had actually wanted to marry the victim, or had mala fide motives, and had made a false promise to this effect only to satisfy his lust... There may be a case where the prosecutrix agrees to have sexual intercourse on account of her love and passion for the accused, and not solely on account of misrepresentation made to her by the accused, or where an accused on account of circumstances which he could not have foreseen, or which were beyond his control, was unable to marry her, despite having every intention to do so. Such cases must be treated differently."*
>
> — Deepak Gulati v. State of Haryana (DU CM), ¶ 21

### 6.3 Custodial and coercive contexts

- **Mathura's lesson:** a police station at midnight is not a neutral site — the 1983 Amendment (custodial rape clauses in § 64(2)) and the IEA 114A / BSA 120 presumption (in aggravated prosecutions, where intercourse is proved and the woman says she did not consent, the court **shall presume** she did not) are the law's answer to Tukaram's "no fear of death or hurt" formalism.
- **Position-induced consent:** § 68/376C punishes intercourse procured by abuse of authority where it falls short of rape — the consent is treated as induced, not free.
- **Captivity:** Gurmit Singh (locked tube-well kotha, guards outside) and Chhoteylal (weeks in a rented room, armed captor) — consent obtained in such settings is presumptively no consent; the courts assess the woman's situation, not her abstractions ("the circumstances made her submissive victim").
- **Prior sexual history:** irrelevant. Gurmit Singh: even if the prosecutrix "has been promiscuous in her sexual behaviour earlier, she has a right to refuse to submit herself to sexual intercourse to anyone and everyone because she is not a vulnerable object or prey." IEA 53A / BSA 48 makes the point evidentiary.

### 6.4 The consent decision tree

**Fig. 5 — Was there consent? The problem-solver's tree**

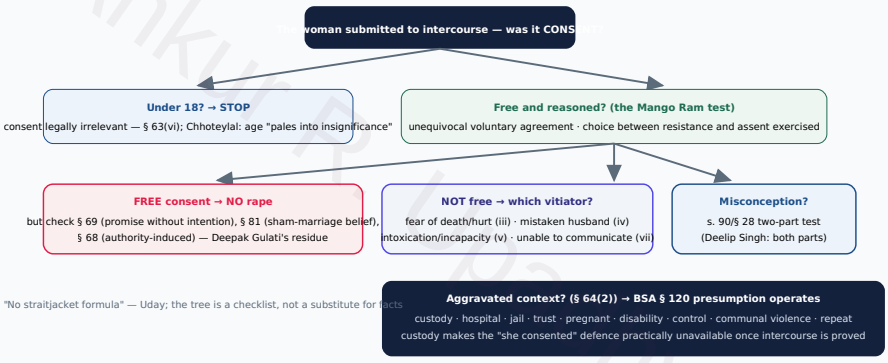



Fig. 5 — The consent tree: age first, freedom second, vitiator third, presumption last.

## 7 Case Laws — DU Case Material, in Full Detail

### 7.1 Tukaram & Anr. v. State of Maharashtra (the Mathura case)

AIR 1979 SC 185 — Koshal J. (with Kania and Tulzapurkar JJ. concurring)

DU CASE MATERIAL (CM 2023, Case 24 — with the Open Letter as prescribed reading)

#### Facts

**Mathura**, an orphan tribal girl aged 14–16 (doctor's estimate), lived with her brother **Gama**; both worked as labourers. Through her visits to the house of **Nushi**, Mathura had come to know and fall in love with Nushi's nephew **Ashok**; the two "decided to become husband and wife". On 26 March 1972, Gama lodged a report at **Desai Gunj police station** alleging Mathura had been kidnapped by Nushi, her husband and Ashok. Head Constable Baburao recorded the lovers' statements at about 10:30 p.m. and left for his evening meal. As Mathura, her brother, Nushi and Ashok were leaving, the two appellants — **Tukaram, Head Constable**, and **Ganpat, Constable** — asked Mathura to wait and told the others to go. What followed: Ganpat took Mathura into the rear latrine, "loosened her underwear, lit a torch and stared at her private parts", then dragged her to the chhapri (back verandah), felled her and "raped her in spite of protests and stiff resistance". He left; Tukaram, "seated on a cot nearby", came,

fondled her private parts, and "wanted to rape her but was unable to do so for the reason he was in a highly intoxicated condition". Outside, the companions grew suspicious at the lights going off and the door being bolted; a crowd gathered; Mathura emerged and told Nushi and Gama that Ganpat had raped her. Medical examination the next evening: **no injuries on her person**; hymen revealed **old ruptures**; vagina admitted two fingers easily; no matting of pubic hair; **no semen on vaginal smears or pubic hair — but semen detected on her clothes and on Ganpat's pyjama**.

### Course below

**Sessions Judge (acquittal):** age not proved below 16; Mathura was "a shocking liar" whose testimony "is riddled with falsehood and improbabilities"; the farthest one could go was that she had intercourse "in all probability" with accused 2 — but "there is a world of difference between sexual intercourse and rape"; she was habituated to intercourse; the story was invented to "sound virtuous" before her lover Ashok. **Bombay High Court (Nagpur Bench):** reversed — the girl was in a police station at the dead of night, in the clutches of strangers in authority; the initiative must have come from the accused; "mere passive or helpless surrender of the body and its resignation to the other's lust induced by threats or fear cannot be equated with the desire or will"; conviction: Ganpat — 376 (5 years RI), Tukaram — 354 (1 year RI).

### Issues

- Does intercourse with a girl in police custody, where she offers no resistance, amount to rape — is "passive submission" consent?
- Must the fear that vitiates consent under clause Thirdly be fear specifically of death or hurt?
- Is the absence of bodily injuries and of semen in the smears inconsistent with rape?

### Held (Koshal J.) — the acquittals

The Court **allowed the appeal**. (1) No marks of injury — "their absence goes a long way to indicate that the alleged intercourse was a peaceful affair"; the cries and alarm were "a tissue of lies". (2) Clause Thirdly requires the consent be obtained by putting her in **fear of death or of hurt**; the High Court had made no finding of any such fear; circumstantial evidence must "lead to no reasonable inference other than that of guilt" — here it "actually derogates" from the HC's inference. (3) The girl was leaving the police station **with her brother, aunt and lover at the entrance** when Ganpat caught her — "her natural impulse would be to shake off the hand that caught her and cry out for help"; her failure to do so made the consent not one "which could be brushed aside as passive submission". (4) The onus never shifts — every ingredient of s. 375 had to be proved by the prosecution. (5) As to Tukaram: the girl had gone back at trial on her FIR allegations against him (the torch, the latrine) — "where is the assurance that her word is truthful?"; his conviction under 354 was also set aside.

### The aftermath — why this case is a monument

The judgment triggered the most famous academic protest in Indian legal history: **"An Open Letter to the Chief Justice of India"** ((1979) 4 SCC (J) 17 — Upendra Baxi, Lotika Sarkar, Raghunath Kelkar, Vasudha Dhagamwar), accusing the Court of treating Mathura's consent as presumed because she was "habituated to sex", and exposing the law's blindness to custodial coercion. The consequences, in law: (1) the **Criminal Law (Amendment) Act, 1983** — custodial rape made an aggravated offence with a floor sentence (now § 64(2)(a)–(b)); consent-questioning curtailed by the **IEA s. 114A** presumption (now BSA § 120) where intercourse is proved in the aggravated cases and the woman says she did not consent; (2) s. 376(2) extended to public servants, superintendents of institutions, hospital staff; (3) in-camera trial provisions (s. 327(2)–(3) CrPC, now BNSS § 356) — Gurmit Singh's charter. In legal culture: the death of the "she was habituated, so she consented" inference — expressly buried in Gurmit Singh.

### Principles evolved (and un-evolved)

- **As decided:** passive submission is not per se absence of consent; clause Thirdly demands proof of fear of death or hurt; the onus of proving every ingredient of rape lies always on the prosecution.
- **As superseded:** the "no injuries = peaceful affair" and "natural impulse to resist" reasonings are no longer good law — Expl. 2's proviso (non-resistance ≠ consent), the custody aggravators, and the BSA § 120 presumption have reversed the practical burden in custodial cases.
- **Historical principle:** rape law in India is caselaw-plus-statute responding to scandal — Mathura (1983), Vishaka (1997 guidelines → 354A in 2013), Nirbhaya (2013 amendment).

### DU-exam hooks

"Mere passive or helpless surrender of the body… cannot be equated with the desire or will" (the High Court, quoted in the CM text — and vindicated in principle by Chhoteylal/Gurmit Singh) · "a world of difference between sexual intercourse and rape" (Sessions) · the Open Letter · the 1983 Amendment trio. Use Mathura as the opening or closing frame of every custodial-rape answer.

## 7.2 Kanwar Pal Singh Gill v. State (Admn., U.T. Chandigarh) — the Rupan Deol Bajaj case

(2005) 6 SCC 161 — K.G. Balakrishnan J. DU CASE MATERIAL DU LL.B. · CRIME CM 2025 · UNIT 5 / CM 2023 CASE 23

### Facts

On 18 July 1988, a senior IAS officer (Financial Commissioner & Secretary, Punjab) hosted a dinner at his Sector 16, Chandigarh residence for IAS/IPS officers, advocates (including the Advocate General) and journalists. The ladies sat in a semi-circle slightly away from the male guests. The accused **K.P.S. Gill, Director General of Police, Punjab** — then at the height of his anti-militancy fame — came and occupied a vacant chair among the ladies, called **Rupan Deol Bajaj**, a senior IAS officer, to sit

beside him, and pulled her chair close; embarrassed, she pulled it back. About ten minutes later he asked her to come along with him; she strongly objected; he blocked her way — and then **"slapped [her] on the posterior... in the presence of other guests"**. She complained at once to the host ("his behaviour was obnoxious... he was not fit for decent company"), to the Joint Director IB present there, and to her husband; the next day she recounted the incident to the **Chief Secretary, the Advisor to the Governor, the Secretary to the Governor and the Governor himself**; on 29 July 1988 she gave a written police complaint — no action followed. After about four months, her husband filed a complaint before the CJM, Chandigarh under ss. 341, 342, 352, **354**, 355 and **509** IPC. The High Court quashed the complaint under s. 482 CrPC (now BNSS § 528); the Supreme Court set that aside and directed cognizance under **354 and 509**. After full trial: conviction — 3 months + ₹500 (354), 2 months + ₹200 (509). The Sessions Judge confirmed but released him on probation, enhancing the fine to ₹50,000; the High Court maintained the conviction and enhanced the fine to **₹2,00,000 payable to the prosecutrix** + ₹25,000 costs.

**Issues**

- Does a single slap on the posterior, delivered publicly, amount to "assault or criminal force... with intent to outrage her modesty" (354/§ 74) and an insult to modesty (509/§ 79)?
- Do the delay in the complaint, the interestedness of witnesses and the absence of some witnesses discredit the prosecutrix?
- Was probation (in lieu of custody) sustainable for a senior police officer convicted of outraging a colleague's modesty?

**Arguments**

**For Gill:** no such incident occurred; the case was a **conspiracy to malign him** — his anti-militant operations had earned him enemies among top bureaucrats; the complaint came three months late; the witnesses were interested; the most relevant witnesses were not examined.

**For Rupan Deol Bajaj (Indira Jaising, senior counsel):** crimes against women are on the rise; a top police officer's conviction calls for exemplary, not probationary, treatment.

**Held**

**(1) Conviction affirmed.** The delay was fully explained — she had complained **immediately and up the entire hierarchy of the State administration**, from the host to the Governor, before being driven to the criminal court; there was "nothing to suggest... she hatched a conspiracy to malign the accused". His conduct "was not consistent with the high standard expected of a top-ranking police officer". The finding that he "gently slapped on the posterior of the prosecutrix in the presence of some guests... would certainly constitute the ingredient of Section 354" — criminal force with intent to outrage, and **knowledge**: "he knew fully well that gently slapping on the posterior... in the presence of other guests would embarrass her... Knowledge can be attributed to the accused that he was fully aware that touching the body of the prosecutrix at that place and time would amount to outraging her modesty." The clinching common-sense test: **"Had it been without any culpable intention on the part of the accused, nobody would have taken notice of the incident."** The prosecutrix's immediate hue and cry was "very much relevant". **(2) Probation maintained** — the incident was 1988; probation completed without default; "the various courts found him guilty... that by itself is setting a model for others and would enhance the faith in the judicial system". **(3) Compensation** — Rupan Deol Bajaj declined to receive the ₹2 lakh; the Court left it to the Chief Justice of Punjab & Haryana to direct it to a women's organization.

**Principles evolved**

- **Modesty is contextual, not sartorial:** the offence is complete on proof of criminal force + intent/knowledge to outrage modesty — however "gentle" the touch; the public setting aggravates the outrage (embarrassment before guests is part of the actus).
- **Immediate complaint chain cures delay:** complaints to the host, IB officer, Chief Secretary, Advisor, Governor — a documented contemporaneous trail beats the "3-month delay" argument.
- **Rank is no defence:** "the accused being a police officer of the highest rank should have been exceedingly careful" — the standard rises with office.
- **The reaction of the woman is relevant evidence** of the act's character (the hue and cry).

**DU-exam hooks**

"Had it been without any culpable intention... nobody would have taken notice of the incident" · the DGP at the dinner party — the perfect illustration for ANY § 74/354 problem · pair with *Chhoteylal* for the consent side and with Major Singh's "essence of her modesty is her sex" for the definition. Note also the case's modern significance: s. 354's then-maximum was two years; the 2013 Amendment (1–5 years, minimum one) is the legislature's answer to exactly this genre of token sentencing.

## 7.3 State of Punjab v. Gurmit Singh & Ors.

(1996) 2 SCC 384 — Dr. A.S. Anand J. DU CASE MATERIAL DU LL.B. · CRIME CM 2025 · UNIT 5 / CM 2023 CASE 25

**Facts**

The prosecutrix, a village girl **below 16** (X-class student at Government High School, Pakhowal), was abducted at 12:30 p.m. on 30 March 1984, a hundred *karmas* from her examination centre, by three young men in a blue Ambassador — **Gurmit Singh, Jagjit Singh @ Bawa and Ranjit Singh**: Ranjit caught her arm and pushed her in, Jagjit gagged her mouth, Gurmit **threatened to kill her if she raised alarm**. They drove her to the **tube-well kotha of Ranjit Singh**; the driver left. Gurmit forced her to drink liquor "misrepresenting to her that it was juice", removed her salwar and shirt, and raped her on a cot "while his companions guarded the kotha from outside"; she cried out in pain and was threatened into silence; then **Jagjit and Ranjit each raped her in turn**; all three subjected her to intercourse again during the night. At 6 a.m. she was dropped near the school; she **sat her**

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**Hygiene examination**, reached her village Nangal-Lalan at noon, and told her mother (PW 7). Her father (PW 6) consulted the **Sarpanch; a panchayat of the two villages** tried to settle the matter on 1 April; when it failed, the family set out for Police Station Raikot and met the police en route — statement Ex. PD, FIR registered. Medical examination (Dr Sukhwinder Kaur, PW 1, 2 April): **hymen lacerated with fine radiate tears, swollen and painful; pubic hair matted**; intercourse "one of the reasons" for the laceration; "possibility cannot be ruled out that [she] was not habitual to intercourse earlier". Chemical examiner: **semen on the vaginal-smear slides** (none on pubic hair/salwar). Charges: 363, 366, 368, 376 IPC. Defence: false implication — Jagjit blamed a hostile Sarpanch (his Canadian marriage); Gurmit alleged 7–8 years of civil litigation between the families and a beating exchanged with PW 6 on 1–2 April; Ranjit offered no reason.

### Course below

**Additional Sessions Judge: acquittal** — the girl could not tell an Ambassador from a Fiat or Master; no alarm at the bus adda; the IO's "pitiable negligence" in not tracing the car/driver; delay in FIR (panchayat consultations "rendered the matter doubtful"); medical evidence doubtful (the speculum admission = "the possibility that the prosecutrix was habituated... could not be ruled out"); no corroboration; enmity. He even held she "was fighting her imagination to rope in the accused" and was **"a girl of loose character"** who "wanted to dupe her parents". **High Court: conviction** — the Sessions Judge's approach "rebels against realism". In appeal to the Supreme Court.

### Issues

- Is the testimony of a rape prosecutrix enough to convict without corroboration?
- How are delay in FIR, absence of alarm, ignorance of the car's make, and the investigating officer's negligence to be treated?
- Can a girl's supposed sexual habituation be used to discredit her — or to found a "loose character" finding?
- What are the trial court's duties in conducting rape trials?

### Arguments

**For the accused (supporting acquittal):** the multiplicities of doubt — car's make, no alarm, delayed FIR after panchayat consultation, no corroboration, medical doubt, admitted enmity and cross-beatings between the families.

**For the State:** the trial court's reasons are stereotypes, not evidence; the girl's account is consistent and corroborated by the medical and chemical evidence; the panchayat route explains the FIR timing; a father would never stake an unmarried daughter's reputation on a false rape case.

### Held — Dr. Anand J. (the reform charter)

**(1) The trial court's findings "rebel against realism."** Whether a village girl knows Ambassador from Fiat is "wholly irrelevant"; she was **threatened with death if she raised alarm** — "to discredit the prosecutrix for not raising an alarm... is a travesty of justice"; the IO's negligence cannot be visited on her — "the prosecutrix had no control over the investigating agency". **(2) Delay natural and explained:** "in sexual offences delay in the lodging of the FIR can be due to variety of reasons particularly the reluctance of the prosecutrix or her family members... It is only after giving it a cool thought that a complaint of sexual offence is generally lodged"; the panchayat effort and the parents' consultation about "the reputation and future prospects of the marriage... of their daughter" are the natural conduct of a tradition-bound family. **(3) The corroboration rule:** "Seeking corroboration of her statement before relying upon the same as a rule in such cases amounts to adding insult to injury... Why should the evidence of a girl or a woman who complains of rape... be viewed with doubt, disbelief or suspicion?" Her evidence "stands almost on a par with the evidence of an injured witness and to an extent is even more reliable... a woman or a girl subjected to sexual assault is not an accomplice to the crime but is a victim of another person's lust... Corroboration... is not a requirement of law but a guidance of prudence under given circumstances... Courts cannot cling to a fossil formula." (adopting Chandraprakash Kewalchand Jain). **(4) The medical evidence** was positive — hymen lacerated, pubic hair matted, semen on the slides: the trial court's "habituated to intercourse" inference was drawn without any specific question put to the doctor and was "a wholly irresponsible finding". **(5) Enmity cuts both ways:** "enmity is a double-edged weapon, which may be used for false implication as well as to take revenge" — and "No father could stoop so low as to bring forth a false charge of rape on his unmarried minor daughter with a view to take revenge". **(6) The stigma ban:** "Even if the prosecutrix, in a given case, has been promiscuous in her sexual behaviour earlier, she has a right to refuse to submit herself to sexual intercourse to anyone and everyone because she is not a vulnerable object or prey... it is the accused and not the victim of sex crime who is on trial." **(7) Conviction restored** — all three: 376 (5 years RI + ₹5,000 each), 363 (3 years RI), concurrent — tempered by the 11-year lapse and their clean record since acquittal. **(8) The trial-conduct charter:** courts "must deal with such cases with utmost sensitivity"; must control cross-examination so it is not "a means of harassment or causing humiliation"; must not be "swayed by minor contradictions or insignificant discrepancies... not of a fatal nature"; and **must hold rape trials in camera as the rule** under s. 327(2)–(3) CrPC (now BNSS § 356) — "Trial of rape cases in camera should be the rule and an open trial... an exception"; consider women judges for such cases; withhold the victim's name in orders — "the anonymity of the victim... must be maintained as far as possible throughout."

> *"A murderer destroys the physical body of his victim; a rapist degrades the very soul of the helpless female... Rape is not merely a physical assault, it is often destructive of the whole personality of the victim."*
>
> — State of Punjab v. Gurmit Singh (DU CM), ¶ 20

### Principles evolved

- A prosecutrix is not an accomplice; her sole testimony, if it inspires confidence, sustains a conviction — corroboration is prudence, not law.
- Delayed FIR, no alarm, car-ignorance, IO negligence, and non-examination of witnesses are not ipso facto fatal; each must be tested against the girl's situation.

- Prior sexual behaviour/habituation is irrelevant to consent and can never support a "loose character" finding.
- Enmity is a double-edged weapon — it can as easily explain the crime as the false case.
- In-camera trial, controlled cross-examination, victim anonymity, sensitivity — the procedural charter (now BNSS § 356).

**DU-exam hooks**

"Adding insult to injury" · "not a vulnerable object or prey" · "fossil formula" · "a rapist degrades the very soul" · "enmity is a double-edged weapon". Gurmit Singh is THE answer-skeleton for any "corroboration in rape" or "evidentiary approach" question, and the authority of first resort for trial-conduct and in-camera trial points.

## 7.4 State of U.P. v. Chhoteylal

AIR 2011 SC 697 — Markandey Katju J. DU CASE MATERIAL DU LL.B. · CRIME CM 2025 · UNIT 5

**Facts**

On 19 September 1989, a young illiterate "rustic" woman (stated age 13; found 17½ by the trial court) went out to relieve herself in the evening in her village in Hardoi district, U.P. **Ram Kali (A-3, female)** followed her; on her return, near Vijai Bahadur's plot, **Chhoteylal (A-1)** and **Ramdas (A-2)** came from behind; **A-1 caught her, and when she raised alarm, showed her a firearm and gagged her mouth**. A-1 and A-2 took her to village Sahora (A-3 parting company), kept her overnight in the house of Girish and Saroj Pandit, and next day took her by bus to Shahajahanpur, where she was **kept in a rented room for a few weeks while A-1 repeatedly had forcible intercourse with her** — "whenever prosecutrix asked for return to her house, A-1 would gag her mouth and threaten her". Her brother Rampal complained to the SP Hardoi on 28 September; FIR 30 September; she was recovered on 13 October from the Shahabad–Pihani road near the Jalalpur culvert, medically examined, and her s. 164 statement recorded on 17 October. A-1 chargesheeted under 363, 366, 368, **376** (A-2 under the first three; A-3 under 363, 366).

**Course below**

**III Additional Sessions Judge, Hardoi:** A-3 acquitted; A-2 died (abatement); **A-1 convicted** under 363/366/368/376 — 7 years RI under 376 plus concurrent sentences, age found "about 17½". **Allahabad High Court (Lucknow Bench, 2003): acquittal** on three cryptic reasons — (1) the report was lodged **after ten days** with no explanation; (2) medical evidence put her at 17, "she could be even 19"; (3) **"no internal or external injury was found on her body and she was habitual to sexual intercourse"**. The Supreme Court: "We are indeed surprised by the casual approach... The judgment of the High Court is not only cryptic and perfunctory but it has also not taken into consideration the crucial evidence... On flimsy grounds, the accused convicted of a serious crime of kidnapping and rape has been acquitted."

**Issues**

- Is "habituated to sexual intercourse" + absence of injuries inconsistent with rape?
- Can the High Court add two years to the doctor's age estimate to defeat clause Sixthly?
- "Against her will" (clause First) vs "without her consent" (clause Secondly) — what is the difference, and which governs a 17-year-old captive?

**Held**

**(1) Age:** agreeing with the trial court — about 17½; "There is no such rule much less an absolute one that two years have to be added to the age determined by a doctor" (citing the 3-Judge Bench in *State of Karnataka v. Bantara Sudhakara*); *Mussauddin Ahmed* (best-evidence-withheld) inapplicable — the brother testified. Even so, clause Sixthly (under-16) was **not** attracted — so the case turned on clauses First/Secondly. **(2) Will vs consent** — the celebrated exposition: "The expressions 'against her will' and 'without her consent' may overlap sometimes but surely... have different connotation and dimension. The expression 'against her will' would ordinarily mean that the intercourse was done by a man with a woman despite her resistance and opposition. On the other hand, the expression 'without her consent' would comprehend an act of reason accompanied by deliberation." Consent (Jowitt) "supposes three things — a physical power, a mental power, and a free and serious use of them"; submission under fear or terror is not consent (*Hallmark*); and per *Mango Ram* (3-Judge): "Submission of the body under the fear of terror cannot be construed as a consented sexual act... after having fully exercised the choice between resistance and assent." **(3) The habituation myth rejected:** no injury + habituation proved nothing — the woman was a captive: "she had been kidnapped by two adult males, one of them wielded a fire-arm and threatened her... In the circumstances, it made sensible decision not to raise alarm. Any alarm at unknown place might have endangered her life... **The circumstances made her submissive victim and that does not mean that she was inclined and willing**... She had no free act of the mind during her stay with A-1 as she was under constant fear." **(4) Corroboration** — Gurmit Singh and Bharwada Bhoginbhai (the "lenses tinged with doubt, disbelief or suspicion" passage and the twelve reasons why Indian women rarely fabricate rape charges) applied: "an Indian woman traditionally will not concoct an untruthful story and bring charges of rape for the purpose of blackmail, hatred, spite or revenge. The stigma that attaches to the victim of rape in Indian society ordinarily rules out the leveling of false accusations." **(5) The contradictions** in her testimony were "minor" and natural for an illiterate rustic woman. **Result:** High Court reversed; conviction restored; the accused "shall now surrender within two months... to serve out the remaining sentence."

**Principles evolved**

- **Against her will ≠ without consent:** "will" is the mental wish evidenced by resistance; "consent" is the reasoned, deliberate act of a free mind — two distinct limbs of § 63/375, both satisfied by a captive's submission.
- **Submissive victim ≠ willing victim:** captivity, an armed captor, and unfamiliar surroundings explain the absence of alarm; non-resistance is the rational response, not proof of consent.

- **No "+2 years" medical-age rule** — the doctor's opinion stands unless displaced by real evidence (Bantara Sudhakara).
- **Habituation and absence of injuries are not exculpatory** — the Gurmit Singh stigma-ban applied to the High Court itself.
- Appellate acquittals must engage with the evidence — a "cryptic and perfunctory" reversal is itself a ground for Supreme Court correction.

**DU-exam hooks**

"The circumstances made her submissive victim and that does not mean that she was inclined and willing" · the Jowitt definition ("the mind weighing, as in a balance, the good or evil on either side") · "submission under the influence of fear or terror cannot amount to real consent" · the will/consent contrast table (§ 6.1). Pair with Mathura for the full arc: what the 1979 Court got wrong, Chhoteylal gets right.

## 7.5 Deepak Gulati v. State of Haryana

(2013) 7 SCC 675 — Dr. B.S. Chauhan and Dipak Misra JJ. DU CASE MATERIAL DU LL.B. · CRIME CM 2025 · UNIT 5

**Facts**

The appellant Deepak and **Geeta**, a 19-year-old 10+2 student of Government Girls Senior Secondary School, Karnal, "had known each other for some time"; he met her in front of her school "in an attempt to develop intimate relations". On 10 May 1995 he **induced her to go with him to Kurukshetra to get married** — she agreed, collected her school certificate as proof of age, telephoned him when he did not show at the pre-decided spot, and went with him by bus to Karna Lake. There, per her court deposition, he took her into the bushes and **raped** her ("she neither raised any objection, nor any hue and cry"); then to Kurukshetra, where they stayed with his relatives 3–4 days and (she said) he committed rape again, postponing marriage "on one pretext or the other". On the fourth day she was thrown out; she took shelter in the Kurukshetra University girls' hostel (without authorisation); the warden grew suspicious; the family was informed; she left, met Deepak again at Birla Mandir, **agreed once more to go to Ambala to marry him in court** — and at the old bus stand found her father and the police waiting. FIR by the father under 365/366, later converted to **365/376**. Medical examination (17 May): intercourse, "habitual to the same". The Sessions Judge convicted Deepak of **365 and 376** (3 years RI + ₹2,000; 7 years RI + ₹5,000); the High Court dismissed his appeal.

**Issues**

- Does intercourse on a promise of marriage vitiate consent as "misconception of fact" under s. 90 — when does a false promise convert consensual sex into rape?
- Where the girl is a willing adult who elopes, stays, and sets out again to marry, can rape stand?

**Arguments**

**For the appellant (no counsel appeared; the Court examined the record with State counsel):** the prosecutrix left home voluntarily, raised no complaint anywhere at any stage, lived and travelled with him for days, and was setting out to marry him when apprehended — the intercourse was consensual; any failure of the marriage plan was a breach of promise, not a deception that induced consent.

**For the State:** he had taken her on the pretext of marriage, exploited her for days, and thrown her out — the "false promise" made her consent a non-consent under s. 90.

**Held**

The Court marshalled the false-promise line — *Uday v. State of Karnataka* ("no straitjacket formula... each case has its own peculiar facts"), *Deelip Singh* (s. 90's two parts, cumulatively), *Yedla Srinivasa Rao*, *Pradeep Kumar Verma* — and distilled the governing tests: (1) consent is "an act of reason, accompanied by deliberation, the mind weighing, as in a balance, the good and evil on each side"; (2) "there is a distinction between the **mere breach of a promise**, and **not fulfilling a false promise**"; (3) rape requires proof "that at the relevant time, i.e., at initial stage itself, the accused had no intention whatsoever, of keeping his promise to marry" — "An accused can be convicted for rape only if the court reaches a conclusion that the intention of the accused was **mala fide**, and that he had **clandestine motives**"; (4) a promise that fails "due to reasons... beyond his control" is not a misconception; the misconception "must have an immediate relevance". **Application:** the girl was 19, "of adequate intelligence and maturity"; she **telephoned him**, waited, went willingly, complained to no one, stayed, was even then proceeding to **Ambala to marry him**: "we fail to understand on what basis the allegation of 'false promise of marriage' has been raised... we also fail to comprehend the circumstances in which a charge of deceit/rape can be leveled against the appellant." Convictions (which had already cost him over 3 years in prison) **set aside; benefit of doubt**.

**Principles evolved**

- Consent obtained by a promise of marriage is vitiated only if the promise was **false from inception**, with the man's knowledge — mala fide intention and clandestine motive are the gist.
- **Breach ≠ deception:** a genuine promise defeated by circumstances (family, caste, unforeseen events) leaves the intercourse consensual.
- Both parts of s. 90/§ 28 must be proved cumulatively (Deelip Singh): her misconception AND his knowledge of it.
- The adult woman's own conduct — willingness, continued association, renewed attempts to marry — is the decisive evidentiary matrix.
- **Legislative afterlife:** the case's "gap" (the man who is not a rapist but is no innocent) is now filled by **BNS § 69** — deceitful means/false promise to marry "without any intention of fulfilling the same... not amounting to... rape", up to 10 years.

by Ankur R. Upadhyay

**DU-exam hooks**

"Distinction between mere breach of a promise, and not fulfilling a false promise" · "mala fide… clandestine motives" · the Uday quartet · the § 69 codification point (examiners in the BNS era will reward the IPC-case → BNS-section bridge). This is THE case for the Dec 2014 Q5(a) false-promise problem (PYQ q1).

## 7.6 Independent Thought v. Union of India

(2017) 10 SCC 800 — 3-Judge Bench: Madan B. Lokur J. (for himself and R.K. Agrawal J.); Deepak Gupta J. concurring

DU CASE MATERIAL (CM 2025 TOC – prescribed without full text) RECONSTRUCTED FROM THE REPORTED JUDGMENT

**Facts**

**Independent Thought**, an NGO working on child rights, petitioned under Article 32 challenging the constitutional validity of **Exception 2 to s. 375 IPC** insofar as it immunised a husband from prosecution for rape of his "wife" aged between 15 and 18 — the exception then read: "Sexual intercourse by a man with his own wife, the wife not being under fifteen years of age, is not rape." The anomaly was stark: clause Sixthly made intercourse with any girl under 16 rape "with or without her consent" (raised to 18 in 2013); **POCSO 2012** criminalised penetrative sexual assault on any child under 18 regardless of marriage; the Prohibition of Child Marriage Act 2006 treated a child marriage as voidable; yet the married girl child of 15–18 had no rape protection at all — a husband's non-consensual intercourse with her was not even an offence, save under the hurt provisions.

**Issues**

- Is Exception 2, insofar as it permits a husband's non-consensual intercourse with a wife aged 15–18, violative of Articles 14, 15 and 21?
- Should the exception be struck down, or read down to 18 — and does the Court thereby "create a new offence"?
- (Expressly excluded:) the marital rape of adult women — "The Court is not concerned here with the marital rape of a woman who is 18 years of age and above."

**Arguments**

**For the petitioner:** the exception is arbitrary and discriminatory — it denies the married girl child protection that every unmarried girl child enjoys; it conflicts with POCSO (s. 5 aggravated penetrative sexual assault), the 2013 IPC amendment (age 18), PCMA, and India's obligations under the CRC; child marriage cannot operate as a licence to assault.

**For the Union:** the age of 15 in Exception 2 was a considered legislative choice protecting the "husband-wife relationship" in child marriages; the husband, though exempt from rape, remains punishable for any accompanying physical violence (ss. 323–325); raising the threshold would destabilise the institution of marriage and prosecutions could be misused.

**Held — Lokur J.**

The Court catalogued the "apparent conflict or incongruity": "the rape of a married girl child (a girl child between 15 and 18 years of age) is not rape under IPC… but it is an offence of **aggravated penetrative sexual assault under Section 5(n) of the POCSO Act** and punishable under Section 6 of that Act" — an absurdity demanding constitutional correction. It surveyed the five possible options and chose **reading down** over striking down, so as to preserve the exception for adult wives while extending rape protection to girl wives. The grounds: Exception 2, as applied to girl children, is "(i) **arbitrary, capricious, whimsical** and violative of the rights of the girl child and not fair, just and reasonable and, therefore, violative of Articles 14, 15 and 21; (ii) **discriminatory** and violative of Article 14" — drawing an irrational line between the married and unmarried girl child, both minors, one shielded and one exposed. The operative reading: **"Exception 2 to Section 375 IPC is read down as follows: 'Exception 2 — Sexual intercourse or sexual acts by a man with his own wife, the wife not being under eighteen years of age, is not rape.'"** The judgment is **prospective** in effect; prosecutions for intercourse with a wife below 18 must follow the s. 198(6) CrPC procedure (complaint by the girl or specified kin); and the Court's self-description: "What has been done is only to read down Exception 2… to bring it in consonance with the Constitution and the POCSO Act. **The Court is not creating any new offence but only removing what was unconstitutional and offensive.**" Deepak Gupta J. concurring: the exception is "violative of fundamental rights" — dignity, bodily integrity and autonomy of the girl child; marriage is not a licence to assault a minor.

**Principles evolved**

- **Marriage is not a defence to child rape:** Exception 2 cannot shield non-consensual intercourse with a wife under 18 — the marital exception and the age-of-consent clause are now harmonised at 18.
- **Reading down over striking down:** where severance of the unconstitutional application preserves the constitutional remainder, the court cures rather than demolishes — and no new offence is created (answer to the "legislating" objection).
- **Statutory harmonisation:** IPC read in the light of POCSO, PCMA, and Article 21's dignity/bodily-integrity core.
- **Codification:** BNS § 63 Exception 2 now states the threshold as "not being under eighteen years" — Independent Thought became the text of the statute on 1 July 2024.

**DU-exam hooks**

"The Court is not creating any new offence but only removing what was unconstitutional and offensive" · the IPC-vs-POCSO "incongruity" passage · Articles 14/15/21 tripod · the adult-marital-rape question expressly left open (contrast the pending debate). Every "marital rape exception" answer should run: Exception 2 → Independent Thought (child wives) → § 67 (separated wives) → the open adult question → BNS's silence as continuation.

## 7.7 Social Action Forum for Manav Adhikar & Anr. v. Union of India

(2018) 10 SCC 443 : AIR 2018 SC 4273 — Dipak Misra CJI (with Khanwilkar and D.Y. Chandrachud JJ.) DU CASE MATERIAL

DU LL.B. · CRIME CM 2025 · UNIT 5

### Facts (the two petitions and the impugned judgment)

The case is a **constitutional audit of s. 498A IPC's administration** (now BNS §§ 85–86). Petitioners (including women's organisations) approached under Article 32: hundreds of women suffer horrific domestic violence and dowry extortion; there is "no concrete data" for the alleged misuse; the courts, by "whittling down the stringency" of 498A, were defeating the legislature's protective design; the offence had been "practically made bailable" through judicial glosses; the police hesitate to arrest though the offence is cognizable and non-bailable; and courts brand women "hyper-sensitive". Meanwhile, a second stream of litigation complained of the opposite vice — 498A as a "weapon rather than shield", with 1,97,762 persons arrested in 2012 alone (NCRB) — culminating in ***Rajesh Sharma v. State of U.P.* (2018) 10 SCC 472**, where the Supreme Court had laid down a battery of guidelines: **Family Welfare Committees (FWCs)** in every district (composed of para-legal volunteers, social workers, retirees, "wives of working officers") to vet every 498A complaint before any arrest; designated investigating officers; disposal of settled cases by the District Judge; bail directions; restraint on passport impounding/Red Corner Notices; exemption from personal appearance. The present petitions sought implementation — and the Court appointed **V. Shekhar, senior counsel, as amicus**, who argued that Rajesh Sharma's directions were themselves illegitimate.

### Issues

- Do the Rajesh Sharma directions — an extra-judicial Family Welfare Committee interposed before arrest — square with the CrPC (now BNSS)?
- Can a court, "in the process of interpretation", create a third agency and gate-keep a cognizable, non-bailable offence?
- How is the balance to be struck between the victim-wife's statutory protection and the accused family's liberty?

### Arguments

**Petitioners:** misuse is unproven; even where it exists, "misuse by itself cannot be a ground to repeal a penal provision or take away its teeth"; dilution destroys the social purpose; the 498A mechanism includes its own checks (s. 41 CrPC arrest discipline).

**Amicus (V. Shekhar):** the FWC is an extra-judicial committee with "nothing to do with the Code"; its veto on arrest till report is contrary to the statutory scheme; entrusting disposal to the District Judge is impermissible since **498A is not compoundable** — only the High Court under s. 482 CrPC (BNSS § 528) can quash on settlement (per Gian Singh v. State of Punjab (2012) 10 SCC 303); the bail/passport/appearance directions intrude on judicial discretion.

### Held — the 498A balance sheet

**(1) The statute stands.** "The legislature in its wisdom has made the offence under Section 498-A IPC cognizable and non-bailable." Courts may not rewrite it: "Function of this Court is not to legislate but only to interpret the law" (quoting Rajesh Sharma itself) — and per *Suresh Seth*, no court can direct legislation or create what the Code does not contain. **(2) The fault lies in administration, not the section:** "The fault lies with the investigating agency which sometimes jumps into action without application of mind." **(3) The FWC directions fall:** "In Rajesh Sharma... there is introduction of a third agency which has nothing to do with the Code... the constitution of the Family Welfare Committees by the District Legal Services Authority and the power conferred on the Committee [is] **impermissible**." **(4) Settlement route corrected:** a non-compoundable offence can be closed only by the **High Court under s. 482 CrPC / BNSS § 528** applying Gian Singh — the parties may so move; the District Judge has no such power. **(5) The protective directions survive:** restraint on passport impounding/RCNs (19.15); clubbing of connected cases (19.16); exemption from personal appearance through ss. 205/317 CrPC (BNSS §§ 275/352); and "recovery of disputed dowry items may not by itself be a ground for denial of bail" (19.14). **(6) The governing framework reaffirmed:** *Joginder Kumar* ("No arrest can be made in a routine manner on a mere allegation... Denying a person of his liberty is a serious matter"); *D.K. Basu* (the arrest-memo, notification, medical-examination guidelines — reproduced in full in the judgment); *Lalita Kumari* (FIR registration; preliminary enquiry permissible in matrimonial disputes); and above all ***Arnesh Kumar v. State of Bihar* (2014) 8 SCC 273** — the "why arrest?" checklist under s. 41/BNSS § 35: "a police officer before arrest must put a question to himself, why arrest? Is it really required? What purpose it will serve?" — with the directions that police not arrest automatically in 498A cases, that the s. 41(1)(b) checklist be filled and furnished to the Magistrate, that the Magistrate record satisfaction before authorising detention, that non-arrest decisions be sent to the Magistrate within two weeks, and that violation invites departmental action and contempt. **(7) Forward directions:** investigating officers to be guided by Joginder Kumar, D.K. Basu, Lalita Kumari and Arnesh Kumar; **DGP of each State to give IOs rigorous training** on arrest principles in 498A cases.

> *"The directions issued in Arnesh Kumar (supra) are in consonance with the provisions contained in Section 41 CrPC and Section 41-A CrPC... The purpose has been to see that the investigating agency does not abuse the power and arrest people at its whim and fancy."*
>
> — Social Action Forum for Manav Adhikar (DU CM), ¶ 37

### Principles evolved

- **Misuse is not a ground to disarm a penal provision:** the remedy for 498A abuse lies in **arrest discipline and judicial discretion**, not in erecting extra-statutory filters or making the offence toothless.
- **Judicial legislation forbidden:** courts cannot, "by the process of interpretation", create committees, agencies or procedures the Code does not contain (Suresh Seth; the FWC fall).
- **Quashing on settlement belongs to the High Court alone** (s. 482 CrPC / BNSS § 528; Gian Singh) for non-compoundable offences.

- **Arrest is not automatic:** the Arnesh Kumar checklist (s. 41 CrPC / BNSS § 35) and s. 41A notice procedure (BNSS § 35(3)) govern every 498A case — protecting the innocent without disarming the victim.
- The judgment is the BNS-era map for § 85–86 cruelty practice: same offence, same safeguards, new numbers.

**DU-exam hooks**

"Misuse… cannot be a ground to repeal a penal provision or take away its teeth" · "why arrest? Is it really required?" · "third agency which has nothing to do with the Code" · Gian Singh/482 as the settlement route. The perfect pairing for any 498A question: SAFMA (safeguards) + Gurmit Singh (sensitivity) — protection and procedure, both.

### 7.8 The seven cases at a glance

**Fig. 6 — The Unit-5 constellation: one doctrine, seven stations**

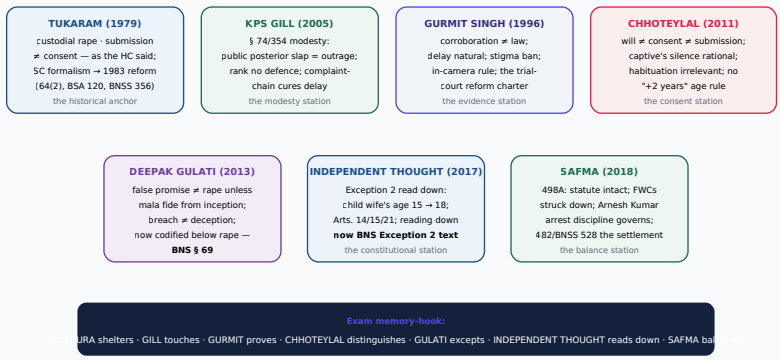



Fig. 6 — Seven cases, one architecture: custody, modesty, evidence, consent, deception, constitution, and institutional balance.

## 8 Distinctions Hub — the Comparisons this Unit Exams

### 8.1 Rape (§ 63 / 375) vs sexual assault under POCSO, 2012

| Axis | BNS § 63 / IPC 375 (rape) | POCSO 2012 (sexual assault) |
|---|---|---|
| Victim | Only a **woman** (of any age) | Any **child** — boy or girl — below 18 (gender-neutral victim) |
| Offender | Only a **man** | Any person (gender-neutral offender) |
| The acts | Four acts (a)–(d): penile penetration of vagina/mouth/urethra/anus; object/body-part penetration; manipulation; mouth application — "to any extent" | S. 3 "penetrative sexual assault": penetration by penis/object/any part of body "to any extent" into vagina, mouth, urethra, anus — or making the child do so; s. 7 "sexual assault" (non-penetrative: touching with sexual intent); s. 9 aggravated forms (s. 5(n): offender is a relative/teacher/etc.) |
| Consent | The central battlefield (7 circumstances); a 16–17-year-old's consent is a defence (age of protection 18 — but note § 63(vi)) | **Consent of the child is wholly irrelevant** below 18 — the statute refuses the inquiry |
| Marital exception | Exception 2 (wife 18+); Independent Thought read it down for child wives | **None** — a husband's penetrative assault on a child wife is aggravated penetrative sexual assault (s. 5(n), the provision Independent Thought used) |
| Presumptions | BSA § 120 / IEA 114A presumption (absence of consent) only for § 64(2) aggravated prosecutions | Presumption of guilt: s. 29 (courts shall presume the accused committed the offence); s. 30 (presumption of culpable mental state) — far stronger |
| Procedure | Ordinary CrPC/BNSS + in-camera (BNSS 356); child victims get POCSO's child-friendly process | Special courts (s. 28); child-friendly recording (s. 33); name suppression (s. 23); no aggressive cross-examination of the child (s. 33(2)) |
| Punishment | § 64: 10 years–life; aggravated up to death | S. 4: penetrative sexual assault — minimum 20 years (post-2019) to life; aggravated (s. 6): minimum 20 years to life (natural life) **or death** (2019 Amendment) |
| Inter se operation | **POCSO s. 42:** where an act constitutes an offence under the IPC **and** POCSO, the punishment **greater in degree** prevails; **s. 42A:** POCSO has overriding effect save where another law provides greater punishment. So the prosecutor chooses the graver weapon. | |

**The Dec 2015 Q7(b) answer-key :** "Rape is a question of law" — the definition's ingredients (act + circumstance) are legal questions the court must address before credibility is assessed; consent and will are then questions of fact proved from conduct

(Chhoteylal: will "purely and solely a mental process... ascertained... by what the prosecuting witness may have said or done"). The POCSO difference follows the table's rows: victim neutrality, consent-irrelevance, presumptions, special courts, greater punishment.

## 8.2 The deception family — § 63 vs § 69 vs § 81 vs § 82/83

| Provision | The deceit | The gist |
|---|---|---|
| **§ 63(iv) / 375(iv)** | She believes he is her lawfully wedded husband, but he knows he is not (mistaken identity) | Rape — consent vitiated by mistake as to the man himself |
| **§ 69 (NEW)** | False promise to marry without intention to fulfil, or deceitful means (employment/promotion promise, suppressed identity) — intercourse not amounting to rape | The Deepak Gulati residue: consent possibly "free" under s. 90's second limb, but the seduction itself punished — up to 10 years |
| **§ 81 / 493** | By deceit he causes her to believe she is lawfully married to him, and she cohabits/has intercourse in that belief | The sham-marriage offence — the ceremony's shadow, not the man's identity — up to 10 years |
| **§ 82/83 / 494/496** | Bigamy; or a fraudulent ceremony knowing it creates no marriage | Marriage-integrity offences — the second spouse/ first spouse defrauded; up to 10 years (with concealment) |

## 8.3 The § 74 family — fast contrasts

| Pair | The line |
|---|---|
| § 74 vs § 79 | 74 needs **criminal force** (contact); 79 is word/sound/gesture/object/privacy-intrusion — **no contact**. KPS Gill: both together (slap + public insult) |
| § 74 vs § 75 | 75 is the workplace quartet — "unwelcome and explicit sexual overtures" etc.; 74 the general modesty section; a physical advance that is unwelcome and sexual can be both |
| § 74 vs § 76 | 76's specific intent — **disrobing/compelling nakedness** — replaces 74's modesty element and raises the sentence floor to 3 years |
| § 74 vs § 63 | Penetration (even "to any extent") takes the case into § 63; non-penetrative violation stays in 74 — the four acts (b)–(d) have narrowed 74's territory since 2013 (e.g., forced oral is rape, not 354) |

## 8.4 The matrimonial-death web — fast contrasts

| Pair | The line |
|---|---|
| § 80 (dowry death) vs § 101/103 (murder) | 80: unnatural death + 7-year window + soon-before dowry cruelty → **deemed causation** + BSA 118 presumption; murder: full proof of intention. Sentence: 7–life vs death/life |
| § 80 vs §§ 85–86 (cruelty) | 85–86 is the survivor's offence (3 years); if she dies and the dowry nexus shows, 80 takes over |
| § 86(a) cruelty-driven suicide vs § 106 abetment | Suicide within 7 years + cruelty → BSA 117/IEA 113A presumes abetment (§ 106 BNS); the cruelty itself remains §§ 85–86 |
| § 84 (enticing wife) vs § 87 (kidnapping to compel marriage) | 84 protects the **existing marriage** (wife taken for illicit intercourse); 87 the woman's **marital autonomy** (abduction to force marriage or illicit intercourse) — 87 carries the heavier term |

EXAMINATION QUESTION BANK // DU LL.B. PAPER LB-104

## Previous Year Examination Questions (PYQs)

**Q.01** DU December 2014 Mr. B and Ms. A, class fellows from Class X, developed infatuation towards each other. They carried the relationship for 6 long years till the boy did his master's course and was employed in a good multinational. They had promised to marry each other and were firm to do so, knowing fully well they belonged to different castes. On the basis of this promise and long relationship they entered into sexual relationship many a times. However, finally, when the boy disclosed it to his parents, they refused on the basis of caste; threatened the boy of social ostracisation and even death of both in case they do so. Compelled by these reasons, the boy married another girl. A charges the boy B of having committed rape with her. Decide the fate of B.

◈ Refer website for detailed notes — makelaweasy.in ↗

**Q.02** DU December 2014 Annoyed due to insufficient dowry brought by X, her mother-in-law and husband deliberately starved and ill-treated her by locking her in a room. As a result X's health deteriorated. One day she managed to escape and reached a hospital where she was admitted. The doctor refused the husband's request to send her home in such critical condition. It took more than 10 months for the lady to recover. Discuss the offence the mother-in-law and husband have committed. Give reasons.

**Q.03** DU December 2015 "Rape is a question of Law." Explain the essentials of the crime of rape. How is this law different from the law against sexual assault provided under the POCSO Act?

**Q.04** DU December 2015 Write short notes (any two): (i) Stalking; (ii) Voyeurism; (iii) Disrobing.

**Q.05** DU December 2015 Six persons enter a house at night to commit theft. While the others are busy looking for valuables on the ground floor, one of them climbs up to the first floor and, finding the maid-servant sleeping alone there, rapes her and threatens to kill her if she raises an alarm. Then he comes down and joins his associates in collecting valuables after which they all leave the house. Discuss the liability of all of them for the offences of theft and rape.

**Q.06** DU LL.B. Exam Critically examine the marital rape exception (Exception 2 to s. 375 IPC / BNS § 63) in the light of Independent Thought v. Union of India. Should the exemption for wives above 18 survive?

**Q.07** DU LL.B. Exam "The essence of a woman's modesty is her sex." Discuss the offence of assault or criminal force to a woman with intent to outrage her modesty (s. 354 IPC / BNS § 74), with reference to Kanwar Pal Singh Gill v. State.

**Q.08** DU LL.B. Exam "Corroboration of the prosecutrix's statement is not a requirement of law but a guidance of prudence." Explain with reference to State of Punjab v. Gurmit Singh. How should courts treat delay in FIR, absence of injuries, and alleged sexual habituation?

UNIT 06 // DU LL.B. PAPER LB-104 (BNS & IPC) 12 Prescribed Cases · 8 Exam PYQs

# Offences Affecting Human Body (Part I) — Culpable Homicide, Murder & Exceptions

## 1 The Architecture — Genus, Species and the Three Degrees

### 1.1 Why two definitions?

The Indian Penal Code (and the Sanhita after it) does what English law does through judge-made manslaughter grades, but does it **statutorily**: it defines a genus — **culpable homicide** (§ 100/299) — and then carves out of that genus a graver species — **murder** (§ 101/300) — with five partial defences (Exceptions 1–5) that reduce murder back to culpable homicide not amounting to murder. The DU syllabus quotes the classic formulation:

> *"In the scheme of the Penal Code, 'culpable homicide' is the genus and 'murder' is its species. All 'murder' is 'culpable homicide' but not vice-versa. Speaking generally, 'culpable homicide' sans 'special characteristics of murder', is 'culpable homicide not amounting to murder'. For the purpose of fixing punishment, proportionate to the gravity of this generic offence, the Code practically recognises three degrees of culpable homicide. The first is what may be called 'culpable homicide of the first degree'. This is the greatest form of culpable homicide, which is defined in Section 300 as 'murder'. The second may be termed as 'culpable homicide of the second degree'... punishable under the first part of Section 304. Then, there is 'culpable homicide of the third degree'. This is the lowest type of culpable homicide and the punishment provided for it is also the lowest... punishable under the second part of Section 304."*
>
> — Sarkaria J., State of A.P. v. R. Punnayya (DU CM), ¶ 12

| Degree | Content | Provision | Punishment |
|---|---|---|---|
| **First degree** | Culpable homicide with murder's special characteristics (§ 101/300 clauses, no exception) | § 101 → § 103 / 300 → 302 | Death or life + fine |
| **Second degree** | CHnAM with intention (clause (a)/(b) of § 100 minus murder's elevation, or murder reduced by an Exception) | § 105 Part I / 304 Part I | Life, or **5–10 years** (BNS minimum 5) + fine |
| **Third degree** | CHnAM with knowledge only (clause (c) of § 100, murder's Fourthly not made out) | § 105 Part II / 304 Part II | Up to 10 years + fine |

**The BNS change to note :** § 105 Part I now reads "imprisonment of either description for a term which shall **not be less than five years** but which may extend to ten years" — the IPC's 304 Part I had no minimum. Write "up to life, or 5–10 years (BNS: minimum five)" in the exam.

### 1.2 Punnayya's three-stage method — the answer skeleton

Punnayya ¶ 21 prescribes the sequence every court — and every DU answer — must follow:

1. **Stage 1 — Death:** has the accused, by his act (or illegal omission — § 2(1)/s. 8), **caused** the death of another? (causation; Explanations 1–3; § 102/301 if the wrong person died)
2. **Stage 2 — Culpable homicide:** does the act satisfy § 100/299 — intention to cause death (a), or intention to cause bodily injury *likely* to cause death (b), or knowledge of likelihood of death (c)?
3. **Stage 3 — Murder:** does the case fall within any of the four clauses of § 101/300? If **yes and no Exception applies** → murder (§ 103/302). If **no**, or an Exception applies → CHnAM (§ 105 Part I or II per the governing clause).

"The above are only broad guidelines and not cast-iron imperatives... But sometimes the facts are so intertwined and the second and third stages so telescoped into each other, that it may not be convenient to give a separate treatment to the matters involved." (Punnayya ¶ 22)

**Fig. 1 — Classifying a killing (Punnayya's three stages, BNS numbers)**

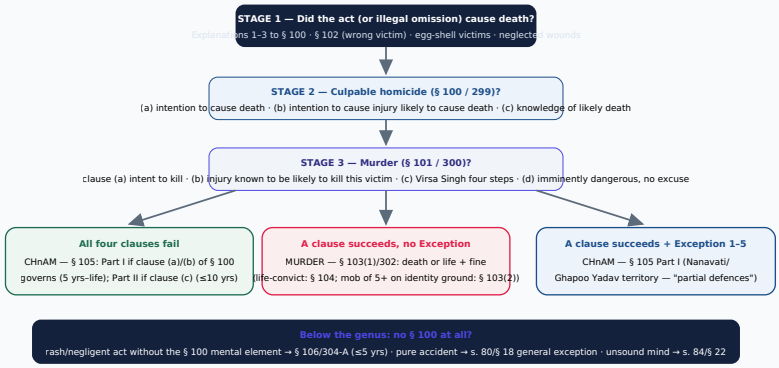



Fig. 1 — The whole unit on one page: three stages, three outcomes, and the residual routes below the genus. Every problem answer must visibly walk these stages.

## 2 Culpable Homicide — the Genus (BNS § 100 / IPC § 299)

### 2.1 The text

**BNS § 100 / IPC § 299 — CULPABLE HOMICIDE**

Whoever causes death by doing an act with the intention of causing death, or with the intention of causing such bodily injury as is likely to cause death, or with the knowledge that he is likely by such act to cause death, commits the offence of culpable homicide.

**Illustration (a).** A lays sticks and turf over a pit, with the intention of thereby causing death, or with the knowledge that death is likely to be thereby caused. Z, believing the ground to be firm, treads on it, falls in and is killed. A has committed the offence of culpable homicide.

**Illustration (b).** A knows Z to be behind a bush. B does not know it. A, intending to cause, or knowing it to be likely to cause, Z's death, induces B to fire at the bush. B fires and kills Z. Here B may be guilty of no offence; but A has committed the offence of culpable homicide.

**Illustration (c).** A, by shooting at a fowl with intent to kill and steal it, kills B, who is behind a bush, A not knowing that he was there. Here, although A was doing an unlawful act, he was not guilty of culpable homicide, as he did not intend to kill B, or to cause death by doing an act that he knew was likely to cause death.

**Explanation 1.** A person who causes bodily injury to another who is labouring under a disorder, disease or bodily infirmity, and thereby accelerates the death of that other, shall be deemed to have caused his death.

**Explanation 2.** Where death is caused by bodily injury, the person who causes such bodily injury shall be deemed to have caused the death, although by resorting to proper remedies and skilful treatment the death might have been prevented.

**Explanation 3.** The causing of the death of a child in the mother's womb is not homicide. But it may amount to culpable homicide to cause the death of a living child, if any part of that child has been brought forth, though the child may not have breathed or been completely born.

| Clause | Mental element | Notes + case anchors |
|---|---|---|
| **(a) / Firstly-type** | Intention (mens rea) to cause **death** | The highest mens rea. Rawalpenta Venkalu — locking the hut, firing it, repelling rescuers: intention to kill inferred from the totality of conduct |

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| Clause | Mental element | Notes + case anchors |
|---|---|---|
| **(b) / Secondly-type** | Intention to cause **bodily injury likely** to cause death (no intention to kill) | The "maim, not kill" cases — Kapur Singh (18 gandasa injuries on limbs; 304 Part I). Note: the offender need not know the injury is likely to cause death — contrast § 101(b)/300 Secondly |
| **(c) / Thirdly-type** | **Knowledge** that the act is likely to cause death (no intention at all) | Dhirajia — jumping into a well with a baby in panic; Gyarsibai — jumping with three children: the knowledge clause (c) is satisfied even where intention is excluded by panic |

**The three explanations are DU favourites : Expl. 1** = the egg-shell victim rule (blow to a diseased spleen — the blow-er takes his victim as he finds him); **Expl. 2** = the "neglected wounds" rule (death by septicemia from the injuries is the accused's doing even though proper treatment might have saved him — the answer to Dec 2014 Q3(a), PYQ q2); **Expl. 3** = the born-alive rule (killing a child in the womb is not homicide; but once "any part has been brought forth" it can be — § 93's exposure and §§ 88–92 govern the unborn).

## 2.2 Mens rea and actus reus — the "believed-dead" cases

Culpable homicide needs the concurrence of a guilty mind (intention/knowledge) with a guilty act (causing death). The classic Indian teaching cases are those where the accused's first act fells the victim, and his **second act** — done in the belief that the victim is already dead — actually kills:

| Case | Facts | Holding |
|---|---|---|
| **Palani Goundan** (1919 Mad) | Ploughshare blow renders wife unconscious; husband, believing her dead, hangs her by a rope to stage suicide; death by hanging | **Not murder, not culpable homicide** — the hanging was done "under the impression that she was already dead": intention must stand "in some relation to a person who... is alive, or who is believed by the accused to be alive". Conviction: grievous hurt (s. 326) |
| **In re Thavamani** (1943 Mad) | Accused 2 held the woman's legs while accused 1 attacked her; believing her dead, both threw the body into a well; she died in the well | **Murder** — distinguished from Palani Goundan: here there was an **intention to cause death from the start**; "the two phases of the same transaction are so closely connected in time and purpose that they must be considered as parts of the same transaction" |
| **Queen-Empress v. Khandu** (1891 Bom, discussed in both) | Three head blows with intent to kill; believing the victim dead, set fire to the hut to destroy evidence; death by burning | Not one continuous act with the intention to kill → discussed within both judgments as the "separate transaction" branch |

**The exam line :** where the **killing intent operates on the final act** — i.e., the accused attacks to kill and then completes the killing while merely mistaken about the earlier act's effect — it is murder (Thavamani: one transaction). Where the **first act was only to injure** and the second, fatal act is done on a belief that death has already occurred — the second act carries no homicidal mens rea (Palani Goundan) and liability is only for the first act (hurt/grievous hurt) plus any offence on the second (e.g., s. 201 causing disappearance of evidence). The dividing question is **what intention existed at the inception**.

## 2.3 § 102 / s. 301 — killing the person you did not aim at

**BNS § 102 / IPC § 301 — CULPABLE HOMICIDE BY CAUSING DEATH OF PERSON OTHER THAN THE PERSON WHOSE DEATH WAS INTENDED**

If a person, by doing anything which he intends or knows to be likely to cause death, commits culpable homicide by causing the death of any person, whose death he neither intends nor knows himself to be likely to cause, the culpable homicide committed by the offender is of the description of which it would have been if he had caused the death of the person whose death he intended or knew himself to be likely to cause.

> The "transferred malice" rule, statutised: aim at A, kill B — your guilt is measured by what you intended towards A. § 100's first illustration (the man-trap pit) shows the principle inside the genus; § 102 makes it express and fixes the **grade** of the offence by the intended victim's measure. **Mushnooru** is the great Indian authority — the majority (Benson J. and a concurring judge) applying it to the poisoned halva; Sundara Aiyar J. dissenting that the section cannot carry liability beyond the proximate and intended harm.

**The three building blocks the 2023 syllabus ties together — "cause and effect":**

1. **Causing death (actus reus):** the accused's act must be the **causa causans**, not a mere link — Mushnooru's majority: the accused's act was "the efficient cause" of the girl's death though her own act of picking up the sweetmeat "contributed"; contributory action of the victim or a third person does not exculpate (Illustration (a) — the pit; Illustration (b) — the bush).
2. **Intention/knowledge need not target the actual victim:** "It is enough if he 'causes the death' of any one, whether the person intended to be killed or any one else" (Mushnooru, on § 299) — but Illustration (c) marks the outer limit: the fowl-shooter who

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unknowingly kills B behind the bush does an unlawful act **without** the homicidal mental element, and is not guilty even of culpable homicide.

3. **Mens rea is judged by supposed circumstances:** Palani Goundan (Wallis C.J.) — "the intention of the accused must be judged in the light... of what he supposed to be the circumstances"; a man is guilty of culpable homicide if he intends to kill what he believes to be a living person (even a tree-stump mistaken for a man), and not guilty if his intention was directed only to what he believed to be a corpse.

**Mens rea theory hook (Dec 2015 Q1(a)) :** the "rationale of punishing strict liability in the absence of guilty mind" question runs on the same rails: the IPC/BNS premise is that every offence defines both actus reus and mens rea (Palani Goundan — Mayne's view quoted by Napier J.: "every offence is defined and the definition states not only what the accused must have done but his state of mind"), with the general-exceptions chapter absorbing English mens rea defences; strict liability survives only in a few regulatory statutes, punished for reasons of public safety regardless of fault.

**Fig. 2 — Causation: from the act to the death**

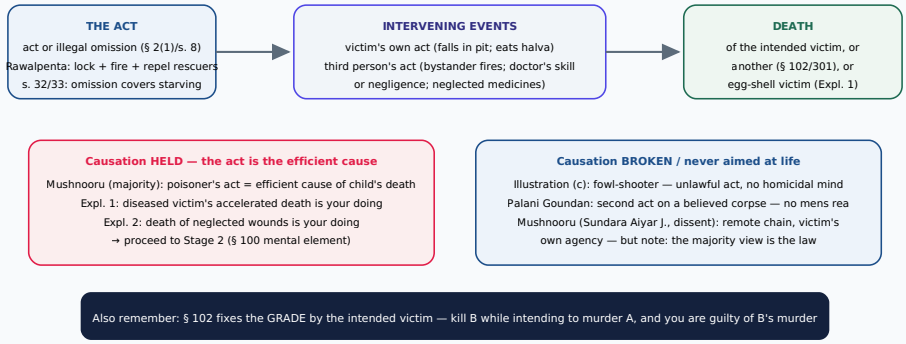



Fig. 2 — The causation ledger: what counts as your act's death, what breaks the chain, and who grades the offence when you miss your target.

## 3 Murder — the Species (BNS § 101 / IPC § 300)

### 3.1 The text

BNS § 101 / IPC § 300 — MURDER

Except in the cases hereinafter excepted, culpable homicide is murder —

**(a)** if the act by which the death is caused is done **with the intention of causing death**; or

**(b)** if the act by which the death is caused is done with the intention of causing **such bodily injury as the offender knows to be likely to cause the death of the person to whom the harm is caused**; or

**(c)** if the act by which the death is caused is done with the intention of causing **bodily injury to any person, and the bodily injury intended to be inflicted is sufficient in the ordinary course of nature to cause death**; or

**(d)** if the person committing the act by which the death is caused, **knows that it is so imminently dangerous that it must, in all probability, cause death**, or such bodily injury as is likely to cause death, and commits such act **without any excuse** for incurring the risk of causing death or such injury as aforesaid.

IPC's "Firstly...Fourthly" are now (a)–(d); nothing else changed. Note the two knowledge clauses: (b) — knowledge of the **particular victim's frailty** (the enlarged-spleen illustration (b)); (d) — knowledge of extreme danger to **persons in general** (the cannon-into-a-crowd illustration (d)).

### 3.2 Punnayya's comparative table — the heart of the unit

| | § 100 / s. 299 (culpable homicide) | § 101 / s. 300 (murder) |
|---|---|---|
| | | |
| **A** | (a) with the **intention of causing death** | (a) with the **intention of causing death** — same words; the distinction lies elsewhere (manner, weapon, offence's circumstances) |
| **B** | (b) with the intention of causing such bodily injury as is **likely** to cause death | (b) with the intention of causing such bodily injury as **the offender knows to be likely** to cause the death of **the person to whom the harm is caused** — the offender's special knowledge of the particular victim's condition (enlarged spleen, diseased heart) is the aggravator |
| **C** | — | (c) with the intention of causing **bodily injury to any person**, and the bodily injury intended to be inflicted is **sufficient in the ordinary course of nature** to cause death — intention only as to the **injury**; sufficiency is **objectively** determined (Virsa Singh) |

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| | § 100 / s. 299 (culpable homicide) | § 101 / s. 300 (murder) |
|---|---|---|
| | | |
| **D** | (c) with the **knowledge** that the act is **likely** to cause death | (d) with the **knowledge** that the act is **so imminently dangerous that it must, in all probability, cause death** — and **without any excuse** for incurring the risk. Knowledge must "approximate to a practical certainty" (Punnayya ¶ 20) — directed at persons in general, not a particular victim |

> *"The academic distinction between 'murder' and 'culpable homicide not amounting to murder' has vexed the courts for more than a century. The confusion is caused, if courts losing sight of the true scope and meaning of the terms used by the legislature in these sections, allow themselves to be drawn into minute abstractions. The safest way of approach to the interpretation and application of these provisions seems to be to keep in focus the keywords used in the various clauses of Sections 299 and 300."*
>
> — Punnayya (DU CM), ¶ 13

| Keyword shift | Its job (Punnayya ¶¶ 14–20) |
|---|---|
| (b)→(c) "likely to cause death" → "sufficient in the ordinary course of nature to cause death" | Clause (c)/Thirdly takes the case out of the zone of probability into (near) certainty: the injury, objectively viewed, will kill in the natural course. Evidence: the doctor's post-mortem testimony (Punnayya: Dr Sarojini's "cumulatively sufficient" opinion) |
| (b) of § 100 → (b) of § 101: "likely" → "the offender knows to be likely… to the person harmed" | Secondly needs the offender's **knowledge of the victim's peculiar condition** — "intention to cause death is not an essential requirement of clause (2)"; the fist-blow to a diseased-spleen victim, known to the striker, is murder |
| (c) of § 100 → (d) of § 101: "likely to cause death" → "so imminently dangerous that it must in all probability cause death… without any excuse" | Fourthly's knowledge is of the highest degree of probability — "approximates to a practical certainty" — plus the independent requirement that the act be **without excuse** (Dhirajia's gate; Gyarsibai's counterpoint) |

### 3.3 Clause (c)/Thirdly — the Virsa Singh algorithm

The most litigated clause in Indian homicide law, and the single most examinable passage in this unit. The defence argument (a "favourite argument" — Bose J.) runs: the section requires the intention to inflict an injury sufficient to cause death — which is to say, an intention to kill — so the prosecution must prove the offender intended the fatal sufficiency. Bose J.'s answer: **"the two clauses are disjunctive and separate"** — the intention relates only to the **injury**; the sufficiency is an objective, inferential fact:

> *"To put it shortly, the prosecution must prove the following facts before it can bring a case under Section 300 'thirdly': First, it must establish, quite objectively, that a bodily injury is present. Secondly, the nature of the injury must be proved… Thirdly, it must be proved that there was an intention to inflict that particular bodily injury, that is to say, that it was not accidental or unintentional, or that some other kind of injury was intended. Once these three elements are proved to be present, the enquiry proceeds further and, Fourthly, it must be proved that the injury of the type just described… is sufficient to cause death in the ordinary course of nature. This part of the enquiry is purely objective and inferential and has nothing to do with the intention of the offender… Once the four elements are established… the offence is murder under Section 300 'thirdly'.* ***It does not matter that there was no intention to cause death.****… No one has a licence to run around inflicting injuries that are sufficient to cause death in the ordinary course of nature and claim that they are not guilty of murder."*
>
> — Virsa Singh v. State of Punjab (DU CM), ¶¶ 14–20 (condensed)

| Step | Inquiry | Nature and proof |
|---|---|---|
| **1** | A bodily injury is present | Objective — medical evidence (the 2″ × ½″ punctured wound, three coils of intestine out) |
| **2** | The nature of the injury | Objective — site, depth, organs involved (broad-based, "twelve good men and true" inquiry — not anatomy lessons) |
| **3** | Intention to inflict **that** injury | Subjective — the only mens rea; presumed from the act "unless the evidence or the circumstances warrant an opposite conclusion" (the superficial-scratch-and-stumble counter-example) |
| **4** | Injury sufficient in the ordinary course of nature to cause death | Purely objective and inferential — the doctor's opinion; "has nothing to do with the intention of the offender" |

**Fig. 3 — Clause (c) / "Thirdly" — the four-step algorithm**

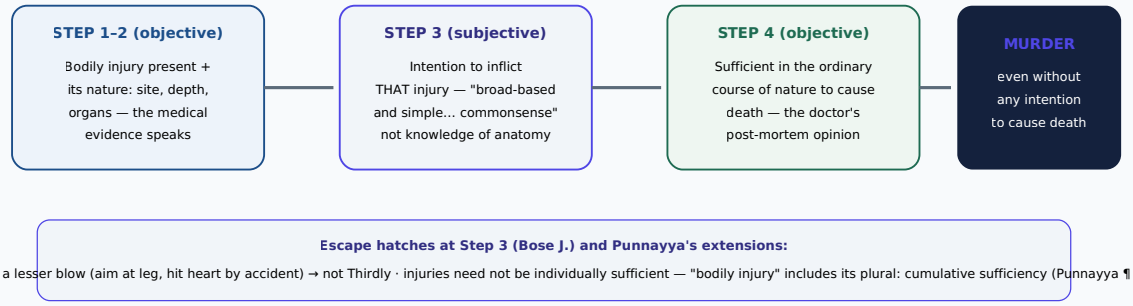



Fig. 3 — Steps 1, 2 and 4 are for the doctors; step 3 alone is for the mind. Punnayya adds: the injuries may be cumulatively, not individually, sufficient — limbs-only beating can still be Thirdly murder.

### 3.4 Clause (d)/Fourthly — knowledge "approximating practical certainty" + the excuse gate

Fourthly has **two cumulative** requirements: (i) knowledge that the act is so imminently dangerous that it must in all probability cause death — not directed at a particular individual but at "the man in general" (Punnayya ¶ 24: the cannon into the crowd); and (ii) the act is done **"without any excuse for incurring the risk"**. The two DU cases calibrate the gate:

| Case | Facts | The gate |
|---|---|---|
| **Dhirajia** (1940 All) | Husband's quarrel and threats; wife flees at dawn with six-month-old baby; seeing him in pursuit, "in a panic" jumps (or falls) into a well; baby dies, she survives | Knowledge present — "however primitive... and however frightened", a sane person knows that jumping into a well with a baby "can, but for a miracle, have only one conclusion". **But excuse present:** "She feared her husband and she had reason to fear him... We think she had excuse and that that excuse was panic or fright" → not murder; **304 Part II** (culpable homicide by knowledge) |
| **Gyarsibai** (1953 M.B.) | Mother, harassed by sister-in-law, leaves the house **saying she would jump into a well**, throws herself in with three children (7, 5, 1½); children die | Knowledge present (she announced the jump); **no excuse** — "we must take into account the state of mind of a reasonable and legally sane person and then determine whether the risk... could have been avoided": sister-in-law's attitude is no excuse for taking three children's lives → **murder** (302) affirmed; but transportation for life recommended for commutation to 3 years RI |

**Intention vs knowledge — Dhirajia's teaching :** "In order to possess and to form an intention there must be a capacity for reason. And when by some extraneous force the capacity for reason has been ousted, it seems to us that the capacity to form an intention must have been unseated too. But... knowledge stands upon a different footing. Some degree of knowledge must... be attributed to every sane person." Panic kills intention; it does not kill knowledge. Hence a panicked act can satisfy § 100(c)/299 Thirdly — the question is then only whether Fourthly's "without excuse" is made out.

## 4 The Five Exceptions to Murder — the Partial Defences

### 4.1 Exception 1 — grave and sudden provocation

EXCEPTION 1 TO § 101 / S. 300

Culpable homicide is not murder if the offender, **whilst deprived of the power of self-control by grave and sudden provocation**, causes the death of the person who gave the provocation, or causes the death of any other person by mistake or accident: provided that the provocation is not — (a) sought or voluntarily provoked by the offender as an excuse for killing or doing harm to any person; or (b) given by anything done in obedience to the law, or by a public servant in the lawful exercise of the powers of such public servant; or (c) given by anything done in the lawful exercise of the right of private defence.

> **Explanation.** Whether the provocation was grave and sudden enough to prevent the offence from amounting to murder is a question of fact. Illustrations (a)–(f): killing the child of the provoker (a) is murder (wrong target, no accident); a stray shot killing a bystander (b) is only culpable homicide; arrest/bailiff (c), magistrate's words (d), resistance to private defence (e) = murder; and (f) the instigator who arms the provoked man is guilty of murder though the provoked man is not.

**Nanavati's four principles** (Sarkaria-era; Subba Rao J. in Nanavati itself, ¶ 20) — the exam statement of Indian law:

1. **The reasonable-man test:** "The test of 'grave and sudden' provocation is whether a reasonable man, **belonging to the same class of society as the accused**, placed in the situation in which the accused was placed would be so provoked as to lose his

self-control." No abstract standard — "customs, manners, way of life, traditional values… the cultural, social and emotional background of the society to which an accused belongs."

2. **Words and gestures suffice in India:** "In India, words and gestures may also, under certain circumstances, cause grave and sudden provocation" — the Code's authors rejected the English mere-words rule: "gross insults by words or gestures have as great a tendency to move many persons to violent passion as dangerous or painful bodily injuries."
3. **The mental background:** "The mental background created by the previous act of the victim may be taken into consideration in ascertaining whether the subsequent act caused grave and sudden provocation" (the Khogayi–Boya Munigadu–Balku–Babu Lal line: the "prolonged agony" cases, where the earlier discovery of infidelity and a fresh sight of the paramour or wife reignites passion).
4. **The cooling-off rule:** "The fatal blow should be clearly traced to the influence of passion arising from that provocation and **not after passion had cooled down by lapse of time, or otherwise giving room and scope for premeditation and calculation**."

| Element | Nanavati application |
|---|---|
| The provocation | Sylvia's confession of intimacy with Ahuja (27 April 1959) — grave; "It was natural that the accused was enraged" |
| The cooling-off | Between 1.30 p.m. and 4.20 p.m. — dropping family at the cinema, going to the ship, drawing the revolver on a **false pretext**, loading six rounds, driving to Ahuja's office, then his flat, entering the bedroom with the envelope: "three hours had elapsed, and therefore there was sufficient time for him to regain his self-control, even if he had not regained it earlier… his conduct clearly shows that the murder was a deliberate and calculated one." |
| The exception refused | "Even if any conversation took place between the accused and the deceased… it does not affect the question, for the accused **entered the bed-room of the deceased to shoot him**. The mere fact that before the shooting the accused abused the deceased and the abuse provoked an equally abusive reply could not conceivably be a provocation for the murder." Exception 1 fails → murder (302, life). |

**English-law contrast the CM sets up :** Mancini/Bedward (time to cool + mode of resentment), Duffy ("sudden and temporary loss of self-control… not master of his mind"), Holmes (revenge is the opposite of provocation: "the conscious formulation of a desire for revenge means that the person has had time to think"), Thomas/Parke (mere confession of adultery not enough at English law — **rejected in India**: words suffice). And the prescribed academic reading — Katherine O'Donovan, 'Defences for Battered Women Who Kill' (1991) — presses the critique: the reasonable-man standard is gendered; battered women who kill after prolonged abuse fit neither the "sudden" provocation frame nor self-defence, an argument Indian courts have partly absorbed through the "same class of society" gloss and Exception 2 case-law.

## 4.2 Exceptions 2–5

**EXCEPTION 2 — EXCEEDING PRIVATE DEFENCE**

Culpable homicide is not murder if the offender, in the exercise **in good faith** of the right of private defence of person or property, **exceeds the power given to him by law** and causes the death of the person against whom he is exercising such right of defence **without premeditation, and without any intention of doing more harm than is necessary** for the purpose of such defence.

> Illustration: the horsewhip answered with a pistol. Note the double constraint — good faith (s. 52/§ 2(7)) plus no intent to exceed necessity. Full private defence (which negates the offence altogether) is §§ 30–44/ss. 96–106 (DU's Unit 8 in the 2025 material); Exception 2 catches only the **honest excess**.

**EXCEPTION 3 — PUBLIC SERVANT EXCEEDING POWERS**

Culpable homicide is not murder if the offender, being a public servant or aiding a public servant acting for the advancement of public justice, exceeds the powers given to him by law, and causes death by doing an act which he in good faith believes to be lawful and necessary for the due discharge of his duty as such public servant, **and without ill-will** towards the person whose death is caused.

**EXCEPTION 4 — SUDDEN FIGHT (GHAPOO YADAV'S SECTION)**

Culpable homicide is not murder if it is committed **without premeditation, in a sudden fight, in the heat of passion upon a sudden quarrel**, and without the offender's having taken **undue advantage** or acted in a **cruel or unusual manner**. **Explanation.** It is immaterial which party offers the provocation or commits the first assault.

> Ghapoo Yadav's five ingredients: "(a) without premeditation, (b) in a sudden fight; (c) without the offender's having taken undue advantage or acted in a cruel or unusual manner; and (d) the fight must have been with the person killed… all the ingredients mentioned in it must be found." A "fight" is mutual — "It takes two to make a fight… a combat between two and more persons whether with or without weapons" — distinguished from Exception 1: "in Exception 1 there is total deprivation of self-control, in Exception 4 there is only that heat of passion which clouds men's sober reason and urges them to deeds which they would not otherwise do."

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**EXCEPTION 5 — CONSENT**

Culpable homicide is not murder when the person whose death is caused, being **above the age of eighteen years**, suffers death or **takes the risk of death** with his own consent. (Illustration: instigating a child's suicide is not covered — the child cannot consent to death; euthanasia's modern law — *Common Cause* (2018) passive euthanasia — is built against this backdrop.)

**Fig. 4 — Murder proved: which Exception, if any, reduces it?**

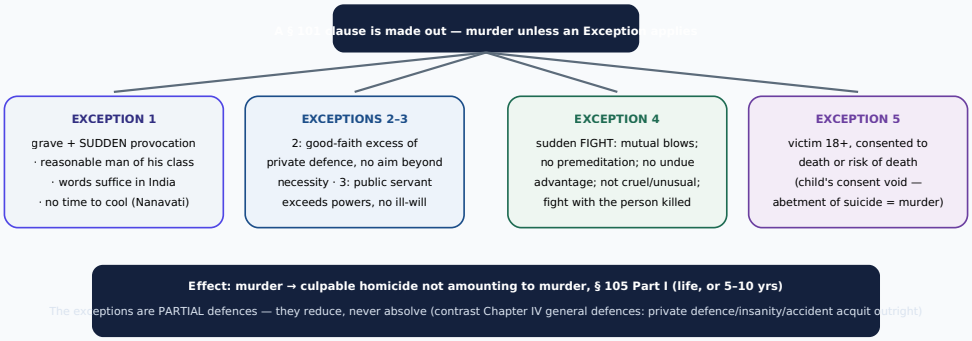



Fig. 4 — Four doors out of murder: provocation (passion against provoker), excess (honest over-reaction), fight (mutual combat), consent (victim's choice) — each a route to § 105 Part I, never to acquittal.

## 5 Punishment — BNS §§ 103–106 (IPC §§ 302–304A) and the New Lynching Law

| Offence | IPC | BNS |
|---|---|---|
| **Murder** | § 302 — death or life + fine | § 103(1) — death or life + fine (unchanged) |
| **Mob lynching** — 5+ persons acting in concert, on ground of race, caste, community, sex, place of birth, language, personal belief or similar ground | *no offence* — prosecuted as § 302 with common object (§§ 149/149A) or special laws | § 103(2) — **each member** liable to death or life + fine. NEW OFFENCE |
| **Murder by life-convict** | § 303 — *mandatory death* (struck down in *Mithu*, 1983) | § 104 — death or imprisonment for the **remainder of that person's natural life** |
| **Culpable homicide not amounting to murder — with intention** | § 304 Part I — life or up to 10 yrs + fine | § 105 Part I — life, or **not less than 5 yrs** extending to 10 yrs + fine |
| **CHnAM — knowledge only** | § 304 Part II — up to 10 yrs, or up to 10 yrs + fine | § 105 Part II — up to 10 yrs + fine |
| **Causing death by rash or negligent act** | § 304A — up to 2 yrs | § 106(1) — up to **5 yrs** (2 yrs if registered medical practitioner — the doctor-shield clause); § 106(2) hit-and-run: up to **10 yrs** + fine. NOTE |

### 5.1 The Mithu story — § 303 to § 104

IPC § 303 mandated death for murder by a person serving life — a mandatory capital sentence with no judicial discretion. In **Mithu v. State of Punjab** (1983, 3 SCC 273) a Constitution Bench struck it down as **unconstitutional**: a sentence "depriving the courts of their sane discretion... and refusing to recognize the individuality of the offender" violates Articles 14 and 21; the classification (life-convicts) bore no rational relation to a death-only rule, and a mandatory death penalty cannot be "judge-proof" in a system of individualised sentencing. The BNS now gives § 104 the constitutional form: **death, or imprisonment for the remainder of the convict's natural life** — the "remainder of natural life" phrase echoing the post-*Gopal Vinayak Godse* line that a life sentence ordinarily means life unless remitted. § 109(2) mirrors this for the life-convict who attempts to murder.

### 5.2 § 103(2) — the anti-lynching clause, from Tehseen to text

> *"...a group of five or more persons acting in concert commits murder on the ground of race, caste or community, sex, place of birth, language, personal belief or any other similar ground, each member of such group shall be punished with death or with imprisonment for life, and shall also be liable to fine."*
>
> — BNS § 103(2), Second Schedule text (emphasis on "each member" and the identity grounds)

The genealogy is **Tehseen S. Poonawalla v. Union of India** (2018) 6 SCC 72: "Mob violence and lynching are an affront to the rule of law and to the collective conscience of the nation... Hyperbolic protests against crime cannot be de facto justice; the victims of mob violence are often persons belonging to weak and marginalised sections." The Court issued preventive–remedial–punitive guidelines and **recommended that Parliament create a separate offence of lynching** with "adequate and severe punishment" — the Jan

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Vishwas-era draft anti-lynching bills (Rajasthan/Madhya Pradesh/Jharkhand 2019 state acts) pressed the same point, and § 103(2) is the answer. Its novelties to underline:

1. **Concert of five or more:** guilt without the prosecution proving which hand struck the fatal blow — an individualised § 34/§ 149 (BNS § 3(5)/§ 190) principle hard-wired into the definition.
2. **Identity-ground motive:** "race, caste or community, sex, place of birth, language, personal belief or any other similar ground" — hate as an element of murder, echoing §§ 196–197 BNS (promoting enmity) and the Court's direction in Tehseen that incitement (153A IPC/§ 196 BNS) must be punished on parity with the lynching itself.
3. **Each member:** the section drops the "in furtherance of common object" machinery — membership of the concert is enough.

**Where the death penalty stands (bridge to Unit 7's syllabus) :** § 103(1)/302 retains "death or life". The choice is governed by *Bachan Singh* (1980) — death only in the "rarest of rare" cases, with special reasons (s. 354(3) CrPC/§ 242 BNS judgment) and the mitigating circumstances of *Manoj v. State of M.P.* (2022). Machhi Singh's five categories (manner, motive, anti-social nature, magnitude, victim's identity) are the shorthand — but note for the exam that the DU paper asks you to **argue**, not recite: the syllabus's critical questions ("morality and the machinery of death") anticipate the abolitionist line.

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## 6 The Case Material — Twelve Cards

### 6.1 Rawalpenta Venkalu v. State of Hyderabad

AIR 1936 Mad 706 DU CASE MATERIAL — 2025, Unit 6, Case 1

**Facts**

A village faction-feud in the erstwhile Hyderabad State. The accused **Rawalpenta Venkalu and his brother Venkataswami**, armed, lay in wait for their enemy **Balaiah**, shut him up in a hut, set fire to the hut, and when the victim tried to break out, **repelled his rescue by threatening and beating back the persons who attempted to save him**. Balaiah died of burns. There was also a co-accused, G. Kistayya, alleged to have been present and acting in concert; the case against him rested on a **retracted confession** and on the testimony of the eyewitnesses, who were themselves partisans of the deceased's faction. The Sessions Court convicted Venkalu and Venkataswami of murder; Kistayya's conviction rested on the weaker material.

**Issues**

- Does § 300/Firstly-type "intention to cause death" require direct proof of intention, or can it be inferred from the deliberate design of the act?
- Where several persons act in concert to burn a man alive, is each responsible for the death although the actual act of setting fire cannot be attributed to each individually?
- Can a retracted confession, plus interested eyewitnesses, sustain a conviction against the co-accused?

**Arguments**

**For the appellants:** no one saw precisely which accused applied the fire; the eyewitnesses belonged to the rival faction and their word was unworthy of credit; Kistayya's confession was retracted and, being the only material against him, could not be made the foundation of a capital conviction. The intention, at highest, was to frighten or assault — fire in a village hut could not be presumed aimed at death.

**For the State:** the design spoke for itself — the hut was locked from outside, the victim was shut in, the fire was set, and when the doomed man tried to escape, rescuers were beaten back. "The intentional setting fire to the hut of a man who is inside… and the preventing of that man from coming out" left no escape from the inference of intention to kill.

**Held**

**Venkalu and Venkataswami — murder affirmed.** Intention is to be gathered from the acts done and the circumstances: locking, firing, and repelling rescue are acts which admit of no other rational inference than the intention to cause death — the **design is the proof of the mens rea**. Persons acting together in such a common design are **severally liable** for the murder: where the concerted act is one and indivisible, it is idle to ask whose hand struck the fatal spark. **Kistayya:** conviction rested on the retracted confession and interested testimony; the confession, though admissible against its maker, is **weak evidence** — his conviction could not stand on that footing (the strictness with which courts treat retracted confessions — the rule later codified in the spirit of IEA s. 24–30/BSA §§ 22–25 — is part of the case's teaching).

**Principles evolved**

- **Intention may be proved circumstantially:** a deliberate course of conduct (trap, fire, prevention of rescue) is itself the proof of clause (a)/Firstly — no confession or direct evidence of intent is needed.
- **Common intention liability (s. 34/§ 3(5)):** participants in a murderous design are answerable as principals for the resulting death.
- **Evidentiary caution:** partisanship of eyewitnesses and retracted confessions demand scrupulous scrutiny — proof of the design must be individualised except where the concert itself is indivisible.

**DU-exam hooks**

The case is the cleanest illustration that clause (a)/Firstly intention is inferential, not testimonial. Use it (i) for any "locked hut / burnt alive" problem, (ii) to open a "how is intention proved?" essay, (iii) alongside Punnayya for the § 100(a)→§ 101(a) ladder, and (iv) for common-intention severability. In the BNS, add § 3(5) (common intention) and § 190 (unlawful assembly) where a mob fact-pattern appears.

### 6.2 Palani Goundan v. Emperor

AIR 1919 Mad 409 (57 Mad 158) — Wallis C.J. and Napier J. DU CASE MATERIAL — 2025, Unit 6, Case 2

**Facts**

The husband, wishing to get rid of his wife, **struck her on the head with a ploughshare**. Believing her dead — she was in fact only unconscious — he **suspended the body by a rope from the roof to simulate suicide by hanging**. Medical evidence showed the woman was alive when strung up, and that death was caused, or at any rate completed, by the hanging. The question was whether the husband was guilty of murder of the wife, or of any homicide offence at all.

**Issues**

- Where the fatal act (hanging) is done in the honest belief that the victim is already dead, is there the mens rea for culpable homicide?

- Is intention to be judged by objective reality or by the accused's own view of the facts (his "supposed circumstances")?
- What is the liability where the first, intended act (the ploughshare blow) fell short of killing?

**Arguments**

**For the Crown:** a man who deals a mortal blow and then hangs the body has caused death by his acts taken together; the transaction is one, and the murderous disposition shown towards the wife should fix him with murder.

**For the accused:** he intended by the blow to kill, but he believed he had succeeded; the subsequent hanging was directed at a corpse — an act done on the belief that its object was dead cannot carry an intention to kill; there can be no murder of a person the accused believes to be already dead.

**Held**

**Not murder; not even culpable homicide.** Wallis C.J. (with Napier J.): for an offence under s. 299 "the offence must be committed with the intention, or knowledge, of causing death or such bodily injury as is likely to cause death; and this intention or knowledge must be **in some relation to a person who… is alive, or who is believed by the accused to be alive**". A man who, "intending to kill, inflicts what he believes to be a mortal injury, and then, thinking his victim dead, does an act to disguise the crime which in fact kills him", is not guilty of murder — nor even of culpable homicide, because the second act is done under the honest belief that life was already extinct. **Liability confined to the first act:** grievous hurt by the ploughshare blow (s. 326; § 122 BNS), plus, if charged, s. 201 (§ 238 BNS) for the attempt to destroy evidence of his own offence.

**Principles evolved**

- **The belief-dead doctrine:** homicidal mens rea must relate to a living (or believed-living) victim; acts on a supposed corpse carry no intention to kill.
- **Subjective reckoning of intention:** "the accused must be judged according to what he supposed to be the circumstances" — the mirror-image of mistake-of-fact doctrine (s. 76/§ 15): a man who fires at a tree-stump in the belief it is his enemy may be guilty of an attempt; a man who mangles a man in the belief he is a corpse is guilty of no homicide.
- **Mens rea as the definition's core:** Napier J. quoted Mayne — every offence's definition states both the act and the state of mind; whatever Parliament has not expressly made strict is presumed to require mens rea.

**DU-exam hooks**

Pair immediately with Thavamani (the distinction is a standing exam question) and with Illustration (c) of § 100. The "supposed circumstances" line is also your authority for the mens-rea essay (Dec 2015 Q1(a)). Modern charge-sheet: § 122 BNS (grievous hurt by dangerous weapons) + § 238 BNS (causing disappearance of evidence).

## 6.3 In re Thavamani

(1943) 2 Mad LJ 245 (42 Mad 547) — Horwill J. DU CASE MATERIAL — 2025, Unit 6, Case 3

**Facts**

Accused 1 attacked a woman with an aruval (bill-hook) while **accused 2 held her legs**; the blows on the head and neck were, in the event, not immediately fatal. **Believing her dead**, the two threw the "body" into a neighbouring well. Death was caused by drowning in the well. The trial court convicted both of murder; the question on revision/reference was whether the Palani Goundan rule reduced the case.

**Issues**

- Does Palani Goundan govern a case where the initial attack was itself **aimed at killing**, the fatal second act being only the completion of that same murderous purpose?
- When do two acts merge into "one continuous transaction" for the purposes of mens rea?

**Arguments**

**For the accused:** on Palani Goundan, the throwing into the well was done in the belief that death had already occurred; the drowning therefore carried no intention, and the accused could answer only for the head injuries.

**For the prosecution:** unlike the husband in Palani Goundan, these men set out to kill — one held the victim while the other hacked her; the disposal in the well was the concluding step of a single murderous enterprise. The intention to kill, formed at the inception, had not spent itself when the second act was done.

**Held**

**Murder affirmed.** Horwill J. distinguished Palani Goundan: there, the husband, **even at the time of the first act, intended only to cause bodily injury** — the intention to kill was never established as existing at the inception; here, **"the accused intended to cause death from the very commencement of their attack"**. The subsequent mistake as to the stage of their success could not dissolve the continuing intention: "the first act of assault and the second act of throwing into the well were **so closely connected in time and purpose that they must be considered as parts of the same transaction**." The mens rea — intention to kill — attached to the whole transaction, including its fatal conclusion.

**Principles evolved**

- **The Palani–Thavamani line:** the belief-dead doctrine spares only the accused whose killing-intent never existed (or expired) before the second act; where the intention to kill exists **at the inception and persists through a continuous transaction**, murder is complete though death came by the second, mistaken act.

- **One-transaction doctrine in homicide:** time, purpose and continuity of the enterprise — not the mechanical count of acts — determine whether mens rea infects the fatal act (the same reasoning later deployed in DPP v. Smith-adjacent Indian cases and in s. 301 analyses).

**DU-exam hooks**

This pair is the examiner's favourite "believed-dead" trap. The crisp answer structure: (1) What was the intention at inception? (2) Was the second act part of one continuous transaction? Kill-intent + continuity = murder (Thavamani); hurt-intent or fresh purpose = hurt + evidence-offence (Palani). Add Khandu (head blows then hut fire, treated as separate) as the third rail of the distinction.

## 6.4 Emperor v. Mushnooru S. Murthy

(1892) ILR 15 Mad 365 — full bench: Benson J., Sundara Aiyar J. (dissent), third judge concurring with Benson J.

DU CASE MATERIAL — 2025, Unit 6, Case 4

**Facts**

A government official entrusted with stores grew rich rapidly; suspicion of theft fell on him. To screen himself, he **placed poisoned halva (sweetmeat) in his office cupboard, intending that the vermin — or perhaps a search party's dog — should be destroyed**, or (the majority's reading) that whoever found and ate it would be removed. A little girl, the watchman's daughter, **found the halva, ate it, and died of the poison**. The accused was charged with her murder; the death was unquestionably caused by his act of placing the poison, through the intervening agency of the child's own act of eating.

**Issues**

- Is a person guilty of culpable homicide when the death is of a person he neither intended nor knew to be likely to die — the victim's own intervening act completing the chain?
- What does "causes death" in s. 299 require — the accused's act as causa causans (efficient cause), or merely as a link in the chain?
- How does s. 301 (now § 102) operate — and does it extend liability where the intended victim (or object) survives and another dies?

**Arguments**

**For the accused:** he aimed only at the destruction of vermin (or at protecting his stores from exposure); the girl was outside the range of any intention or knowledge; her own act of eating the sweetmeat was an independent intervening agency that broke the causal chain; s. 301 applies only where the accused intended to kill a particular person and killed another — not where he intended no human death at all.

**For the Crown:** poison placed where human beings were likely to find and eat it was an act "with the knowledge that it is likely to cause death" — the child's act in taking the bait was the very contingency the poisoner had to contemplate; s. 299's words are general: "whoever causes death by doing an act..." — no clause confines the death to the intended victim.

**Held (majority — Benson J. and the third judge; Sundara Aiyar J. dissenting)**

**Conviction affirmed (302/§ 103(1) territory — murder, transportation of life retained).** (1) **S. 299 needs no intention toward the actual victim:** "It is enough if he 'causes the death' of any one, whether the person intended to be killed or any one else" — the section's language is general; Illustration (a) (the man-trap pit) and Illustration (b) (inducing B to fire into the bush) both acquit strangers and convict the designer whose act causes the death. (2) **Efficient cause:** the accused's act was the **causa causans** — the efficient cause of the death; that the victim's own act (taking the bait) contributed, or that the chain included her innocent agency, did not exculpate: the man who sets a man-trap is not absolved because the victim's own step leads him into it. (3) **S. 301's office:** where A intends or knows his act likely to cause the death of B, and it causes the death of C, the culpable homicide is of the description it would have been had B died — the grade follows the intention toward the intended victim; the majority read it as confirmatory of, and additional to, the general words of s. 299 rather than as a restriction upon them. (4) **English law the same:** Agnes Gore (the poisoned apple intended for a husband found by a child), Saunders' Case (poisoned porridge, eaten by another), Michael's Case (poisoned flour baked and eaten by neighbours) — all held murder where the poisoner's act, through another's innocent agency, killed a person other than the one aimed at.

**Sundara Aiyar J. (dissent):** an intervening independent agency — especially the victim's own act — may break causation; s. 301 should be confined to cases where the person **intended to be killed does not die and another does**, and should not be stretched to make a man answerable for deaths outside the reasonable contemplation of his design; on his reading the accused's guilt at highest would fall short of murder.

**Principles evolved**

- **"Causing death" is a causal, not a targeting, concept:** the actus reus is complete when the accused's act is the efficient cause of a death — whoever dies, and whatever innocent agencies intervene.
- **Contributory acts of the victim no bar:** the pit-faller, the bush-shooter's inducer, the poisoner — all take the risk of the intermediate steps by which the death is brought about.
- **S. 301's grading function:** transferred malice fixes the **degree** of culpable homicide by the intention toward the intended victim — the ancestor of § 102 BNS, word for word.
- **The outer limit (Illustration (c)):** where the act was done with no homicidal intention or knowledge at all (the fowl-shooter), there is no culpable homicide — Mushnooru's majority expressly preserved this boundary.

### DU-exam hooks

The case anchors three separate questions: "cause and effect" (causation essays — cite the efficient-cause passage and the three English cases), § 102/301 problems (aim at A, kill B), and the Illustrations (a)–(c) as a set. If the paper gives a poisoned-food or man-trap problem, open with Mushnooru, apply Illustrations (a)/(b)/(c) as the three possible mental states, and grade through § 102. Note the dissent — examiners reward knowing Sundara Ayyar J.'s narrower causation.

## 6.5 Kapur Singh v. State of PEPSU

Punjab & Haryana line of cases reproduced in the DU Case Material 2023 SUPPLEMENTARY — DU CM 2023, Unit 2/3 doctrinal set

### Facts

The accused attacked his victim with a **gandasa** (heavy chopping blade) inflicting **eighteen injuries** — but **every one of them on non-vital parts** (limbs, shoulders). The injuries were individually and even collectively not shown to be sufficient in the ordinary course of nature to cause death; the medical picture was of a man hacked to maim, not to kill. Death was not the immediate result, and the inference sought was that the intention was confined to causing grievous hurt.

### Issues

- Does a large number of injuries, or the use of a lethal weapon, compel the inference of intention to kill or of Thirdly murder?
- Can a court, on the pattern and situation of the injuries, hold the intention to be "to maim, not to kill" — s. 299(b)/§ 100(b) — and convict only under s. 304 Part I/§ 105 Part I?

### Arguments

**For the State:** eighteen blows with a gandasa bespeak murderous fury; the weapon is deadly; the court should presume the intention to kill.

**For the accused:** the intention must be read from the injuries actually inflicted — all on non-vital parts, none sufficient to cause death; the man hacked to disable, not to kill; clause Thirdly fails at Virsa Singh's steps 2 and 4; the case is s. 304 Part I, not 302.

### Held

**S. 304 Part I (culpable homicide of the second degree, intention to cause bodily injury likely to cause death).** The number of injuries and the dangerousness of the weapon are not conclusive: where the injuries' **situation and pattern** show that death was neither intended nor (in the ordinary course) the natural consequence of the intended injuries, the case falls in s. 299(b)/§ 100(b) with intention only to inflict dangerous hurt — conviction under Part I, rigorous imprisonment; where death ensued on that footing, transportation for life could follow (the 2023 CM reproduces the case for this grading).

### Principles evolved

- **Injuries speak the intention:** the situation of the injuries (non-vital parts) is objective evidence of the scope of the intention — the accused is judged by the injury he intended, not by the weapon's abstract potential.
- **Eighteen is a number, not a necrology:** multiplicity of blows does not, by itself, establish an intention to kill — but note the counter-principle immediately below.
- **The Punnayya contrast (write both together):** in Punnayya the Supreme Court **rejected** the same argument — 19 injuries (9 grievous) on the limbs of a 55-year-old, held **cumulatively sufficient** in the ordinary course of nature to cause death (death by shock and haemorrhage): "bodily injury" in Thirdly includes its plural, and the doctor's cumulative-sufficiency opinion completes Virsa Singh's fourth step. Kapur Singh survives only where the cumulative medical evidence does not show sufficiency — the examiner's real question is **which of the two lines the facts track**.

### DU-exam hooks

Deploy in the "many injuries, no fatal injury" problem: state Kapur Singh (pattern of injuries limits intention), then immediately the Punnayya correction (cumulative sufficiency can still make it Thirdly), and resolve on the doctor's evidence. This exact tension is the Dec 2014 Q3(a) stove/septicemia problem's second limb.

## 6.6 Virsa Singh v. State of Punjab

AIR 1958 SC 465 — Vivian Bose J. DU CASE MATERIAL — 2025, Unit 6, Case 5

### Facts

A marriage party; the accused, drunk and armed with a spear, was dancing before it. He made an offensive remark to the complainant's wife; words followed; the bridegroom's father, Mohd. Sidik, stepped in to pacify. The accused then **thrust his spear into Sidik's abdomen** — a single thrust. The wound was about 2¼ inches by ½ to ⅜ inch; **three coils of intestine came out**. Sidik gathered them in and walked home; peritonitis set in; he died the next morning. The trial court and High Court convicted the accused of murder under s. 302, Thirdly; the defense contended the conviction was unsustainable because there was no proof he intended to cause an injury sufficient in the ordinary course of nature to cause death — indeed, that Thirdly requires an intention approximating an intention to kill.

### Issues

- Does clause Thirdly (§ 101(c)) require the offender to know, or intend, that the injury he inflicts is sufficient to cause death?
- What must the prosecution prove, and of what kind (objective/subjective) is each element?

### Arguments

**For the accused:** Thirdly speaks of "the intention of causing bodily injury… sufficient in the ordinary course of nature to cause death" — on its face the sufficiency must be intended; a rustic drunk cannot be credited with anatomical knowledge of the abdomen; at highest the case is s. 304. (The argument, Bose J. records, had found favour with Beaman J. in Sardarkhan's case in Bombay — intent linked to the seriousness of the injury intended.)

**For the State:** the clause's two limbs are separate: the intention relates to the bodily injury; the sufficiency is a matter of objective medical fact. The accused intended the abdominal thrust he gave; the injury he intended was, in the ordinary course of nature, sufficient to kill; that is all Thirdly demands.

### Held (Vivian Bose J. — appeal dismissed)

**Murder affirmed; the four-step formulation.** The clauses of s. 300 are **disjunctive and separate**; Beaman J.'s reading (intent must extend to the injury's fatal quality) rejected: it would read "intention to cause death" into a clause framed without it. The prosecution's four requirements (set out in full at § 3.3 above) — injury present; nature proved; intention to inflict **that** injury; sufficiency in the ordinary course of nature — the fourth "purely objective and inferential and has nothing to do with the intention of the offender." **Knowledge of anatomy irrelevant:** "the inquiry… should not be narrow and pedantic… broad-based and simple": the man who thrusts a spear into another's abdomen intends the injury he inflicts; he cannot claim he did not know where the abdomen is. **The escape hatch:** if the accused shows he intended a **lesser** injury — "a superficial scratch" — or that the fatal injury was accidental, Thirdly fails; but here there was no explanation at all — it would be "perverse" to hold he did not intend the very thrust he deliberately delivered (Steane v. State's reasoning accommodated: doubt about intention benefits the accused; absence of explanation permits the natural inference). Death by peritonitis three days later was death in the ordinary course of nature from the injury.

### Principles evolved

- **The Virsa Singh test** is the canonical proof-recipe for clause (c)/Thirdly — quoted in every Indian murder judgment since, and expressly adopted in Punnayya, Jassa Singh, State of A.P. v. Rayavarapu Punnayya's progeny and beyond.
- **Division of labour:** medicine proves steps 1, 2, 4; only step 3 belongs to the mind — and it asks less than the defence claims: intention as to the **kind** of injury, not its consequence.
- **Objective sufficiency:** "sufficient in the ordinary course of nature" is judged on the post-mortem findings, not on the offender's foresight.

### DU-exam hooks

Every spear-knife-lathi-death problem routes here. Quote the four steps verbatim, then run the facts through them in a numbered mini-table. If injuries are on limbs and multiple — import Punnayya's cumulative-sufficiency gloss; if the weapon penetrated a vital organ — Virsa Singh alone completes Thirdly. Note the drunk-state point: s. 85/§ 21 (voluntary intoxication) is no excuse where the basic intention to inflict the injury is proved.

## 6.7 State of Andhra Pradesh v. R. Punnayya

AIR 1976 SC 1822 = (1974) 4 SCC 381 — Sarkaria J. DU CASE MATERIAL — 2025, Unit 6, Case 6

### Facts

A factional feud village in Andhra. The victim **Kotam Raju, aged about 55**, was set upon by the accused — A-1 Gangula Satyanandam (since dead; his appeal abated) and **A-2 R. Punnayya** — near the field channel. The two beat and cut him with sticks, slippers and knives until he fell; the post-mortem disclosed **19 external injuries, of which 9 were grievous** — incised wounds, contusions and abrasions — **all on the limbs and other non-vital parts**; death was attributed to **shock and haemorrhage** from the cumulative injuries. The trial court convicted both of murder. The **High Court acquitted A-1's companions and reduced A-2's conviction to s. 304 Part II** (knowledge only), reasoning that the injuries were on non-vital parts, that there was no haemorrhage from a vital organ, and that death by "shock" could not ground Thirdly. The State appealed against the reduction.

### Issues

- Where injuries are individually non-fatal and confined to non-vital parts, but death results from their cumulative effect (shock and haemorrhage), does clause Thirdly apply?
- What is the correct method for placing a case between s. 299 and s. 300, and between the parts of s. 304?
- Were the High Court's reasons (non-vital situs, absence of internal haemorrhage, death by shock) sustainable?

### Arguments

**For A-2 (Punnayya):** the injuries were deliberately confined to the limbs; a man who avoids the vital parts evinces an intention to maim, not to kill; none of the injuries was individually sufficient in the ordinary course of nature to cause death; the death, by "shock", was an unfortunate sequel — the case at highest s. 304 Part I, properly Part II.

**For the State:** 19 injuries, 9 grievous, on a 55-year-old, in a concerted factional assault — the injuries were cumulatively sufficient in the ordinary course of nature to cause death; the medical officer's testimony supported Thirdly; the pattern of the attack (overwhelming violence) and the common intention to finish the victim made it murder.

### Held (Sarkaria J. — appeal allowed, 302 restored)

**(1) Framework:** the genus-species passage and the three degrees (quoted at § 1.1); the "keywords" comparison (reproduced at § 3.2); knowledge under Fourthly must "approximate to a practical certainty". **(2) Cumulative sufficiency:** the High Court erred

in dissecting the injuries one from the other — "bodily injury" in Thirdly takes in the plural: the question is whether the injuries intended and inflicted were **collectively** sufficient in the ordinary course of nature to cause death; the doctor's evidence that death was the cumulative result of shock and haemorrhage satisfied Virsa Singh's fourth step; Anda's case approved. **(3) Intention:** A-2 was a factional leader taking vengeance — the ferocity, number and concert of the blows evidenced the intention to inflict the very injuries that were inflicted. **(4) Result:** A-2's conviction under **302 restored (imprisonment for life)**; the High Court's 304 Part II set aside. A-1's appeal had abated on his death.

**Principles evolved**

- **Cumulative-sufficiency rule:** Thirdly is satisfied where the ensemble of intended injuries is sufficient to kill — non-vital situs is not a talisman.
- **The three-degree doctrine** and the **keyword method** for 299/300 — the standard examination framework for the whole subject.
- **304 Part II (knowledge) cannot be the refuge** where intention to inflict grievous injuries is proved and the injuries are cumulatively sufficient — that is murder; if intention is proved but sufficiency is not, it is Part I, not Part II.

**DU-exam hooks**

The single most quotable case in the unit. Memorise the genus-species paragraph and the three degrees; deploy the keyword table; and use the cumulative-sufficiency point to defeat every "only limb injuries" defence — with Kapur Singh as the honest counter-example. Also the answer's closing line for Dec 2014 Q3(a).

## 6.8 Emperor v. Mt. Dhirajia

AIR 1940 All 275 — Allahabad High Court DU CASE MATERIAL — 2025, Unit 6, Case 7

**Facts**

A young wife, six months pregnant, lived with her husband in her father's house; her father-in-law and husband had earlier driven her out, and there had been quarrels and threats. One dawn, while the household slept, she took her **six-month-old baby** and slipped out to go to her parents. The husband woke, pursued, called out; she, in terror of being caught and of what would follow, either jumped or fell into a **well**, clutching the baby. She was rescued alive; **the baby died**. She was convicted under ss. 302/304 and 309 IPC (attempt to commit suicide).

**Issues**

- Does leaping (or falling) into a well with a child, to escape a pursuing husband, amount to murder under Fourthly — an act "so imminently dangerous that it must in all probability cause death"?
- What is the relation between intention and knowledge — can panic exclude intention yet leave knowledge intact?
- Is jumping into a well in panic an "attempt to commit suicide" requiring a conscious endeavour to die?

**Arguments**

**For the prosecution:** whatever her fear, a sane woman leaping into a well with a baby knows the act must in all probability cause the baby's death; Fourthly is satisfied; and her own jump proves the deliberate taking of her life (309).

**For the accused:** she acted in blind panic — no capacity to reason, hence no intention; no cool choice of death, hence no attempt to die; her flight was from her husband's threats, not toward the well.

**Held (acquittal on 302; 304 Part II; 309 acquittal affirmed)**

**(1) Knowledge present:** "Some degree of knowledge must... be attributed to every sane person", however primitive or however frightened — jumping into a well with a baby in arms can "but for a miracle" have one conclusion; the knowledge clause of s. 299(c) was satisfied. **(2) Intention excluded by panic:** "In order to possess and to form an intention there must be a capacity for reason. And when by some extraneous force the capacity for reason has been ousted, it seems to us that the capacity to form an intention must have been unseated too." **(3) Fourthly fails on its own words:** the clause requires the act to be done **"without any excuse for incurring the risk"** — "She feared her husband and she had reason to fear him... We think she had excuse and that that excuse was panic or fright." Not murder; **304 Part II** — culpable homicide by knowledge alone. **(4) s. 309:** attempt to suicide requires a **conscious endeavour to die**; a panic-stricken leap is not the formation of that purpose — Lukada (leaping into a well after a scolding, held 309) distinguished as involving an actual, present purpose to die; acquittal on 309 restored. (Note: s. 309/§ 108 BNS — attempt to commit suicide — survives only as to its penal limb for others; § 108 preserves it, and note the MVA-assisted dying discussion in Common Cause for the modern frame.)

**Principles evolved**

- **Intention needs reason; knowledge is universal:** panic, fright, coercion of circumstance may oust intention while leaving intact the knowledge that makes an act s. 299(c)/§ 100(c) culpable homicide.
- **"Without any excuse" is a real element of Fourthly:** a genuine, humanly intelligible excuse (panic from real threat) downgrades Fourthly murder to third-degree culpable homicide — the law's safety valve.
- **Attempt to suicide demands conscious endeavour:** reflexive or panic flight into danger is not an attempt at self-murder.

**DU-exam hooks**

The case to cite whenever a mother-child drowning/well/burning problem appears — always pair with Gyarsibai (next card): same clause, opposite result, and the pair teaches that "excuse" is a fact-question measured at the moment of the act. Also the standing authority for the intention/knowledge distinction essay.

by Ankur R. Upadhyay

## 6.9 Gyarsibai v. The State

AIR 1953 M.B. 61 — Madhya Bharat High Court DU CASE MATERIAL — 2025, Unit 6, Case 8

### Facts

A young wife harassed by her sister-in-law. One day she **announced she was going to drown herself**, took her **three children (aged about 7, 5 and 1½)** to a well and threw herself in with them. The children died; she survived. Convicted under ss. 302 and 309; transportation for life.

### Issues

- Where a mother deliberately jumps into a well with her children, is the act done "without any excuse" within Fourthly?
- From whose standpoint is the excuse judged — the distraught actor's, or the reasonable, sane person's?

### Arguments

**For the accused:** she was a harassed young mother, provoked beyond endurance by the sister-in-law's cruelty — Dhirajia's panic-excusse should apply; at highest 304.

**For the State:** she **proclaimed** her intention, collected her children, and executed it — deliberation, not panic; no excuse can justify taking three children's lives; Fourthly is complete.

### Held

**Conviction under 302 affirmed.** The knowledge that jumping into a well with three children must in all probability cause death is undeniable — she announced the very act in advance. On excuse: "we must take into account **the state of mind of a reasonable and legally sane person** and then determine whether the risk of the kind referred to in the fourth clause... could have been avoided" — the sister-in-law's attitude, however cruel, was **no excuse for taking away the lives of three children**. Distinguished from Dhirajia: there, sudden panic in flight; here, an announced and deliberate act. Murder stands; but the court **recommended commutation of the capital element — transportation for life, with a recommendation for commutation to about 3 years' rigorous imprisonment**, recognising the mitigation of her domestic provocation in the sentence, if not in the offence. Conviction under **309 affirmed**: unlike Dhirajia, here there was a conscious effort at self-destruction — she had announced it and carried it out.

### Principles evolved

- **The objective-excuse standard:** Fourthly's "excuse" is measured from the standpoint of a reasonable, sane person — genuine panic may qualify (Dhirajia), but deliberation, however emotionally distressed, does not.
- **Announcement = deliberation:** prior declaration of intent to jump removes the case from the refuge of sudden panic.
- **Offence vs sentence:** the court's power to recommend commutation shows the two-track response — full murder liability with humane sentencing — the pattern modern law follows for battered and provoked offenders.

### DU-exam hooks

Always argue Dhirajia and Gyarsibai as a matched pair on the "excuse" element. Exam formulation: "The difference between panic and resolve is the difference between 304-II and 302." Cite also for the 309 conscious-endeavour rule, and as the foil in any infanticide-by-mother problem.

## 6.10 K.M. Nanavati v. State of Maharashtra

AIR 1962 SC 605 — Subba Rao J. (for the Court) DU CASE MATERIAL — 2025, Unit 6, Case 9

### Facts

Commander K.M. Nanavati, a naval officer, returned from a voyage; his English-born wife **Sylvia** confessed to him (18 April 1959) that she was in love with **Prem Ahuja**, a wealthy Bombay businessman, and that Ahuja had used her. On 27 April, after a family lunch and a cinema programme, Nanavati dropped his wife and children at the Metro cinema (about 1.30 p.m.), went to his ship, obtained a revolver and six cartridges from the ship's stores **on the false pretext that the property was being stolen and he needed to check it**, drove to Ahuja's office and then, not finding him there, to his flat. He entered Ahuja's bedroom, sent away the servant, shut the door, and confronted Ahuja (then in a towel after his bath) with "Will you marry my wife?... Will you look after my children?" Ahuja's answer — "I am not going to marry every woman I sleep with" (or, in the defence version, an abusive retort) — was followed by **three shots** from Nanavati's revolver at point-blank range; Ahuja died. Nanavati then went to a Parsi trustee and confessed, handed over his revolver, and surrendered to the police. **A jury (9–3) acquitted him.** The High Court (on reference under the then s. 307 CrPC) set the verdict aside as perverse and convicted him of murder; he appealed to the Supreme Court.

### Issues

- Was the jury's acquittal perverse — unsupported by the evidence and the law?
- Did the killing fall within Exception 1 (grave and sudden provocation) — or within the third proviso's bar (provocation sought as an excuse) or the rule that premeditation defeats the exception?
- What is the correct statement of the Indian law of provocation (words, class-of-society standard, cooling time)?

### Arguments

**For Nanavati:** a wronged husband, deceived by a predator who exploited his absence at sea; the confession of adultery (analogous to the sight of adultery) was grave provocation; the final abusive answer in the bedroom was the spark; he had no intention to kill when he went to the flat — he took the gun innocently (to deposit it safely); the shots were fired "in the heat of the moment". The jury, the judges of fact, had believed him.

**For the State:** the sequence of conduct was murderous by design — the false pretext to obtain the revolver, the loading, the drive, the shutting of the bedroom door, the despatch of the servant; the provocation (if any) had cooled between 18 and 27 April; the bedroom exchange, if there was one, came **after** he had already resolved and prepared to shoot — the provocation was "sought" as an excuse (proviso (a)).

### Held (Subba Rao J. — appeal dismissed; murder affirmed, life imprisonment)

**(1) Jury verdict perverse:** the acquittal was "so unreasonable" that no reasonable body of persons could have reached it on the evidence; the High Court rightly re-appreciated the evidence. **(2) The four principles** of Indian provocation law (§ 4.1 above) — reasonable man of the **same class of society**; words and gestures *can* suffice (Indian law rejecting the English mere-words rule); the mental background (Khogayi, Boya Munigadu, Balku, Babu Lal — prolonged passion re-ignited by a fresh cause); fatal blow before passion cools, without premeditation. **(3) Application:** even assuming Sylvia's confession of 18 April was grave provocation, by 27 April — after dropping the family at the cinema, going to the ship, drawing and loading the revolver, driving to the office and the flat — **"the accused had time to regain his self-control"**; the three-hour window and the false pretext and the loaded gun showed deliberation and preparation: "the murder was a deliberate and calculated one." Entering the bedroom to confront Ahuja meant any exchange there **followed** the resolution to shoot — provocation voluntarily sought as an excuse (first proviso); Ahuja's answer, at highest, only "equally abusive" words after the design was formed. **(4) Intention proved:** three shots at point-blank range through the towel into the chest — intention to kill beyond doubt; "the doctrine of provocation… is negatived by proof of intention to kill" (Mancini, Holmes, Duffy applied). **Result:** conviction under 302 restored — life imprisonment; the mercy plea to the Governor (the last jury trial's political aftermath) lay outside the judgment.

### Principles evolved

- **The Indian provocation formula** — the four principles — is the exam statement of Exception 1 law.
- **Cooling-off as fact of design:** time enough to prepare (gun, pretext, journey) proves reassertion of self-control and converts "provocation" into "premeditation".
- **Words suffice — but must operate:** India's rejection of the English mere-words rule sits beside the rule that a reply engineered by the killer cannot provoke.
- **Provocation and intention are opposites:** reliance on a formed intention to kill defeats the exception as surely as lapse of time.

### DU-exam hooks

The most famous trial in Indian criminal law — use it for Exception 1 essays AND for the critical/gendered reading (O'Donovan): the "reasonable man of the same class" includes husbands of the officer class, but battered women who kill after years of abuse still struggle to fit the "sudden" frame — the reform argument the syllabus's critical questions invite. Also the answer-frame for Dec 2015 Q3(a)-type problems (police provoke + knife).

## 6.11 Ghapoo Yadav v. State of Madhya Pradesh

Supreme Court (DU CM 2025 extract) DU CASE MATERIAL — 2025, Unit 6, Case 10

### Facts

A village affray: the deceased and his group on one side, the accused (seven tried) on the other. A **sudden quarrel** erupted (over a trivial everyday matter); blows were exchanged on the spot — the classic mutual combat. In the melée the accused party assaulted the deceased with fists, feet and lathis; **only one of the seven injuries was grievous**; no deadly weapons of the kind that bespeak premeditation were deployed by the accused. The deceased died. The trial court convicted the accused under **302 read with s. 149** (common object); the High Court affirmed; the accused invoked Exception 4.

### Issues

- When does a killing in a brawl fall within Exception 4 (sudden fight) rather than murder?
- Are the ingredients of Exception 4 conjunctive or alternative — and who bears the consequence of uncertainty?
- What is the sentence for CHnAM under Part I where the exception applies?

### Arguments

**For the accused:** no premeditation — the quarrel arose on the spur of the moment; the fight was mutual (blows given and received); no undue advantage was taken — no weapons against unarmed men, no cruelty; the case is squarely Exception 4, punishable under 304 Part I.

**For the State:** seven men against one; the group had come prepared; the assault was one-sided despite the initial exchange — a "fight" requires equality of combat; the injuries (including one grievous) show a determination beyond heat of passion.

### Held

**Exception 4 applied — 302/149 set aside; 304 Part I substituted.** The Court restated the ingredients: the killing must be (a) **without premeditation**; (b) **in a sudden fight**; (c) **in the heat of passion upon a sudden quarrel**; (d) **without the offender taking undue advantage or acting in a cruel or unusual manner**; and the fight must have been with the person killed. "**All the**

**ingredients mentioned in it must be found co-existing**" — conjunctive, not alternative. A "fight" presupposes mutual provocation and combat: "**It takes two to make a fight**... an exchange of blows... whether with or without weapons"; heat of passion means "that passion which clouds men's sober reason and urges them to deeds which they would not otherwise do" — distinguished from Exception 1's total deprivation of self-control. **Undue advantage = unfair advantage:** attacking with weapons an unarmed man, striking a fallen foe, numerical ambush — none present here; **sudden fight is a question of fact** in each case (the Explanation's point: it matters not who struck first or provoked). On sentence: **10 years** rigorous imprisonment under Part I, following **Sukhbir Singh v. State of Haryana** ((2002) 3 SCC 327) — where Exception 4 reduces murder to Part I CHnAM, **ten years is the normative sentence** (and remission below requires special reasons).

### Principles evolved

- **Conjunctive-ingredients rule** for Exception 4 — and, by parity, for every partial defence: the court must find each element on the facts.
- **"Takes two to make a fight":** mutuality of combat is of the essence; a one-sided beating is not a "fight" (though the first provoker and first striker are irrelevant, per the Explanation).
- **Exc 1 vs Exc 4 articulated:** total loss of self-control (provoker's person) vs heat of passion on equal footing (mutual combat) — a standing distinction question.
- **Sukhbir Singh norm:** 10 years as the standard Part I sentence in exception cases — the sentencing peg for all such answers.

### DU-exam hooks

The first case to reach for in any "sudden quarrel + melée + death" problem. Structure: check each ingredient (a)–(d) separately; a failure of any one keeps the case in murder. Contrast with Nanavati (Exception 1's psychology) and with Dhirajia (Fourthly's excuse). In the BNS: § 105 Part I (5–10 yrs or life) + Sukhbir Singh's 10-year norm as the working sentence.

## 6.12 Tehseen S. Poonawalla v. Union of India

(2018) 6 SCC 72 — Dipak Misra C.J. (with A.M. Khanwilkar and D.Y. Chandrachud JJ.)

DU CASE MATERIAL — 2025, Unit 6, Case 11

### Facts

A wave of mob lynchings 2015–2018 — cattle-transport rumours, child-kidnapping WhatsApp forwards, "gau rakshak" vigilantism — claimed lives across the country (Dadri 2015; Jharkhand, Haryana, Rajasthan, Karnataka, Maharashtra). Petitions (Tehseen Poonawalla and others, including Tushar Gandhi) sought directions against mob violence and hate speech. The Union and States were heard; the Court undertook to frame preventive, remedial and punitive guidelines and to consider whether a special offence was needed.

### Issues

- How should the constitutional order respond to lynching — violence by private mobs on rumours and identity grounds?
- What directions can be issued to the police and civil administration (preventive and remedial), and what accountability follows deliberate official failure (punitive)?
- Should Parliament create a separate offence of lynching?

### Arguments

**For the petitioners:** lynching had become systematic; rumours of cattle-theft and child-kidnapping circulated on social media were triggering mob murders; the State police stood by or were complicit; existing offences (302, 147–149, 153A) were inadequate because the mob's collective anonymity defeated individual attribution; the Court should lay down guidelines (as in Vishaka) and compel a special law.

**For the Union/States:** law and order is a State subject; existing provisions sufficed; the Centre had issued advisories; a judicially-crafted offence would trench on the legislature's domain.

### Held

**The vision:** "Mob violence and lynching are an affront to the rule of law and to the collective conscience of the nation... **Hyperbolic protests against crime cannot be de facto justice**"; the mob cannot replace courts; "the victims of mob violence are often persons belonging to weak and marginalised sections" — hate violence attacks the constitutional values of equality and dignity. **The guidelines (now the template § 103(2) operationalises): A. Preventive:** a **Nodal Officer** (SP-rank) in every district, assisted by DSP-rank officers, to identify areas prone to lynching (hot-spot mapping, within three months); police patrolling; dissemination of warnings against rumour-mongering; **s. 129 CrPC** (now BNSS § 163) dispersal of unlawful assemblies; **FIRs under s. 153A/§ 196 BNS against those inciting** mobs; curbs on inflammatory broadcasts and social-media forwards. **B. Remedial:** immediate FIR on any lynching incident; investigation monitored by the Nodal Officer and Superintendent of Police; chargesheet within the statutory time; **compensation to victims' families under the s. 357A CrPC scheme** (BNSS § 396 successor). **C. Punitive:** departmental action against police/officials whose **deliberate negligence or connivance** enabled lynching — following *Arumugam Servai v. State of Tamil Nadu* ((2011) 6 SCC 403, suo motu action against officials who fail to prevent); inquiries to conclude within **six months**. **Compliance:** States and the Centre to implement within four weeks; the measure in compliance reports to be reviewed. **On the special offence:** the Court "recommend[ed] to the Central Government and the State Governments to consider enacting a special law prescribing severe punishment for lynching" — deliberately leaving definition and sentence to Parliament. The BNS's § 103(2) is the legislative answer: five or more persons, acting in concert, murdering on any of the listed identity grounds — each member liable to death or life.

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**Principles evolved**

- **Lynching as a rule-of-law offence, not a law-and-order event:** the private mob's assumption of the judicial function is itself the constitutional harm.
- **Judge-made governance guidelines in the Vishaka tradition** — the triple preventive/remedial/punitive template now standard for institutional-failure cases.
- **Incitement punished at parity:** rumour-mongers and 153A/§ 196 offenders are accessories to the mob's crime, not mere speakers.
- **The genealogy of § 103(2):** judicial recommendation → legislative enactment — the modern example (with Vishaka) of the dialogue between Court and Parliament that the DU syllabus's "critical questions" invite you to discuss.

**DU-exam hooks**

Any lynching question (a 2024+ exam certainty after the BNS) must run: Tehseen's account of the harm → the three guideline families → § 103(2)'s text (five or more, concert, identity grounds, each member) → the evidentiary simplification it achieves over § 190/149. Pair with Rawalpenta (concert/individual responsibility) and with the s. 3(5)/§ 34 general principles for the "whose hand struck" problem.

## 7 The Distinctions Hub — Every "Difference Between" the Paper Can Ask

### 7.1 Culpable homicide (§ 100/299) vs Murder (§ 101/300)

| Point | Culpable homicide | Murder |
|---|---|---|
| **1. Position** | Genus — the wider definition; every murder is first culpable homicide (Punnayya) | Species — culpable homicide with the special characteristics of the four clauses |
| **2. Intention** | (b) intention to cause injury **likely** to cause death — probability, and no knowledge of the victim's frailty needed | (a) intention to cause death; (b) intention + knowledge of the **particular victim's** fatal frailty; (c) intention to cause the injury (its sufficiency objective — Virsa Singh) |
| **3. Knowledge** | (c) knowledge of **likelihood** of death | (d) knowledge that the act is **so imminently dangerous it must in all probability cause death — without excuse** (Punnayya: approximates practical certainty) |
| **4. Defences** | Exceptions 1–5 operate to keep the case within the genus | Once a clause is satisfied and no exception applies, § 103/302 follows; the exceptions reduce, never acquit |
| **5. Punishment** | § 105/304 Part I (life or 5–10 yrs) / Part II (≤10 yrs) | § 103/302 — death or life + fine |
| **Authority column** | Dhirajia (panic — 304 II); Kapur Singh (limbs-only hacking — Part I); Ghapoo Yadav (sudden fight — Part I + Sukhbir Singh 10 yrs) | Rawalpenta (design — (a)); Virsa Singh (spear-thrust — (c)); Punnayya (cumulative sufficiency — (c)); Gyarsibai (no excuse — (d)); Nanavati (exception fails → 302) |

### 7.2 Culpable homicide vs Causing death by rash or negligent act (§ 106/304A)

| Point | § 100/299 (culpable homicide) | § 106(1)/304A (rash/negligent death) |
|---|---|---|
| **Mental element** | Intention to cause death or likely-fatal injury, OR knowledge of likely death — a **homicidal** mens rea | Only rashness or negligence — **no intention and no knowledge of likely death**: the risk taken (or not noticed) falls short of knowledge that death is likely |
| **Line of demarcation** | Knowledge that the act is likely to cause death — however imputed (Dhirajia: knowledge is universal) | Once the actor knows death is likely, § 106 is excluded and § 100(c) applies (the Dec 2014 Q3(b) bus case's exact question) |
| **Act** | Any act (or illegal omission, s. 8/§ 2(1)) — even a lawful act done with the guilty knowledge | A rash or negligent act **other than** homicide/rash-negligent driving (the explanation of scope: § 106(2) now takes hit-and-run driving into its own aggravated clause, up to 10 years) |
| **Punishment** | Up to life (§ 105) | Up to 5 years (BNS raised it from 2; 2 years for registered medical practitioners — the medical-negligence shield) |
| **Case anchors** | Dhirajia (304 II), Gyarsibai, Punnayya | The bus-overturn/rash-driving problems; Jacob Mathew (2005) for the medical-negligence standard (for Unit 7 study) |

### 7.3 Intention vs Knowledge

| Point | Intention (§ 100(a)–(b); § 101(a)–(c)) | Knowledge (§ 100(c); § 101(b), (d)) |
|---|---|---|
| **Nature** | The directing of the will to a result — foresight of the consequence **desired** | Conscious awareness of a consequence as **probable**, whether desired or not |

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| Point | Intention (§ 100(a)–(b); § 101(a)–(c)) | Knowledge (§ 100(c); § 101(b), (d)) |
|---|---|---|
| **Capacity needed** | "In order to possess and to form an intention there must be a capacity for reason" — panic, sudden terror may oust it (Dhirajia) | "Some degree of knowledge must be attributed to every sane person" — panic does not destroy it (Dhirajia) |
| **Proof** | Inferred from design and conduct (Rawalpenta: lock, fire, repel rescue); presumed from the act unless explained (Virsa Singh step 3) | Imputed from the nature of the act itself — the well, the crowd, the weapon (Dhirajia; Gyarsibai; the § 101(d) illustrations) |
| **Effect on clause** | Drives (a)–(c): the first three clauses of murder are intention-led | Drives (d): must "approximate to a practical certainty" and be "without excuse" (Punnayya ¶ 20; Dhirajia/ Gyarsibai on excuse) |
| **Grading result** | Intention + sufficiency → murder; intention without sufficiency → 304 Part I | Knowledge alone → 304 Part II (Dhirajia); knowledge + no excuse + practical certainty → murder (Gyarsibai) |

**Fig. 5 — The mens rea ladder: from accident to intention**




Fig. 5 — Where a killing sits on this ladder fixes the section; the right-hand column lists the doctrines that pull a case back down it.

## 7.4 Exception 1 vs Exception 4

| Point | Exception 1 — provocation | Exception 4 — sudden fight |
|---|---|---|
| **Psychology** | **Total deprivation of self-control** by grave and sudden provocation | Heat of passion — passion "which clouds men's sober reason", but self-control not totally lost; the parties are on an equal footing |
| **Source** | Provocation by the victim (or his act) — words and gestures suffice in India (Nanavati principle 2) | Mutual provocation and combat — "**it takes two to make a fight**" (Ghapoo Yadav); first provoker/first striker irrelevant (the Explanation) |
| **Target** | The provoker — or another by **accident or mistake** (illustrations (a), (b), (f)) | The person with whom the fight occurred — a requirement that the fight be with the person killed |
| **Barred by** | Provisos: provocation sought; law/public servant; private defence — and by cooling time/premeditation (Nanavati) | Undue (unfair) advantage; cruel or unusual manner; premeditation — all ingredients conjunctive (Ghapoo Yadav) |
| **Household names** | Nanavati (exception fails); Mancini/Holmes/Duffy (English); Khogayi–Balku line (mental background) | Ghapoo Yadav (exception applies, 304 I, 10 yrs per Sukhbir Singh) |

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## 7.5 The believed-dead trio — a decision flow

**Fig. 6 — Second act on a believed corpse: murder, hurt, or nothing?**

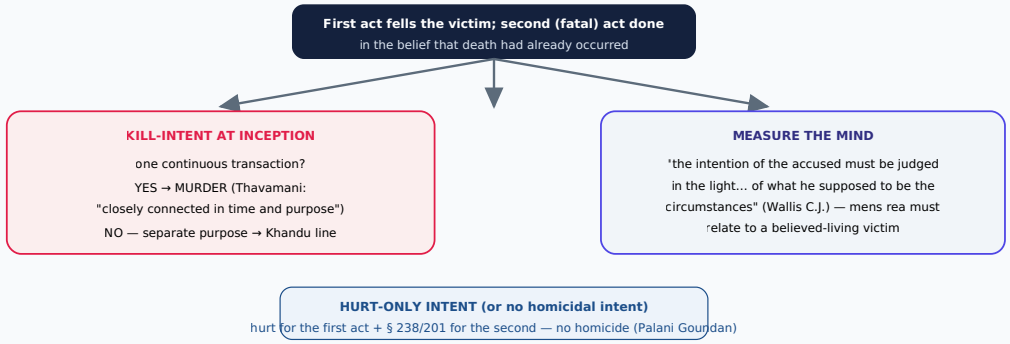



Fig. 6 — The examiner's believed-dead trap in one picture: find the intention at inception, test the transaction's continuity, and grade accordingly.

EXAMINATION QUESTION BANK // DU LL.B. PAPER LB-104

## Previous Year Examination Questions (PYQs)

**Q.01** DU December 2014 Arguments between X (husband) and W (wife) on repayment of loan to the Bank, turned ugly. Husband slapped his wife and not satisfied with this threw a burning stove (kerosene oil) on her. The oil with flame resulted into fire in which the wife was engulfed. Husband tried to dose it off. However, the burn injuries were beyond 70% which resulted into death of the wife four days later in the hospital. Determine the liability of the Husband X in the case.

◈ Refer website for detailed notes — makelaweasy.in ↗

**Q.02** DU December 2014 Due to rivalry arising out of landed property between A and B, A caused multiple injuries to B on various parts of body to teach him a lesson. B was admitted to the hospital, where he was treated and discharged. When B was on his way to recovery, he became negligent about his medicines. He, therefore, developed fever and septic of two wounds. B died a week later. State the liability of A. Cite relevant legal provisions and decided cases.

**Q.03** DU December 2014 Accused X was running a bus at a high speed on a dusty and damaged road. While negotiating a curve with the same speed, without applying brakes, the bus over turned, killing a pedestrian and injuring some of the passengers. Prosecution is interested to prosecute X under Section 304-A of IPC. Can they do so and will they succeed? Give reasons.

**Q.04** DU December 2014 Due to breaking of communal riots between community A and B, members of community A caused loot, plunder and fire of the property belonging to members of community B. X, who was a member of community B was also targeted. He tried to remain within closed door, to save himself and his family. However, the mob reached and started knocking at his door. Before the mob could enter, X fired from his licensed revolver and killed a member out of the mob. Mr. X is charged of murder, however he pleads his right of private defence against his charge. Can he do so? Give reasons.

**Q.05** DU December 2015 Raghav Ram, a film actor, was returning from a party past midnight when he dozed off and the car that he was driving ran over two persons sleeping on the pavement killing them and thereafter rammed into a pole. He was jolted out of sleep by the impact of the accident when his car hit the pole. Tests confirmed high dosage of alcohol in his blood. Discuss his liability for the death of those two persons.

**Q.06** DU December 2015 A, a police sub-inspector, in exercise of his lawful powers goes to the house of a murder suspect, B, to arrest him. The sub-inspector behaves in an unusually high-handed manner that provokes B. Due to this, B picks up a kitchen knife lying nearby and thrusts it into the abdomen of A resulting in grievous injury and ultimately death of A. During trial B pleads the defence of grave and sudden provocation. Decide.

**Q.07** DU December 2015 Explain the rationale behind punishing a person guilty of a strict liability offence in the absence of guilty mind.

**Q.08** DU December 2014 Write a note on: Grave and Sudden Provocation.

UNIT 07 // DU LL.B. PAPER LB-104 (BNS & IPC) 3 Prescribed Cases · 8 Exam PYQs

# Offences Affecting Life (Part II) — Death by Negligence, Organised Crime & Terrorist Act

## PART II The Statutory Framework: IPC ↔ BNS Correspondence

The Bharatiya Nyaya Sanhita, 2023 re-numbers the entire chapter "Of Offences Affecting the Human Body" (BNS Chapter V, §§ 99–136) which in the IPC was Chapter XVI (§§ 299–376). For offences affecting life the correspondence, as tabulated in the DU BNS–IPC Comparative Table (course material), is:

| BNS, 2023 | Heading | IPC, 1860 | Nature of change |
|---|---|---|---|
| § 100 | Culpable homicide | § 299 | Re-enacted |
| § 101 | Murder | § 300 | Re-enacted |
| § 102 | Culpable homicide by causing death of person other than person whose death was intended | § 301 | Re-enacted |
| § 103 | Punishment for murder | § 302 | Changed (life = remainder of natural life; conclusive presumption clause added) |
| § 104 | Punishment for murder by life-convict | § 303 | Changed |
| § 105 | Punishment for culpable homicide not amounting to murder | § 304 | Changed (minimum 5 years in intention-limb) |
| § 106 | Causing death by negligence | § 304A | Changed — punishment raised 2→5 yrs; medical-practitioner proviso (2 yrs); new sub-s.(2) hit-and-run (10 yrs) |
| § 111 | Organised crime | — | NEW SECTION (no IPC counterpart) |
| § 112 | Petty organised crime | — | NEW SECTION |
| § 113 | Terrorist act | — | NEW SECTION |

Exam alert — commencement note on § 106(2) The DU BNS–IPC Comparative Table records that **"Section 106(2) of BNS shall not come into force on 1st July 2024"** — i.e., the hit-and-run clause (up to 10 years) was kept in abeyance at commencement following nationwide protests by the transport sector. The **registered-medical-practitioner proviso in § 106(1)** (maximum two years) was inserted by the **Bharatiya Nyaya (Second Amendment) Act, 2025** passed by Parliament in August 2025 after sustained protests by the medical community; the consolidated provision reproduced in Part III below is the amended text as supplied in the course gazette. Mention both points in any §106 answer for "latest legislative development" credit.

========== PART III ==========

## PART III Theoretical Foundation — Mens Rea, Rashness and Negligence

Before entering § 106, the DU casebook builds the mental-element ladder in its general-principles chapter. Negligence occupies its lowest rung — and it is the only rung on which a person may be punished for harm he *neither intended nor foresaw*.

### 3.1 The four mental states (DU Casebook, general principles)

- **Intention** — the desired consequence; foresight plus desire.
- **Knowledge / recklessness** — "Intention cannot exist without foresight, but foresight can exist without intention. For a man may foresee the possible or even probable consequences of his conduct and yet not desire this state of risk of bringing about the unwished result. This state of mind is known as 'recklessness'. The words 'rash' and 'rashness' have also been used to indicate this same attitude." (Law of Crimes-I Casebook, p. 18)
- **Negligence** — "If anything is done without any advertence to the consequent event or result, the mental state in such situation signifies negligence... The word 'negligence', therefore, is used to denote **blameworthy inadvertence**." (ibid.)
- **No fault / pure accident** — harm that a reasonable man would not have foreseen or avoided: "the harm must lie where it falls."

Casebook theory — why negligence is punished at all "Strictly speaking, negligence may not be a form of mens rea. It is more in the nature of a legal fault. However, it is made punishable for a utilitarian purpose of hoping to improve people's standards of behaviour. Criminal liability for negligence is exceptional at common law; manslaughter appears to be the only common law crime which may result from negligence." And: "the wilful wrong doer is liable because he desires to do the harm; the negligent wrong doer is liable because he does not sufficiently desire to avoid it... it is on this ground that negligence is treated as a form of mens rea, standing side by side with wrongful intention as a formal ground of responsibility." (Law of Crimes-I Casebook, pp. 18–19)

**Advertent vs inadvertent negligence (wilful negligence = recklessness)**

"Advertent negligence is commonly termed as wilful negligence or recklessness... In the former the harm done is foreseen as possible or probable but it is not willed. In the latter it is neither foreseen nor willed." The casebook's illustration: *the physician who*

*treats a patient improperly through ignorance or forgetfulness is guilty of simple (inadvertent) negligence; but if he does the same to save himself trouble, or by way of scientific experiment with full recognition of the danger, his negligence is wilful.* Advertent negligence shades into the "rashness" of § 106; inadvertent negligence of a gross degree is the "negligence" of § 106.

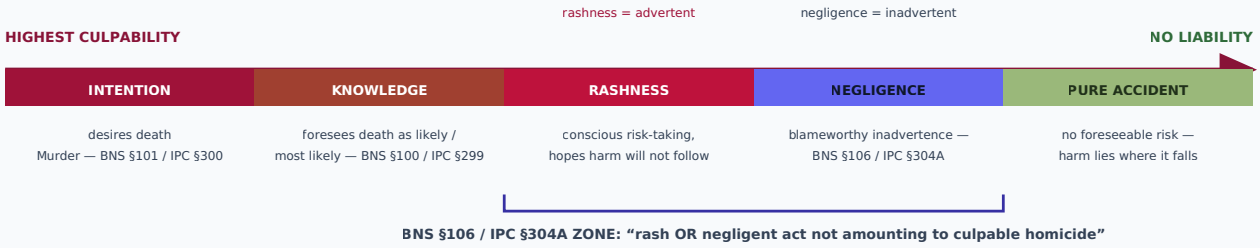



FIG. 2 — THE CULPABILITY SPECTRUM: §106/304A occupies the band between culpable homicide and pure accident (degrees per State of A.P. v. R. Punnayya, AIR 1977 SC 45)

### 3.2 Negligence in tort vs negligence in crime

The tortious template — **duty of care → breach → causation of damage** — is borrowed by the criminal law, but criminal liability demands a *higher degree*. The DU exam-format material and *Jacob Mathew* both stress the divide:

| Point | Civil negligence | Criminal negligence (BNS §106 / IPC §304A) |
|---|---|---|
| Meaning / standard of care | Falling short of the standard of reasonable care; courts insist on the appropriate standard of care of the reasonable man. | Requires **gross or very high degree** of negligence — "culpable or gross and not the negligence merely based upon an error of judgment". |
| Degree | Degree of negligence is irrelevant to liability; it matters only to quantum of damages. | Liability itself is decided on the **amount and degree** of negligence; "the expression 'rash or negligent act' as occurring in Section 304A has to be read as qualified by the word 'grossly'" (Jacob Mathew). |
| Nature of proceeding | Civil suit between two persons. | Criminal prosecution — the offence is treated as one against the State. |
| Standard of proof | "A mere preponderance of probability is sufficient, and the defendant is not necessarily entitled to the benefit of every reasonable doubt." | "The persuasion of guilt must amount to such a moral certainty as convinces the mind of the Court, as a reasonable man, beyond all reasonable doubt." (Syed Akbar v. State of Karnataka, adopted in Jacob Mathew & DU exam material) |
| Remedy | Damages (compensation). | Punishment — imprisonment and/or fine. |
| Classic authority | *Blyth v. Birmingham Waterworks* (1856) 11 Ex Ch 781. | *Andrews v. DPP* [1937] AC 576 (Lord Atkin): "Simple lack of care such as will constitute civil liability is not enough; for purposes of the criminal law there are degrees of negligence; and a very high degree of negligence is required to be proved before the felony is established." |

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`Principle` Criminal negligence is not a separate mental state but a **degree-qualified** one: the same carelessness that founds a civil suit founds a prosecution under §106/304A only when it is so gross that it exhibits a reckless disregard of human life — "a very high degree of negligence" (Lord Atkin) or, in Indian formulation, "gross and culpable neglect" (Straight, J., *Empress v. Idu Beg*).

========== PART IV ==========

## PART IV Causing Death by Negligence — BNS § 106 ↔ IPC § 304A

### 4.1 Legislative history

- The **original Penal Code of 1860 had no provision** punishing death caused by negligence — liability for causing death was confined to murder and culpable homicide not amounting to murder. **Section 304A was inserted by the Indian Penal Code (Amendment) Act 27 of 1870** to cover cases "wherein a person causes the death of another by such acts as are rash or negligent but there is no intention to cause death and no knowledge that the act will cause death." (DU E-Notes / Manupatra IPC commentary)
- The BNS, 2023 re-enacts it as **§ 106**, raises the maximum from two to **five years**, adds a **separate sentencing limb for registered medical practitioners (two years)**, and adds an altogether new **sub-section (2) for hit-and-run drivers (ten years)**.

- Rationale for enhancement (Criminal law commentary in DU course material): India's roads are "lethal" — with ~1% of the world's vehicles India accounts for ~10% of global road fatalities; the two-year ceiling of 1860 vintage was considered grotesquately inadequate.

**Statute — IPC § 304A (predecessor)**

> "Whoever causes the death of any person by doing any rash or negligent act, not amounting to culpable homicide, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both."

**Statute — BNS § 106 (as per course gazette)**

> **106. (1)** Whoever causes death of any person by doing any rash or negligent act not amounting to culpable homicide, shall be punished with imprisonment of either description for a term which may extend to **five years**, and shall also be liable to fine; and if such act is done by a **registered medical practitioner** while performing medical procedure, he shall be punished with imprisonment of either description for a term which may extend to **two years**, and shall also be liable to fine.
>
> **Explanation.** — For the purposes of this sub-section, "registered medical practitioner" means a medical practitioner who possesses any medical qualification recognised under the National Medical Commission Act, 2019 and whose name has been entered in the National Medical Register or a State Medical Register under that Act.
>
> **(2)** Whoever causes death of any person by **rash and negligent driving of vehicle** not amounting to culpable homicide, and **escapes without reporting it to a police officer or a Magistrate soon after the incident**, shall be punished with imprisonment of either description of a term which may extend to **ten years**, and shall also be liable to fine.

Classification (exam supplement): §106(1) — cognizable, bailable, triable by Magistrate of the first class; §106(2) — cognizable, **non-bailable**, triable by Magistrate of the first class. IPC §304A was cognizable, bailable, non-compoundable, triable by any Magistrate.

## 4.2 Ingredients / elements

Synthesising the DU exam-format material and the Manupatra/E-Notes commentary:

1. **There must be homicide** — the death of a human being must actually be caused; the section has no application where only injury results.
2. **The accused must have caused such death** — by an act (or by a negligent illegal omission).
3. **The death must be caused by doing a rash or negligent act** — rashness or negligence is the mens rea of the offence.
4. **The act must not amount to culpable homicide** — i.e., the ingredients of BNS §100 / IPC §299 (intention or knowledge of likelihood of death) must be *absent*; "Sec 106 of BNS apply only when it is proved that Sec 100 is not applicable."
5. **Direct nexus (causa causans)** — the rash/negligent act must be the **proximate and efficient cause** of death, "without the intervention of another's negligence"; it must be the *causa causans*, not merely the *causa sine qua non*.

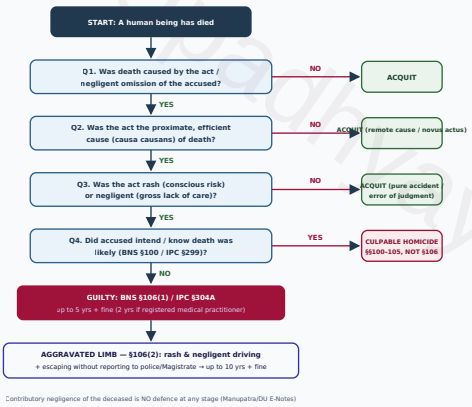



FIG. 3 — DECISION TREE FOR BNS §106 / IPC §304A (five-gate test)

## 4.3 Rashness and Negligence — the twin mental states

Neither term is defined in the IPC or the BNS; their content is judge-made. The controlling definitions in the DU material are those of **Straight, J. in *Empress v. Idu Beg* (1881) 3 All 776**, adopted by the Supreme Court in *Bhalchandra Waman Pathe v. State of Maharashtra* (1968) and restated in *S.N. Hussain*:

**Rashness (advertent)**

> "Rashness consists in hazarding a dangerous or wanton act with the knowledge that it is so, and that it may cause injury. The criminality lies in such a case in running the risk of doing such act with recklessness or indifference as to the consequences."

And the classical formulation in the DU exam material: "Culpable rashness is acting with the consciousness that the mischievous and illegal consequences may follow, but with the hope that they will not, and often with the belief that the actor has taken sufficient precaution to prevent their happening." A rash act is "primarily an overhasty act and is opposed to a deliberate act, even if it is partly deliberate; it is done without due thought and caution."

`Negligence (inadvertent)`

> "Criminal negligence ... is the gross and culpable neglect or failure to exercise that reasonable and proper care and precaution to guard against injury either to the public generally or to an individual in particular, which, having regard to all the circumstances out of which the charge has arisen, it was the imperative duty of the accused person to have adopted."

Tort baseline (*Blyth v. Birmingham Waterworks*): "the omission to do something which a reasonable man, guided by those considerations which ordinarily regulate the conduct of human affairs, would do, or doing something which a prudent and reasonable man would not do."

| Point of distinction | Rash act | Negligent act |
|---|---|---|
| State of mind | Foresight of possible consequence + conscious risk-taking; actor *hopes* harm will not occur. | No advertence at all — "a state of mind of no foresight of the consequences" (blameworthy inadvertence). |
| Element present | Degree of **knowledge** (of the dangerousness of the act). | Degree of **carelessness** (breach of an imperative duty of care). |
| Form | Usually an act of commission — hazarding a dangerous act. | Often an omission — failure to take care a reasonable man would take (though commission also qualifies). |
| Co-existence | "Both cannot be present in a person simultaneously" (DU exam-format material) — though the section is disjunctive: "rash *or* negligent". | |
| DU illustration | Throwing a stone from the third floor *realising* it may injure someone below, yet taking the risk. | Throwing a stone from the third floor *without thinking at all* whether someone may be below. |
| Touchstone of liability | Recklessness/indifference to consequences. | The principle of "reasonableness" — failure to take the care a reasonable man would take in like circumstances, to a **gross** degree. |

## 4.4 Causation — causa causans, not causa sine qua non

- "This section applies where there is a **direct nexus** between the death of a person and the rash or negligent act. The act must be the **causa causans**; it is not enough that it may have been the **causa sine qua non**." (Manupatra/DU Case Material commentary)
- The chain is broken where "death has arisen from any other supervening act or intervention which could not have been anticipated", i.e., death "was not the direct or proximate result of the rash or negligent act".
- **Contributory negligence is no defence** in criminal law: "Where there is ample proof that the accused had brought about the accident by his own negligence and rashness, it does not matter whether the deceased was deaf, or drunk, or in part contributed to his own death." (DU E-Notes/Manupatra) (Contrast *S.N. Hussain*, where the gateman's negligence made the accident *unavoidable* for the driver — there the third party's negligence negated the driver's own culpable negligence rather than merely contributing to it.)
- Accident simpliciter is outside the section: e.g., *Waryam Singh v. Emperor*, AIR 1926 Lah 554 — accused on a dark night believing a man to be a ghost killed him: no liability under §304A.

## 4.5 Rash or negligent driving — the working tests

- **Duty to control:** "A person driving a motor car is under a duty to control the car; he is prima facie guilty of negligence if the car leaves the road and dashes into a tree. It is for the person driving the car to explain the circumstances... but if the driver is not rash, he is not liable for the death of a person who, while suddenly crossing the road, comes under the wheels of his vehicle." (DU E-Notes/Manupatra)
- **Mere accident insufficient:** "The mere fact that a fatal motor run-over accident took place would not by itself be enough to make the driver liable under section 304A... it must be found as a fact that a collision was entirely or at least mainly due to rashness or negligence on the part of the driver. It is not sufficient if it is only found that the accused was driving the vehicle at a fast speed" — *State v. Hari Singh*, AIR 1969 Raj 86.
- **Criteria for judging driving:** "width of the road, the density of the traffic and the attempt to overtake other vehicles and the going on the wrong side" — *Shakila Khader v. Nausher Gama*, AIR 1975 SC 1324.
- **Error of judgment ≠ negligence:** *Syed Akbar v. State of Karnataka* (1980) 1 SCC 30 — bus driver at moderate speed swerved to dodge a child suddenly crossing; the swerve itself showed the accident was an error of judgment, not culpable negligence.
- **No presumption from mere fall:** *Mohd. Aynuddin v. State of A.P.* (2000) 7 SCC 72 — passenger fell from a boarding bus and died; scanty evidence could not fasten criminal negligence on the driver; conviction set aside.

- **Res ipsa loquitur** is only a rule of evidence in tort; "it cannot be pressed in service for determining per se the liability for negligence within the domain of criminal law" — *Jacob Mathew*.

### 4.6 Medical negligence — the Jacob Mathew regime and BNS §106(1) proviso

Criminal liability of professionals is judged with special caution: "a great care should be taken before imputing criminal negligence to a professional man acting in the course of his profession. A doctor is not criminally responsible for a patient's death unless his negligence shows such disregard for life and safety as to amount to a crime against the State" — *Juggan Khan v. State of M.P.*, AIR 1965 SC 831 (there, a registered homeopath who administered 24 drops of stramonium and a dhatura leaf without studying its effect *was* convicted — grossness was present).

**Jacob Mathew v. State of Punjab & Anr.**

(2005) 6 SCC 1 · AIR 2005 SC 3180 · Appeals (Crl.) 144-145 of 2004 · Decided 05.08.2005 · Bench: R.C. Lahoti CJI, G.P. Mathur & P.K. Balasubramanyan JJ. (full judgment in DU course file "Medical negligence")

**FACTS**

On 15.02.1995 the complainant's father, Jiwan Lal Sharma — a terminal-stage cancer patient — was admitted to a private ward of CMC Hospital, Ludhiana. On 22.02.1995 at about 11 p.m. he felt difficulty in breathing; the duty nurse summoned doctors; none turned up for 20–25 minutes. Dr Jacob Mathew and Dr Allen Joseph then attended; an oxygen cylinder was connected but proved **empty**; no other cylinder arrangement could be made functional for 5–7 minutes; another doctor arrived and declared the patient dead. The FIR alleged death "due to carelessness of doctors and nurses and non-availability of oxygen cylinder and the empty cylinder was fixed on the mouth of my father". An offence under §304A/34 IPC was registered; charge framed; revision to Sessions dismissed; §482 CrPC petition to quash dismissed by the Punjab & Haryana High Court (18.12.2002; recall application dismissed 24.01.2003); hence these appeals by special leave.

**ISSUES**

1. Whether the averments in the complaint/FIR, even if taken at face value, disclose **criminal** rashness or negligence (as opposed to civil negligence) by the appellant-doctors?
2. What is the degree of negligence required for a prosecution under §304A IPC, particularly against medical professionals?
3. What safeguards/guidelines should govern the prosecution and arrest of doctors?

**ARGUMENTS — APPELLANT (DOCTORS)**

- No specific allegation of any act of omission or commission amounting to criminal negligence existed in the entire challan; the plea was answerable at trial but the charge itself was unsustainable.
- Criminal negligence requires mens rea and a *gross* degree; mere civil-liability lack of care cannot found a prosecution (Andrews v. DPP).
- Indiscriminate prosecution of medical professionals harms the profession and society; safeguards (independent medical opinion before prosecution/arrest) were necessary.

**ARGUMENTS — RESPONDENT (STATE/COMPLAINANT)**

- The FIR itself disclosed carelessness: an *empty* oxygen cylinder fixed on the patient's mouth and delay in attendance — sufficient to proceed under §304A read with §34.
- Whether the negligence was gross was a matter of evidence for trial, not for quashing at the threshold.

**DECISION**

Appeals allowed; the prosecution under §304A/34 IPC **quashed**. The Court held that even if all averments were proved, they did not establish criminal rashness or negligence: it was not alleged that the appellant was unqualified to treat the patient; the grievance was non-availability of an empty cylinder — a matter for which "probably the hospital may be liable in civil law… but the accused appellant cannot be proceeded against under Section 304A IPC on the parameters of Bolam's test." The principles of *Dr. Suresh Gupta v. State of A.P.* (2004) 6 SCC 422 were reaffirmed (without comment on its facts).

**PRINCIPLES EVOLVED (THE JACOB MATHEW DOCTRINE)**

1. **Degrees of negligence:** civil "simple lack of care" is not enough; criminal law demands "a very high degree of negligence" (Lord Atkin, *Andrews v. DPP*); negligence must be "culpable or gross and not… merely based upon an error of judgment".
2. **Professional standard:** a professional impliedly assures only that he possesses the requisite skill and will exercise it with **reasonable competence** — he does not assure the *result*; "a physician would not assure the patient of full recovery in every case".
3. **Bolam test:** a professional is not negligent if his practice conforms to that of "a responsible body of medical opinion" skilled in that field (*Bolam v. Friern Hospital Management Committee* [1957] 1 WLR 582, McNair J.); mere difference of professional opinion does not make a doctor negligent.

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4. **Error of judgment:** "an error of judgment may or may not be negligent"; it is to be tested against the conduct of an ordinary competent professional in like circumstances.
5. **Mens rea & grossness:** for criminal liability the degree of negligence must be much higher — gross or of a very high degree; the words "rash or negligent act" in §304A are to be **read as qualified by "grossly"**.
6. **The "no professional would" test:** it must be shown that the accused did something (or omitted something) "which in the given facts and circumstances no medical professional in his ordinary senses and prudence would have done or failed to do", and the hazard taken must be such that injury was "most likely imminent".
7. **Res ipsa loquitur:** a rule of evidence of the civil/tort domain; limited application, if at all, in a criminal negligence trial.

#### GUIDELINES FOR PROSECUTING MEDICAL PROFESSIONALS

1. A **private complaint** may not be entertained unless the complainant produces **prima facie evidence in the form of a credible opinion given by another competent doctor** supporting the charge of rashness/negligence.
2. The **investigating officer** must, before proceeding against the doctor, obtain an **independent and competent medical opinion** — preferably from a doctor in government service qualified in that branch — applying the **Bolam test** to the facts collected.
3. A doctor accused of rashness/negligence **may not be arrested in a routine manner**; arrest only if necessary for investigation/evidence, or if the officer is satisfied the doctor will not face prosecution unless arrested.

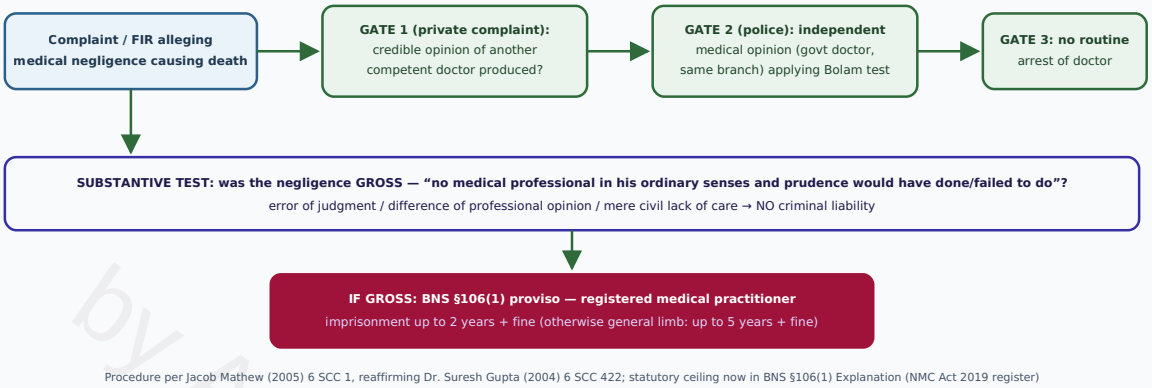



FIG. 4 — PROSECUTING A DOCTOR: the three Jacob Mathew gates plus the substantive grossness test, capped by the BNS §106(1) medical proviso

Exam alert A §106 answer is incomplete in 2026 without three updates: **(i)** the 5-year enhancement over IPC's 2 years; **(ii)** the registered-medical-practitioner proviso (2 years) read with the Jacob Mathew guidelines; **(iii)** §106(2) hit-and-run (10 years, non-bailable) and the DU comparative table's note that it was not brought into force on 01.07.2024.

========== PART V ==========

## PART V DU Case Law I — Cherubin Gregory v. State of Bihar

### Cherubin Gregory v. State of Bihar

AIR 1964 SC 205 : (1964) 4 SCR 199 · Coram: N. Rajagopala Ayyangar, J. · Appeal by special leave from Patna High Court (full text in DU Casebook, Unit 7, pp. 247–249)

#### FACTS (AS FOUND BY THE COURTS BELOW)

- The appellant fixed a **naked, uninsulated copper wire** across the passage leading to his latrine at the back of his house, connected to the electrical wiring of the house so as to carry a **lethal voltage**, in order to make entry dangerous and thereby prevent intruders from using the latrine.
- The motive: the latrine wall of the neighbouring house (of which the deceased, **Mst. Madilen**, was an inmate) had fallen down about a week before the occurrence (16 July 1959), exposing her latrine to public view; the deceased and others therefore began using the appellant's latrine. The appellant resented this, protested, and gave **oral warnings which proved ineffective** — whereupon he electrified the passage.
- There was **no warning whatsoever that the wire was live**.
- The deceased entered the latrine without contacting the wire, but **on her way out her hand touched it**; she received a shock and died soon after.
- The accused's suggestion of sufficient warning — that it was past daybreak (enough light) and that an electric light burned some distance away — was rejected: "neither of these could constitute warning as the condition of the wire being charged with electric current could not obviously be detected merely by the place being properly lit."

### PROCEDURAL HISTORY

Charged under **§304 IPC** and **§304-A IPC** before the Sessions Judge, Champaran; **acquitted of §304** (no intention to cause death) but **convicted under §304-A**; appeal dismissed by the High Court of Patna; hence appeal by special leave to the Supreme Court.

### ISSUES

1. Whether the appellant could claim the **right of private defence of property** (IPC §§97, 99, 103) for a death caused by the trap he laid?
2. Whether, the deceased being a **trespasser** to whom (as allegedly in English common law) the occupier owed no duty of care, an act that is **not a tort could yet be a crime** under §304-A?
3. Whether fixing the live naked wire without warning was a **"rash act"** within §304-A IPC (now BNS §106)?

### ARGUMENTS — APPELLANT

- **Private defence:** the death was caused in the course of exercising the right of private defence of property against trespassers.
- **No duty to trespasser / no tort, no crime:** the deceased was a trespasser; an occupier owes no duty of reasonable care to a trespasser, who therefore would have had no cause of action for damages; if the act was not actionable in tort, it could not be a crime.
- **Warning:** daylight and the burning electric light amounted to sufficient notice of the wire.

### ARGUMENTS — RESPONDENT (STATE) / FINDINGS RELIED UPON

- The wire was naked, uninsulated and carried lethal voltage; charging it was done in reckless disregard of serious consequences to anyone coming in contact with it.
- No warning of the live wire existed; the trap was deliberate — laid precisely because oral warnings had failed.
- The concurrent findings of fact by the Sessions Judge and the High Court concluded the factual disputes; even learned counsel for the appellant did not controvert them.

### DECISION

**Appeal dismissed; conviction under §304-A IPC upheld.** The Supreme Court held:

- **Rash act established:** "The voltage of the current passing through the naked wire being high enough to be lethal, there could be no dispute that charging it with current of that voltage was a 'rash act' done in reckless disregard of the serious consequences to people coming in contact with it."
- **Private defence rejected:** the right under §97 is "subject to the provisions of Section 99"; "the type of injury caused by the trap laid by the accused cannot be brought within the scope of Section 99, nor of course of Section 103 of the Code."
- **Trespasser/tort argument rejected:** (a) where a Code "defines with particularity the ingredients of a crime and the defences open to an accused", it is not proper "to permit the invocation of some Common Law principle outside that Code for the purpose of treating, what on the words of the statute is a crime, into a permissible or other than unlawful act"; (b) in any event the act *was* an actionable wrong — "A trespasser is not an outlaw, a caput lupinem... the occupier is not entitled to do wilfully acts such as set a trap or set a naked live wire with the deliberate intention of causing harm to trespassers or in reckless disregard of the presence of the trespassers." The naked live wire, like a spring-gun, is in truth **"an arrangement to shoot a man without personally firing a shot"**.
- The Court endorsed the UK Law Reform Committee's summary: "The trespasser enters entirely at his own risk, but the occupier must not set traps designed to do him bodily harm or to do any act calculated to do bodily harm to the trespasser whom he knows to be or who to his knowledge is likely to be on his premises... This is no more than ordinary civilised behaviour."

### PRINCIPLES EVOLVED

1. **Lethal trapped wire = rash act:** laying a naked live wire of lethal voltage across a passage, without warning, is a rash act done in reckless disregard of consequences → liability under §304-A IPC / BNS §106 even absent intention to kill (hence §304 acquittal but §304-A conviction).
2. **Trespasser's limited position:** a trespasser enters at his own risk and the occupier owes him no duty of reasonable care — *but* the occupier may not wilfully set man-traps, spring-guns or live wires to harm him; "a trespasser is not an outlaw".
3. **Code is self-contained:** common-law notions of civil actionability cannot convert a statutory crime into a lawful act; criminal liability under the IPC/BNS is judged by the Code's own ingredients.
4. **Private defence has moral limits:** §§97/99/103 do not protect deliberately laid lethal traps; the voltage used "precludes any contention that it was merely a reasonable precaution for the protection of private property".

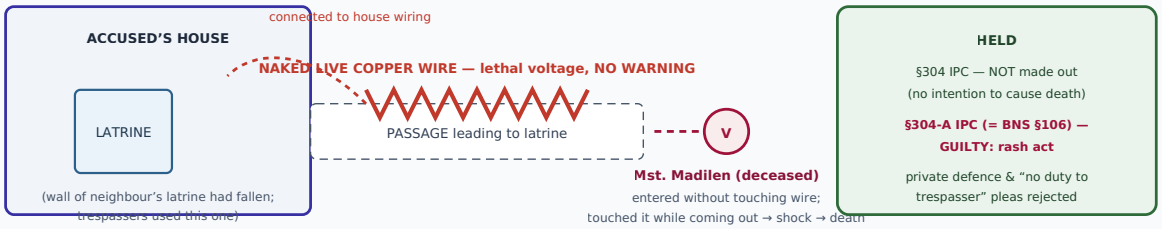



FIG. 5 — CHERUBIN GREGORY: the electrified-passage trap (schematic of the found facts)

## PART VI DU Case Law II — S.N. Hussain v. State of Andhra Pradesh

### S.N. Hussain v. State of Andhra Pradesh

AIR 1972 SC 685 · Coram: D.G. Palekar, J. · Appeal by special leave against High Court of Andhra Pradesh reversing acquittal (full text in DU Casebook, Unit 7, pp. 249–252)

#### FACTS

- The appellant was the driver of R.T.C. bus **APZ 1672**, driving on **1 January 1966** from Kurnool to Vanaparthy. The bus left Kurnool at about 6.15 a.m. and reached the **railway level-crossing gate between Alampur Road Station and Manopad railway station** at about 6.30–7.00 a.m.
- The level crossing was a **manned crossing in charge of a gateman**, whose duty was to close the gate when a train was expected. It is an **admitted fact that the gate was open** when the bus arrived; the appellant passed through and crossed the meter-gauge track.
- Suddenly a **goods train dashed against the rear side of the bus**; the bus was thrown off; of about **43 passengers**, one died on the spot, three died later in hospital, and about 21 received more or less severe injuries.
- Charge under **§§304-A, 337 and 338 IPC**: that the appellant was rash or negligent in crossing the railway track when a goods train was about to pass the gate.

**Six material circumstances found by the Supreme Court:** (1) the bus was driven, and could only be driven, **dead slow** — the approach is a U-shaped road with two bends and a climb, the track lying at a much higher level (so admitted by conductor P.W. 13 and Sub-Inspector P.W. 56 seated beside the driver); (2) the **manned gate was open**, indicating no train was expected and inviting vehicles to pass; (3) the track was at a higher level and the road lined with **babool trees**, so an approaching train was not visible from the bus; (4) the bus, **unfitted with a silencer**, made huge noise; (5) because of a cold breeze some **window screens were lowered**; (6) **no evidence** that the train gave any whistle, or that any whistle was heard by occupants.

#### PROCEDURAL HISTORY

Tried before the Munsif Magistrate, Alampur, who **accepted the defence and acquitted**. The State appealed against acquittal; the **High Court of Andhra Pradesh convicted** under all three sections, sentencing him to **two years' rigorous imprisonment under §304-A** (other sentences concurrent). Hence this appeal by special leave.

#### ISSUES

1. Whether the appellant was **rash or negligent** in crossing the railway track when a goods train was about to pass?
2. Whether the High Court was justified in reversing a reasoned acquittal on that evidence?

#### ARGUMENTS — APPELLANT

- He was neither rash nor negligent; the accident was **unavoidable**; since the manned gate was open he crossed "absolutely oblivious of the fact that a train was approaching".
- The learned Magistrate had taken a very reasonable view; the High Court should not have interfered with the order of acquittal.
- Most prosecution witnesses **turned hostile**; the few witnesses relied on by the High Court (gangman Sayanna, his wife Kanthamma, P.W. 15, son Samuel P.W. 16) had not really proved the charge; the High Court **misread** the evidence of Sub-Inspector Laxaman Rao (P.W. 56).

### ARGUMENTS / REASONING OF THE HIGH COURT (RESPONDENT SIDE)

- The driver negotiated the crossing "in a spirit of bravado and absolutely callous and unmindful of the consequences of the impending collision" — passengers (Sayanna etc.) had shouted warnings before the bus crossed.
- The driver was negligent in **not stopping at the road signals** on either side of the track, which required vehicles to stop; he should have come to a dead stop and satisfied himself that no train was coming.

### DECISION

**Appeal allowed; conviction and sentence set aside; appellant acquitted.** The Supreme Court held:

- **No rashness:** on the evidence the driver "received no warning either from the approaching train or from the passengers in the bus in sufficient time to save the collision". The bus was 21 feet long and the crossing about 18 feet across; the shouted warnings (even if true) came when the bus was already on the track — "too late to avoid the collision". On seeing the train, accelerating to clear the track was "the best he could do... This cannot be regarded either as bravado or adventure." The High Court "completely misread" P.W. 56's evidence.
- **No criminal negligence:** at an **unmanned** crossing a driver may be required to stop, look both ways and then cross; "but where a level crossing is protected by a gateman and the gateman opens out the gate inviting the vehicles to pass, it will be too much to expect of any reasonable and prudent driver to stop his vehicle and look out for any approaching train." Where the gate is open and no train is scheduled, "the driver would be justified in driving his vehicle through the level crossing". A *passenger* train's schedule might put a regular route-driver on notice; but this was an unscheduled **goods train**. Failure to stop at the road signal, in these circumstances, was not culpable negligence: "Culpable negligence lies in the failure to exercise reasonable and proper care and the extent of its reasonableness will always depend upon the circumstances of each case."
- **Conclusion:** "This was a clear case of unavoidable accident because of the negligence of the gateman in keeping the gate open and inviting the vehicles to pass."

### PRINCIPLES EVOLVED

1. **Canonical definitions adopted:** criminal rashness and criminal negligence as defined by Straight, J. in *Empress v. Idu Beg* (1881) 3 All 776, adopted in *Bhalchandra Waman Pathe v. State of Maharashtra* (1968), are the governing tests for §304-A / BNS §106.
2. **Unavoidable accident is not crime:** where a third party's negligence (the gateman) makes the collision unavoidable for a careful driver, the driver's conduct is neither rash nor negligent — an error of the situation, not of culpability.
3. **Reasonable reliance on safety infrastructure:** a driver is entitled to treat an open manned gate as an invitation to cross and need not stop dead and reconnoitre; the standard of care is context-sensitive ("depend upon the circumstances of each case").
4. **Appellate restraint:** reversal of an acquittal demands cogent grounds; misreading of evidence vitiates the conviction.
5. **Last-oppportunity conduct exculpatory:** accelerating to clear the track upon sighting the train is prudent damage-control, not "bravado".

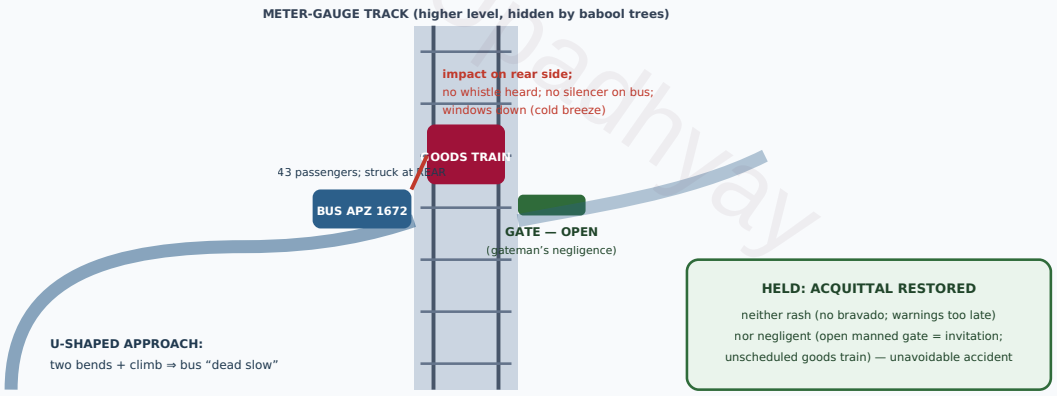



FIG. 6 — S.N. HUSSAIN: the manned level-crossing collision (schematic of the six found circumstances)

`Synthesis of the two DU cases — the §106 pendulum` *Cherubin Gregory* marks the **positive pole**: conscious creation of a lethal risk (live wire) with indifference to consequences = **rashness**, conviction follows even though the victim was a trespasser. *S.N. Hussain* marks the **negative pole**: a careful driver who reasonably relies on an open manned gate and reacts prudently to a sudden peril commits neither rashness nor negligence — **unavoidable accident**, acquittal follows even though four people died. Between the poles lies the exam question in every problem: *was there conscious risk-taking, or gross failure of an imperative duty of care — or merely misfortune?*

### 6.3 Supplementary case digest (authorities usable in §106 answers)

| Case | Facts in one line | Rule / use in answer |
|---|---|---|
| *Empress v. Idu Beg* (1881) 3 All 776 | Classic colonial ruling on mental states. | Source of the twin definitions of criminal rashness and criminal negligence adopted by the SC and DU material. |
| *Bhalchandra Waman Pathe v. State of Maharashtra* (1968) | Three-Judge Bench restates Idu Beg. | Supreme Court adoption of the Idu Beg definitions; "gross and culpable neglect... imperative duty". |
| *Andrews v. DPP* [1937] AC 576 | English manslaughter by negligence. | Lord Atkin: degrees of negligence; "very high degree" for criminal liability. |
| *Juggan Khan v. State of M.P.* AIR 1965 SC 831 | Registered homeopath gave 24 drops stramonium + dhatura leaf; patient died. | Care before imputing criminal negligence to a professional; but gross disregard → conviction under 304A. |
| *Syed Akbar v. State of Karnataka* (1980) 1 SCC 30 | Bus swerved to dodge child suddenly crossing; child died. | Error of judgment ≠ culpable negligence; civil vs criminal proof standards. |
| *Shakila Khader v. Nausher Gama* AIR 1975 SC 1324 | Rash-driving criteria case. | Tests: width of road, traffic density, overtaking, wrong side. |
| *Mohd. Aynuddin v. State of A.P.* (2000) 7 SCC 72 | Passenger fell from boarding bus; died. | No presumption of negligence from mere accident; evidence too scanty → acquittal. |
| *State v. Hari Singh* AIR 1969 Raj 86 | Fatal run-over; speed alone alleged. | Fast speed alone insufficient; collision must be mainly due to driver's rashness/negligence. |
| *Waryam Singh v. Emperor* AIR 1926 Lah 554 | Killed a man mistaken for a ghost on dark night. | Pure accident outside §304A. |
| *Dr. Suresh Gupta v. State of A.P.* (2004) 6 SCC 422 | Medical negligence prosecution. | Gross negligence threshold for doctors; reaffirmed by Jacob Mathew. |
| *Jacob Mathew v. State of Punjab* (2005) 6 SCC 1 | Empty oxygen cylinder; terminal cancer patient died. | Bolam test; "grossly" read into 304A; prosecution/arrest guidelines; res ipsa loquitur limited. |
| *Bolam v. Friern Hospital Management Committee* [1957] 1 WLR 582 | English medical-negligence standard. | Responsible body of professional opinion = no negligence. |

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========== PART VII ==========

## PART VII Organised Crime — BNS § 111 (New Section; no IPC counterpart)

The IPC of 1860 contained **no general offence of "organised crime"**; syndicated criminality was addressed only by special statutes (MCOCA, 1999 for Maharashtra and its state analogues, UAPA, NDPS, etc.) and by ordinary provisions on conspiracy and membership of unlawful assemblies. The BNS, 2023 **nationalises the concept** by importing an MCOCA-style offence into the general penal code.

Statute — BNS § 111 (as per course gazette)

**111. (1)** Any **continuing unlawful activity** including kidnapping, robbery, vehicle theft, extortion, land grabbing, contract killing, economic offence, cyber-crimes, trafficking of persons, drugs, weapons or illicit goods or services, human trafficking for prostitution or ransom, by any person or a group of persons **acting in concert**, singly or jointly, either as a **member of an organised crime syndicate** or on behalf of such syndicate, by use of **violence, threat of violence, intimidation, coercion, or by any other unlawful means** to obtain **direct or indirect material benefit including a financial benefit**, shall constitute organised crime.

**Explanation.** — For the purposes of this sub-section,—
(i) **"organised crime syndicate"** means a group of **two or more persons** who, acting either singly or jointly, as a syndicate or gang indulge in any continuing unlawful activity;
(ii) **"continuing unlawful activity"** means an activity prohibited by law which is a **cognizable offence punishable with imprisonment of three years or more**, undertaken by any person, either singly or jointly, as a member of an organised crime syndicate or on behalf of such syndicate in respect of which **more than one charge-sheets have been filed before a competent Court within the preceding period of ten years and that Court has taken cognizance** of such offence, and **includes economic offence**;
(iii) **"economic offence"** includes criminal breach of trust, forgery, counterfeiting of currency-notes, bank-notes and Government stamps, hawala transaction, mass-marketing fraud or running any scheme to defraud several persons or

doing any act in any manner with a view to defraud any bank or financial institution or any other institution or organisation for obtaining monetary benefits in any form.

**(2)** Whoever commits organised crime shall,—
(a) if such offence has **resulted in the death** of any person, be punished with **death or imprisonment for life**, and shall also be liable to fine which shall **not be less than ten lakh rupees**;
(b) in any other case, be punished with imprisonment for a term which shall **not be less than five years but which may extend to imprisonment for life**, and shall also be liable to fine which shall **not be less than five lakh rupees**.

**(3)** Whoever **abets, attempts, conspires or knowingly facilitates** the commission of an organised crime, or otherwise engages in any **act preparatory** to an organised crime — 5 years to life + fine ≥ 5 lakh.
**(4)** Any person who is a **member of an organised crime syndicate** — 5 years to life + fine ≥ 5 lakh.
**(5)** Whoever intentionally **harbours or conceals** a person who has committed organised crime — 3 years to life + fine ≥ 5 lakh; *proviso:* not applicable where the harbour/concealment is by the **spouse** of the offender.
**(6)** Whoever **possesses property derived or obtained** from organised crime or its proceeds — 3 years to life + fine ≥ 2 lakh.
**(7)** Any person who, **on behalf of a member of an organised crime syndicate**, is or has been in possession of movable or immovable property **which he cannot satisfactorily account for** — 3 to 10 years + fine ≥ 1 lakh.

## 7.1 Elements decomposed (five cumulative limbs of §111(1))

1. **Continuing unlawful activity** — a course of criminal conduct, not a one-off: an activity prohibited by law, cognizable, punishable with ≥3 years' imprisonment, evidenced by **more than one charge-sheet within the preceding ten years** of which a competent court has **taken cognizance** (economic offences included).
2. **Collectivity** — "any person or a group of persons acting in concert, singly or jointly"; the syndicate needs only **two or more persons**.
3. **Syndicate nexus** — done *as a member of* an organised crime syndicate or *on behalf of* such syndicate (thus reaching hired actors and benami operators).
4. **Unlawful means** — violence, threat of violence, intimidation, coercion, or any other unlawful means.
5. **Profit objective** — to obtain direct or indirect **material benefit including financial benefit** (the economic hallmark distinguishing organised crime from terror, which pursues political/ideological ends).

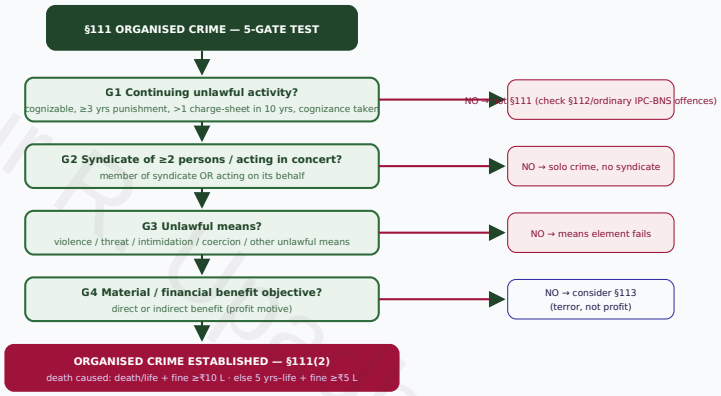



FIG. 7 — §111 FOUR GATES PLUS SENTENCING: failure at any gate routes the case to ordinary offences, §112, or §113

## 7.2 The punishment ladder of §111 (memorise as a table)

| Sub-section | Role / conduct | Imprisonment | Minimum fine |
|---|---|---|---|
| 111(2)(a) | Organised crime **resulting in death** | Death or imprisonment for life | ₹10 lakh |
| 111(2)(b) | Organised crime (other cases) | 5 years – life | ₹5 lakh |
| 111(3) | Abetment, attempt, conspiracy, knowing facilitation, acts preparatory | 5 years – life | ₹5 lakh |
| 111(4) | Membership of organised crime syndicate | 5 years – life | ₹5 lakh |
| 111(5) | Harbouring/concealing an organised criminal (spouse exempt) | 3 years – life | ₹5 lakh |
| 111(6) | Possessing property/proceeds of organised crime | 3 years – life | ₹2 lakh |
| 111(7) | Unaccounted property held on behalf of a syndicate member | 3 – 10 years | ₹1 lakh |

Analytical points for long answers

- **Inchoate reach:** §111(3) punishes conspiracy, attempt, abetment, facilitation and even *acts preparatory* at the same 5-years-to-life scale as completed crime — a dramatic departure from the IPC's graded attempt/conspiracy rules (§§109–110, 120B).
- **Status offence:** §111(4) punishes *membership* as such — criminality attaches to belonging, subject to proof of the syndicate's continuing unlawful activity.
- **Property-based offences & reversed onus flavour:** §§111(6)–(7) attack the economic engine; §111(7) in effect requires the holder to "satisfactorily account" for property held on a syndicate member's behalf.
- **MCOCA lineage:** the definitions of organised crime syndicate / continuing unlawful activity mirror MCOCA §2(1)(a)–(c); the BNS version generalises them to all of India and folds in economic offences and cyber-crimes expressly.
- **Humanitarian proviso:** the harbouring offence spares the offender's spouse — a legislative nod to marital privilege.

========== PART VIII ==========

## PART VIII Petty Organised Crime — BNS § 112 (New Section)

Statute — BNS § 112 (as per course gazette)

> **112. (1)** Whoever, being a **member of a group or gang**, either singly or jointly, commits any act of **theft, snatching, cheating, unauthorised selling of tickets, unauthorised betting or gambling, selling of public examination question papers** or any other similar criminal act, is said to commit **petty organised crime**.
>
> **Explanation.** — For the purposes of this sub-section "theft" includes **trick theft, theft from vehicle, dwelling house or business premises, cargo theft, pick pocketing, theft through card skimming, shoplifting and theft of Automated Teller Machine**.
>
> **(2)** Whoever commits any petty organised crime shall be punished with imprisonment for a term which shall **not be less than one year but which may extend to seven years**, and shall also be liable to fine.

### 8.1 Elements

1. **Membership of a group or gang** — collective identity is the gateway; a lone thief remains under the ordinary theft provisions (BNS §303).
2. **Commission, singly or jointly,** of any listed or analogous act: theft (in the nine explained forms), snatching, cheating, unauthorised ticket selling, unauthorised betting/gambling, selling of public examination question papers, "or any other similar criminal act".
3. **No syndicate/benefit threshold:** unlike §111, neither a "continuing unlawful activity" record (two charge-sheets in ten years) nor a material-benefit objective need be proved — this is the **street-level** counterpart.

### 8.2 §111 vs §112 — the distinction table examiners expect

| Point | §111 Organised crime | §112 Petty organised crime |
|---|---|---|
| Collective unit | "Organised crime syndicate" — ≥2 persons indulging in continuing unlawful activity; or acting on its behalf. | "Group or gang" — no defined threshold, no continuity record required. |
| Activity threshold | Continuing unlawful activity: cognizable offence ≥3 yrs, >1 charge-sheet in preceding 10 yrs, cognizance taken; includes economic offences. | None — a single listed act by a gang member suffices. |
| Means | Violence / threat / intimidation / coercion / unlawful means. | Not required (snatching implies force but the section does not demand means). |
| Objective | Direct or indirect material/financial benefit. | Not an ingredient. |
| Typical conduct | Contract killing, land grabbing, extortion, trafficking, hawala, cyber-crime syndicates. | Pick-pocketing rings, card-skimming gangs, ticket touts, exam-paper leaks, snatch gangs, shoplifting crews. |
| Punishment | Death/life (if death) or 5 yrs–life; mandatory minimum fines ₹10L/₹5L; allied offences 3 yrs–life/3–10 yrs. | 1–7 years + fine (no statutory minimum fine). |
| Legislative purpose | Decapitate syndicates and their economy. | Curb organised *street and local* crime that individually looks petty but is gang-run — closing the gap where §111's thresholds fail. |

========== PART IX ==========

## PART IX Terrorist Act — BNS § 113 (New Section; parallels UAPA §§15–18)

Statute — BNS § 113 (as per course gazette)

**113. (1)** Whoever does any act **with the intent to threaten or likely to threaten the unity, integrity, sovereignty, security, or economic security of India** or **with the intent to strike terror or likely to strike terror in the people or any section of the people in India or in any foreign country**,—
(a) by using **bombs, dynamite or other explosive substance or inflammable substance or firearms or other lethal weapons or poisonous or noxious gases or other chemicals or by any other substance (whether biological, radioactive, nuclear or otherwise) of a hazardous nature or by any other means of whatever nature** to cause or likely to cause,—
(i) death of, or injury to, any person or persons; or
(ii) loss of, or damage to, or destruction of, property; or
(iii) disruption of any supplies or services essential to the life of the community in India or in any foreign country; or
(iv) damage to the monetary stability of India by way of production or smuggling or circulation of **counterfeit Indian paper currency**, coin or of any other material; or
(v) damage or destruction of any property in India or in a foreign country used or intended to be used for the defence of India or in connection with any other purposes of the Government of India, any State Government or any of their agencies; or
(b) **overawes by means of criminal force or the show of criminal force** or attempts to do so or **causes death of any public functionary** or attempts to cause death of any public functionary; or
(c) **detains, kidnaps or abducts** any person and threatening to kill or injure such person or does any other act in order to **compel** the Government of India, any State Government or the Government of a foreign country or an international or inter-governmental organisation or any other person **to do or abstain from doing any act**,
**commit a terrorist act.**

**Explanation.** — (a) "public functionary" means the constitutional authorities or any other functionary notified in the Official Gazette by the Central Government as public functionary; (b) "counterfeit Indian currency" means the counterfeit currency as may be declared after examination by an authorised or notified forensic authority that such currency imitates or compromises with the key security features of Indian currency.

**(2)** Whoever commits a terrorist act shall,— (a) if such offence has **resulted in the death** of any person, be punished with **death or imprisonment for life**, and shall also be liable to fine; (b) in any other case, **5 years – life** + fine.
**(3)** Whoever **conspires or attempts to commit, or advocates, abets, advises or incites, directly or knowingly facilitates** the commission of a terrorist act or any act preparatory to it — 5 years – life + fine.
**(4)** Whoever **organises or causes to be organised any camp or camps for imparting training** in terrorist act, or **recruits or causes to be recruited** any person for commission of a terrorist act — 5 years – life + fine.
**(5)** Any person who is a **member of an organisation which is involved in terrorist act** — up to imprisonment for life + fine.
**(6)** Whoever voluntarily **harbours or conceals**, or attempts to harbour or conceal, any person knowing that such person has committed a terrorist act — 3 years – life + fine; *proviso:* spouse exempt.
**(7)** Whoever knowingly **possesses any property derived or obtained** from commission of any terrorist act — up to imprisonment for life + fine.

**Explanation (final).** — For the removal of doubts, it is hereby declared that the **officer not below the rank of Superintendent of Police shall decide whether to register the case under this section or under the Unlawful Activities (Prevention) Act, 1967.**

by Ankur R. Upadhyay

## 9.1 The two-layer test (mens rea + actus reus)

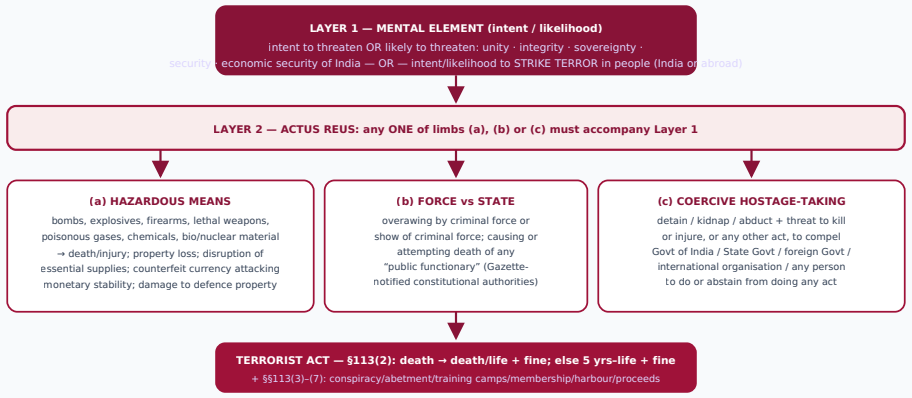



FIG. 8 — §113 TWO-LAYER TEST: terror-purpose PLUS one of three actus-reus limbs; note the SP-rank registration gate vs UAPA

## 9.2 Commentary and comparison

- **Why in the penal code now?** Terrorist offences lived in the UAPA, 1967 (a special statute with its own bail and trial regime). BNS §113 reproduces UAPA §15's definition of "terrorist act" almost verbatim inside the general code, with §§113(3)–(7) mirroring UAPA §§16–18 (conspiracy/abetment, training camps and recruitment, membership, harbouring, proceeds). The final Explanation avoids double-registration conflicts: an officer **not below the rank of SP** chooses between BNS §113 and UAPA.
- **Counterfeit currency as terrorism:** limb (a)(iv) elevates production/smuggling/circulation of counterfeit Indian currency that damages "monetary stability" into a terrorist act — but only where the terror-purpose of Layer 1 exists, and only where a notified forensic authority certifies imitation of key security features.
- **Extraterritorial reach:** the terror purpose may target people "in India or in any foreign country", and limbs (a)(iii) and (a)(v) expressly cover property and essential services abroad.
- **§111 vs §113 (the classic comparator):** organised crime is *profit-driven* (material benefit), terrorism is *purpose-driven* (terror/threat to unity, integrity, sovereignty, security). The same bombing for ransom money may attract §111; the same bombing to coerce government policy attracts §113; both may apply and the SP-rank officer elects the registration as against UAPA.

| Feature | BNS §111 | BNS §112 | BNS §113 |
|---|---|---|---|
| Core evil | Syndicated profit criminality | Gang-run street/local crime | Terror & coercion of the State |
| Mental element | Benefit objective | None special | Intent/likelihood to threaten unity etc. or strike terror |
| Group threshold | Syndicate ≥2 + continuity record | Group/gang, no record | Individual act suffices; membership punished separately (113(5)) |
| Top punishment | Death (if death caused) | 7 years | Death (if death caused) |
| Minimum fines | ₹10L / ₹5L / ₹2L / ₹1L tiers | Discretionary fine | Discretionary fine |
| Pre-BNS home | MCOCA-type laws | Nowhere — new | UAPA §§15–18 |

========== PART X ==========

## PART X Master Comparative Matrix — Offences Affecting Life (Unit 6 + Unit 7 bridge)

| Layer of culpability | BNS provision | IPC provision | Mental state | Punishment core |
|---|---|---|---|---|
| Murder | §§101, 103 | §§300, 302 | Intention / knowledge of highest degree (Punnayya's "most likely") | Death or life (life = remainder of natural life) |
| Culpable homicide not amounting to murder | §§100, 105 | §§299, 304 | Intention of likely death / knowledge of likelihood | Life or 5–10 yrs (intention limb); up to 10 yrs (knowledge limb) |
| Death by rash/ negligent act | §106(1) | §304A | Rashness (advertent risk) or gross negligence (inadvertence) | Up to 5 yrs + fine; RMP: up to 2 yrs + fine |
| Hit-and-run death | §106(2) | — | Rash & negligent driving + escape without reporting | Up to 10 yrs + fine (non-bailable) |
| Syndicated profit crime | §111 | — (MCOCA-type) | Benefit objective + syndicate membership/ behalf | Death/life if death; else 5 yrs–life; minimum fines |
| Gang street crime | §112 | — | None special; gang membership + listed act | 1–7 yrs + fine |

| Layer of culpability | BNS provision | IPC provision | Mental state | Punishment core |
|---|---|---|---|---|
| Terrorism | §113 | — (UAPA §§15–18) | Terror purpose / threat to unity, integrity, sovereignty, security | Death/life if death; else 5 yrs–life + fine |

========== PART XI ==========

EXAMINATION QUESTION BANK // DU LL.B. PAPER LB-104

## Previous Year Examination Questions (PYQs)

**Q.01** 10–15 marks "Explain the terms negligence and rashness under IPC." Distinguish the two and state the degree of negligence required for criminal liability.

◈ Refer website for detailed notes – makelaweasy.in ↗

**Q.02** DU E-Notes / Manupatra Problem · 20 marks "X started from Delhi on his car to go to Gurgaon at about 11.00 p.m. He was driving at a reasonable speed and quite carefully. But unfortunately on the way he knocked down two coolies who were lying and sleeping on the road itself. X is prosecuted for causing death by rash and negligent driving under section 304A IPC. Can X be convicted? Discuss." (BNS counterpart: §106.)

**Q.03** 10 marks "Explain the doctrine of contributory negligence" and its place in criminal liability under §304A IPC / §106 BNS.

**Q.04** 20 marks A, irritated by repeated trespass into his orchard, strings a naked copper wire across the only footpath to it and connects it to his mains supply at lethal voltage, posting no warning. B, a trespasser who knows A has previously warned trespassers orally, enters at dusk, and is electrocuted while climbing out through a gap. B dies. Advise A under the BNS, dealing specifically with (i) private defence of property, and (ii) the argument that a trespasser to whom no civil duty is owed cannot found a criminal charge.

**Q.05** 20 marks D drives a state-roadways bus on his regular route. At a manned level crossing the gateman has the gate wide open; no passenger train is scheduled at that hour. D crosses at dead-slow speed (the approach has two sharp bends and a gradient). An unscheduled goods train, giving no whistle, strikes the rear of the bus; two passengers die. Passengers shout a warning only when the bus is already on the tracks; D accelerates to clear them. Prosecuted under BNS §106 (IPC §304A). Decide, and explain whether the High Court could validly reverse a trial-court acquittal on these facts.

**Q.06** 15–20 marks "A doctor is not an insurer of the patient's life." When can a registered medical practitioner be criminally prosecuted for a patient's death? Discuss the Jacob Mathew tests and guidelines and the effect of the proviso to BNS §106(1). Apply: Surgeon S, of acknowledged competence, chooses a recognised but minority surgical technique; the patient dies of a known risk of that technique occurring in 2% of cases. The relatives lodge an FIR alleging murder and demand S's immediate arrest.

**Q.07** DU Pattern · Theory · 15 marks Define "organised crime" under BNS §111. Explain "organised crime syndicate", "continuing unlawful activity" and "economic offence", and set out the punishment structure including the allied offences in sub-sections (3) to (7).

**Q.08** DU Pattern · Problem · 20 marks A ring of six persons operates in a railway station area: two pick pockets, two skim cards at ATMs, and two resell stolen cards; each member has one prior charge-sheet for theft in the last four years, of which cognizance was taken. They also snatch chains from lone commuters. Discuss their liability under BNS §§111 and 112, explaining why one may apply where the other does not.

UNIT 08 // DU LL.B. PAPER LB-104 (BNS & IPC) 4 Prescribed Cases · 8 Exam PYQs

# Crimes against Children, Body & State — Kidnapping, Abduction, Trafficking & Sovereignty

## PART II The Statutory Framework: IPC ↔ BNS Correspondence

| BNS, 2023 | Heading | IPC, 1860 | Nature of change |
|---|---|---|---|
| § 95 | Hiring, employing or engaging a child to commit an offence | — | **New section**; Explanation covers sexual exploitation/ pornography |
| § 96 | Procuration of child | § 366A | Gender-neutral ("child" for "minor girl") |
| § 98 | Selling child for purposes of prostitution, etc. | § 372 | "minor" → "child" (under 18); presumption retained |
| § 99 | Buying child for purposes of prostitution, etc. | § 373 | Changed — minimum 7 years, max 14 years (IPC: up to 10 years) |
| § 137(1) | Kidnapping (two kinds) | § 359 | Re-enacted; "child" (u/s 2(3): below 18) replaces gendered ages of § 361 (male u/16, female u/18) |
| § 137(1)(a) | Kidnapping from India | § 360 | Re-enacted |
| § 137(1)(b) | Kidnapping from lawful guardianship | § 361 | Re-enacted with uniform age 18; Explanation & Exception retained |
| § 137(2) | Punishment for kidnapping | § 363 | Same: up to 7 years + fine |
| § 138 | Abduction | § 362 | Re-enacted verbatim |
| § 139 | Kidnapping or maiming a child for purposes of begging | § 363A | Changed — minima of 10 yrs / 20 yrs-to-life; statutory definition of "begging" |
| § 87 | Kidnapping, abducting or inducing woman to compel marriage, etc. | § 366 | Re-enacted (charge section in *Vadgama* & *Anversinh*) |
| § 143 | Trafficking of person | § 370 | Changed — graded punishments (7–10 yrs up to life; child-trafficking minima; public-servant limb) |
| § 144 | Exploitation of a trafficked person | § 370A | Changed |
| § 152 | Acts endangering sovereignty, unity and integrity of India | § 124A (deleted) | New section replacing sedition; Explanation protects lawful disapprobation |

Exam alert – the age revolution IPC § 361 protected a male minor under **16** and a female minor under **18**. BNS § 137(1)(b) reads "any **child**", and BNS § 2(3) defines child as "any person below the age of eighteen years". Consequence: **boys now enjoy the same protective ceiling as girls**, and every pre-2024 precedent discussing "16/18" must be restated as "18" in a BNS answer (e.g., the 17-year-old "Aadya" of PYQ Q1/2024 and the 16-year-old "Mira" of Q2(b)/2018 are children under both regimes; a 17-year-old *boy* would be protected only under BNS).

## PART III Kidnapping — BNS § 137 ↔ IPC §§ 359, 360, 361, 363

### 3.1 Etymology, object and the two kinds

"Kidnapping" compounds *kid* (child) + *napping* (to steal) — literally child-stealing; but in law it "is not confined to child stealing. It has been given a wider connotation as meaning carrying away of a human being against his/her consent, or the consent of some person legally authorised to accord consent on behalf of such person" (DU exam-format material; Manupatra commentary, citing Kenny). The object is twofold: "to secure the personal liberty of citizens, to give legal protection to children of tender age from being abducted or seduced for improper purposes and to preserve the rights of parents and guardians over their wards" (Manupatra); and, per Gajendragadkar J. in *State v. Harbansing Kisansing* AIR 1954 Bom 399 (quoted in *Varadarajan* and Manupatra): "the more important object of these provisions undoubtedly is to afford security and protection to the wards themselves."

Statute – BNS § 137 (as per course gazette)

> **137. (1)** Kidnapping is of two kinds: kidnapping from India, and kidnapping from lawful guardianship—
> (a) whoever **conveys any person beyond the limits of India** without the consent of that person, or of some person legally authorised to consent on behalf of that person, is said to kidnap that person from India;
> (b) whoever **takes or entices any child or any person of unsound mind, out of the keeping of the lawful guardian** of such child or person of unsound mind, **without the consent of such guardian**, is said to kidnap such child or person from lawful guardianship.
> **Explanation.**—The words "lawful guardian" in this clause include any person lawfully entrusted with the care or custody of such child or other person.

> **Exception.**—This clause does not extend to the act of any person who in good faith believes himself to be the father of an illegitimate child, or who in good faith believes himself to be entitled to the lawful custody of such child, unless such act is committed for an immoral or unlawful purpose.
> **(2)** Whoever kidnaps any person from India or from lawful guardianship shall be punished with imprisonment of either description for a term which may extend to **seven years**, and shall also be liable to fine.
>
> IPC predecessors: § 359 (two kinds), § 360 (from India), § 361 (from lawful guardianship — "any minor under sixteen years of age if a male, or under eighteen years of age if a female, or any person of unsound mind", same Explanation and Exception), § 363 (punishment: up to seven years + fine).

## 3.2 Kind I — Kidnapping from India (§137(1)(a) / IPC §360): ingredients

1. **Conveying of any person** — "convey" means to take, carry or transport; a physical act; the person may be major, minor or of unsound mind; conveyance may be by force or by fraud-induced consent (DU exam-format notes; Manupatra).
2. **Beyond the limits of India** — the territorial threshold; the offence is complete on crossing it.
3. **Without consent** — of that person, or of someone legally authorised to consent on his/her behalf (for a child or person of unsound mind); consent vitiated by fear or misconception (BNS §28 / IPC §90) is no consent.

## 3.3 Kind II — Kidnapping from lawful guardianship (§137(1)(b) / IPC §361): ingredients

1. **Taking or enticing** — the operative act (analysed below).
2. **The person must be a "child" (BNS: below 18, §2(3); IPC: male u/16, female u/18) or a person of unsound mind.**
3. **Out of the "keeping" of the lawful guardian** — "keeping" "connotes the idea of charge, protection, maintenance and control" (*State of Haryana v. Raja Ram*, quoted in *Vadgama*); the minor need not be in the guardian's physical possession — continuous control suffices (in *Varadarajan*, Savitri left at a relative's house remained in her father's keeping).
4. **Without the consent of the guardian** — "it is only the guardian's consent which takes the case out of its purview" (*Raja Ram*).
5. **Consent of the child is wholly immaterial** — and so is the kidnapper's motive, save within the Exception (*Raja Ram*; *State v. Sulekh Chand*; Manupatra list).

> `"Lawful guardian" vs "legal guardian"` "Lawful" ≠ "legal": a lawful guardian is "a guardian whose custody is sanctioned by law" (*Fatti (Mst.) v. Emperor*); the Explanation extends it to "any person lawfully entrusted with the care or custody" — e.g., a schoolmaster or employer is a lawful guardian though not a legal guardian; a person obtaining custody by illegal means is not one (Manupatra commentary).

**"Takes" and "entices" — the contested verbs (the heart of all three DU cases)**

- **"Takes"** — "does not necessarily connote taking by force... This word merely means 'to cause to go', 'to escort' or 'to get into possession'" (*Vadgama*, adopting *Raja Ram*); the minor's mental attitude during the taking is irrelevant (*In re Khalandar Saheb*).
- **"Entices"** — "involves the idea of inducement or allurement by giving rise to hope or desire in the other... This may work immediately or it may create continuous and gradual but imperceptible impression culminating after some time, in achieving its ultimate purpose" (*Vadgama*).
- **The Varadarajan line:** if the minor leaves home "completely uninfluenced by any promise, offer or inducement emanating from the guilty party", there is no taking; but "if the guilty party has laid a foundation by inducement, allurement or threat... and if this can be considered to have influenced or weighed with her in leaving her guardian's custody... then prima facie it would be difficult for him to plead innocence on the ground that the minor had voluntarily come to him" (*Vadgama*, reconciling *Varadarajan*).
- **Strict-liability flavour:** *R. v. Prince* (1875) LR 2 CCR 154 (in DU exam material): bona fide belief that the girl was over the protected age is no defence — the section dispenses with mens rea as to age; "if the kidnapped girl turns out to be under 18 years of age, the kidnapper must take the consequences" (Manupatra).
- **Continuing offence:** the offence is complete when the minor is actually taken and "is a continuing one until the minor's return to his guardian" (*Jeevan v. Rex*, AIR 1949 Ori 22, Manupatra); "taking" may be a series of acts — a question of fact.

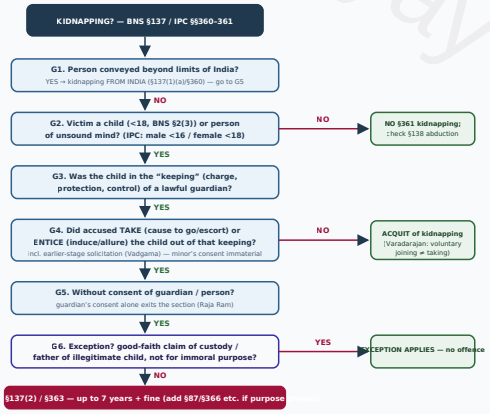



FIG. 2 — SIX-GATE TEST FOR KIDNAPPING (BNS §137 / IPC §§360–361), with the Varadarajan exit at Gate 4

## PART IV DU Case Law I — S. Varadarajan v. State of Madras

### S. Varadarajan v. State of Madras

AIR 1965 SC 942 · Coram: J.R. Mudholkar, K. Subba Rao & M. Hidayatullah, JJ. · Appeal by special leave from High Court of Madras (full text in DU Casebook, Unit 8, pp. 243–246)

**FACTS**

- Savitri (PW4), born 13.11.1942 (hence a minor, "on the verge of attaining majority", on 01.10.1960), was the third daughter of S. Natarajan (PW1), an Assistant Secretary to the Government of Madras, living at Nungambakkam with his wife and two daughters — Rama (PW2, medical college) and Savitri (a second-year B.Sc. student of Ethiraj College).
- A few months before 30.09.1960 Savitri became friendly with the appellant Varadarajan, a next-door neighbour; they conversed across houses. On 30.09.1960 Rama found them talking; Savitri said **she wanted to marry the appellant**. The father questioned her; she wept but said nothing. The father took her the same day to Kodambakkam and left her at the house of his relative K. Natarajan (PW6) to keep her away from the appellant.
- On **01.10.1960 at about 10 a.m. Savitri herself left** K. Natarajan's house, **telephoned the appellant** asking him to meet her on a certain road, went there, and got into his car **of her own accord**. They picked up P.T. Sami, went to a shop where the appellant bought two gundus and a tirumangalyam **selected by Savitri**, and had an **agreement to marry registered** at the Registrar's office (attested by Sami and co-accused P.K. Mar, who was acquitted). They stayed a day at Ajanta Hotel, then travelled to Sattur, Sirukulam, Coimbatore and Tanjore, where police tracing the father's kidnapping complaint found them on 03.11.1960.

**PROCEDURAL HISTORY**

Convicted by the Fifth Presidency Magistrate, Egmore, under **§363 IPC** and sentenced to one year's rigorous imprisonment; conviction affirmed by the High Court of Madras; appeal by special leave.

**ISSUES**

1. Whether a minor can **abandon** the guardianship of her guardian, and whether Savitri did so.
2. Whether the appellant's conduct amounted to a **"taking"** of Savitri out of the keeping of her lawful guardian within §361 IPC (the essential ingredient of kidnapping).

**ARGUMENTS — APPELLANT**

- Savitri had **abandoned her father's guardianship** before the appellant entered the picture.
- In the alternative, the appellant **did not take her out of the keeping** of her lawful guardian: she telephoned him, joined him voluntarily, and the insistence on marriage came from her side; he merely complied with her wishes.

**ARGUMENTS — RESPONDENT (STATE) / COURTS BELOW**

- Savitri, though at K. Natarajan's house, remained in the **lawful keeping of her father**; the appellant's active role — driving her about, purchasing jewellery, registering the marriage agreement, keeping her with him from place to place — constituted taking/enticing.
- His facilitating conduct and continued harbouring of a minor girl who had left home completed the offence under §361/363.

**DECISION**

**Appeal allowed; conviction and sentence set aside; appellant acquitted.** The Court found it unnecessary to decide the "abandonment of guardianship" question, because the ingredient of **"taking"** itself failed:

- "Taking or enticing away a minor out of the keeping of a lawful guardian is an essential ingredient of the offence of kidnapping… what we have to find out is whether the part played by the appellant amounts to 'taking'."
- "There is not a word in the deposition of Savitri from which an inference could be drawn that she left the house of K. Natarajan at the instance or even a suggestion of the appellant… she got into that car of her own accord… the insistence of marriage came from her side. The appellant, by complying with her wishes can by no stretch of imagination be said to have taken her out of the keeping of her lawful guardian."
- She "was not a child of tender years… was on the verge of attaining majority… not an uneducated or unsophisticated village girl but a senior college student".
- **The governing distinction:** "there is a distinction between 'taking' and allowing a minor to accompany a person… where the minor alleged to have been taken by the accused person left her father's protection knowing and having capacity to know the full import of what she was doing voluntarily joins the accused person… the accused can[not] be said to have taken her away… **Something more has to be shown… some kind of inducement held out by the accused person or an active participation by him in the formation of the intention of the minor to leave the house of the guardian.**"

by Ankur R. Upadhyay

- It would suffice if the prosecution proved that "though immediately prior to the minor leaving the father's protection no active part was played by the accused, he had **at some earlier stage solicited or persuaded** the minor to do so"; absent that, merely helping her design not to return "falls short of an inducement… and is, therefore, not tantamount to 'taking'."
- English support: *Reg v. Christian Olifir* (Baron Bramwell) and *Rex v. James Jarvi* (Jelf J.) — if the girl leaves of her own accord and the accused takes no active part, "his not doing so [returning her] is no infringement of this Act… for the Act does not say he shall restore her, but only that he shall not take her away"; and Halsbury: previous solicitation + subsequent harbouring can convict, but mere harbouring of a self-leaver cannot.
- **Protective object restated:** §§361 and cognate sections "are intended more for the protection of the minors and persons of unsound mind themselves than of the rights of the guardians" (*State v. Harbansing Kisansing*, Gajendragadkar J.).

PRINCIPLES EVOLVED

1. **"Taking" requires causal agency:** the accused's act must be the cause of the minor leaving the guardian's keeping; a minor of mature understanding who voluntarily joins the accused is not "taken".
2. **Earlier-stage inducement suffices:** solicitation/persuasion at any prior stage, operating on the minor's mind, converts voluntary-joining into taking/enticing (the bridge later used in *Vadgama*).
3. **No duty to restore:** the section prohibits taking, not non-restoration; harbouring a self-leaver, without more, is not kidnapping.
4. **Ward-centred object:** the offence protects the minor, not merely the guardian's custodial rights.

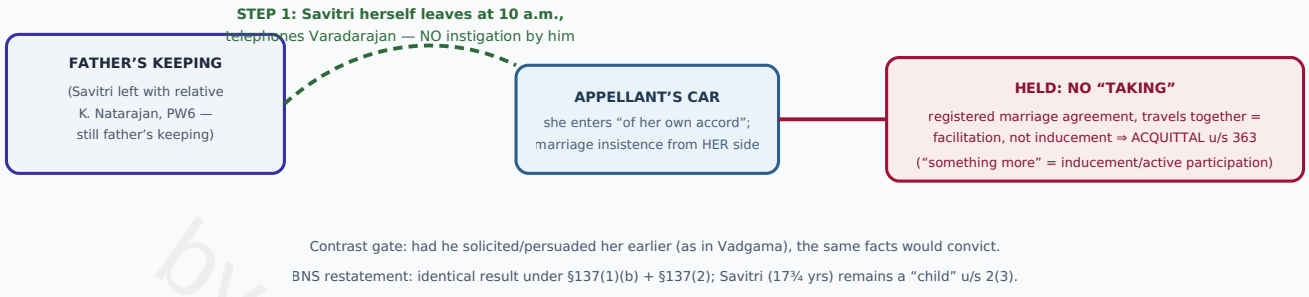



FIG. 3 — VARADARAJAN: the self-initiated elopement and the "something more" requirement

## PART V Abduction — BNS § 138 ↔ IPC § 362

Statute — BNS § 138 / IPC § 362 (identical)

> "Whoever by **force compels**, or by any **deceitful means induces**, any person to go from any place, is said to abduct that person."

### 5.1 Ingredients

1. **Any person** — no age or mental-state limit; unlike kidnapping, the victim may be a major of sound mind.
2. **Compulsion by force** (actual or constructive) *or* **inducement by deceitful means** — the two alternative modes; a person who goes willingly, without force or deceit, is not abducted.
3. **Going from any place** — movement procured by either mode.

### 5.2 Character of the offence (DU exam material)

- **Not a substantive offence:** abduction "is not substantive offence" — it becomes punishable only when coupled with a further intent/purpose prescribed elsewhere (e.g., BNS §87/IPC §366 compel marriage or illicit intercourse; §140/§§364–367 murder, ransom, confinement, grievous hurt/slavery; §141/§366B importation).
- **Continuing offence:** "It is continuing offence" — it persists as long as the compelled/deceived movement continues.
- **Consent matters here:** if the person accompanies willingly and without deceit, §138 is not attracted — the mirror image of kidnapping, where the child's consent is immaterial.

### 5.3 Kidnapping vs Abduction — the distinction table examiners expect

| Point | Kidnapping (BNS §137 / IPC §§359–361) | Abduction (BNS §138 / IPC §362) |
|---|---|---|
| Victim | Only a child (BNS: <18; IPC: male <16, female <18) or person of unsound mind; for "from India", any person. | Any person of any age and soundness of mind. |

by Ankur R. Upadhyay

| Point | Kidnapping (BNS §137 / IPC §§359–361) | Abduction (BNS §138 / IPC §362) |
|---|---|---|
| Mode | Taking or enticing out of guardian's keeping; force/fraud not necessary — persuasion creating willingness suffices. | Force compelling or deceitful means inducing; willing going without deceit is no abduction. |
| Consent of victim | Wholly immaterial (guardian's consent alone exits). | Material — free consent negatives the offence. |
| Status of offence | Substantive offence (punishable per se, §137(2)/§363). | Not substantive; punishable only with a super-added purpose (e.g., §§87, 140, 141 BNS). |
| Duration | Complete on taking/enticing; continuing until return (Jeevan v. Rex). | Continuing offence throughout the compelled movement. |
| Guardian element | Essential — "keeping of the lawful guardian". | Absent — no guardian ingredient. |
| Mens rea as to age | None — R v. Prince strict liability as to age. | Not applicable (no age ingredient). |

## PART VI DU Case Law II — Thakorlal D. Vadgama v. State of Gujarat

### Thakorlal D. Vadgama v. State of Gujarat

AIR 1973 SC 2313 · Coram: I.D. Dua, J. · Appeal by special leave against Gujarat High Court partly allowing appeal (full text in DU Casebook, Unit 8, pp. 246–254)

**FACTS (PROSECUTION VERSION, ACCEPTED BY COURTS BELOW)**

- The appellant, an industrialist of Jamnagar (factory at Bunder Road with adjoining bungalow), was introduced to Mohini's family during the 1965 Pakistan bombardment when they shifted to Bhrol. On 18.12.1965 (her birthday) he presented **Mohini — a school-going girl below 15** — with a Parker pen (returned at her mother's instance).
- He then took Mohini, her father, his manager Tribhovandas and Tribhovandas' children on trips to **Baroda** (land-purchase negotiation; impression created that her father would manage the new factory) and, at Christmas 1965, to **Bombay**, where Mohini, Malati and the appellant slept in one room and intercourse is alleged to have occurred on two nights; skirts and waistbands were bought for Mohini and Malati.
- Further alleged intercourse in March 1966 at his bungalow; a summer-1966 trip to Mahabaleshwar/Mount Abu where, at 3 a.m., Mohini's mother saw the appellant sleeping by Mohini's side with his hand on her head; the **Dattatraya temple episode** in which he placed his hands on Mohini's and his own daughter Rekha's heads and swore Mohini was like his daughter; thereafter intercepting Mohini returning from school and taking her to the bungalow.
- From July 1966 the parents escorted Mohini to school; the mother's **letter of 26.09.1966** asked him to desist; in October 1966 he contacted her at a school camp in Ahmedabad. Mohini's letters of Nov–Dec 1966 (Exs. P-20, P-16) complained of ill-treatment at home.
- **The culminating incident (16–17.01.1967):** instead of school, Mohini went to the appellant's factory per previous arrangement; he took her into the garage, made her write **three letters on his dictation** (to her father, the DSP and himself — alleging ill-treatment and stating she was leaving for Bombay after taking Rs 250); hid her in the **dickey of his car** for hours; had intercourse at midnight at the factory office; concealed her in a cellar and then an inner room of the garage; on hearing a car he sent her out to wait near Gandhinagar, where Sub-Inspector Chaudhary, arriving with the appellant, traced her at about 9 p.m. Her wet clothes, school books and exercise books were recovered from the dickey; unfinished food in the inner room bore the appellant's utensils. The father's complaint was lodged at 7.20 p.m. on 16.01.1967.

**PROCEDURAL HISTORY**

Sessions Judge, Jamnagar: convicted under **§§366 and 376 IPC** (18 months RI u/s 366; 2 years RI + Rs 500 fine u/s 376, concurrent). Gujarat High Court on appeal: **acquitted of §376** (prosecutrix's account of the charged night uncorroborated) but **maintained the §366 conviction**. Appeal by special leave by the accused.

**ISSUES**

1. Whether, on the evidence, the appellant **kidnapped (took/enticed)** Mohini — a minor — out of the keeping of her lawful guardian with intent that she be forced or seduced to illicit intercourse (§366 IPC; cf. BNS §87).
2. Whether *S. Varadarajan* protected him on the plea that Mohini came to him **of her own accord**, unhappy at home.

**ARGUMENTS – APPELLANT (SHRI DHEBAR)**

- Mohini, feeling unhappy and harassed by unreasonably harsh parents, **left home on her own accord** and sought his help out of compassion; he was a mere refuge, not a kidnapper.
- The parents' erroneous suspicions and stern behaviour, not his conduct, induced her leaving; on *Varadarajan* a voluntary joining of the accused is not "taking"; the concurrent findings on evidence were untrustworthy.

ARGUMENTS — RESPONDENT (STATE) / FINDINGS OF COURTS BELOW

- The whole course of conduct — gifts, trips, shared rooms, the temple charade, secret correspondence, the dictated letters and the Rs 250 plant, the dickey concealment — shows a **foundation laid by inducement and allurement** operating on an immature schoolgirl's mind, culminating in the 16 January departure; the dictated letters were stage-management against future prosecution.
- Trial court (quoting *Christian Olifier*, 10 Cox 420): even if she had left at her own time, "if, finding she has left, he avails himself of that to induce her to continue away from her father's custody… he is also guilty, if his persuasion operated on her mind so as to induce her to leave."

DECISION

**Appeal dismissed; §366 conviction and sentence upheld** (sentence "already very lenient" given the aggravating previous intimacy and the temple episode). The Supreme Court held:

- **Statutory semantics:** "takes" = "to cause to go", "to escort", "to get into possession" (not necessarily force); "entice" = inducement/allurement raising hope or desire, which "may work immediately or… create continuous and gradual but imperceptible impression culminating after some time"; the two words "are… intended to be read together so that each takes to some extent its colour and content from the other".
- **The Varadarajan reconciliation:** "if the minor leaves her parental home completely uninfluenced by any promise, offer or inducement emanating from the guilty party, then the latter cannot be considered to have committed the offence as defined in Section 361… But if the guilty party has **laid a foundation by inducement, allurement or threat**, etc. and if this can be considered to have influenced or weighed with her in leaving her guardian's custody… then prima facie it would be difficult for him to plead innocence on the ground that the minor had voluntarily come to him… the mere circumstance that his act was not the immediate cause of her leaving her parental home… would constitute no valid defence."
- **Application:** "The evidence of the constant behaviour of the appellant towards Mohini for several months preceding the incident… completely brings the case within the passage at p. 248 [of Varadarajan]… ample material showing earlier allurements and even of the appellant's participation in the formation of Mohini's intention and resolve to leave her father's house."
- **Evidentiary anchor:** the letters (Exs. P-20, P-16) and the mother's letter (Ex. P-27) — "how the mother of the girl belonging to a comparatively poorer family felt when confronted with a rich man's dishonourable behaviour towards her young, impressionable immature daughter" — made the substratum of the prosecutrix's story "probable and trustworthy".

PRINCIPLES EVOLVED

1. **Foundation-by-inducement rule:** earlier-stage allurement that weighs with the minor in leaving the guardian's keeping satisfies "taking/enticing" even if the immediate departure looks voluntary — the accused cannot then shelter behind the minor's willingness.
2. **Gradual enticement:** inducement need not be immediate; a continuous, imperceptible impression culminating later suffices.
3. **Contextual reading of "takes" and "entices":** each colours the other; force is not required.
4. **Power-imbalance realism:** the court weighed the rich-man/poor-family dynamic and the girl's immaturity in assessing the truth of the enticement narrative (contrast the mature college student in *Varadarajan*).

## PART VII DU Case Law III — Anversinh alias Kiransinh Fatesinh Zala v. State of Gujarat

### Anversinh alias Kiransinh Fatesinh Zala v. State of Gujarat

(2021) 3 SCC 12 · Coram: Surya Kant, J. (with M.R. Shah, J.) · Criminal appeal against Gujarat High Court order dated 28.07.2009 (full text in DU Casebook, Unit 8, pp. 255–258; heard via video conferencing)

FACTS

- On the night of **14.05.1998**, complainant Kiransinh Jalamsinh (PW-1) learnt from his wife that their eldest daughter (PW-3, the prosecutrix), **sixteen years old**, Class-VII educated, working as a maid, had not returned from her second shift. A watchman said she was last seen leaving vacant Bungalow No. 4 of Ramjani Society **with the appellant**; the appellant had left for Surpur with her.
- Police complaint on 16.05.1998; both traced to a farm near Modasa and brought back on 21.05.1998; medical examination and seizure of clothes followed.
- Prosecutrix's case: caught on her way to work, forcibly taken by auto-rickshaw to a bus stand, then by bus to the appellant's village; repeatedly raped and pressurised into a marriage ceremony. **In cross-examination she admitted being in love with the appellant, prior consensual intercourse, and previous meetings outside home.** She sat with other passengers on the back seat of the auto (appellant in front); spent a week at his village working and living "akin to husband and wife".

by Ankur R. Upadhyay

- School record (PW-2): date of birth 08.02.1982 ⇒ **16 years, 3 months, 6 days** at the occurrence. Panch witnesses PW-4 and PW-6 turned hostile; PW-5 (doctor) proved intercourse; the IO (PW-8) admitted the FIR omitted the force-abduction claim and that her §161 CrPC statement spoke of a month-long acquaintance, a regular physical relationship in a damaged bungalow, and running away together to work on Bhikabhai's farm.

### PROCEDURAL HISTORY

Additional Sessions Judge (16.12.2002): convicted under **§§363, 366 and 376 IPC** (1 yr + fine u/s 363; 5 yrs + fine u/s 366; 10 yrs + fine u/s 376). Gujarat High Court (28.07.2009): **set aside §376** (love affair established; no protest despite opportunities) but **sustained §§363/366** (undisputed minority; no evidence she consented to be taken from custody). Appeal to Supreme Court against the kidnapping convictions.

### ISSUES

1. Whether, despite a consensual love affair and the prosecutrix's voluntary company, the ingredients of kidnapping (§§361/363; BNS §137) and §366 (BNS §87) stand proved.
2. Whether the High Court's twin findings (love affair ⇒ no rape; but no consent to leaving custody ⇒ kidnapping) are mutually contradictory.
3. What sentence is appropriate on the special facts?

### ARGUMENTS – APPELLANT

- The High Court's findings are **mutually contradictory**: having held a love affair and voluntary company (hence acquittal u/s 376), it could not hold she did not willingly leave custody.
- *S. Varadarajan*: voluntary abandonment of home by a minor girl is not kidnapping; absent active involvement there is no "taking" or "enticing"; recovery of a missing minor from a stranger's custody is not ipso facto kidnapping (*King Emperor v. Gokaran*; *Emperor v. Abdur Rahman*).

### ARGUMENTS – RESPONDENT (STATE)

- Concurrent findings plus the plain statutory language: **consent of a girl below 18 is no excuse** in kidnapping u/s 361; the evidence shows the appellant induced the prosecutrix to reach a designated place to accompany him — enticement proved.

### DECISION

**Conviction under §§363/366 IPC upheld; sentence reduced to the period of imprisonment already undergone; appellant set free; appeal partly allowed.** The Court (Surya Kant, J.) held:

- **Ingredients restated:** §361 requires an act of enticing or taking, minority, and the care/keep of a lawful guardian; "such 'enticement' need not be direct or immediate in time and can also be through subtle actions like winning over the affection of a minor girl"; mere recovery of a missing minor from a stranger does not ipso facto establish kidnapping.
- **Application:** the appellant "unintentionally admitted his culpability" — recovery from his custody plus admitted sexual relationship and intention to marry; eye-witnesses showed he "had drawn the prosecutrix out of the custody of her parents"; the evidence "unequivocally suggests that the appellant induced the prosecutrix to reach at a designated place to accompany him".
- **Consent immaterial:** "Such a plea [consensual affair]... cannot be acceded to given the unambiguous language of the statute as the prosecutrix was admittedly below 18 years of age"; and unlike *Varadarajan*'s Savitri, there is "little to suggest that she was aware of the full purport of her actions or that she possessed the mental acuities and maturity to take care of herself" — young, little-educated, actions not thought through.
- **Sentencing (humane approach):** applying *State of M.P. v. Surendra Singh* (proportionality; no mechanical reduction), five factors justified reduction to period undergone: (i) no force, pre-planning, weapon or vulgar motive; (ii) the appellant's own young age (about 18–19) — "hope for reform, and not punitively"; (iii) **22 years' delay**, both parties now settled in their forties; (iv) crime of passion, no antecedents, low recidivism; (v) unlike *Raja Ram* and *Vadgama*, "no grotesque misuse of power, wealth, status or age" — same social class and cultural vicinity; "if not for the age of the prosecutrix, the two could have been happily married"; the offence is **mala prohibita, not mala in se**.

### PRINCIPLES EVOLVED

1. **Minority is the statute's core:** where the child is below the protected age and the accused's inducement is proved, the love-affair defence collapses — consent of the minor is immaterial (contrast *Varadarajan* on its mature-minor, no-inducement facts).
2. **Subtle enticement counts:** winning over a minor girl's affection and inducing her to a designated place is "enticing".
3. **Varadarajan distinguished, not overruled:** its "voluntary joining" exit applies only where the minor's departure is uninfluenced and she has capacity to know the full import of her act.

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4. **Sentencing realism:** mala prohibita love-elopement cases without force or power-imbalance merit rehabilitative, not punitive, sentencing after long delay (Surendra Singh proportionality).

`The trilogy synthesised — one rule, three fact-patterns` **Rule:** kidnapping turns on the accused's causal agency in the child's departure — "taking" (cause to go) or "enticing" (inducement, immediate or gradual); the child's consent never excuses. **Varadarajan** = departure wholly self-generated by a near-major, educated minor; accused's later facilitation ≠ taking ⇒ acquit. **Vadgama** = months of gifts, trips and intimacy laid the foundation; her "voluntary" walk to his factory was the fruit of his inducement ⇒ convict. **Anversinh** = love affair plus proved inducement of an immature 16-year-old ⇒ convict, but sentence tempered to period undergone. In every problem answer, locate the facts on this axis first.

## PART VIII Trafficking of Person — BNS § 143 ↔ IPC §§ 370, 370A

`Statute — BNS § 143 (as per course gazette)`

> **143. (1)** Whoever, **for the purpose of exploitation recruits, transports, harbours, transfers, or receives** a person or persons, by— (a) using **threats**; or (b) using **force, or any other form of coercion**; or (c) by **abduction**; or (d) by practising **fraud, or deception**; or (e) by **abuse of power**; or (f) by **inducement**, including the giving or receiving of payments or benefits, in order to achieve the consent of any person having control over the person recruited, transported, harboured, transferred or received, commits the offence of trafficking.
> **Explanation 1.** — "exploitation" shall include any act of physical exploitation or any form of sexual exploitation, slavery or practices similar to slavery, servitude, beggary or forced removal of organs.
> **Explanation 2.** — The **consent of the victim is immaterial** in determination of the offence of trafficking.
> **(2)** Trafficking: rigorous imprisonment **7–10 years** + fine. **(3)** More than one person: RI **10 years–life** + fine. **(4)** Trafficking of a **child**: RI **10 years–life** + fine. **(5)** More than one child: RI **14 years–life** + fine. **(6)** Repeat conviction for child trafficking: **life (remainder of natural life)** + fine. **(7)** Public servant or police officer involved: **life (remainder of natural life)** + fine.

IPC §370 (inserted by Criminal Law (Amendment) Act 13 of 2013) defined trafficking similarly with 7–10 years / 10–life gradations; §370A punished exploitation of trafficked persons. BNS §144 (= §370A, changed) punishes engaging a trafficked child for sexual exploitation with RI 5–10 years, and a trafficked person with RI 3–5 years (check bare act for the adult limb).

### 8.1 Elements — the "act + means + purpose" triad (Palermo-style, now codified)

1. **Act:** recruits, transports, harbours, transfers or receives a person/persons (any one).
2. **Means:** threats; force/coercion; abduction; fraud/deception; abuse of power; or inducement/payments to obtain the consent of a controller of the victim (any one).
3. **Purpose:** exploitation — physical exploitation, any sexual exploitation, slavery or slavery-like practices, servitude, beggary, or forced organ removal (Explanation 1).
4. **Consent irrelevant** (Explanation 2) — and, where any listed means is used, the victim's consent is legally void anyway.

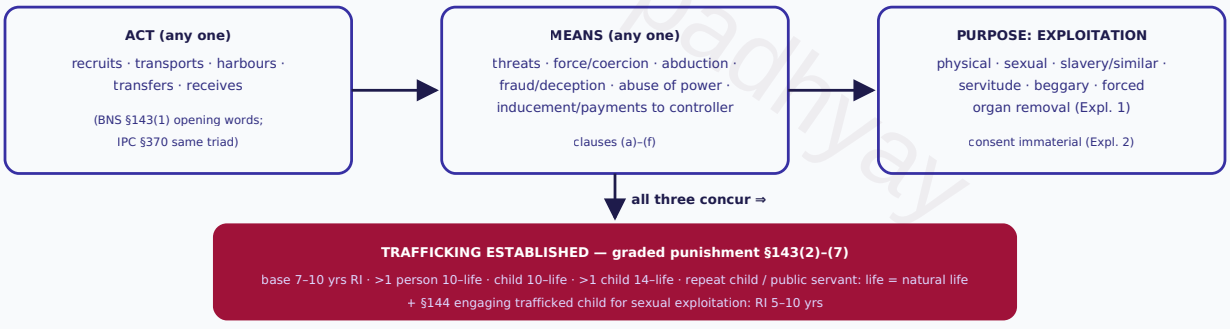



FIG. 4 — THE TRAFFICKING TRIAD: act + means + purpose, with consent legally irrelevant

`Inter-statute map for trafficking answers` BNS §143 sits alongside (not in substitution of) special laws: **Immoral Traffic (Prevention) Act, 1956**, **POCSO, 2012**, and **Art. 23** (prohibition of traffic in human beings). Where a child is trafficked for sexual exploitation, plead §143 + §144 BNS with ITPA/POCSO; where for beggary, note §139 BNS (kidnapping/maiming child for begging, 10 yrs–life; maiming: 20 yrs–natural life; statutory presumption u/s 139(3)); where for forced labour, §146 BNS (= IPC §374).

## PART IX Child-Protective Offences — BNS §§ 95, 98, 99 (↔ IPC 372, 373; §95 new)

`Statute — BNS § 95 (NEW; no IPC counterpart)`

BY ANKUR R. UPADHYAY

> "Whoever **hires, employs or engages any child to commit an offence** shall be punished with imprisonment of either description which shall **not be less than three years but which may extend to ten years, and with fine**; and **if the offence be committed shall also be punished with the punishment provided for that offence as if the offence has been committed by such person himself.**
> Explanation.—Hiring, employing, engaging or using a child for **sexual exploitation or pornography** is covered within the meaning of this section."

- **Elements:** (i) hiring, employing or engaging; (ii) of any child (u/s 2(3): below 18); (iii) to commit an offence. The inchoate use of a child as an instrument of crime is itself the offence — minimum three years.
- **Double-liability clause:** if the offence is actually committed, the hirer is punished for it too, *as if he committed it himself* — a statutory vicarious-extension overriding the child's own immunity (BNS §§20–21 / IPC §§82–83).
- **Explanation:** using a child for sexual exploitation or pornography is deemed within the section — dovetailing with §144 BNS, ITPA and POCSO.

Statute – BNS §§ 98 & 99 (↔ IPC §§ 372, 373)

> **98.** Whoever **sells, lets to hire, or otherwise disposes of any child** with intent that such child shall at any age be employed or used for the purpose of **prostitution or illicit intercourse** with any person or for any **unlawful and immoral purpose**, or knowing it to be likely that such child will at any age be employed or used for any such purpose — imprisonment up to **ten years** + fine.
> **Explanation 1.** — When a **female under eighteen** is sold, let for hire, or otherwise disposed of to a prostitute or to any person who keeps or manages a brothel, the disposer shall, **until the contrary is proved, be presumed** to have disposed of her with the intent that she shall be used for prostitution.
> **Explanation 2.** — "illicit intercourse" = sexual intercourse between persons not united by marriage or by a union recognised by personal law/custom as a quasi-marital relation.
>
> **99.** Whoever **buys, hires or otherwise obtains possession of any child** with the like intent or knowledge — imprisonment **not less than seven years but up to fourteen years** + fine.
> **Explanation 1.** — A prostitute or brothel-keeper who buys, hires or obtains possession of a female under eighteen is presumed, until contrary proved, to have obtained her for prostitution. **Explanation 2.** — "illicit intercourse" as in §98.

- **§98 = supply side; §99 = demand side** — the two sections criminalise the market in children for sexual and immoral exploitation; both turn on intent or knowledge of the likely use "at any age" (the futurity of the intended use is immaterial).
- **Reversed onus:** the presumptions in the Explanations shift the burden to the disposer/buyer-brothel-keeper once transfer of a female under 18 to a prostitute/brothel is proved.
- **Sentencing asymmetry (BNS change):** the buyer (§99: 7–14 years) is now punished more severely than the seller (§98: up to 10 years) — IPC §§372/373 both capped at 10 years; the legislature rated the demand side graver.

| Point | §95 hire/employ/engage child for offence | §98 selling child | §99 buying child |
|---|---|---|---|
| Conduct | Hiring, employing, engaging a child to commit an offence (incl. sexual exploitation/pornography) | Selling, letting to hire, disposing of a child | Buying, hiring, obtaining possession of a child |
| Mental element | Purpose that an offence be committed | Intent/knowledge of prostitution, illicit intercourse, unlawful & immoral purpose "at any age" | Same intent/knowledge |
| Presumption | — | Female u/18 to prostitute/brothel ⇒ presumed prostitutive intent | Prostitute/brothel-keeper obtaining female u/18 ⇒ presumed prostitutive intent |
| Punishment | 3–10 yrs + fine; plus punishment of the committed offence as principal | Up to 10 yrs + fine | 7–14 yrs + fine |
| IPC source | None (new) | §372 | §373 |

## PART X Acts Endangering Sovereignty, Unity & Integrity of India — BNS § 152 (replacing IPC § 124A sedition)

Statute – BNS § 152 (as per course gazette)

> "Whoever, **purposely or knowingly**, by words, either spoken or written, or by signs, or by visible representation, or by **electronic communication or by use of financial means**, or otherwise, **excites or attempts to excite, secession or armed**

> **rebellion or subversive activities, or encourages feelings of separatist activities or endangers sovereignty or unity and integrity of India; or indulges in or commits any such act** shall be punished with **imprisonment for life or with imprisonment which may extend to seven years**, and shall also be liable to fine.
> **Explanation.**—Comments expressing **disapprobation of the measures, or administrative or other action of the Government** with a view to obtain their alteration by lawful means without exciting or attempting to excite the activities referred to in this section **do not constitute an offence** under this section."

### 10.1 Lineage: from sedition to §152

- IPC §124A (sedition) punished bringing "into hatred or contempt, or excit[ing]... disaffection towards the Government established by law", with Explanations 2–3 saving lawful disapprobation. The DU comparative table records §124A as **"Deleted"** and §152 as a **"New Section"**.
- **Constitutional gloss (Kedar Nath Singh v. State of Bihar, AIR 1962 SC 955 — in DU/DU Case Material material):** §§124A and 505 are valid only if read down — they "apply only to speeches and writing having intention or tendency to incite others to create public disorder or to violence. **Criticism of government, however strongly worded, does not fall within the ambit of these sections.**" The DU Case Material commentary adds that sedition "means a stirring up of rebellion against the government... activities... calculated to disturb the tranquility of the State, and lead people to subvert the government established by law."
- **What §152 changes:** (i) the protected object is named constitutionally — sovereignty, unity, integrity, security (and economic security via counterfeiting limbs elsewhere) — plus secession, armed rebellion, subversive and separatist activities; (ii) new media limbs — **electronic communication** and **use of financial means**; (iii) mens rea expressly "purposely or knowingly"; (iv) punishment life or up to 7 years + fine (IPC §124A: life or up to 3 years); (v) the saving Explanation is retained in substance — disapprobation seeking lawful alteration is not an offence. The *Kedar Nath* incitement-to-violence threshold, read into the old provision as a condition of constitutionality, remains the interpretive anchor for the new one, as *Vinod Dua* (decided on §124A) demonstrates.

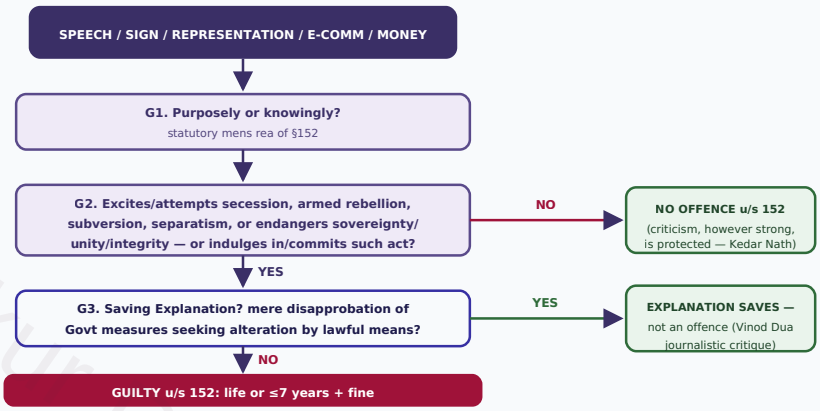



FIG. 5 — THE §152 THREE-GATE TEST with the constitutional safety-valve (Explanation + Kedar Nath incitement threshold)

## PART XI DU Case Law IV (asterisked) — Vinod Dua v. Union of India

**Vinod Dua v. Union of India & Ors.**
AIR 2021 SC 3239 · Writ Petition (Crl.) No. 154 of 2020 · Decided 03.06.2021 · Coram: Uday Umesh Lalit & Vineet Saran, JJ. (judgment by Uday Umesh Lalit, J.) · asterisked additional case in DU Unit-8 case list (summarised from the judgment; sedition lineage per DU Case Material course material)

**FACTS**

- The petitioner, a senior journalist of about four decades' standing, hosted "The Vinod Dua Show" on YouTube. In the episode uploaded on **30.03.2020** (early COVID-19 lockdown), he critically appraised the Government's preparedness and management: that terror attacks (Pathankot, Pulwama), surgical strikes and the Balakot air-strikes had been **used as political events to garner votes**; that India lacked adequate testing facilities, PPE kits, masks and ventilators, which were instead being exported until 24.03.2020; and that supply chains had disrupted.
- Respondent No. 3 complained that these assertions (segments at 5:09 and 5:45 of the video) were false and malicious, spread fear/alarm, incited violence and disturbed public tranquillity; **FIR No. 0053 dated 06.05.2020** was registered at Police Station Kumarsain, District Shimla, Himachal Pradesh, under **IPC §§ 124A, 268, 501 and 505**.
- The petitioner invoked **Article 32** seeking (a) quashing of the FIR, and (b) a direction that FIRs against media persons with 10+ years' standing be registered only after clearance by a State-level committee including the Chief Justice of the High Court or his nominee, the Leader of the Opposition and the Home Minister.

### ISSUES

1. Whether the talk-show comments, critical of the Government's pandemic management and of its use of security events in politics, disclose the offence of **sedition (§124A)** or the other FIR sections.
2. Whether a journalist's critical appraisal, absent incitement to violence or public disorder, is protected by **Article 19(1)(a)** as read down in *Kedar Nath Singh*.

### ARGUMENTS – PETITIONER

- The transcript shows journalistic critical appraisal — "our job is to do critical appraisal of government's work" — not incitement; on *Kedar Nath Singh v. State of Bihar* (AIR 1962 SC 955), sedition requires tendency/intention to incite violence or public disorder, which is absent.
- Prosecution for such speech chills free speech and violates Art. 19(1)(a); the FIR is an instrument of harassment and deserves quashing; structural safeguards for journalists were sought.

### ARGUMENTS – RESPONDENTS

- The statements spread false information and panic during a pandemic, defeating the lockdown and inducing offences against the State and public tranquillity — within §§124A/505 and the complained provisions (including disobedience to lockdown orders, §188-type liability).

### DECISION

**Writ petition allowed; FIR quashed.** The Supreme Court held:

- The two impugned segments, read in the full transcript, are **critical appraisal of government policy**; they do not excite or attempt to excite hatred, contempt or disaffection with the requisite tendency to violence or public disorder.
- **Kedar Nath governs:** sedition is attracted only where speech has the intention or tendency to incite violence or disorder; strongly worded criticism without such tendency is protected — the Explanation to §124A (and its BNS §152 successor) expressly saves disapprobation seeking lawful alteration.
- **"Every journalist is entitled to protection"** under the Kedar Nath verdict — the Court underscored the press's role in a democracy and quashed the proceedings as violative of Art. 19(1)(a). (The broader relief of a pre-FIR screening committee for journalists was not granted as a blanket direction; the quashing itself rested on the absence of sedition ingredients.)

### PRINCIPLES EVOLVED / SIGNIFICANCE FOR BNS §152

1. **Incitement threshold constitutionalised:** the Kedar Nath reading-down survives the repeal of §124A; §152's "purposely or knowingly… excites… secession/armed rebellion/subversion… or endangers sovereignty/unity/integrity" must be construed with the same violence-or-disorder threshold, reinforced by §152's own Explanation.
2. **Dissent is not sedition:** criticism of the government's measures — however stark, satirical or politically pointed — is democratic dialogue, not an offence against the State.
3. **Press freedom:** journalists enjoy the Kedar Nath protection as part of Art. 19(1)(a); penal provisions may not be used as tools of harassment for critical reportage.
4. **Exam bridge:** in a §152 problem, first apply the Explanation (disapprobation for lawful alteration), then the Kedar Nath/ Vinod Dua incitement test; only speech purposively exciting secession/armed rebellion/subversion or endangering unity/ integrity — with a tendency to violence or disorder — crosses into the offence.

| Point | IPC § 124A (sedition, deleted) | BNS § 152 (new) |
|---|---|---|
| Protected interest | "Government established by law" — hatred/contempt/disaffection | Sovereignty, unity, integrity (and security) of India; secession, armed rebellion, subversive & separatist activities |
| Modes | Words (spoken/written), signs, visible representation, otherwise | Same + **electronic communication** + **use of financial means** |
| Mens rea | Not expressed (read in by Kedar Nath) | Express: "purposely or knowingly" |
| Punishment | Life (with fine) or up to 3 years + fine | Life or up to 7 years + fine |
| Saving clause | Explanations 2 & 3 (disapprobation without hatred/disaffection) | Explanation (disapprobation seeking lawful alteration, without exciting the listed activities) |
| Constitutional limit | Kedar Nath: only incitement to violence/ public disorder punishable | Same threshold carried over; Vinod Dua confirms protection of journalistic critique |

## PART XII Supplementary Case Digest (authorities usable in Unit-8 answers)

| Case | Facts in one line | Rule / use in answer |
|---|---|---|
| *State of Haryana v. Raja Ram* AIR 1973 SC 819 | Minor girl taken with her willingness. | "Keeping" = charge, protection, control; minor's consent immaterial; persuasion creating willingness suffices; guardian's consent alone exits. |
| *R v. Prince* (1875) LR 2 CCR 154 | Took girl of 14 believing her 18. | Strict liability as to age; bona fide belief in majority no defence (DU exam material). |
| *State v. Harbansing Kisansing* AIR 1954 Bom 399 | Object-of-section case. | Provisions protect the ward primarily, guardian's rights secondarily (quoted in Varadarajan). |
| *Jeevan v. Rex* AIR 1949 Ori 22 | Series-of-acts taking. | Kidnapping complete on actual taking; continuing until return; "taking" may be a process — question of fact. |
| *Fatti (Mst.) v. Emperor* (1911) 12 Cr LJ 211 | Meaning of lawful guardian. | Lawful guardian = custody sanctioned by law; includes persons lawfully entrusted (Explanation). |
| *King Emperor v. Gokaran*; *Emperor v. Abdur Rahman* | Mere recovery cases. | Recovery of a missing minor from a stranger, without proof of instigation, does not establish kidnapping (cited in Anversinh). |
| *State of M.P. v. Surendra Singh* | Sentencing proportionality. | No undue sympathy/undue harshness; sentence commensurate with gravity; applied in Anversinh to reduce sentence. |
| *State of Punjab v. Gurmit Singh* | Girl u/16 kidnapped after 10th-class exam and raped. | DU exam-format case summary: §§363/368/376 IPC (= BNS §§137(2), 142, 64) operate cumulatively; prompt FIR and child-victim credibility. |
| *Kedar Nath Singh v. State of Bihar* AIR 1962 SC 955 | Constitutional validity of sedition. | §124A/§505 valid only as incitement-to-violence offences; strong criticism protected; the gloss now guides BNS §152. |
| *Vinod Dua v. Union of India* AIR 2021 SC 3239 | Journalist's COVID-critique YouTube show; FIR u/s 124A etc. | Dissent is not sedition; every journalist entitled to Kedar Nath protection; FIR quashed. |

## PART XIII Master Matrix — Unit 8 at a Glance

| Offence | BNS | IPC | Core ingredients | Punishment |
|---|---|---|---|---|
| Kidnapping from India | §137(1)(a) | §360 | Conveying any person beyond India without consent | §137(2)/§363: up to 7 yrs + fine |
| Kidnapping from lawful guardianship | §137(1)(b) | §361 | Taking/enticing child (<18) or unsound person out of guardian's keeping, without guardian's consent | |
| Abduction | §138 | §362 | Force compelling or deceitful means inducing any person to go from any place | Not substantive; punished via purpose sections (87, 140, 141…) |
| Kidnap/abduct woman to compel marriage/illicit intercourse | §87 | §366 | Kidnapping/abduction + intent/knowledge of compulsion to marry or force/seduce | Up to 10 yrs + fine |
| Kidnap/maim child for begging | §139 | §363A | Kidnapping/obtaining custody for begging; maiming limb; presumption u/s(3) | 10 yrs–life; maiming: 20 yrs–natural life |
| Trafficking | §143 | §370 | Act + means + exploitation purpose; consent immaterial | 7–10 yrs → life (graded); child minima; public servant life |
| Engage trafficked child (sexual exploitation) | §144 | §370A | Knowledge/reason to believe child trafficked + engagement | RI 5–10 yrs (child limb) |
| Hire/employ/engage child to commit offence | §95 | — | Using child as instrument of crime; incl. sexual exploitation/pornography | 3–10 yrs + fine; plus punishment of offence as principal |
| Sell child for prostitution etc. | §98 | §372 | Sale/disposal + intent/knowledge of prostitutive/immoral use; presumption | Up to 10 yrs + fine |
| Buy child for prostitution etc. | §99 | §373 | Purchase/obtaining possession + like intent/knowledge; presumption | 7–14 yrs + fine |

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| Offence | BNS | IPC | Core ingredients | Punishment |
|---|---|---|---|---|
| Acts endangering sovereignty, unity, integrity | §152 | §124A (deleted) | Purposely/knowingly exciting secession/rebellion/ subversion/separatism or endangering unity/integrity; Explanation saves lawful disapprobation | Life or up to 7 yrs + fine |

EXAMINATION QUESTION BANK // DU LL.B. PAPER LB-104

## Previous Year Examination Questions (PYQs)

**Q.01** DU PYQ · Q1/2024 · Problem · 20 marks "Aadya, a minor girl of age 17 years was living with her mother when she developed intimacy with a boy of 20 years old named Vijay who was working as a helper in the nearby grocery shop. Her parents were divorced. Her father often visited her during weekend and he did not like his daughter being close to Vijay. Vijay had another girlfriend but was also fond of Aadya. Vijay and Aadya decided to marry each other and eloped together before her 18th birthday party from her father's house. Father filed an FIR against Vijay. After 15 days Vijay was seen by the police in the city along with Aadya and was arrested and prosecuted for the offence of Kidnapping. Decide whether Vijay can be convicted or acquitted. Will your answer differ if Aadya's parents were not divorced and were living together?"

◈ Refer website for detailed notes – makelaweasy.in ↗

**Q.02** DU PYQ · Q2(b)/2023 · Problem · 20 marks "'S' and 'P' lived in the same slum in Bombay. 'S' aged 21 years enticed 'P' aged 15 years 6 months out of lawful guardianship and took her with him to Delhi. There he forced her to work as domestic help at Mr. K's house. She stayed at Mr. K's house for next three days and fourth day she got a chance to run away. While 'P' was loitering aimlessly on the streets of Delhi she met 'N' and narrated her ordeal to him. Sympathizing with her, 'N' took her to his house to contact and locate her parents. 'P' was finally recovered from N's house by Police. Decide the liability of 'S' and 'N' if any by citing relevant case laws."

**Q.03** DU PYQ · Q2/2021 · Problem · 20 marks "Suhail, a young man residing in Delhi became friendly with Mariyam, the 17 years old daughter of Mr. Feroz, who was his immediate neighbour. Mr. Feroz realising the intimacy between Suhail and his daughter, sent his daughter to his brother's house in Jammu. But Suhail tracked Mariyam and persuaded her to accompany him to Kanpur, his native place with a promise to marry her. However, Suhail was arrested at the Jammu Railway Station along with Mariyam on a complaint by her father that she has been kidnapped. Decide the criminal liability of Suhail. Also, after separation from Suhail, Mariyam with an intention to kill herself took overdose of sleeping pills but was taken to hospital and survived. Has she committed any offence? Decide with the help of legal provisions and judicial precedents."

**Q.04** DU PYQ · Q5/2020 · Problem · 25 marks "A minor girl of age 17 years was living with her parents when she developed intimacy with a boy of 20 years old who was working as a helper in the nearby grocery shop. She was frequently seen in the company of this boy and always looked for excuses to visit that particular grocery shop. One fine day she left her house on her own and reached the shop where she persuaded this boy to take her to some other town so that they both could marry and be with each other always. The accused took her to several places. He was then arrested and prosecuted for kidnapping. Decide, if he should be convicted or acquitted. Give reasons."

**Q.05** DU PYQ · Q2(b)/2018 · Problem · 15 marks "Mira, a girl of 16 years, was living with her aged father and step mother who used to ill-treat her. She would often narrate her woes to Gopal, her 22 year old neighbour. One day Gopal suggested that they go to Mumbai and start their lives fresh. He also promised to marry her. Mira agreed and as planned they boarded the train to Mumbai. What offence, if any, has been committed by Gopal?"

**Q.06** DU Pattern · Problem · 20 marks R runs a "placement agency". He recruits 12 girls aged 15–17 from villages by promising parents well-paid schooling-cum-work in the city, transports them to Delhi, harbours them in a locked flat and transfers them to households for unpaid domestic work; two are sexually exploited by a household head. A constable tips him off about raids for a monthly fee. Discuss R's liability under the BNS, naming every section attracted and the applicable punishment tiers.

**Q.07** DU Pattern · Problem · 15 marks M, needing cash, agrees with a broker to "place" her 16-year-old daughter with a brothel-keeper in Delhi for ₹50,000; the broker pockets a commission; the brothel-keeper takes the girl into his brothel. All three are prosecuted. Analyse under BNS §§98, 99 and 143, including the statutory presumptions.

**Q.08** DU Pattern · Theory · 15 marks "Sedition is dead; long live §152." Explain the offence of acts endangering sovereignty, unity and integrity of India under BNS §152, its relationship with IPC §124A and the Kedar Nath–Vinod Dua constitutional threshold. Would a TV debate calling for a region's separation, and a newspaper editorial demanding reversal of a farm policy, fall within §152?

UNIT 09 // DU LL.B. PAPER LB-104 (BNS & IPC) 2 Prescribed Cases · 8 Exam PYQs

# Offences against Property (Part I) — Theft, Snatching, Extortion, Robbery & Dacoity

## 02 Foundation: possession, movable property and dishonesty

### Movable property

**BNS §2(21)** includes property of every description except land and things attached to the earth or permanently fastened to anything attached to the earth. A thing attached to earth becomes capable of being stolen when severed; severance and movement may occur through the same act under §303.

### Dishonestly

**BNS §2(7)**: doing anything with the intention of causing wrongful gain to one person or wrongful loss to another. Wrongful gain/loss are gain/loss by unlawful means of property to which the gaining person is not legally entitled or the losing person is legally entitled.

### Possession is the protected interest

Theft primarily protects possession, not absolute ownership. Therefore, a person may commit theft of his own property if it is in another's lawful possession and he takes it dishonestly—for example, a pledged watch removed before the debt/security is discharged.

### Constructive possession

BNS §3(3) treats property in the possession of a spouse, clerk or servant on account of another as being in that other person's possession. This matters when an employee, agent or family member physically holds property for the master/owner.

*Property offence answer* = identify possession + property + mental element + method of obtaining + aggravating circumstance + correct punishment

### Consent and injury

For theft, consent may be express or implied and may be given by the person in possession or someone with express/implied authority. Under BNS §2(14), "injury" includes harm illegally caused to body, mind, reputation or property; this broad definition helps explain extortion by threats to reputation, family or property.

## 03 Complete BNS–IPC section matrix

| BNS | IPC equivalent | Subject | Core result / punishment | BNSS Schedule orientation |
|---|---|---|---|---|
| **§2(21)** | §22 | Movable property. | Property of every description except land and permanently attached things. | Definition. |
| **§303(1)** | §378 | Theft definition. | Dishonest intention + movable property + out of another's possession + without consent + movement. | Substantive definition. |
| **§303(2)** | §379 | Punishment for theft. | Up to 3 years/fine/both; repeat conviction 1–5 years RI + fine; first-time theft below ₹5,000 on return/restoration: community service. | Ordinary/repeat and low-value restorative entries differ; consult the applicable row. |
| **§304** new | No exact IPC equivalent | Snatching. | Suddenly/quickly/forcibly seizing or taking movable property from a person or possession for theft; up to 3 years + fine. | Cognizable, non-bailable, Any Magistrate. |
| **§305** | §380 | Aggravated theft. | In dwelling/custody building; transport or goods/article from transport; idol/icon in place of worship; Government/local-authority property; up to 7 years + fine. | Cognizable, non-bailable, Any Magistrate. |
| **§306** | §381 | Clerk/servant theft. | Theft of master/employer's property in possession; up to 7 years + fine. | Cognizable, non-bailable, Any Magistrate. |
| **§307** | §382 | Theft after preparation for violence. | Preparation to cause death, hurt, restraint or fear to commit theft, escape or retain stolen property; up to 10 years RI + fine. | Cognizable, non-bailable, Magistrate First Class. |

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| BNS | IPC equivalent | Subject | Core result / punishment | BNSS Schedule orientation |
|---|---|---|---|---|
| **§308(1)** | §383 | Extortion definition. | Intentional fear of injury + dishonest inducement + delivery of property/valuable security/signed or sealed thing convertible into valuable security. | Definition. |
| **§308(2)–(7)** | §§384–389, reorganised | Extortion and aggravated extortion. | Completed extortion up to 7; fear/attempt and fear of death/grievous hurt or accusation trigger higher punishments up to 10 + fine. | Classification varies by sub-section. |
| **§309(1)–(3)** | §390 | Robbery definition. | Either theft with voluntary instant violence/fear or extortion with offender present, instant fear and immediate delivery. | Definition. |
| **§309(4)–(6)** | §§392–394, reorganised | Robbery punishment. | Up to 10 RI; highway sunset–sunrise up to 14; attempt up to 7; hurt in robbery/attempt: life or up to 10 RI + fine for offender and jointly concerned. | Cognizable, non-bailable; Magistrate First Class for §§309(4)–(6). |
| **§310(1)** | §391 | Dacoity definition. | Five or more persons conjointly commit/attempt robbery, or committing/attempting persons plus present aiders total five or more. | Definition. |
| **§310(2)–(6)** | §§395, 396, 399, 400, 402 | Dacoity, murder, preparation, assembly and gang. | Life/up to 10; dacoity with murder death/life/ minimum 10; preparation up to 10; assembly up to 7; gang life/up to 10. | Cognizable, non-bailable; Court of Session. |
| **§311** | §397 | Robbery/dacoity with deadly weapon, grievous hurt or attempt death/grievous hurt. | Minimum 7 years. | Cognizable, non-bailable; Court of Session. |
| **§312** | §398 | Attempted robbery/dacoity while armed with deadly weapon. | Minimum 7 years. | Cognizable, non-bailable; Court of Session. |
| **§313** | §401 | Gang of habitual thieves/ robbers, not dacoits. | RI up to 7 years + fine. | Cognizable, non-bailable; Magistrate First Class. |

**Important BNS changes.** Section 304 creates a separate snatching offence. Section 303(2) adds a restorative community-service proviso for first-time theft below ₹5,000 on return/restoration and increases punishment for repeat theft. Section 310 consolidates dacoity's definition, punishment, murder, preparation, assembly and gang provisions.

## 04 Theft — BNS §303 / IPC §§378–382

Theft is complete at the point of dishonest movement for the purpose of taking. Actual escape from the premises, permanent deprivation, sale or personal profit is not necessary.

**1 · Mental element** Intend wrongful gain/loss

**2 · Subject** Movable property

**3 · Possession** Out of another's possession

**4 · Consent** Without express/implied consent

**5 · Movement** Move it for that taking

### Five essential ingredients under §303(1)

1. **Dishonest intention.** The intention must exist when the property is moved. A bona fide mistake or an honest belief of implied consent negatives theft. Later dishonest conversion may be BNS §314 criminal misappropriation, not theft at the initial taking.
2. **Movable property.** The thing must be movable under §2(21). Land or a thing attached to earth cannot be stolen while attached, but severance itself plus movement can complete theft.
3. **Out of another's possession.** The section protects possession. Legal title is not decisive; a clerk, warehouse keeper, spouse or employer may have actual/constructive possession on the facts.
4. **Without consent.** Consent may be express or implied and may come from the possessor or authorised person. Consent induced by a legally relevant fear/misconception is not genuine consent.
5. **Movement for the taking.** Moving a thing by removing an obstacle, separating it, or causing an animal to move counts. The movement must be causally connected to the dishonest taking.

### Explanations and illustrations that matter in exams

**Severance**

A cuts a tree intending to take it. Theft is complete when the tree is severed for that dishonest taking.

**Animal movement**

Inducing a dog to follow bait or driving a bullock carrying treasure can move the animal and the property moved through it.

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**Found property**
A ring lying on a highway with no person in possession is not theft merely on taking; dishonest misappropriation may arise under §314.

**Hidden property**
Moving a ring from a table to a hidden place with intention to take later completes theft at the first movement, even if the accused repents later.

**Owner can steal**
A person who pawned a watch and removes it before discharging the lawful security may commit theft of his own property by dishonestly depriving the pawnee of possession/security.

**Temporary removal**
A temporary taking can create wrongful loss. Returning the item later is not a defence where the initial removal was dishonest.

### Punishment under §303(2)

| Situation | Punishment | Exam point |
|---|---|---|
| Ordinary theft | Imprisonment of either description up to 3 years, or fine, or both. | Ordinary theft does not require permanent deprivation or personal profit. |
| Second/subsequent conviction | RI not less than 1 year, extendable to 5 years, and fine. | State that prior conviction is a statutory aggravator. |
| First conviction; property value below ₹5,000; value returned or property restored | Community service. | All conditions must be satisfied; this is not an automatic rule for every low-value theft. |

### Connected aggravated theft provisions

| Section | What must be added to ordinary theft? | Punishment / IPC |
|---|---|---|
| §304 | Suddenly, quickly or forcibly seize/grab/take movable property from any person or possession for theft. | Up to 3 years + fine; new BNS offence with no exact IPC equivalent. |
| §305 | Theft in building/tent/vessel used as human dwelling or custody; transport/goods/article; idol/icon in place of worship; Government/local authority property. | Up to 7 years + fine; IPC §380. |
| §306 | Clerk/servant steals property in possession of master/employer. | Up to 7 years + fine; IPC §381. |
| §307 | Preparation to cause death, hurt, restraint or fear of those, in order to commit theft, escape or retain property. | Up to 10 years RI + fine; IPC §382. |

**Theft, snatching and robbery.** Sudden grabbing is §304 only if the statutory theft ingredients are present. If the offender voluntarily causes/attempts hurt, death, wrongful restraint or fear of *instant* harm in order to commit/carry away the theft, the conduct is analysed as robbery under §309(2), not merely snatching.

## 05 Extortion — BNS §308 / IPC §§383–389

**Extortion is delivery-based.** The offender creates fear; the person put in fear then voluntarily delivers property or a legally valuable instrument. In theft the offender moves the property; in extortion the victim's fear-caused delivery is the immediate mechanism.

*Extortion* = intentional fear of injury + dishonest inducement + delivery of property / valuable security / convertible signed-sealed thing

### §308(1): essential ingredients

| | | | |
|---|---|---|---|
| **Intentional act**Put a person in fear | **Fear**Injury to that person or any other | **Dishonesty**Inducement is to cause wrongful gain/loss | **Delivery**Victim delivers property, security or instrument |

1. **Intentionally putting in fear.** The fear must be caused deliberately; accidental anxiety is not enough.

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2. **Fear of injury.** Injury may be to the person threatened or another person. Because BNS §2(14) includes body, mind, reputation and property, threats to reputation or family may qualify if they cause legally relevant fear.
3. **Dishonest inducement.** The fear must induce delivery and the object must involve wrongful gain/loss. A threat made with no dishonest demand may constitute another offence, but not extortion under §308(1).
4. **Delivery to any person.** Delivery need not be to the accused; the section permits delivery to any person. The victim must deliver because of the fear.
5. **Subject of delivery.** Any property, valuable security, or anything signed/sealed capable of being converted into a valuable security. A blank paper signed under threat of grievous hurt qualifies if it may become a valuable security.

### §308(2)–(7): punishment ladder

| BNS | Conduct | Punishment | IPC mapping |
|---|---|---|---|
| §308(2) | Completed extortion. | Up to 7 years, or fine, or both. | §384. |
| §308(3) | Put/attempt to put in fear of injury in order to commit extortion. | Up to 2 years, or fine, or both. | §385. |
| §308(4) | Put/attempt to put in fear of death or grievous hurt to commit extortion. | Up to 7 years + fine. | §387. |
| §308(5) | Completed extortion by fear of death or grievous hurt. | Up to 10 years + fine. | §386. |
| §308(6) | Put/attempt to put in fear of accusation of offence punishable with death/life/up to 10 years, to commit extortion. | Up to 10 years + fine. | §389. |
| §308(7) | Completed extortion by threat of such accusation. | Up to 10 years + fine. | §388. |

### Important differences from theft

| Point | Theft | Extortion |
|---|---|---|
| Who moves property? | Offender moves property. | Victim/person put in fear delivers it. |
| Consent | Without possessor's consent. | Delivery appears consensual but is induced by fear. |
| Object | Movable property. | Property, valuable security or signed/sealed convertible thing. |
| Fear | Not required for ordinary theft. | Fear of injury is central. |
| Time/place | No requirement of immediate presence. | Ordinary extortion can use future/electronic threats and need not be in the victim's presence. |
| Robbery transition | Add instant violence/fear linked to theft. | Add offender's presence, instant fear and then-and-there delivery. |

**Electronic threats.** BNS §308 illustration expressly recognises a message saying that a child is in the offender's possession and will be killed unless money is sent. It is extortion; it becomes robbery only if the additional §309(3) requirements of presence, instant fear and immediate delivery are established.

## 06 Robbery — BNS §309 / IPC §390 and §§392–394

Robbery is an aggravated form of theft or extortion. It is not a completely independent third category of property acquisition.

**Robbery by theft — §309(2)**
Theft + for the purpose of committing/carrying away the theft, voluntary causing or attempting death, hurt, wrongful restraint, or fear of instant death/hurt/wrongful restraint.
**Robbery by extortion — §309(3)**
Extortion + offender present + fear of instant death/hurt/wrongful restraint + immediate, then-and-there delivery.

### Robbery by theft

1. First establish the complete or attempted theft.
2. The violence/fear must be voluntary and connected to committing the theft, carrying away/attempting to carry away the stolen property—not a wholly unrelated later act.
3. The additional harm may be death, hurt, wrongful restraint or fear of instant death/hurt/wrongful restraint.
4. Actual completion of the taking is not essential where the statute covers attempt and the robbery conduct is otherwise complete.

### Robbery by extortion

1. There must be extortion: fear + dishonest inducement + delivery.
2. The offender must be present—sufficiently near to create fear of instant harm.
3. The fear must be of **instant** death, hurt or wrongful restraint, to the victim or another.

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4. Delivery must be then and there. A demand for money to be sent later, without immediate presence/instant fear, remains extortion, not robbery.

### Punishment under §309(4)–(6)

| Provision | Conduct | Punishment | IPC |
|---|---|---|---|
| §309(4) | Robbery; if on highway between sunset and sunrise, enhanced maximum. | RI up to 10 years + fine; highway robbery may extend to 14 years. | §392. |
| §309(5) | Attempt to commit robbery. | RI up to 7 years + fine. | §393. |
| §309(6) | In committing/attempting robbery, voluntarily causing hurt. | Life or RI up to 10 years + fine for the person causing hurt and any person jointly concerned. | §394. |

### Robbery classification formula

**Start**Theft or extortion?

**If theft**Voluntary harm/fear for theft or carrying away?

**If extortion**Presence + instant fear + immediate delivery?

**Aggravate**Highway, attempt, hurt, deadly weapon, grievous hurt?

**Robbery is not dacoity merely because many people are present.** Dacoity needs at least five persons and conjoint robbery. Four persons acting together commit robbery, not dacoity, even if their plan is organised.

## 07 Dacoity and connected gang offences — BNS §§310–313

**Every dacoity is robbery; every robbery is not dacoity.** The decisive additions are the minimum number of participants and conjoint action.

*Dacoity* = robbery / attempted robbery + five or more persons + conjoint commission/attempt/aiding

### §310(1): definition

1. **Robbery must exist or be attempted.** Mere planning to steal is not dacoity; however, special provisions criminalise preparation and assembly.
2. **Minimum five persons.** Five is the minimum; there is no maximum.
3. **Conjoint action.** The persons must jointly commit or attempt robbery, or the whole number of persons jointly committing/attempting plus persons present and aiding must total five or more.
4. **Presence and aiding can count.** A person who is present and aids the robbery may fall within the total even if he does not personally take property.

### §310(2)–(6): complete punishment ladder

| Provision | Offence | Punishment | IPC |
|---|---|---|---|
| §310(2) | Dacoity. | Life imprisonment or RI up to 10 years + fine. | §395. |
| §310(3) | During conjoint dacoity by five or more, one commits murder. | Death, life imprisonment, or RI minimum 10 years + fine for every one of those persons. | §396. |
| §310(4) | Preparation for committing dacoity. | RI up to 10 years + fine. | §399. |
| §310(5) | Five or more assembled for purpose of committing dacoity. | RI up to 7 years + fine. | §402. |
| §310(6) | Belonging to a gang associated for habitual dacoity. | Life or RI up to 10 years + fine. | §400. |

### §311, §312 and §313

**§311 / IPC §397**

At the time of committing robbery/dacoity, using a deadly weapon, causing grievous hurt, or attempting to cause death/grievous hurt attracts a minimum of 7 years. It is an aggravated punishment provision; apply the base robbery/dacoity ingredients first.

**§312 / IPC §398**

At the time of attempting robbery/dacoity, being armed with a deadly weapon attracts a minimum of 7 years. The offence remains attempt; actual completion is unnecessary.

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**§313 / IPC §401**

Belonging to a gang habitually committing theft or robbery, but not a gang of dacoits, is punishable with RI up to 7 years + fine. It targets organised habitual association rather than a single theft.

### Preparation versus attempt

| Stage | General position | Special property rule |
|---|---|---|
| Preparation | Usually not punishable because the actor may still withdraw. | Preparation for dacoity is expressly punishable under §310(4); assembly under §310(5). |
| Attempt | Direct movement towards robbery with failure to complete may attract §309(5). | Attempted robbery/dacoity while armed with deadly weapon attracts §312. |
| Completed offence | Robbery under §309 or dacoity under §310(2). | Death/hurt/weapon may trigger §§309(6), 310(3), 311. |

**Number and conjointness.** Five people in a room are not automatically dacoits. Ask whether they were conjointly committing/attempting robbery or were present and aiding. Conversely, a lookout or aider need not personally hold property if he is part of the conjoint operation.

## 08 High-yield comparative charts

| Feature | Theft | Extortion | Robbery | Dacoity |
|---|---|---|---|---|
| Core mechanism | Offender moves property. | Fear causes victim to deliver. | Aggravated theft or extortion. | Conjoint robbery by 5+. |
| Consent | Absent/invalid possessor consent. | Delivery caused by fear, so apparent consent is vitiated by coercive inducement. | Same underlying theft/extortion rules. | Same underlying robbery. |
| Force/fear | Not required; §307 is preparation for force. | Fear of injury central; need not be instant. | Instant violence/fear required under §309. | Robbery plus conjoint five-person element. |
| Presence | None required. | None required for ordinary extortion. | Required for robbery by extortion; not a separate requirement for robbery by theft. | Present aiders may be counted; all must be conjointly connected. |
| Completion | Dishonest movement. | Fear-induced delivery. | Underlying theft/extortion plus aggravating element. | Robbery/attempt plus five or more conjoint participants. |
| Key BNS | §303. | §308. | §309. | §310. |

### One-page decision tree

**Question 1** Was movable property moved by offender? **Yes → Theft route**

**Question 2** Was victim induced by fear to deliver? **Yes → Extortion route**

**Question 3** Was instant violence/fear added? **Yes → Robbery**

**Question 4** Were 5+ acting conjointly? **Yes → Dacoity**

## 09 Detailed DU case law

### Pyare Lal Bhargava v. State of Rajasthan

AIR 1963 SC 1094 · IPC §§378-379 · BNS §§303(1)-303(2)

**FACTS**

Ram Kumar Ram obtained permission from the former Alwar Government to supply electricity and later sought transfer of the licence to a company. Pyare Lal Bhargava was a Superintendent in the Chief Engineer's Office. At Ram Kumar's instance, Pyare Lal obtained the government file (Ex. PA/1) from the Secretariat through a clerk, took it to his house, made it available to Ram Kumar, and allowed documents to be removed and substituted. The file was then returned to the office. The document tampering was discovered.

**PROCEDURAL HISTORY**

The Sub-Divisional Magistrate convicted the accused on theft and document-related charges. The Sessions Judge set aside the §465 conviction but maintained Pyare Lal's conviction under IPC §379 and Ram Kumar's conviction for abetment of theft. The High Court set aside Ram Kumar's conviction but confirmed Pyare Lal's. Pyare Lal appealed to the Supreme Court by special leave.

**ISSUES**

1. Can a temporary removal of a file, intended to be returned, amount to theft?

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2. Was Pyare Lal in possession of the file so that he could not "take" it from himself?
3. Did temporary deprivation cause wrongful loss/dishonest taking even though the accused did not permanently gain the file?

ARGUMENTS

- **Appellant:** the Superintendent had possession of the file and could not steal from himself; the file was taken only to show documents to Ram Kumar and was returned the next day; there was no intention to keep it and no wrongful gain or permanent wrongful loss.
- **Prosecution/State:** legal possession was with the Engineering Department/Chief Engineer, not an individual officer; Pyare Lal removed the file without authorisation and made it available for private substitution; temporary deprivation of the Department's possession is wrongful loss and dishonest taking.

DECISION

The Supreme Court dismissed the appeal and upheld the theft conviction. It held that the file was in the Department's possession under the Chief Engineer, not in Pyare Lal's personal legal possession. The fact that it was returned did not prevent theft. Temporary deprivation itself caused wrongful loss, and a dishonest purpose need not produce permanent profit.

**Principle evolved:** Theft does not require permanent deprivation, permanent gain or an intention never to return. Temporary dispossession can be wrongful loss. A person who has physical access to property by virtue of office is not necessarily in legal possession of it; an unauthorised removal from the Department's possession can be theft.

**Pyare Lal · temporary deprivation is enough**




Memory visual: Departmental possession → unauthorised temporary removal → private use → return. The loss of possession for a period is enough.

**BNS application:** Apply §303(1). If the file is proved to be Government property, consider whether aggravated §305(e) is attracted; do not assume the enhancement without proof of the statutory fact.

## State of Karnataka v. Basavegowda

(1997) Cr. L.J. 4386 (Kant.) · IPC §§307, 325, 384 and 392 · BNS property mapping §§308, 309 and connected hurt provisions

FACTS

About ten days after marriage, Basavegowda took his wife Bhagyamma to the Burudala Bore forest on the pretext of attending a friend's wedding. He threatened to kill her unless she handed over her ornaments worth approximately ₹11,000. She removed and handed over the jewellery. He wrapped it in a handkerchief and put it in his pocket, then assaulted her with a large stone and fists. She raised an alarm; he continued until two persons approached, then fled. She was taken to hospital, where injuries—including a fractured rib—were recorded. The ornaments were later recovered from the accused wrapped in the handkerchief.

PROCEDURAL HISTORY

He was charged under IPC §307 for attempt to murder and §392 for robbery. The trial court acquitted him, treating Bhagyamma's sole testimony as insufficient, particularly because many witnesses had turned hostile. The State appealed to the Karnataka High Court.

ISSUES

1. Whether Bhagyamma's testimony, supported by medical evidence, scene evidence and recovery, could prove extortion despite hostile witnesses.
2. Whether the act constituted attempt to murder under §307 and robbery under §392, or a lesser hurt/extortion offence.
3. Whether a husband's possession of his wife's ornaments could be treated as lawful possession.

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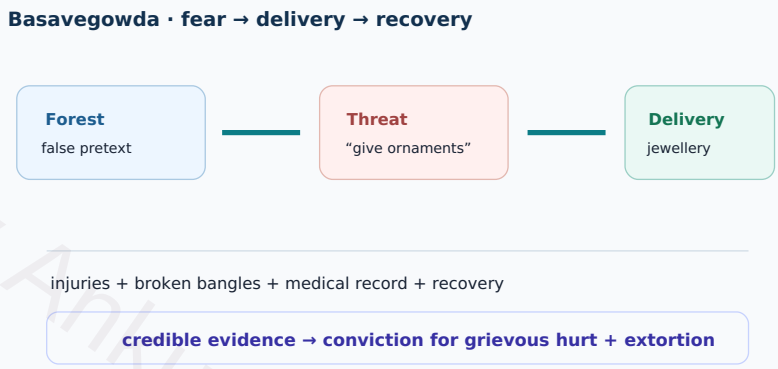
ARGUMENTS

- **State:** Bhagyamma's prompt hospital statement was consistent with the FIR and later evidence; broken bangles, the stone, six injuries, the rib fracture and recovery of the entire jewellery set wrapped in the accused's handkerchief corroborated her. The ornaments were her personal property and had been taken under threat. The State also argued that a large stone capable of causing death and a threat to kill justified §307 and, alternatively, extortion by threat of death under IPC §386.
- **Defence:** Bhagyamma's later divorce and remarriage showed hostility and motive to falsely implicate; most witnesses were hostile; the stone could not have caused the chest injury; a husband could lawfully keep his wife's ornaments; if he intended to kill her, he would not have allowed escape; at most, the facts showed grievous hurt, not attempted murder, and did not justify robbery/extortion.

DECISION

The High Court set aside the acquittal. It accepted Bhagyamma's evidence as substantially corroborated and held that hostile witnesses did not automatically aid the accused. It rejected the motive argument: later divorce/remarriage did not prove fabrication. The medical objection failed because the doctor ultimately accepted that the stone could cause the injury. The Court held the conduct did not reach IPC §307 attempt to murder, but the fracture justified IPC §325 grievous hurt. As to property, the wife's ornaments were her personal property; possession obtained by threat was unlawful. The Court convicted under IPC §384 extortion rather than the more serious §392/§386 formulation and awarded two years' RI under each, concurrently, with set-off.

**Principles evolved:** (1) A credible victim's testimony can be sufficient when supported by surrounding material; hostile witnesses do not by themselves create reasonable doubt. (2) A husband has no automatic lawful right to possess or appropriate a wife's personal ornaments when they were taken under threat. (3) Extortion requires fear-induced delivery; robbery requires additional strict immediacy/presence conditions. (4) The actual act, weapon and injuries control attempt-to-murder analysis; a threat to kill is not conclusive of IPC §307.




Hypothetical visual of the evidentiary chain used by the Court; it is not a reproduction of evidence.

**BNS application:** The conduct maps to BNS §308(1) and the completed fear-of-death/grievous-hurt category in §308(5), subject to proof and charge. The robbery question must separately satisfy §309(3)'s presence, instant fear and then-and-there delivery requirements.

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EXAMINATION QUESTION BANK // DU LL.B. PAPER LB-104

## Previous Year Examination Questions (PYQs)

**Q.01** Q5/2021 · 25 marks Vineet's superior Surat summons him, humiliates and insults him, including a remark about his childlessness. Vineet returns to his barrack, picks up his service gun and returns to shoot Surat dead. Separately, Vineet removes a file from his office to his home, where friend Daman tampers with it; Vineet returns it the next day. Decide liability with case law.

◈ Refer website for detailed notes – makelaweasy.in ↗

**Q.02** Q6/2020 · 25 marks A deposits shoes with a temple guard, takes a token and later, tired of waiting in the queue, picks his shoes from the rack without giving the token. He says the shoes are his own property. Discuss.

**Q.03** Q1(b)/2019 · Short/long answer Suresh visits Ramesh's house, waits, uses a pen from Ramesh's table to write a message and accidentally drops it into his pocket while leaving. He later forgets about it. The pen is recovered from his house. Is he liable for theft?

**Q.04** Q2(a)/2018 · Short answer X sees Y's diamond ring on a table in Y's house, puts it under the carpet intending to take it later, but then changes his mind and leaves it there. Has X committed an offence?

**Q.05** Q5(b)/2023 · Short answer A puts Z in fear of grievous hurt and dishonestly induces Z to sign or seal a blank paper and deliver it. The paper may be converted into a valuable security. What offence is committed?

**Q.06** Q4(b)/2017 · Problem question A, B, C, D and E see X and Y taking drugs. A, B and C threaten to tell their parents unless the boys give money. D remains silent and keeps guard. E walks away. X and Y hand over cell phones and ₹1,000, divided among A–D. Decide liability.

**Q.07** Q2/2024 · Long problem A, B, C and D plan to steal money from a jeweller's house at night. A, a mechanic, takes a car entrusted to him from his workshop. A and B search the ground floor, C collects things from the first floor and D keeps lookout. N, the chowkidar, raises alarm; D strikes him with a lathi and N dies. B takes the car and absconds. Decide A–D's liability and distinguish extortion from theft.

**Q.08** Q4(a)/2019 · Cross-unit PYQ A, B, C, D and E plan to rob a bank. They collect cash from the cashier at gunpoint. While escaping, B causes grievous injury to the guard with a revolver. Outside, C sees his enemy V at a bus stop and shoots him dead. Discuss all liability.

UNIT 10 // DU LL.B. PAPER LB-104 (BNS & IPC) 3 Prescribed Cases · 6 Exam PYQs

# Offences against Property (Part II) — Criminal Misappropriation, Breach of Trust & Cheating

## 02 Complete BNS–IPC statutory matrix

| BNS | IPC equivalent | Subject | Main ingredients / effect | Punishment | BNSS schedule orientation |
|---|---|---|---|---|---|
| **§314** | §403 | Dishonest misappropriation/ conversion of movable property. | Property of another; comes into accused's possession in a neutral manner; later dishonest misappropriation or conversion. | 6 months–2 years + fine. | Non-cognizable, bailable, Any Magistrate. |
| **§315** | §404 | Dishonest misappropriation of property possessed by deceased at death. | Knowledge of deceased possession; property has not reached a legally entitled person; dishonest appropriation/ conversion. | Up to 3 years + fine; if offender was deceased's clerk/servant, up to 7 years. | Non-cognizable, bailable, Magistrate First Class. |
| **§316(1)** | §405 | Definition of criminal breach of trust. | Entrustment/dominion + dishonest misappropriation/conversion/use/ disposal contrary to law/contract or wilful suffering of another's act. | Definition. | Definition. |
| **§316(2)** | §406 | Ordinary criminal breach of trust. | §316(1) without special status. | Up to 5 years, or fine, or both. | Cognizable, non-bailable, Magistrate First Class. |
| **§316(3)** | §407 | CBT by carrier, wharfinger or warehouse-keeper. | Entrustment in that capacity and dishonest breach. | Up to 7 years + fine. | Cognizable, non-bailable, Magistrate First Class. |
| **§316(4)** | §408 | CBT by clerk or servant. | Entrustment/dominion in employment capacity and dishonest breach. | Up to 7 years + fine. | Cognizable, non-bailable, Magistrate First Class. |
| **§316(5)** | §409 | CBT by public servant, banker, merchant, factor, broker, attorney or agent. | Entrustment/dominion in specified status/ business and dishonest breach. | Life or up to 10 years + fine. | Cognizable, non-bailable, Magistrate First Class. |
| **§317** connected | §410–414 | Stolen property and receiving/dealing/assisting. | Property transferred by theft/extortion/ robbery/cheating or criminally misappropriated/subject to CBT; different receiving and gang offences. | Ranges from up to 3 years to life depending on sub-section. | Included for distinction; not the principal image-listed topic. |
| **§318(1)** | §415 | Cheating definition. | Deception + dishonest/fraudulent inducement of delivery/retention, or intentional inducement to act/omit causing/likely damage or harm. | Definition. | Definition. |
| **§318(2)** | §417 | Ordinary cheating. | Cheating without special consequence. | Up to 3 years, or fine, or both. | Non-cognizable, bailable, Any Magistrate. |

| BNS | IPC equivalent | Subject | Main ingredients / effect | Punishment | BNSS schedule orientation |
|---|---|---|---|---|---|
| **§318(3)** | §418 | Cheating person whose interest offender was bound to protect. | Knowledge that cheating is likely to cause wrongful loss to a person whose interest the offender was bound by law/ legal contract to protect. | Up to 5 years, or fine, or both. | Non-cognizable, bailable, Any Magistrate. |
| **§318(4)** | §420 | Cheating and dishonestly inducing delivery of property/valuable security. | Cheating plus dishonest inducement to deliver property, or make/alter/destroy valuable security or signed/sealed convertible instrument. | Up to 7 years + fine. | Cognizable, non-bailable, Magistrate First Class. |
| **§319(1)** | §416 | Cheating by personation. | Cheating by pretending to be another, substituting one person for another, or representing a person as someone else; real or imaginary person. | Definition. | Definition. |
| **§319(2)** | §419 | Punishment for personation. | Cheating by personation proved. | Up to 5 years, or fine, or both. | Cognizable, bailable, Any Magistrate. |

**Three statutory distinctions to memorise.** (1) BNS §314 is IPC §403, not IPC §413. (2) BNS §316 is a consolidated CBT provision with separate punishment sub-sections corresponding to IPC §§406–409. (3) BNS §318(4), not every cheating, is the serious property-delivery offence corresponding to IPC §420.

## 03 Core conceptual distinctions

### Misappropriation

The accused first obtains possession innocently or neutrally—by finding, mistake, delivery not arising from a trust or another non-theft route—and later converts or uses the property dishonestly. **Entrustment is not required.**

### Criminal breach of trust

The accused initially receives property or dominion because the owner/possessor entrusted it or placed it in a fiduciary/legal relationship. The later dishonest use, disposal or conversion violates a direction of law or express/implied contract.

### Cheating

The dishonest or fraudulent intention exists at the inception of the transaction. Deception induces delivery, retention, or an act/ omission causing or likely to cause harm. A mere later breach of a genuine contract is ordinarily civil, not cheating.

### Ownership versus possession

Misappropriation and CBT focus on dishonest control/conversion. Cheating may involve delivery of property or harm without a traditional custody dispute. Always identify who had possession, dominion, title and the duty to account.

### The decisive timeline

**Stage 1**How did property reach accused?

**Stage 2**Was it entrusted or merely found/received?

**Stage 3**When did dishonest intention arise?

**Stage 4**Was there conversion/violation or deception-induced delivery?

| Question | Misappropriation §314 | CBT §316 | Cheating §318 |
|---|---|---|---|
| Original possession | Neutral/innocent, no entrustment. | Entrusted property or dominion. | Obtained through deception/ inducement. |
| Mens rea | Dishonesty usually arises later at conversion. | Dishonest breach/use/disposal after entrustment. | Dishonest/fraudulent intention at inception of inducement. |
| What must be proved? | Another's movable property + conversion/misappropriation. | Entrustment/dominion + dishonest conversion/use/disposal + violation of law/contract or wilful suffering. | Deception + inducement + delivery/retention or harmful act/omission. |
| Typical illustration | Finder initially picks up property to protect it, then sells it after knowing owner can be found. | Warehouse keeper sells goods entrusted for storage. | Buyer takes goods on credit while already never intending to pay. |

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### Required distinctions at a glance

| Distinction | First offence | Second offence | Exam hinge |
|---|---|---|---|
| Misappropriation v theft | Theft: dishonest taking/moving out of another's possession without consent at the start. | Misappropriation: neutral/innocent possession first, dishonest conversion later. | Moment and manner of acquisition. |
| CBT v theft | Theft: no lawful entrustment; property is taken from possession without consent. | CBT: property/dominion is entrusted, then dishonestly dealt with contrary to legal/ contractual direction. | Entrustment and trust obligation. |
| CBT v cheating | CBT: accused lawfully receives control first; dishonesty is in later breach. | Cheating: deception induces the victim to deliver/retain property or act/omit; intention is dishonest at inception. | Trust relationship versus deceptive inducement. |
| Cheating v personation | Cheating may use any false representation or concealment. | Personation is cheating through pretending/ substituting/representing identity as another, real or imaginary. | Identity is the deceptive mode; cheating ingredients remain. |
| Civil breach v criminal CBT | Civil breach: non-performance or negligent/good-faith deviation; remedy is contractual. | Criminal CBT: entrustment plus dishonest conversion/use/disposal and violation of law/ contract. | Dishonesty must be proved; loss alone is not enough. |
| Initial dishonest intention v later refusal | Initial dishonesty: promise is a device to obtain delivery; cheating. | Later inability/refusal after genuine intention: ordinarily breach of contract, not cheating solely because payment failed. | State of mind when inducement occurred. |

## 04 Criminal misappropriation — BNS §§314–315 / IPC §§403–404

### BNS §314: dishonest misappropriation or conversion

*§314* = another's movable property + neutral possession + dishonest misappropriation/conversion

1. **Property of another.** The property must belong to someone other than the accused in the relevant legal sense. A joint owner's use is not automatically criminal where the person has a right to use; dishonest appropriation of the entire proceeds or exclusion of the co-owner may change the result.
2. **Movable property.** BNS §314 is confined to movable property. Immovable property is outside the section, though other offences or civil remedies may apply.
3. **Possession obtained in a neutral manner.** The property may come through finding, mistake, delivery without fiduciary entrustment or another non-theft route. It is not necessary that the accused stole it.
4. **Misappropriation or conversion to own use.** Treating another's property as one's own—selling, pledging, consuming, using proceeds, or retaining it contrary to the owner's rights—can suffice.
5. **Dishonesty.** There must be intention of wrongful gain/loss. Honest use, protection or reasonable steps to locate the owner do not suffice.

#### Temporary misappropriation

Explanation 1 expressly provides that dishonest misappropriation for a time only is misappropriation. Temporary return or an intention to restore later is not a complete defence where the intervening conversion was dishonest.

#### Finder's property and the moment mens rea arises

Explanation 2 protects a person who finds property not in another's possession and takes it to protect or restore it. The finder becomes liable when, knowing or having means of discovering the owner, he appropriates it to his own use before making reasonable efforts or allowing a reasonable time for claim. What is reasonable is a question of fact. It is not necessary that the finder know the exact owner if he does not honestly believe it is his own or cannot be found.

**Not theft, later misappropriation**

A honestly takes property believing it to be his own. After discovering the mistake, he dishonestly keeps it. The initial taking is not theft; the later conduct attracts §314.

**Friendly use**

A takes a book from a friend's library believing he has implied permission to read it. No theft. If he later sells it for himself, he may commit misappropriation.

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**Joint property**

One joint owner takes a horse intending only to use it where he has a right to use. No dishonest misappropriation. Selling and appropriating all proceeds may be different.

**Government note**

A finds a Government promissory note with blank endorsement, knows it belongs to Z, and pledges it for a loan while intending eventual restoration. Temporary dishonest appropriation is still an offence.

### §315: property possessed by deceased at death

This connected provision protects the interval after death but before property reaches a legally entitled person. The accused must know that the property was in the deceased's possession at death; it must not have passed to a legally entitled possessor; and the accused must dishonestly misappropriate or convert it. Punishment is up to three years and fine, extended up to seven years where the offender was the deceased's clerk or servant.

### Punishment and procedure

Under BNS §314, punishment is imprisonment of either description for not less than six months and up to two years, with fine. Under the BNSS Schedule it is non-cognizable, bailable and triable by Any Magistrate. BNS §315 is also non-cognizable and bailable, but triable by a Magistrate First Class.

## 05 Criminal breach of trust — BNS §316 / IPC §§405–409

The essence of CBT is not merely that property was lost. It is that a person who received property or dominion in a relationship of trust dishonestly dealt with it contrary to the law or the contract governing that trust.

| | | | | |
|---|---|---|---|---|
| **Entrustment**Property or dominion placed with accused | **Legal relationship**Direction of law or express/ implied contract | **Dishonesty**Misappropriate, convert, use, dispose or wilfully suffer | **Violation**Conduct contrary to mode of discharge | **CBT**Apply status-based punishment |

### §316(1): statutory ingredients

1. **Entrustment or dominion.** The prosecution must show that the accused was entrusted with property or had dominion/control over it. Entrustment can be direct or arise from office, agency, employment, carrier/warehouse custody or contract. Mere ownership or physical access is not enough.
2. **Property or dominion must be linked to the accused.** It is not necessary that the accused personally receive physical custody if he exercises legally relevant dominion over the property.
3. **Dishonest misappropriation/conversion/use/disposal.** The accused may convert it to his own use, use or dispose of it dishonestly, or wilfully allow another to do so.
4. **Violation of law or legal contract.** The use/disposal must breach a direction of law prescribing how the trust is to be discharged, or an express/implied legal contract touching discharge of the trust. Good-faith deviation causing loss may be civil but not criminal CBT.
5. **Mens rea.** "Dishonestly" under BNS §2(7) requires intention of wrongful gain or wrongful loss.

### Statutory deeming rules: provident fund and ESI

**Provident Fund/Family Pension Fund.** An employer of an establishment—whether or not exempted under §17 of the Employees' Provident Funds and Miscellaneous Provisions Act, 1952—who deducts the employee's contribution from wages for credit to a statutory Provident Fund or Family Pension Fund is deemed to have been entrusted with the deducted amount. Default in paying it into the Fund in violation of law is deemed dishonest use in violation of a legal direction.

**Employees' State Insurance Fund.** An employer who deducts the employee's contribution from wages for credit to the ESI Fund administered by the Employees' State Insurance Corporation under the Employees' State Insurance Act, 1948 is similarly deemed entrusted. Default in payment in violation of the Act is deemed dishonest use contrary to a direction of law. These are statutory deeming rules: the prosecution still has to connect the accused with the employer role, deduction and default.

### Entrustment versus dominion

**Entrustment**

Property is delivered for a particular purpose—storage, carriage, investment, dyeing, collection, payment, safekeeping or management—and the recipient must deal with it according to law/contract.

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**Dominion**

The person may not physically hold the property but has control over its disposition or accounting, as directors had dominion over Government cloth in *Jaikrishnadas*.

**What is not enough**

A mere debtor-creditor relationship is not automatically entrustment of money; an ordinary breach of contract or failure to pay is not automatically CBT or cheating.

**Failure to account**

Failure alone is not conclusive. But failure to account plus false explanation, surrounding circumstances, admissions, absence of property and control may justify an inference of dishonest conversion.

### Status-based provisions and punishment

| Provision | Special status | Punishment | IPC |
|---|---|---|---|
| §316(2) | Ordinary CBT. | Up to 5 years, or fine, or both. | §406. |
| §316(3) | Carrier, wharfinger or warehouse-keeper. | Up to 7 years + fine. | §407. |
| §316(4) | Clerk or servant entrusted in that capacity. | Up to 7 years + fine. | §408. |
| §316(5) | Public servant, banker, merchant, factor, broker, attorney or agent in that capacity/ business. | Life or up to 10 years + fine. | §409. |

### Procedure and compounding under BNSS

The BNSS First Schedule makes ordinary CBT under §316(2), aggravated CBT under §316(3)–(5), cognizable and non-bailable, triable by a Magistrate First Class. The compounding table is more nuanced than the arrest classification:

| BNS offence | Compounding position under BNSS §359 | Person who may compound |
|---|---|---|
| §316(2) ordinary CBT | Compoundable with permission of the Court before which prosecution is pending. | Owner of property in respect of which breach occurred. |
| §316(3) carrier/wharfinger/warehouse-keeper | Compoundable under the table without the permission category stated in §359(2). | Owner of property. |
| §316(4) clerk or servant | Compoundable with permission of the Court. | Owner of property. |
| §316(5) public servant/banker/merchant/ factor/broker/attorney/agent | Not listed in the uploaded BNSS §359 compounding tables. | — |

**Evidence point from DU case material.** The prosecution need not prove the precise mechanics of conversion in every case. It must prove entrustment/dominion and circumstances from which dishonest misappropriation/conversion may legitimately be inferred. But conviction cannot rest on failure to account in a vacuum. The legal burden remains on the prosecution to prove ingredients beyond reasonable doubt; the accused's silence or inability to explain is not an automatic reverse burden. A false explanation is only one circumstance in the evidentiary chain and must be assessed with entrustment, control, admissions, records, demands and other proved facts.

### §317 as the connecting stolen-property provision

BNS §317(1) designates as "stolen property" property whose possession was transferred by theft, extortion, robbery or cheating, and property that has been criminally misappropriated or in respect of which CBT has been committed. It therefore connects the Unit 10 offences: the primary wrong may be §314, §316 or §318, while a later person who dishonestly receives or retains the property knowing or having reason to believe it is stolen may attract §317(2). Section §317 is not a substitute for proving the primary offence and is kept here as a limited bridge, not as an expansion of the syllabus.

## 06 Cheating — BNS §§318–319 / IPC §§415–420 and 416/419

### §318(1): two alternative branches

**Property-delivery branch**

Deception + fraudulent/dishonest inducement to deliver property to any person or consent that any person retain property.

**Harmful-act branch**

Deception + intentional inducement to do/omit an act the person otherwise would not do/omit + damage/likely damage to body, mind, reputation or property.

## Ingredients of cheating

1. **Deception of a person.** The person may be deceived by words, conduct, false representation or dishonest concealment of facts. The victim must be deceived in the relevant transaction.
2. **Inducement.** In the property branch it must be fraudulent or dishonest; in the second branch it must be intentional. There must be a causal connection between deception and delivery/act/omission.
3. **Delivery/retention or harmful conduct.** The person deceived must deliver property, consent to retention, or do/omit something causing or likely to cause legally recognised damage/harm.
4. **Damage is not always actual monetary loss.** The harmful-act branch includes body, mind, reputation or property and permits likelihood of harm.
5. **Dishonest intention at inception.** A promise honestly made but later broken is ordinarily a civil breach. If the accused never intended to perform when he made the promise and used it to obtain property, cheating may be established.

### Dishonest concealment

The Explanation makes dishonest concealment of facts a deception. Concealment must be material to the transaction and dishonest; mere silence is not automatically cheating where there is no legal duty or misleading conduct.

## §318(2), (3), (4)

| Sub-section | Conduct | Punishment | IPC |
|---|---|---|---|
| §318(2) | Ordinary cheating. | Up to 3 years, or fine, or both. | §417. |
| §318(3) | Cheating with knowledge likely to cause wrongful loss to a person whose interest the offender was bound by law/legal contract to protect. | Up to 5 years, or fine, or both. | §418. |
| §318(4) | Cheating and dishonestly inducing delivery of property, or making/altering/destroying whole/part of a valuable security or signed/sealed thing capable of becoming one. | Up to 7 years + fine. | §420. |

**Compounding under BNSS §359.** BNS §318(2) ordinary cheating and §319(2) cheating by personation are listed as compoundable by the person cheated. BNS §318(3) and §318(4) are compoundable by the person cheated with permission of the Court before which prosecution is pending. BNS §314 is similarly compoundable by the owner; §315 is not listed in the uploaded compounding tables. Compounding is not the same as an acquittal on the merits and must follow the statutory procedure.

## Cheating by personation — §319 / IPC §§416, 419

1. The accused must cheat by pretending to be some other person, knowingly substituting one person for another, or representing himself/another as someone other than the true person.
2. The personated individual may be real or imaginary; existence of a real victim is not necessary.
3. Personation is the mode of deception; the underlying cheating must still be proved. A mere false name without inducement or harm is not automatically §319.
4. Punishment under §319(2) is up to five years, or fine, or both; BNSS classifies it as cognizable and bailable, triable by Any Magistrate.

## Cheating versus breach of contract

| Question | Cheating | Breach of contract |
|---|---|---|
| Intention | Dishonest/fraudulent intention exists when inducement is made. | Intention may initially be genuine; later inability/refusal is a civil breach. |
| Representation | False representation/concealment causes delivery or harmful act. | Contractual promise is broken without proof of deception at inception. |
| Proof | Prosecution must establish deception, inducement and consequence beyond reasonable doubt. | Remedies may include damages, specific performance or restitution. |
| Authority | *Mahadeo Prasad*; *Akhil Kishore Ram*. | Statutory illustrations to BNS §318: intention to deliver at the time, followed by non-delivery, is not cheating merely for that reason. |

**Attempt to cheat.** The DU exam material discusses *Abhayanand Mishra v. State of Bihar* in the attempt unit. It is a useful cross-unit authority: a person who intends cheating and, after preparation, does an act towards its commission may be guilty of attempt even if the admission card/property is withheld before delivery. The principal Unit 10 image-listed authorities remain the three cases below.

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## 07 Detailed DU case law

### Jaikrishnadas Manohardas Desai v. State of Bombay

AIR 1960 SC 889 · Supreme Court of India · IPC §409 read with §34 · BNS §316(5) / §3(5) mapping, subject to status proof

**FACTS**

The Textile Commissioner invited tenders in 1948 for dyeing Pugree cloth. Parikh Dyeing and Printing Mills Ltd., of which the first appellant was Managing Director and the second appellant a Director and technical expert, obtained the contract. Approximately 2,51,05¾ yards of Government cloth were supplied for dyeing. About 1,11,000 yards were dyed and returned. The contract was cancelled for the undelivered balance, and the company admitted that approximately 1,29,748 yards remained with it on Government account and had to be delivered.

The company later faced financial difficulties. The Textile Commissioner repeatedly demanded delivery/accounting. The factory and residences were raided; the remaining cloth could not be traced. The appellants suggested that old cloth had been eaten by white ants/moths and thrown away as rubbish, but gave no contemporaneous notice or supporting records. The first appellant continued to visit the factory; the second handled correspondence. The High Court found that the appellants had dominion over the entrusted cloth.

**PROCEDURAL HISTORY**

A jury trial resulted in convictions under IPC §409 read with §34. The High Court found a misdirection affecting the jury verdict, reviewed the evidence and nevertheless upheld the conviction, reducing the first appellant's sentence from five to three years and the second's from four to one year. The appellants appealed to the Supreme Court by special leave.

**ISSUES**

1. Whether entrustment/dominion and dishonest misappropriation were proved though the precise mode of conversion was not shown by direct evidence.
2. Whether failure to return/account for Government cloth could support an inference of dishonest conversion.
3. Whether the Managing Director could be liable under joint liability although he was not physically present at the moment of removal.

**ARGUMENTS**

- **Appellants:** failure to return could create civil liability but not criminal breach of trust; the first appellant had moved to Ahmedabad, was occupied with insolvency proceedings and was not physically present in Bombay when the goods allegedly disappeared. The disappearance could be due to white ants/moths, disposal as rubbish or mortgagees' possession. The prosecution had no direct proof of the precise conversion.
- **Prosecution/State:** the cloth was Government property entrusted for a defined dyeing purpose; the appellants had dominion and admitted the balance. Repeated demands were ignored, the cloth was not found, the white-ant story was unsupported and false, records were not produced, and the course of conduct supported dishonest conversion. Directors participated in the common criminal act; physical presence was not necessary for this non-violent property offence.

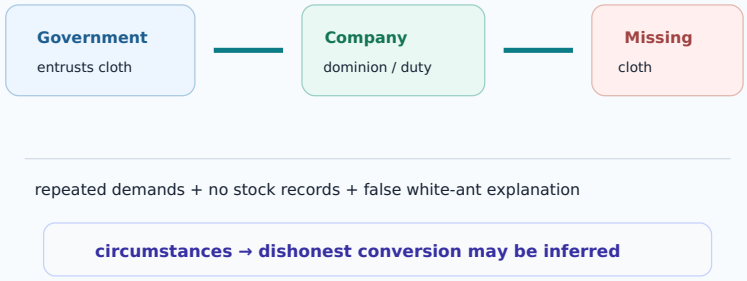
**DECISION**

The Supreme Court dismissed the appeals. It held that direct proof of the precise mode of conversion is not indispensable. Entrustment and failure to account, viewed with other circumstances, may justify an inference of dishonest misappropriation/conversion. Mere failure to account is not automatically enough, but an untrue explanation and surrounding circumstances can make the inference compelling. The Court also held that §34 IPC did not require physical presence in every offence: participation in the criminal act may be through acts done at different times and places; the necessary elements were common intention and participation in the action, not mere planning.

**Principles evolved:** (1) Entrustment/dominion is the foundation of CBT. (2) The prosecution need not prove the exact mechanics of misappropriation where circumstantial evidence establishes dishonest conversion. (3) Failure to account plus a false explanation and corroborating circumstances may support conviction, but failure alone is not conclusive. (4) Joint liability does not invariably require physical presence; it requires participation in a criminal act in furtherance of common intention.

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**Jaikrishnadas · entrustment → failure to account → inference**




Hypothetical memory diagram. It does not replace proof of entrustment and dishonest circumstances.

**BNS application:** Begin with §316(1). Apply §316(5) only if the person's specified status—public servant, banker, merchant, factor, broker, attorney or agent—fits the statutory language. BNS §3(5) is the common-intention bridge.

## Mahadeo Prasad v. State of West Bengal

AIR 1954 SC 724 · Supreme Court of India · IPC §420 · BNS §318(4)

**FACTS**

Mahadeo Prasad agreed to buy 25 ingots of tin from Dulichand Kheria at a price payable cash against delivery. The complainant had 14 ingots and purchased 11 more so that the entire quantity could be supplied. The goods were delivered at the appellant's guddi. Mahadeo took delivery, kept the Jamadar waiting and left without paying. The complainant had parted with the ingots because of the promise of cash payment.

Evidence showed that Mahadeo's bank overdraft was already close to its limit; on the date of delivery he had only a small margin and no evidence of expected funds sufficient to pay. He had also hypothecated 70 ingots to the bank. The defence claimed that the transaction was on credit, that the promise of cash was invented and that Mahadeo later went to negotiate a settlement.

**PROCEDURAL HISTORY**

The Additional Chief Presidency Magistrate convicted him under IPC §420 and sentenced him to one year's rigorous imprisonment. The Calcutta High Court affirmed. He appealed by special leave.

**ISSUE**

Whether failure to pay after receiving delivery was merely a civil breach of a sale contract, or whether Mahadeo had no intention to pay at the time of the promise and used that false promise to induce delivery—thereby committing cheating and dishonest inducement of delivery.

**ARGUMENTS**

- **Appellant:** non-payment ordinarily creates civil liability; he may have miscalculated his capacity or intended to pay later; the declining tin market made the seller anxious to sell; the bill mentioned interest for non-payment, showing a credit arrangement; his later attempt to settle showed absence of fraudulent intention.
- **Prosecution/State:** the seller was a stranger and agreed only to cash against delivery; Mahadeo knew his financial position and had no realistic funds; his conduct in taking goods and leaving without payment, bank hypothecation and surrounding circumstances showed that he never intended to pay and made the promise solely to obtain delivery.

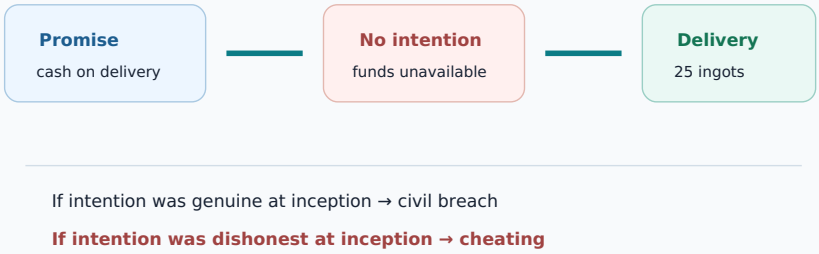
**DECISION**

The Supreme Court dismissed the appeal and upheld the conviction. If Mahadeo intended to pay when he promised cash and later failed, the case would be civil. But the evidence established that he had no intention to pay at the time of the promise; the promise was the deception/inducement that caused delivery. His later settlement effort did not erase the initial fraudulent intention.

**Principle evolved:** The decisive test for cheating is intention at the time of inducement. Subsequent failure to perform a genuine promise is not, by itself, cheating; a promise made without intention to perform to obtain property is cheating under IPC §420/BNS §318(4). Civil liability and criminal cheating can coexist where the inception facts establish deception.

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**Mahadeo Prasad · the inception-intention test**




Hypothetical exam visual: examine the mind at the time of promise, not merely the later non-payment.

**BNS application:** The serious property-delivery provision is §318(4): cheating plus dishonest inducement to deliver property. Ordinary §318(2) is not the correct maximum-punishment provision when delivery is proved.

## Akhil Kishore Ram v. Emperor

AIR 1938 Pat 185 · High Court of Judicature at Patna · IPC §§415/420 · BNS §§318(1)/(4)

**FACTS**

Akhil Kishore Ram operated a business selling charms and incantations, using thirteen aliases and advertising across several provinces. Six transactions were charged. An advertisement for "Gupta Mantra" promised that objects otherwise requiring lakhs could be achieved by repeating the mantra seven times; it stated that there was no hardship or preparation and offered a reward if the mantra proved fallible. Purchasers paid approximately ₹270 by value-payable post and received printed instructions: repeat the mantra, stare at the moon for fifteen minutes without blinking, maintain a special diet, bathe and keep the process secret.

The prosecution case was not that the Court had to decide whether magic could work. It was that the advertisement positively represented no hardship or preparation was needed, while the undisclosed instructions imposed a difficult condition. The victims said that if they had known the condition they would not have ordered the material. The trial and Sessions Courts convicted him on all charges.

**PROCEDURAL HISTORY**

The petitioner was convicted on six charges, tried in two batches, and sentenced to eighteen months' rigorous imprisonment in each trial, concurrently, with fines. Appeals to the Sessions Judge failed. He applied to the Patna High Court, challenging both the existence of cheating and the severity of sentence.

**ISSUE**

1. Whether the accused committed cheating merely because purchasers were disappointed and the Court did not share belief in incantations.
2. Whether the false assurance about no hardship/preparation and concealment of the condition constituted deception and dishonest inducement.
3. Whether the sentences were excessive.

**ARGUMENTS**

- **Petitioner/defence:** charms and incantations were accepted by many in India and could be genuinely believed in; the prosecution did not prove that the mantras were ineffective or that he knew them to be useless. The Court could not convict merely because it did not share the religious/material belief. Readers should have expected instructions; moon-gazing was not necessarily impossible. At most this was a technical or civil dispute, and sentence was excessive.
- **Prosecution/State:** the specific assurance that no hardship or preparation was needed was false or materially misleading; the actual instructions imposed a difficult condition which purchasers said would have changed their decision. The wide advertising, aliases, secrecy condition, reward promise and scale of business showed a calculated scheme to induce payment.

**DECISION**

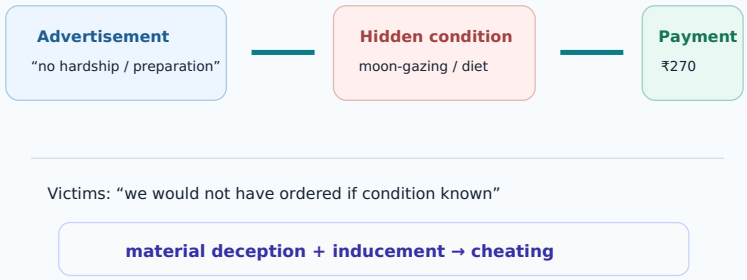
The Patna High Court dismissed the applications and upheld conviction. It held that the issue was not whether the mantra was genuinely effective but whether the advertisement deceived purchasers about a material condition and induced them to send money. The undisclosed moon-gazing/preparation requirement contradicted the assurance on which the victims acted. The scale, aliases and design of the business supported the inference of dishonest intention. The sentences were not excessive in the circumstances.

**Principle evolved:** Cheating may be established by a materially false representation or dishonest concealment about the conditions of a transaction. The prosecution need not prove the metaphysical inefficacy of a product when it proves that a

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specific representation about how it could be used was deceptive and induced payment. Good-faith belief is a factual defence only if it genuinely negatives deception/dishonesty.

**Akhil Kishore Ram · representation versus concealed condition**




Hypothetical visual of the Court's reasoning: the issue was a false material assurance, not whether the Court believed in magic.

**BNS application:** Use §318(1) for the ingredients and §318(4) where the deception dishonestly induced delivery of money/ property.

## 08 Case-law synthesis and exam propositions

| Case | Best proposition | Use it when facts show | BNS provision |
|---|---|---|---|
| **Jaikrishnadas** | Entrustment/dominion plus failure to account, false explanation and surrounding circumstances can prove dishonest conversion; exact mechanics need not be directly proved. | Government/company property missing after contract; directors/agents had control; accused claims loss/disposal but produces no records. | §316(1), appropriate status sub-section; §3(5) if common intention. |
| **Mahadeo Prasad** | Intention at inception separates cheating from later breach of contract. | Goods/money delivered on promise of payment, but accused already lacked funds or never intended performance. | §318(4). |
| **Akhil Kishore Ram** | False material assurance/concealment about conditions can be deception even if the seller claims belief in the product. | Advertisements, aliases, concealment, special condition, reward or misleading representation induces payment. | §318(1)/(4). |

**High-scoring conclusion:** Never say "the accused did not return property, therefore CBT" or "the contract was broken, therefore cheating." Identify the legally decisive antecedent—entrustment for CBT and dishonest intention at inception for cheating.

EXAMINATION QUESTION BANK // DU LL.B. PAPER LB-104

## Previous Year Examination Questions (PYQs)

**Q.01** Q4(b)/2019 · Direct DU PYQ Explain the difference between criminal misappropriation and criminal breach of trust.

◈ Refer website for detailed notes – makelaweasy.in ↗

**Q.02** DU Semester Exam · 20 marks "To establish an offence under Section 316 BNS (Section 405 IPC), there must be entrustment of property or dominion over property coupled with dishonest misappropriation or conversion." Discuss with reference to *Jaikrishnadas Manohardas Desai v. State of Bombay*.

**Q.03** DU Semester Exam · 20 marks Distinguish between mere civil breach of contract and the criminal offence of "Cheating" under Section 318 BNS (Section 415/420 IPC). At what point of time must dishonest or fraudulent intention exist? Explain in the light of *Mahadeo Prasad v. State of West Bengal*.

**Q.04** DU Semester Problem · 15 marks X published advertisements claiming that anyone reciting his "secret mystical charm" after paying ₹2,500 would effortlessly double their wealth within 30 days, knowing the claim to be bogus. Y sent ₹2,500 by money order relying on the advertisement. Examine X's criminal liability with reference to *Akhil Kishore Ram v. Emperor*.

**Q.05** DU Semester Problem · 15 marks A finds a valuable gold watch lying on a highway, not knowing to whom it belongs, and picks it up intending to trace the owner. Two weeks later, A discovers that the watch belongs to B, a neighbour, but pledges the watch with a pawnbroker for personal gain. What offence, if any, has A committed under the Bharatiya Nyaya Sanhita, 2023?

**Q.06** DU Short Note · 10 marks Explain "Cheating by Personation" under Section 319 BNS (Section 416/419 IPC) with suitable illustrations and judicial authorities.

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